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History of the Catholic Church from the Renaissance to the French Revolution — Volume 2

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HISTORY OF THE CATHOLIC CHURCH FROM THE RENAISSANCE TO THE FRENCH REVOLUTION

VOLUME II

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HISTORY OF THE CATHOLIC CHURCH

From the Renaissance to the French Revolution

CHAPTER I

RELIGIOUS CONDITION OF ENGLAND BEFORE THE REFORMATION

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With the advent of Henry VII. to the throne (1485) a new era opened in the history of England. The English nation, weakened by the Wars of the Roses and tired of a contest that possessed little interest for the masses, was not unwilling to submit itself without reserve to the guidance of a strong ruler provided he could guarantee peace

both at home and abroad. Practically speaking, hitherto absolutism had been unknown. The rights that had been won by the barons on the plains of Runnymede were guarded jealously by their descendants, and as a result the power of the king, more especially in regard to taxation, was hedged round by several restrictions. But during the long struggle between the houses of Lancaster and York many of the great feudal barons had fallen on the field of battle or by the hands of the executioner, and the power of the nobles as a body had been undermined. While the Lords could muster their own retainers under their standard and put into the field a strong army almost at a moment's notice, it was impossible for the sovereign to rule as an absolute monarch. It was because he recognised this fact that Henry VII. took steps to enforce the Statute of Liveries passed by one of his predecessors, and to provide that armies could be levied only in the king's name.

The day of government by the aristocracy had passed for ever to be succeeded by the rule of the people, but in the interval between the sinking of one and the rise of the other Tudor absolutism was established firmly in England. In selecting his ministers Henry VII. passed over the nobles in favour of the middle classes, which were gaining ground rapidly in the country, but which had not yet realised their strength as they did later in the days of the Stuarts. He obtained grants of tonnage and poundage enjoyed by some of his Yorkist predecessors, had recourse to the system of forced grants known as benevolences, set up the Star Chamber nominally to preserve order but in reality to repress his most dangerous opponents, and treated Parliament as a mere machine, whose only work was to register the wishes of the sovereign. In brief, Henry VII., acting according to the spirit of the age, removed the elements that might make for national disunion, consolidated his own power at the expense of the nobility, won over to his side the middle and lower classes whose interests were promoted and from whom no danger was to be feared, and laid the foundations of that absolute government, which was carried to its logical conclusions by his son and successor, Henry VIII.

By nature Henry VII. was neither overbearing nor devoid of tact, and from the doubtful character of his title to the throne he was obliged to be circumspect in his dealings with the nation. It was not so, however, with Henry VIII. He was a young, impulsive, self-willed ruler, freed from nearly all the dangers that had acted as a restraint upon his father, surrounded for the most part by upstarts who had no will except to please their master, and intensely popular with the merchants, farmers, and labourers, whose welfare was consulted, and who were removed so far from court that they knew little of royal policy or royal oppression. The House of Lords, comprising as it did representatives of the clergy and nobles, felt itself entirely at the mercy of the king, and its members, alarmed by the fate of all those who had ventured to oppose his wishes, would have decreed the abolition of their privileges rather than incur his displeasure, had they been called upon to do so. The House of Commons was composed to a great extent of the nominees of the Crown, whose names were forwarded to the sheriffs for formal confirmation. The Parliament of 1523 did show some resistance to the financial demands necessitated by the war with France, but the king's answer was to dissolve it, and to govern England by royal decrees for a space of six years. Fearing for the results of the divorce proceedings

and anxious to carry the country with him in his campaign against the Pope, Henry VIII. convoked another Parliament (1529), but he took careful measures to ensure that the new House of Commons would not run counter to his wishes. Lists of persons who were known to be jealous of the powers of the Church and to be sympathetic towards any movement that might limit the pretensions of the clergy were forwarded to the sheriffs, and in due course reliable men were returned. That the majority of the members of the lower House were hostile to the privileges of the Church is clear enough, but there is no evidence that any important section desired a reformation which would involve a change of doctrine or separation from Rome. The legislation directed against the rights of the Pope sanctioned by this Parliament was accepted solely through the influence of royal threats and blandishments, and because the Parliament had no will of its own. Were the members free to speak and act according to their own sentiments it is impossible to believe that they would have confirmed and annulled the successive marriages of the king, altered and realtered the succession to meet every new matrimonial fancy of his, and proved themselves such negligent guardians of the rights of the English nation as to allow him to dispose of the crown of England by will as he might dispose of his private possessions. Henry VIII. was undisputed master of England, of its nobles, clergy, and people, of its Convocation, and Parliament. His will was the law. Unless this outstanding fact, royal absolutism and dictatorship be realised, it is impossible to understand how a whole nation, which till that time had accepted the Pope as the Head of the Church, could have been torn against its will from the centre of unity, separated from the rest of the Catholic world, and subjected to the spiritual jurisdiction of a sovereign, whose primary motive in effecting such a revolution was the gratification of his own unbridled passions.

It is not true to assert, as some writers have asserted, that before the Reformation England was a land shrouded in the mists of ignorance; that there were no schools or colleges for imparting secular education till the days of Edward VI.; that apart from practices such as pilgrimages, indulgences, and invocation of the saints, there was no real religion among the masses; that both secular and regular clergy lived after a manner more likely to scandalise than to edify the faithful; that the people were up in arms against the exactions and privileges of the clergy, and that all parties only awaited the advent of a strong leader to throw off the yoke of Rome. These are sweeping generalisations based upon isolated abuses put forward merely to discredit the English mediaeval Church, but wholly unacceptable to those who are best acquainted with the history of the period. On the other side it would be equally wrong to state that everything was so perfect in England that no reforms were required. Many abuses, undoubtedly, had arisen in various departments of religious life, but these abuses were of such a kind that they might have been removed had the Convocations of the clergy been free to pursue their course, nor do they justify an indiscriminate condemnation of the entire ecclesiastical body.

It is true that the Renaissance movement had made great progress on the other side of the Alps before its influence could be felt even in educated circles in England, but once the attention of the English scholars was drawn to the revival of classical studies many of them made their way to the great masters of Italy, and returned to utilise the knowledge they had acquired for the improvement of the educational

system of their country. Selling and Hadley, both monks, Linacre, one of the leaders of medical science in his own time, Dean Colet of Westminster whose direction of St. Paul's College did so much to improve the curriculum of the schools,[1] Bishop Fisher of Rochester described by Erasmus as "a man without equal at this time both as to integrity of life, learning, or broadminded sympathies" with the possible exception of Archbishop Warham of Canterbury,[2] and Sir Thomas More, Lord Chancellor of England and one of the earliest martyrs for the faith in the reign of Henry VIII., were but a few of the prominent men in a movement that made itself felt throughout the entire country. Nowhere did Erasmus find a more enthusiastic welcome or more generous patrons and nowhere were his writings more thoroughly appreciated than in England.

Nor is it true to say that the advocates of classical learning were animated by hostility to the Catholic Church in their demand for an improvement in educational methods. Some murmurs were, indeed, heard in certain quarters, and charges of unorthodoxy were formulated vaguely against Colet and others of his party, but these were but the criticisms levelled in all ages against those who are in advance of their time, nor do they require serious refutation. The English Humanists had nothing in common with the neo-pagan writers of the Italian Renaissance as regards religion, and they gave no indication of hostility to Rome. Whatever other influences may have contributed to bring about the religious revolution in England, it was certainly not due to the Renaissance, for to a man its disciples were as loyal to the Catholic Church as were their two greatest leaders Fisher and More, who laid down their lives rather than prove disloyal to the successor of St. Peter.

Nor was education generally neglected in the country. The lists of students attending Oxford and Cambridge[3] in so far as they have been preserved point to the fact that in the days immediately preceding the Reformation these great seats of learning were in a most flourishing condition, and that for them the religious revolt fell little short of proving disastrous. The explanation of the sudden drop in the number of students attending the universities is to be found partially at least in the disturbed condition of the country, but more particularly in the destruction of the religious houses, which sent up many of their members to Oxford and Cambridge, and which prepared a great number of pupils in their schools for university matriculation, as well as in the confiscation of the funds out of which bishops, chapters, monasteries, religious confraternities, and religious guilds, presented exhibitions to enable the children of the poor to avail themselves of the advantages of higher education. Nor was England of the fifteenth century without a good system of secondary schools. It is a common belief that Edward VI. was the founder of English secondary colleges, and that during the first fifty years after the Reformation more was done for this department of education than had been done in the preceding three hundred years. That such a belief is entirely erroneous may be proved from the records of the commissions held in the reigns of Henry VIII. and Edward VI., from which it appears that there were close on three hundred secondary schools in England before 1549, and that Henry VIII. and particularly Edward VI. ought to be regarded as the despoilers rather than as the patrons of the English colleges. Distinct from the universities and from the mere primary schools there were in existence at

the beginning of the reign of Henry VIII. seven classes of educational establishments, namely, cathedral, collegiate, and monastic colleges, colleges in connexion with hospitals, guilds, chantries, and independent institutions. These were worked in perfect co-ordination with the universities, and in most cases exhibitions were provided for the poorer scholars. "The Grammar Schools which existed," says a reliable authority, "were not mere monkish schools or choristers' schools or elementary schools. Many of them were the same schools which now live and thrive. All were schools of exactly the same type, and performing precisely the same sort of functions as the public schools and grammar schools of to-day. There were indeed also choristers' schools and elementary schools. There were scholarships at schools and exhibitions thence to the universities, and the whole paraphernalia of secondary education. Nor was secondary education understood in any different sense to that in which it was understood up to fifty years ago. It was conducted on the same lines and in the main by instruments of the same kind, if not identically the same, as those in use till the present generation."[4]

It cannot be said with justice that the English people at the time were either badly instructed in the principles of their religion or indifferent to the practices of the Church to which they belonged. The decrees of the Synod of Oxford (1281), commanding the clergy who had care of souls to explain regularly in simple language, intelligible to their hearers the articles of the creed, the commandments, the sacraments, the seven deadly sins and the seven works of mercy, were renewed more than once, and presumably were enforced by the bishops. The books published for the instruction of the faithful as for example, /The Work for Householders/, /Dives et Pauper/, /The Interpretation and Signification of the Mass/, /The Art of Good Living/, etc., emphasise very strongly the duty of attending the religious instruction given by the clergy, while the manuals written for the guidance of the clergy make it very clear that preaching was a portion of their duties that should not be neglected. The fact that religious books of this kind were multiplied so quickly, once the art of printing had been discovered, affords strong evidence that neither priests nor people were unmindful of the need for a thorough understanding of the truths of their religion. The visitations of the parishes, during which some of the prominent parishioners were summoned to give evidence about the manner in which the priests performed their duty of instructing the people, were in themselves a great safeguard against pastoral negligence, and so far as they have been published they afford no grounds for the statement that the people were left in ignorance regarding the doctrines and practices of their religion. Apart entirely from the work done by the clergy in the pulpits and churches, it should be remembered that in the cities and even in the most remote of the rural parishes religious dramas were staged at regular intervals, and were of the greatest assistance in bringing before the minds even of the most uneducated the leading events of biblical history and the principal truths of Christianity.

That the people of England as a body hearkened to the instructions of their pastors is clear enough from the testimony of foreign visitors, from the records of the episcopal visitations, the pilgrimages to shrines of devotion at home and abroad, from the anxiety for God's honour and glory as shown in the zeal which dictated the

building or decoration of so many beautiful cathedrals and churches, the funds for which were provided by rich and poor alike, and from the spirit of charity displayed in the numerous bequests for the relief of the poor and the suffering. The people of England at the beginning of the sixteenth century were neither idol-worshippers nor victims of a blind superstition. They understood just as well as Catholics understand at the present day devotions to Our Lady and to the Saints; Images, Pictures and Statues, Purgatory, Indulgences and the effects of the Mass. Nor were they so ignorant of the Sacred Scriptures as is commonly supposed. The sermons were based upon some Scripture text taken as a rule from the epistle and gospel proper to the Sunday or festival, and were illustrated with a wealth of references and allusions drawn from both the Old and New Testament sufficient to make it clear that the Bible was not a sealed book either for the clergy or laity. The fact that there was such a demand for commentaries on and concordances to the Scriptures makes it clear that the clergy realised sufficiently the importance of Scriptural teaching from the pulpits, and the abundant quotations to be found in the books of popular devotion, not to speak of the religious dramas based upon events in biblical history, go far to show that the needs of the laity in this respect were not overlooked.[5]

It is said, however, that the use of the Scriptures in the vernacular was forbidden to the English people, and a decree of a Synod held at Oxford in 1408 is cited in proof of this statement. The Synod of Oxford did not forbid the use of vernacular versions. It forbade the publication or use of unauthorised translations,[6] and in the circumstances of the time, when the Lollard heretics were strong and were endeavouring to win over the people to their views by disseminating corrupt versions of the Scripture, such a prohibition is not unintelligible. It should be borne in mind that French was the language of the educated and was the official language of the English law courts and of the Parliament till after 1360. The French or Latin versions then current were, therefore, amply sufficient for those who were likely to derive any advantage from the study of the Bible, while at the same time the metrical paraphrases of the important books of the Old Testament and of the Gospels and Acts of the Apostles, and the English prose translation of the Psalms, went far to meet the wants of the masses. From the clear evidence of writers like Sir Thomas More, Lord Chancellor of England and one of the best informed men of his time, of Cranmer, the first Protestant Archbishop of Canterbury, and of Foxe the author of the so-called Martyrology, it can be established beyond the shadow of a doubt that prior to the Reformation there existed an English Catholic version of the Scriptures, which was approved for use by the ecclesiastical authorities.[7] It is true, indeed, that the bishops of England made extraordinary efforts to prevent the circulation of the versions made by Tyndale and Coverdale, but considering the glosses, the corruptions, and the mis-translations with which these abound no fair-minded person could expect them to have acted otherwise. Their action was not dictated by hostility to the reading of the Scriptures but by their opposition to heretical doctrines, which it was sought to disseminate among the people by means of dishonest versions of the Scriptures. The English bishops were not content merely with prohibiting the use of these works. They were most anxious to bring out a correct translation of the Scriptures for general use, and were prevented from doing so only by the action of

Henry VIII. and of the heretical advisers, who urged him to make it impossible for the bishops to carry out their design.[8]

It would, however, be far from the truth to assert that everything was faultless during the years preceding the Reformation, or that all the clergy were as perfect as they might have been. England, like every other country at the same period, was afflicted with the terrible evils resulting from the appropriation of parishes by laymen and by religious establishments, a system which made it impossible for a bishop to govern his diocese properly, from the non-residence of both bishops and higher clergy, and from the plurality of benefices, which meant that a person might be permitted to hold two or more benefices to which the care of souls was attached, thereby rending impossible the proper discharge of pastoral duties. More priests, too, were ordained than could be provided with appointments, and consequently many of the clergy were forced to act as chaplains and tutors in private families, where they were treated as servants rather than as equals, and where it was only too easy for them to lose the sense of respect for their dignity and for themselves, and to sink to the level of those with whom they were obliged to consort. It is not to be wondered at if evidence is forthcoming that in particular cases, more especially in Wales, clerical celibacy was not observed as it should have been, or that in several instances the duty of preaching and instructing the people was not discharged, nor is it surprising to find that men who were comparatively unlearned were promoted over the heads of their more educated companions to the disgust of the universities and of those interested in the better education of the clergy. Considering the fact that so many of the bishops were engaged in the service of the State to the neglect of their duties in their dioceses, and bearing also in mind the selfish use made too frequently of the rights of lay patronage and the disorganisation to which even the most enlightened use of such patronage was likely to lead, it is little less than marvellous that the great body of the clergy were as educated, zealous, and irreproachable as they can be proved to have been.

As a result of the disorganisation wrought by the Black Plague, the civil strife which disturbed the peace of the country, and the constant interference of the crown and lay patrons, many of the religious houses, influenced to some extent by the general spirit of laxity peculiar to the age, fell far short of the standard of severity and discipline that had been set in better days. While on the one hand it should be admitted freely that some of the monastic and conventual establishments stood in urgent need of reform, there is, on the other side, no sufficient evidence to support the wild charges of wholesale corruption and immorality levelled against the monks and nuns of England by those who thirsted for their destruction. The main foundation for such an accusation is to be sought for in the letters and reports (/Comperta/) of the commissioners sent out to examine into the condition of the monasteries and convents in 1535. Even if these documents could be relied upon as perfectly trustworthy they affect only a very small percentage of the religious houses, since not more than one-third of these establishments were visited by the commissioners during their hurried tour through the country, and as regards the houses visited serious crimes were preferred against at most two hundred and fifty monks and nuns.

But there are many solid grounds for rejecting the reliability of these documents. The commissioners were appointed by Cromwell with the professed object of preparing the public mind for the suppression of the monasteries and convents. They showed themselves to be his most obsequious agents, always ready to accept as testimony popular rumours and suspicions founded in many cases on personal dislikes, and, like their master, more anxious to extract money bribes from the religious than to arrive at the truth about their lives or the condition of their establishments. That they were prejudiced witnesses, arrogant and cruel towards the monks and nuns, and willing to do anything that might win them the approval of Cromwell and the king is evident from their own letters and reports, while if we are to credit the statements of contemporaries, backed by a tradition, which survived for centuries amongst the Catholic body in England, they were most unscrupulous and immoral in their attitude towards the unfortunate nuns who were placed at their mercy. Indeed the charges which they make are so filthy and repulsive, and the delight with which they revel in such abominations is so apparent, that one is forced to the conviction that they must have been men of depraved tastes quite capable of committing or of attempting to commit the crimes laid to their charge. Even if it had been otherwise, had the two commissioners been unprejudiced and fair in their proceedings, it is impossible to understand how they could have had an opportunity of making a really searching investigation into the condition of the monasteries and convents during the short time assigned for the work. They began only in July 1535 and their work was completed in February 1536.

In favour of the reliability of these reports the fact is urged that they were placed before Parliament, and that the members of both Houses were so impressed by the tale of corruption and wickedness which they disclosed that they decided on the immediate suppression of the monasteries. If this were true and if Parliament in the days of Henry VIII. enjoyed the same rights and privileges as it enjoys to-day such action would be in itself a strong corroboration of the veracity of the commissioners. But there is no sufficient evidence to prove that the reports or compilations made from them were ever submitted to Parliament. The king and Cromwell informed the Houses of the charges made by the commissioners, and demanded their consent to the bill of suppression. The whole measure was passed in a few days (11th to 18th March, 1536) and there is no proof that the /Comperta/ or a "Black Book" were presented to the members. On the contrary, it is clear from the preamble to the Act that in the larger monasteries "religion was right well kept and observed," and that it was only in the smaller houses with less than twelve members that disorder and corruption existed, whereas in the reports of the commissioners no such distinction is observed, the charges being levelled just as strongly against the larger as against the smaller communities. Had Parliament been in possession of the reports or had there been any adequate discussion, it is difficult to see how such an arbitrary distinction, founded neither on the nature of things, nor on the findings of the commissioners, could have been allowed to pass. It is noteworthy too that many of the individuals, whose names were associated in the /Comperta/ with very serious crimes, were placed in the possession of pensions on the dissolution of the monasteries, and some of them were promoted to the highest ecclesiastical offices in the gift of the crown.

Besides, if the reports of Leigh and Leyton be compared with the episcopal visitations of the same houses or with those of the royal visitors appointed in 1536 to carry out the suppression of the smaller monasteries, it will be found that in regard to the very same houses there exists a very open contradiction between their findings. Unfortunately the accounts of the visitations have disappeared to a great extent except in case of the diocese of Norwich. In this diocese the visitations were carried out very strictly and very minutely, and although some abuses were detected the bishop could find nothing of the wholesale corruption and immorality discovered a few years later by the minions of Cromwell. Similarly the commission appointed in 1536 to superintend the suppression decreed in that year, the members of which were drawn from the leading men in each county, report in the highest terms of houses which were spoken of as hot-beds of iniquity only a few months before. Finally, if the monasteries and convents were really so bad as they are painted, it is a curious fact that although Leigh and Leyton were empowered by Cromwell to open the doors to many of the monks and nuns they could find in the thirteen counties which they visited only two nuns and fifty-three monks willing to avail themselves of the liberty which they offered.[9]

As a general rule the monasteries were regarded with kindly feelings by the great body of the people on account of their charity and hospitality towards the poor and the wayfarer, their leniency and generosity as compared with other employers and landlords, their schools which did so much for the education of the district, and their orphanages and hospitals. Many of them were exceedingly wealthy, while some of them found it difficult to procure the means of existence, and all of them suffered greatly from the financial burdens imposed upon them in the shape of pensions, etc., by the king or by the family by whom their endowments were provided originally. For this reason some of the religious houses, imitating the example of the landowners generally, began to form grazing enclosures[10] out of their estates which had been hitherto under cultivation, a step that led in some cases to eviction and in all cases to a great reduction in the number of labourers employed. Others of them set up tanneries and such like industries that had been best left to the laymen. These measures led to ill-feeling and to a certain amount of hostility, but that the religious houses were not hated by the people is proved to demonstration by the rebellions which their suppression evoked in so many different parts of the country.

It may be said in a general way that the relations between priests and people were neither particularly close nor particularly strained. The rights and privileges claimed by the clergy did indeed give rise to murmurings and complaints in certain quarters, but these were neither so serious nor so general as to indicate anything like a deep-rooted and sharp division between priests and people. The question of the rights of sanctuary, according to which criminals who escaped into the enclosures of monasteries and churches were guaranteed protection from arrest, led to a sharp conflict between the ecclesiastical and secular jurisdictions, but with a little moderation on both sides it was not a matter that could have excited permanent ill-feeling. In the days when might was right the privileges of sanctuary served a useful purpose. That in later times they occasioned serious abuses could not be denied, and on the accession of Henry VII. the Pope restricted the rights of sanctuary

very considerably, thereby setting an example which it was to be expected would have been followed by his successors. The /privilegium fori/, by which clerics were exempted from punishment by a secular tribunal, was another cause of considerable friction. In 1512 Parliament passed a law abolishing this privilege in case of clerics accused of murder, etc., and though it was to have force only for two years it excited the apprehension of the clergy more on account of what it heralded than of what it actually enacted. When it came up again for discussion in 1515 even those of the clergy who were most remarkable for their subservience to the king protested vehemently against it. In a discussion that took place in the presence of Henry VII. one of the friars brought forward many arguments to prove that such a law was not outside the competence of the state, much to the disgust of the bishops and of Cardinal Wolsey. The king was most emphatic in his declaration that he intended to take such action as would vindicate and safeguard his rights as supreme lord of England, but notwithstanding this sharp reproof to his opponents the measure was allowed to drop.

The excessive fees charged in the episcopal courts for the probate of wills, the gifts known as mortuaries claimed on occasions of death, the absence of the bishops and the clergy from their dioceses and parishes to the consequent neglect of their duties to the people, the bestowal of benefices oftentimes on poorly qualified clerics to the exclusion of learned and zealous priests, the appointment of clerics to positions that should have been filled by laymen on the lands of the bishops and monasteries, and the interference of some of the clergy both secular and regular in purely secular pursuits were the principal grievances brought forward in 1529 by the House of Commons against the spirituality. But in determining the value of such a document it should be remembered that it was inspired by the king, and in fact drafted by Thomas Cromwell, at a time when both king and minister were determined to crush the power of the Church, and that, therefore, it is not unreasonable to expect that it is exaggerated and unfair. According to the express statement of Sir Thomas More, Lord Chancellor of England, who was in a position to know and appreciate the relations between clergy and people, the division was neither so acute nor so serious as it was painted by those who wished to favour religious innovations or to ingratiate themselves with the king and his advisers.[11]

But, even though there existed some differences of opinion about matters concerned with the temporalities of the Church or the privileges of the clergy, there is no indication during the thirty years preceding the revolt of any marked hostility to the doctrines and practices of the Church. In an earlier age the Lollards, as the followers of Wycliff were called, put forward doctrines closely akin to those advocated by the early Reformers, notably in regard to the constitution of the Church, the Papacy, the Scriptures, Transubstantiation, Purgatory, and Tradition, but the severe measures adopted by both Church and State had succeeded in breaking the influence of Lollardy in England. Very few if any followers of this sect remained to disturb the peace of the community in the early years of the reign of Henry VIII., though it is quite possible that the memory of their teaching and of the sturdy struggle which they had waged did not fail to produce its effects at a later period. It is true that in 1512 the statement is attributed to the Bishop of London in connexion

with the trial of an ecclesiastic, that on account of their leaning towards heresy any twelve men of the city would bring in a verdict of guilty against a cleric placed on his trial before them,[12] but it is impossible to believe that such a statement conveys an accurate view of the state of affairs. It is out of harmony with the results of the episcopal visitations, with the records of the few trials for heresy which took place, most of which resulted in the repentance of the alleged culprits, and with the considered judgment of such a well qualified contemporary authority as Sir Thomas More.

It is certain that during the first quarter of the sixteenth century the student of history will search in vain for any evidence of opposition among the clergy and people of England to the spiritual supremacy of the Holy See. Disputes there had been, some of which were peculiarly bitter in their tone, between the English sovereigns and the Pope. Complaints had been made by the clergy against what they considered the unwarranted interferences of the Roman Curia in domestic affairs; but these disputes and complaints were concerned either with purely secular matters, as for example the annual tribute claimed by the Holy See since the famous surrender of the kingdom made by King John, or with the temporal side of the spiritual jurisdiction. The clergy and people resented generally the wholesale rights of reservation exercised by the Pope in regard to English benefices, the appointment of foreigners to offices in England, the heavy taxes levied by the Roman Curia directly or indirectly in the shape of Annats or First Fruits, the withdrawal of comparatively trivial cases from the local courts, and the exercise of jurisdiction over the highest dignitaries of England by the legates commissioned by the Holy See. But it is one thing to criticise the actual working of papal supremacy as interpreted by Roman officials, or to seek to limit its exercise in the every-day life of any particular church, and another to call in question the supremacy itself. The English clergy and people did, indeed, object to allow papal supremacy to be pushed too far in what they regarded as purely domestic affairs, but even in the most prolonged and heated discussions they never once questioned the fact that the Pope was Supreme Head of the Church in England, or that he was Supreme Head of the Catholic Church throughout the world.

The Statute of Provisors (1350-1), by which all appointments to English benefices were to be made by canonical election or by the nomination of lay patrons to the exclusion of papal provisions, is cited sometimes as a proof that the English nation disregarded the claims of the Holy See, but with equal justice and for a similar reason it might be maintained that the Council of Trent rejected the Supremacy of the Pope (Session xxiv., chap. 19). The Statute was called for, owing to the spiritual and economic losses inflicted on the country by the appointment of foreigners, and its passage was secured mainly by the lay patrons, whose rights of patronage were infringed by the constant stream of papal provisions. It was neither inspired by hostility to the Holy See, nor by any doubt about the supremacy of the Pope, and in itself it was a piece of legislation that might have merited the approval of the most loyal supporters of Rome. But as a matter of fact, lest their acceptance of such a measure might be misunderstood, the English bishops offered the most strenuous opposition to the Statute of Provisors and insisted that their protests against it should be registered, a policy which, it might be added, was followed by the University of

Oxford. The bishops demanded later on that it should be repealed. Their request was not granted, but from the numerous provisions made to bishoprics in England and from the appointments made to English benefices during the fifteenth and sixteenth centuries it is evident that the Statute was allowed to fall into abeyance. Similarly the Statute of Praemunire (1353) by which it was forbidden under the penalty of forfeiture and outlawry to bring cases cognizable in the English courts before foreign courts, or to introduce into the realm provisions, reservations, or letters contrary to the rights of the king or his subjects, was passed to prevent an undoubted abuse at the time, and was enforced rarely as the frequent appeals to Rome amply prove.

These measures serve to indicate at most only the attitude of the Crown towards the Pope, not the attitude of the English clergy and people. The loyal submission of the latter is evidenced from the papal appointments to bishoprics and benefices, from the First Fruits paid willingly to the Holy See by those who were called upon to pay them, by the constant interference of the Holy See in regard to the division and boundaries of parishes, the visitation of monasteries, the rights of bishops, etc., as well as by the courts held in England in virtue of the jurisdiction of the Pope. That the Pope was above the law and that to dispute the authority of a papal decree was to be guilty of heresy was a principle recognised by the English ecclesiastical authorities and accepted also in practice by English jurists. The oaths of loyalty to the Holy See taken by all the archbishops and bishops, the tone and form of the letters addressed to the Pope, the assertion of papal rights against the errors and attacks of Wycliff and Luther, the full admission of papal supremacy contained in Henry VIII.'s /Assertio Septem Sacramentorum/, and in the formal dying declaration of Archbishop Warham of Canterbury (1533), and the resolute attitude of two such learned representatives of the English clergy and laity as Bishop Fisher of Rochester and Sir Thomas More, are in themselves sufficient to establish the fact that in the days of Henry VIII. England joined with the rest of the Catholic world in recognising the supreme spiritual jurisdiction of the Bishop of Rome.[13]

The controversies which had raged were not concerned with spiritual supremacy nor were they peculiar to England. Much worse ones had arisen to disturb the friendly relations that should exist between the Holy See and France or Spain, and yet nobody would care to deny that both of these nations acknowledged their subjection to Rome. Neither were they between the English clergy or the English people and the Pope; they were waged rather between the Crown and the Holy See. As royal absolutism began to develop in Europe the policy of kings was to increase their power over the ecclesiastical organisation in their dominions by lessening the authority of the Pope. This tendency is brought out clearly in the concessions wrung from the Pope by Ferdinand I. of Spain and Louis XII. of France, but more especially in the Concordat negotiated between Leo X. and Francis I. (1516), according to which all appointments in the French Church were vested practically in the hands of the king. Henry VIII. was a careful observer of Continental affairs and was as anxious as Francis I. to strengthen his own position by grasping the authority of the Church. He secured a /de facto/ headship of the Church in England when he succeeded in getting Cardinal Wolsey invested with permanent legatine powers. Through Wolsey he governed ecclesiastical affairs in England for years, and on the fall of Wolsey he took

into his own hands the control that he had exercised already through his favourite and minister. Had Leo X. consented to a concordat similar to that concluded with France, whereby the royal demands would have been conceded frankly and occasions of dispute removed, or else had he taken the strong step of refusing to delegate his authority indefinitely to a minister of the king, he would have prevented trouble and misunderstanding, and would have made the battle for royal supremacy much more difficult than it proved to be in reality. ----------

[1] Lupton, /Life of Dean Colet/, 1887.

[2] Gasquet, /Eve of the Reformation/, 142.

[3] Chalmers, /History of the College ... of Oxford/. Mullinger, /The University of Cambridge to 1535/.

[4] Leach, /English Schools at the Reformation/, 1896, p. 6 (a valuable book).

[5] Gasquet, op. cit., ix-xiii., English works of Sir Thomas More, 1557, (especially /The Dyalogue/, 1529).

[6] Wilkins, /Concilia/, iii. 317.

[7] Gasquet, op. cit., chap. viii., /The Old English Bible/, iv., v. Maitland, /The Dark Ages/, 1845, no. xii.

[8] Gairdner, /Lollardy and the Reformation/, vol. ii., 221-303.

[9] On this subject, cf. Gasquet, /Henry VIII. and the English Monasteries/. Gairdner, /Lollardy and the Reformation/, vol. ii., 3-221. Jessopp, /Visitation of the Diocese of Norwich/, 1492-1532 (Camden Society).

[10] /Cambridge Modern History/, i., chap. xv.

[11] On the relations between the clergy and the laity, cf. Gairdner, op. cit., vol. i., 243-86. Gasquet, op. cit., chap. iii.-v. Gairdner, /History of the English Church in the Sixteenth Century/, 41-59.

[12] Gairdner, /History of the English Church/, p. 31.

[13] On this subject, cf. Lingard, /History of England/, iii., 126-33. Wilkins, /Concilia/ (for documents bearing on the authority of the Pope in England, see Index to this work). Lyndewood's /Provinciale seu Constitutiones Angliae/ (1501, Synodal Constitutions of the Province of Canterbury). Moyes, /How English Bishops were made before the Reformation/ (/Tablet/, Dec., 1893). Maitland, /The Roman Law in the Church of England, and English Law and the Renaissance/, 1901. Gairdner, /Lollardy/, etc., i., 495-8.

CHAPTER II

THE RELIGIOUS CHANGES UNDER HENRY VIII. AND EDWARD VI.

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/Lollardy and the Reformation/, 4 vols., 1908-13. Dodd, /Church History of England (1500-1688)/, 1737-42 (a new edition by Tierney, 5 vols., 1839). Sander, /Rise and Growth of the Anglican Schism/ (trans. by Lewis), 1877. Gasquet, /Short History of the Catholic Church in England/, 1903. Dixon, /History of the Church in England from 1529/, 6 vols., London, 1878-1902. Cobbett, /A History of the Reformation in England and Ireland/ (edited by Gasquet). Pocock, /Records of the Reformation/ 2 vols., 1870. Burnet, /History of the Reformation/ (edited by Pocock), 1865. Gasquet and Bishop, /Edward VI. and the Book of Common Prayer/, 1890. Taunton, /The English Black Monks of St. Benedict/, 2 vols., 1897. Camm, /Lives of the English Martyrs/ vol. i., 1904. Stone, /An Account of the Sufferings of the English Franciscans, during the Sixteenth and Seventeenth Centuries/, 1892. Pollen, /Acts of English Martyrs/, etc., 1891. Spillman, /Die Englischen Martyrer unter Heinrich VIII./, 2 auf., 1900. /Martyrum Monachorum Carthusianorum in Anglia passio/, etc. (/An. Bolland./, 1903). /The Month/ (1882, 1883, 1902, 1905).

The accession of Henry VIII. (1509-47) was hailed with joy by all classes in England. Young, handsome, well-developed both in mind and body, fond of outdoor games and amusements, affable and generous with whomsoever he came into contact, he was to all appearances qualified perfectly for the high office to which he had succeeded. With the exception of Empson and Dudley, who were sacrificed for their share in the execution of his father, most of the old advisers were retained at the royal court; but the chief confidants on whose advice he relied principally were his Chancellor Warham, Archbishop of Canterbury and Lord Chancellor of England, Richard Fox, Bishop of Winchester and Lord Privy Seal, and Thomas Howard, afterwards Duke of Norfolk, Lord Treasurer of the kingdom. Soon, however, these trusted and loyal advisers were obliged to make way for a young and rising ecclesiastical courtier, Thomas Wolsey[1] (1471-1530), who for close on twenty years retained the first place in the affections of his sovereign and the chief voice in the direction of English affairs. As a youth, Wolsey's marvellous abilities astonished his teachers at Magdalen College, where the boy bachelor, as he was called because he obtained the B.A. degree at the age of fifteen, was regarded as a prodigy. As a young man he was pushed forward by his patrons, the Archbishop of Canterbury and the Bishop of Winchester, and won favour at court by the successful accomplishment of a delicate mission entrusted to him by Henry VII., till at last in 1511 he was honoured by a seat in the privy council. New dignities were heaped upon him by Pope and sovereign in turn. He was appointed Bishop of Lincoln and Archbishop of York (1514), was created a cardinal of the Roman Church (1515), and in a short time he accepted the offices of Lord Chancellor and papal legate for England. If he did not succeed in reaching the papal throne, a dignity to which he was induced to aspire by the promise of Charles V., his position as legate made him at least virtual head of the English Church. Instead of being annoyed, Henry VIII. was delighted at the honours showered upon his Lord Chancellor by the Roman court. With Wolsey as his obedient minister and at the same time an ecclesiastical dictator, he felt that he had more authority in ecclesiastical affairs than was granted to Francis I. by the Concordat of 1516, and, though possibly at the time he did not advert to it, he was thus preparing the way for exercising in his own name the control that he had exercised for years

through his chief minister in the name of the Pope.

The dream of reconquering the English possessions in France induced Henry VIII., during the early years of his reign, to side with the Emperor Maximilian and Ferdinand of Spain against Louis XII.; but the comparative failure of the expeditions undertaken against France, the resentment of the people who were burdened with taxation, and the advice of Cardinal Wolsey, led him to forego his schemes of conquest for a time in favour of a policy of neutrality. The election of Charles V. in 1519 changed the whole aspect of affairs on the Continent, and raised new hopes both in the minds of Henry VIII. and of his faithful minister. An alliance with Charles V. might mean for England the complete subjugation of France, and for Cardinal Wolsey the votes of the cardinals at the approaching conclave. While pretending to act the part of mediator between the rival sovereigns, Henry concluded a secret alliance with the Emperor in 1521, and prepared to make war on France. The failure of the forces dispatched under the Earl of Surrey, the disappointment of Wolsey when he found himself deceived by Charles V. at the conclaves of 1521 and 1523, and the outcry raised in Parliament and throughout the country against the French war, induced Henry VIII. to reconsider his foreign policy. The defeat and capture of Francis I. at Pavia (1525) placed France at the mercy of the Emperor, and made it necessary for Henry to come to the relief of his old enemy unless he wished to see England sink to the level of an imperial province. Overtures for peace were made to France, and in April 1527 Grammont, Bishop of Tarbes, arrived in England to discuss the terms of an alliance. The position of Cardinal Wolsey, which had been rendered critical by the hatred of the nobles, who resented his rule as the rule of an upstart, and by the enmity of the people, who regarded him as the author of the French war and of the increased taxation, was now threatened seriously by the public discussion of difficulties that had arisen in the mind of the king regarding the validity of his marriage.

The Lutheran movement that broke out in Germany two years after Cardinal Wolsey's acceptance of the twofold office of papal legate and royal chancellor, found little favour in England. Here and there, at Oxford, at Cambridge, and in London, individuals were found to subscribe to portion of Luther's programme; but the great body of the people remained unmoved by the tirades of the German reformers against Rome. Henry VIII., whose attention to religion was noted as one of his characteristics by the observant Ambassador of Venice, did not hesitate to take the field against the enemies of the Holy See and more especially against Luther himself. In a work entitled /Assertio Septem Sacramentorum/ (Defence of the Seven Sacraments)[2] published against Luther in 1521, he defended in no uncertain terms the rights and privileges of the Holy See, and in return for the very valuable services that he rendered to religion he was honoured by Leo X. with the title /Fidei Defensor/ (Defender of the Faith, 1521).[3] The example of the king, and the activity of Cardinal Wolsey and of the bishops, made it impossible for the few individuals who favoured the German movement to spread their views.

Were it not for Henry's eagerness to secure a separation from his wife, Catharine of Aragon, it is highly improbable that the anti-Roman agitation would have made any

considerable progress in England.[4] In 1499 Henry's wife, Catharine of Aragon, had been betrothed by proxy to his brother Prince Arthur, heir-apparent to the English throne. She arrived in England two years later, and the marriage was solemnised at St. Paul's on the 14th November, 1501. Prince Arthur was then only a boy of fifteen years of age, and of so delicate a constitution that fears were entertained by many that his wife must soon don the widow's weeds. Unfortunately these fears were speedily justified. In April 1502 the Prince fell a victim to a pestilence that raged in the district round Ludlow Castle to which he and his wife had retired. To prevent quarrels between Ferdinand and Henry VII. regarding Catharine's dowry, a marriage was arranged between Catharine and Prince Henry. The necessary dispensation for a marriage with a deceased brother's wife was granted by Julius II. (December 1503), and according to the agreement between the courts of England and of Spain, the marriage should have taken place as soon as Henry reached the age of puberty; but owing to certain political changes in Spain, and the prospect of securing a better match for the heir presumptive to the English throne, Henry VII. arranged that Prince Henry should appear before Fox, Bishop of Winchester, and lodge a formal protest against a marriage agreement that had been concluded during his minority and which he now declared to be null and void (17th June, 1505). This protest was kept secret, but for years Catharine was treated with neglect and left in doubt regarding her ultimate fate. As soon, however, as Henry was free to act for himself on the death of his father, the marriage between himself and Catharine was solemnised publicly (1509), and on the 24th June of the same year the king and queen were crowned at Westminster Abbey.

For years Henry and Catharine lived happily together as man and wife. Several children were born to them, all of whom unfortunately died in their infancy except the Princess Mary, afterwards Queen Mary of England. Even before there was any question of separation from his wife, Henry's relations with some of the ladies at court were not above suspicion. By one, Elizabeth Blount, he had a son whom he created Duke of Richmond and to whom at one time he thought of bequeathing the crown of England. In a short time Mary, the eldest sister of Anne Boleyn, succeeded to Elizabeth in the affections of the king. The fact that Catharine was some years older than her husband, that infirmity and sorrow for the death of her children had dimmed her charms, and that there could be no longer any hope for the birth of an heir to the throne, preyed on Henry's mind and made him not unwilling to rid himself of a wife, whom, however, he could not but admire even though she had forfeited his love. Were he to die there was no one to succeed him but the Princess Mary, and her right to the throne might be contested. Even though she succeeded, her marriage must inevitably create great difficulties. Were she to marry a foreign prince, he feared that England might become a province; were she to accept the hand of an English nobleman, a disputed succession ending in civil war was far from being improbable. His gloomy anticipations were shared in by many of his advisers; and Wolsey, who had set his heart on uniting the forces of England and France against the Emperor, was not unwilling to set a seal on the new French anti-imperial alliance by repudiating Henry's marriage with the Emperor's aunt, if such a dissolution could be brought about without infringing the laws of God.

Though it would seem that doubts had long since arisen in Henry's mind regarding the lawfulness of his marriage to his deceased brother's wife, and that questions of policy may have influenced the attitude of his advisers towards the projected separation, yet it is certain that it was the charms of the young and accomplished Anne Boleyn, that brought matters to a crisis. With her experience of the gay and corrupt court of France, she was not likely to be mistaken about the influence of her charms or the violence of the king's passion. She would be the king's wife if he wished; but she would not be, like her sister, the king's mistress. Overcome by the force of his desires, he determined to rid himself of a wife of whom he was tired, in favour of her young and more attractive rival. The fact that Catharine had been married to his brother Arthur was seized upon by him to furnish a decent pretext for the projected separation. His conscience, he averred, reproached him for such an incestuous alliance, and for his own peace of mind it was necessary, he maintained, to submit the validity of his marriage to the decision of the Church.

There is no convincing evidence that the idea of a separation from Catharine originated with Cardinal Wolsey, though the latter, longing for a matrimonial alliance of his king with a French princess, and not aware of Henry's intention with regard to Anne, was probably not sorry when he learned of Henry's scruples; and it is not true to say that the first doubts regarding the illegitimacy of the Princess Mary were raised by the French Ambassador in 1527. The whole story of the negotiations with France regarding Mary's marriage at the time, makes it perfectly clear that her legitimacy was assumed. The divorce proceedings originated in Henry's own mind, and the plan of marrying Anne Boleyn was kept a secret from Wolsey and from most of the royal advisers. When exactly the question of a separation from Catharine was first mooted is uncertain; but there can be no doubt that early in 1527 active steps were taken to secure a condemnation of the marriage. Wolsey entered warmly into the project, but most of the bishops whom he consulted were not anxious to assist him; and what was still more serious Fisher, the learned and saintly Bishop of Rochester, declared himself from the beginning a determined opponent. The capture of Rome by imperial troops (1527) made it imperative that the terms of the French alliance should be completed at once, and Cardinal Wolsey set out for Paris as the representative of England. While Wolsey was absent in France arranging the terms of the alliance, Anne Boleyn took occasion to warn Henry that his great minister was unreliable, that in his heart he was opposed to the separation, and that without his knowledge or consent negotiations should be opened directly with the Roman court. An agent was dispatched to Rome and succeeded in securing an interview with Clement VII., after the latter had made his escape from Rome to Orvieto (December 1527). It was contended on behalf of the king that the dispensation granted by Julius II. was null and void. In proof of this it was contended: that in the Bull it had been stated that Henry desired to marry Catharine, and that the marriage was necessary for preserving peace between England and Spain, both of which statements, it was alleged, were false; that at the time the disposition was granted Henry was only twelve years of age and therefore incapable of accepting it; that several persons mentioned in the Bull, as for example, Queen Isabella and Henry VII., had died before the marriage took place; and lastly that when Henry reached the age of puberty he

had protested against the marriage, thereby renouncing for himself the favours granted in the Bull of dispensation.[5] Later on it was contended, by those who favoured the separation, that the dispensation was issued by the Pope on the supposition that the marriage between Arthur and Catharine had not been consummated, and that therefore, since this condition was not verified, the dispensation was invalid. But here they were faced with the difficulty that the great weight of evidence favoured the view that the marriage had not been consummated; that in any case the dispensation was ample enough to cover both the impediment of affinity and public honesty; and that, whatever might be said against the Bull of dispensation, no such objection could be urged against the brief said to have been forwarded by the Pope to the court of Spain.[6] As the English agents had been instructed to seek not merely the appointment of a commission to declare the invalidity of the dispensation, and consequently of the marriage, but also for a dispensation which would permit the king to marry a woman related to him in the first degree of affinity, whether the affinity had been contracted by a lawful or unlawful connexion, it was thought prudent not to lay stress on the argument that marriage with the deceased brother's wife was prohibited by the divine law, and that, therefore, the Pope could not grant a dispensation such as had been issued by Julius II. At a later date great stress was laid upon this argument.

Clement VII., while not unwilling to grant the dispensation requested,[7] did not think it consistent with his own honour or that of the king, to grant the commission according to the terms drawn up for him in England. A new embassy, consisting of Edward Foxe, and Dr. Stephen Gardiner, Wolsey's secretary, was dispatched, and arrived at Orvieto in March 1528. The victorious progress of the French armies in Italy (1527-28), by relieving Clement VII. from the pressure of the imperial party, favoured the petition of Henry VIII. Arguments drawn from canon law and from theology were driven home by Gardiner with a fluency and wealth of knowledge that astonished the papal advisers, and when arguments failed, recourse was had to threats of an appeal to a general council, and of the complete separation of England from the Holy See. The decretal commission demanded by the English ambassadors was, however, refused; but, in its place, a decree was issued empowering Cardinal Wolsey and Cardinal Campeggio to try the case in England and to pronounce a verdict in accordance with the evidence submitted to them. As this fell very far short of what had been demanded by the English envoys, new demands were made for a more ample authority for the commission, and in view of the danger that threatened the Catholic Church in England, Clement VII. yielded so far as to promise that he would not revoke the jurisdiction of those whom he had entrusted with the trial of the case (July 1528).[8]

Meanwhile news of what was in contemplation was noised abroad. Many of the English merchants, fearing that hostility to the empire would lead to an interruption of their trade especially with the Netherlands, detested the new foreign policy of the king, while the great body of the people were so strongly on the side of Catharine that were a verdict to be given against her a popular rebellion seemed inevitable. So pronounced was this feeling even in the city of London itself, that Henry felt it necessary to summon the Lord Mayor and the Corporation to the royal palace, where

he addressed them on the question that was then uppermost in men's minds. He spoke of Catharine in terms of the highest praise, assured them that the separation proceedings were begun, not because he was anxious to rid himself of a wife whom he still loved, but because his conscience was troubled with scruples regarding the validity of his marriage, and that the safety of the kingdom was endangered by doubts which had been raised by the French ambassador regarding the legitimacy of Princess Mary. To put an end to these doubts, and to save the country from the horror of a disputed succession, the Pope had appointed a commission to examine the validity of the marriage; and to the judgment of that commission whatever it might be he was prepared to yield a ready submission. He warned his hearers, however, that if any person failed to speak of him otherwise than became a loyal subject towards his sovereign condign punishment would await him. To give effect to these words a search was made for arms in the city, and strangers were commanded to depart from London.[9]

Though the commission had been granted in April, Cardinal Campeggio was in no hurry to undertake the work that was assigned to him. He did not leave Rome till June, and he proceeded so leisurely on his journey through France that it was only in the first week of October that he arrived in London. In accordance with his instructions, he endeavoured to dissuade the king from proceeding further with the separation, but as Henry was determined to marry the lady of his choice even though it should prove the ruin of his kingdom, all the efforts of Campeggio in this direction were in vain. He next turned his attention to Catharine, in the hope of persuading her to enter a convent, only to discover that her refusal to take any step likely to cast doubts upon her own marriage and the legitimacy of her daughter was fixed and unalterable. At the queen's demand counsel was assigned to her to plead her cause. The situation was complicated by the fact that Julius II. appears to have issued two dispensations for Henry's marriage, one contained in the Bull sent to England, the other in a brief forwarded to Ferdinand in Spain. The queen produced a copy of the brief, which was drawn up in such a way as to elude most of the objections that were urged against the Bull on the ground that the marriage had been consummated. The original of the brief was in the hands of the Emperor, and various attempts were made to secure the original or to have it pronounced a forgery by the Pope; but the Emperor was too wily a diplomatist to be caught so easily, and the Pope refused either to order its production or to condemn it without evidence as a forgery.[10] This question of the brief was seized upon by Cardinal Campeggio as a good opportunity for delaying the trial. At last on the 31st May 1529, the legates Wolsey and Campeggio opened the court at Blackfriars, and summoned Henry and Catharine to appear before them in person or by proxy on the 18th June. Both king and queen answered the summons, the latter, however, merely to demand justice publicly from the king, to protest against the competence and impartiality of the tribunal, and to lodge a formal appeal to Rome. Her appeal was disallowed, and on her refusal to take any further part in the trial she was condemned as contumacious; but even still she was not without brave and able defenders. Bishop Fisher of Rochester spoke out manfully against the unnatural and unlawful proceedings,[11] and his protest found an echo not merely in the court itself but throughout the country. The friends of

Henry, fearing that the Pope might revoke the power of the legates, clamoured for an immediate verdict; but this Campeggio was determined to prevent at all costs. By insisting upon all the formalities of law he took care to delay the proceedings till the 23rd July, when he announced that the legatine court should follow the rules of the Roman court, and should, therefore, adjourn to October. Already he was aware of the fact that Clement VII., yielding to the entreaties of Catharine and the demands of the Emperor, had reserved the decision of the case to Rome (19th July), and that the summons to the king and queen to proceed there to plead their cause was already on its way to England.[12]

Henry, disguising his real feelings, pretended to be satisfied; but in reality his disappointment was extreme. Anne Boleyn and her friends threw the blame entirely on Wolsey. They suggested that the cardinal had acted a double part throughout the entire proceedings. For a time there was a conflict in the king's mind between the suggestions of his friends and the memory of Wolsey's years of loyal service; but at last Henry was won over to the party of Anne, and Wolsey was doomed to destruction. He was deprived of the office of Lord Chancellor which was entrusted to Sir Thomas More (Oct. 1529), accused of violating the statute of Praemunire by exercising legatine powers, a charge to which he pleaded guilty though he might have alleged in his defence the permission and authority of the king, indicted before Parliament as guilty of high treason, from the penalty of which he was saved by the spirited defence of his able follower Thomas Cromwell (Dec.), and ordered to withdraw to his diocese of York (1530). His conduct in these trying times soon won the admiration of both friends and foes. The deep piety and religion of the man, however much they might have been concealed by his fondness for pomp and display during the days of his glory, helped him to withstand manfully the onslaughts of his opponents. His time was spent in prayer and in the faithful discharge of his episcopal duties, but the enemies who had secured his downfall at court were not satisfied. They knew that he had still a strong hold on the affections of the king, and they feared that were any foreign complications to ensue he might be recalled to court and restored to his former dignities. They determined therefore to bring about his death. An order for his arrest and committal to the Tower was issued, but death intervened and saved him from the fate that was in store for him. Before reaching London he took suddenly ill, and died after having received the last consolations of religion (Nov. 1530).

Henry, having failed to obtain a favourable verdict from the legatine commission, determined to frighten the Pope into compliance with his wishes by showing him that behind the King of England stood the English Parliament. The most elaborate precautions were taken to secure that members likely to be friendly were elected. In many cases together with the writs the names of those whose return the court desired were forwarded to the sheriffs.[13] The Parliament that was destined to play such a momentous part in English affairs met in 1529. It was opened by the king in person attended by Sir Thomas More as Lord Chancellor. At a hint from the proper quarter it directed its attention immediately to the alleged abuses of the clergy. The principal complaints put forward were the excessive fees and delays in connection with the probate of wills, plurality of benefices, and the agricultural and commercial activity of priests, bishops, and religious houses, an activity that was detrimental to

themselves and unfair to their lay competitors. Measures were taken in the House of Commons to put an end to these exactions and abuses, but when the bills reached the House of Lords Bishop Fisher lodged an emphatic protest for which he was called to account by the king. When Parliament had done enough to show the bishops and the Roman court what might be expected in case Henry's wishes were not complied with it was prorogued (Dec. 1529), and in the following month a solemn embassy headed by the Earl of Wiltshire, Anne Boleyn's father, was dispatched to interview the Pope and Charles V. at Bologna. The envoys were instructed to endeavour to win over the Emperor to the king's plans, but Charles V. regarded their advances with indignation and refused to sacrifice the honour of his aunt to the friendship of England. The only result of the embassy was that a formal citation of Henry to appear at Rome was served on the Earl of Wiltshire, but at the request of the latter a delay of some weeks was granted. Unless some serious measures were taken immediately, Henry had every reason to expect that judgment might be given against him at Rome, and that he would find himself obliged either to submit unconditionally or to defend himself against the combined forces of the Emperor and the King of France.

To prevent or at least to delay such a result and to strengthen the hands of the English agents at Rome, he determined to follow the advice that had been given him by Thomas Cranmer, namely, to obtain for the separation from Catharine the approval of the universities and learned canonists of the world. Agents were dispatched to Cambridge and Oxford to obtain a verdict in favour of the king. Finding it impossible to secure a favourable verdict from the universities, the agents succeeded in having the case submitted to a small committee both in Cambridge and Oxford, and the judgment of the committees, though by no means unanimous, was registered as the judgment of the universities.[14] Francis I. of France, who for political reasons was on Henry's side throughout the whole proceedings, brought pressure to bear upon the French universities, many of which declared that Henry's marriage to Catharine was null and void. In Italy the number of opinions obtained in favour of the king's desires depended entirely upon the amount of money at the disposal of his agents.[15] To support the verdict of the learned world Henry determined to show Rome that the nobility and clergy of his kingdom were in complete sympathy with his action. A petition signed by a large number of laymen and a few of the bishops and abbots was forwarded to Clement VII. (13th July, 1530).[16] It declared that the question of separation, involving as it did the freedom of the king to marry, was of supreme importance for the welfare of the English nation, that the learned world had pronounced already in the king's favour, and that if the Pope did not comply with this request England might be driven to adopt other means of securing redress even though it should be necessary to summon a General Council. To this Clement VII. sent a dignified reply (Sept.), in which he pointed out that throughout the whole proceedings he had shown the greatest regard for Henry, and that any delay that had occurred at arriving at a verdict was due to the fact that the king had appointed no legal representatives at the Roman courts.[17] The French ambassador also took energetic measures to support the English agents threatening that his master might be forced to join hands with Henry if necessary; but even this threat was without result, and the king's agents were obliged to report that his case

at Rome was practically hopeless, and that at any moment the Pope might insist in proceeding with the trial.

When Henry realised that marriage with Anne Boleyn meant defiance of Rome he was inclined to hesitate. Both from the point of view of religion and of public policy separation from the Holy See was decidedly objectionable. While he was in this frame of mind, a prey to passion and anxiety, it was suggested to him, probably by Thomas Cromwell, the former disciple of the fallen cardinal, that he should seize this opportunity to strengthen the royal power in England by challenging the authority of the Pope, and by taking into his own hands the control of the wealth and patronage of the Church. The prospect thus held out to him was so enticing that Henry determined to follow the advice, not indeed as yet with the intention of involving his kingdom in open schism, but in the hope that the Pope might be forced to yield to his demands. In December 1530 he addressed a strong letter to Clement VII. He demanded once more that the validity of his marriage should be submitted to an English tribunal, and warned the Pope to abstain from interfering with the rights of the king, if he wished that the prerogatives of the Holy See should be respected in England.[18]

This letter of Henry VIII. was clearly an ultimatum, non-compliance with which meant open war. At the beginning of 1531 steps were taken to prepare the way for royal supremacy. For exercising legatine powers in England Cardinal Wolsey had been indicted and found guilty of the violation of the stature of Praemunire, and as the clergy had submitted to his legatine authority they were charged as a body with being participators in his guilt. The attorney-general filed an information against them to the court of King's Bench, but when Convocation met it was intimated to the clergy that they might procure pardon for the offence by granting a large contribution to the royal treasury and by due submission to the king. The Convocation of Canterbury offered a sum of £100,000, but the offer was refused unless the clergy were prepared to recognise the king as the sole protector and supreme head of the church and clergy in England. To such a novel proposal Convocation showed itself decidedly hostile, but at last after many consultations had been held Warham, the aged Archbishop of Canterbury, proposed that they should acknowledge the king as "their singular protector only, and supreme lord, and as far as the law of Christ allows even supreme head." "Whoever is silent," said the archbishop, "may be taken to consent," and in this way by the silence of the assembly the new formula was passed.[19] At the Convocation of York, Bishop Tunstall of Durham, while agreeing to a money payment, made a spirited protest against the new title, to which protest Henry found it necessary to forward a reassuring reply. Parliament then ratified the pardon for which the clergy had paid so dearly, and to set at rest the fears of the laity a free pardon was issued to all those who had been involved in the guilt of the papal legate.

Clement VII. issued a brief in January 1531, forbidding Henry to marry again and warning the universities and the law courts against giving a decision in a case that had been reserved for the decision of the Holy See. When the case was opened at the Rota in the same month an excusator appeared to plead, but as he had no formal authority from the king he was not admitted. The case, however, was postponed from

time to time in the hope that Henry might relent. In the meantime at the king's suggestion several deputations waited upon Catharine to induce her to recall her appeal to Rome. Annoyed by her obstinacy Henry sent her away from court, and separated from her her daughter. After November 1531, the king and queen never met again. Popular feeling in London and throughout England was running high against the divorce, and against any breach with the Emperor, who might close the Flemish markets to the English merchants. The clergy, who were indignant that their representatives should have paid such an immense sum to secure pardon for an offence of which they had not been more guilty than the king himself, remonstrated warmly against the taxation that had been levied on their revenues. Unmindful of the popular commotion, Henry proceeded to usurp the power of the Pope and of the bishops, and though he was outwardly stern in the repression of heresy, the friends of the Lutheran movement in England boasted publicly that the king was on their side.

When Parliament met again (Jan. 1532), the attacks on the clergy were renewed. A petition against the bishops, drawn up by Thomas Cromwell at the suggestion of Henry,[20] was presented in the name of the House of Commons to the king. In this petition the members were made to complain that the clergy enacted laws and statutes in Convocation without consulting the king or the Commons, that suitors were treated harshly before the ecclesiastical courts, that in regard to probates the people were worried by excessive fees and unnecessary delays, and that the number of holidays was injurious to trade and agriculture. This complaint was forwarded to Convocation for a reply. The bishops, while vindicating for the clergy the right to make their own laws and statutes, showed themselves not unwilling to accept a compromise, but Parliament at the instigation of Henry refused to accept their proposals. The king, who was determined to crush the power of the clergy, insisted that Convocation should abandon its right to make constitutions or ordinances without royal permission, and that the ordinances passed already should be submitted to a mixed commission appointed by the authority of the crown. Such proposals, so contrary to the customs of the realm and so destructive of the independence of the Church, could not fail to be extremely disagreeable to the bishops; but in face of the uncompromising attitude of the king they were forced to give way, and in a document known as the /Submission of the Clergy/ they sacrificed the legislative rights of Convocation (May 1532). They agreed to enact no new canons, constitutions or ordinances without the king's consent, that those already passed should be submitted to a committee consisting of clergy and laymen nominated by the king, and that the laws adopted by this committee and approved by the king should continue in full force. Sir Thomas More, who had worked hard in defence of the Church, promptly resigned his office of Lord Chancellor that he might have a freer hand in the crisis that had arisen.

In March 1532 another step was taken to overawe the Roman court and force the Pope to yield to Henry's demands. An Act was passed abolishing the Annats or First Fruits paid to Rome by all bishops on their appointment to vacant Sees. If the Pope should refuse to appoint without such payments, it was enacted that the consecration should be carried out by the archbishop of the province without further recourse to Rome. Such a measure, tending so directly towards schism, met with strong

opposition in the House of Lords from the bishops, abbots, and many of the lay lords, as it did also in the House of Commons. In the end, it was passed only on the understanding that it should not take effect for a year, and that in the meantime if an agreement could be arrived at with the Pope, the king might by letters patent repeal it. Henry instructed his ambassador at Rome to inform Clement VII. that this legislation against Annats was entirely the work of the Parliament, and that if the Pope wished for its withdrawal he must show a more conciliatory spirit towards the king and people of England.[21]

The Pope, however, refused to yield to such intimidation. When news arrived at Rome that Henry had sent away Catharine from court, the question of excommunication was considered, but as the excommunication of a king was likely to be fraught with such serious consequences for the English Church, Clement VII. hesitated to publish it in the hope that Henry might see the error of his ways. The trial was delayed from time to time until at last in November 1532 the Pope addressed a strong letter to the king, warning him under threat of excommunication to put away Anne Boleyn, and not to attempt to divorce Catharine or to marry another until a decision had been given in Rome.[22] By this time the king had given up all hope of securing the approval of Rome for the step he contemplated. Even in England the divorce from Catharine found much opposition from both clergy and laity. Sir Thomas More and many of the nobles were on the side of Catharine, as were also Bishop Fisher of Rochester and Bishop Tunstall of Durham. Even Reginald Pole, the king's own cousin, who had been educated at Henry's expense, and for whom the Archbishopric of York had been kept vacant, refused the tempting offers that were made to him on condition that he would espouse the cause of separation. He preferred instead to leave England rather than act against his conscience by supporting Catherine's divorce.[23] Fortunately for Henry at this moment Warham, the aged Archbishop of Canterbury, who was a stout defender of the Holy See,[24] passed away (Aug. 1532). The king determined to secure the appointment of an archbishop upon whom he could rely for the accomplishment of his designs, and accordingly Thomas Cranmer was selected and presented to Rome. After much hesitation, and merely as the lesser of two evils, his appointment was confirmed.

Thomas Cranmer was born in Nottingham, and educated in Cambridge. He married early in life, but his wife having died within a few months, he determined to take holy orders. His suggestion to submit the validity of Henry's marriage to the judgment of the universities, coming as it did at a time when Henry was at his wits' end, showed him to be a man of resource whose services should be secured by the court. He was appointed accordingly chaplain to Anne Boleyn's father, and was one of those sent on the embassy to meet the Pope and Charles V. at Bologna. During his wanderings in Germany he was brought into close relationship with many of the leading Reformers, and following their teaching and example he took to himself a wife in the person of the well-known Lutheran divine, Osiander. Such a step, so highly objectionable to the Church authorities and likely to be displeasing to Henry, who in spite of his own weakness insisted on clerical celibacy, was kept a secret, though it is not at all improbable that the secret had reached the ears of the king. At the time when the latter had made up his mind to set Rome at defiance, he knew how

important it was for him to sacrifice his own personal predilections, for the sake of having a man of Cranmer's pliability as Archbishop of Canterbury, and head of the clergy in England. On the 30th March, 1533, Cranmer was consecrated archbishop, and took the usual oath of obedience and loyalty to the Pope; but immediately before the ceremony, he registered a formal protest that he considered the oath a mere form, and that he wished to hold himself free to provide for the reformation of the Church in England.[25] Such a step indicates clearly enough the character of the first archbishop of the Reformation in England.

To prepare the way for the sentence that might be published at any moment by the Pope a bill was introduced forbidding appeals to Rome under penalty of Praemunire, and declaring that all matrimonial suits should be decided in England, and that the clergy should continue their ministrations in spite of any censures or interdicts that might be promulgated by the Pope. The bill was accepted by the House of Lords, but met with serious opposition in the Commons. An offer was made to raise £200,000 for the king's use if only he would refer the whole question to a General Council, but in the end, partly by threats and partly by deception regarding the attitude of the Pope and the Emperor, the opposition was induced to give way and the bill became law. By this Act it was declared that the realm of England should be governed by one supreme head and king, to whom both spirituality and temporality were bound to yield, "next to God a natural and humble obedience," that the English Church was competent to manage its own affairs without the interference of foreigners, and that all spiritual cases should be heard and determined by the king's jurisdiction and authority.[26] The question of the divorce was brought before the Convocation in March 1533, and though Fisher spoke out boldly in defence of Catharine's marriage, his brethren failed to support him, and Convocation declared against the legitimacy of the marriage.

Henry was now free to throw off the mask. He could point to the verdict given in his favour by both Parliament and Convocation, and could rely on Cranmer as Archbishop of Canterbury to carry out his wishes. In order to provide for the legitimacy of the child that was soon to be born, he had married Anne Boleyn privately in January 1533. In April Cranmer requested permission to be allowed to hold a court to consider Henry's marriage with Catharine, to which request, inspired as it had been by himself, the king graciously assented. The court sat at Dunstable, where Catharine was cited to appear. On her refusal to plead she was condemned as contumacious. Sentence was given by the archbishop that her marriage with Henry was invalid (23rd April, 1533). Cranmer next turned his attention to Henry's marriage with Anne, and as might be expected, this pliant minister had no difficulty in pronouncing in its favour. On Whit Sunday (1533) Anne was crowned as queen in Westminster Abbey. The popular feeling in London and throughout the kingdom was decidedly hostile to the new queen and to the French ambassador, who was blamed for taking sides against Catharine, but Henry was so confident of his own power that he was unmoved by the conduct of the London mob. In September, to the great disappointment of the king who had been led by the astrologers and sorcerers to believe that he might expect the advent of an heir, a daughter was born to whom was given the name Elizabeth.

The Pope, acting on the request of the French and English ambassadors, had delayed to pronounce a definitive sentence, but the news of Henry's marriage with Anne and of the verdict that had been promulgated by the Archbishop of Canterbury made it imperative that decisive measures should be taken. On the 11th July it was decreed that Henry's divorce from Catharine and his marriage with Anne were null and void.[27] Sentence of excommunication against him was prepared, but its publication was postponed till September, when an interview had been arranged to take place between the Pope and Francis I. Francis I. was not without hope even still that an amicable settlement could be arranged. Throughout the whole proceedings he had espoused warmly Henry's cause, in the belief that England, having broken completely with Catharine's nephew Charles V., might be forced to conclude an alliance with France; but he never wished that Henry VIII. should set the Holy See at defiance, or that England should be separated from the Catholic Church. To the Pope and to Henry he had addressed his remonstrances and petitions in turn, but events had reached such a climax that mediation was almost an impossibility. The interview arranged between the Pope and Francis I. took place at Marseilles in October 1533. Regardless of all the rules of diplomatic courtesy and of good manners, Henry's representative forced his way into the presence of the Pope, and announced to him that the King of England had appealed from the verdict of Rome to the judgment of a General Council. Notices of this appeal were posted up in London, and preachers were ordered to declaim against the authority of the Pope, who was to be styled henceforth Bishop of Rome, and whose sentences and excommunications, the people were to be informed, were of no greater importance than those of any other foreign bishop. The way was now open for the final act of separation.

Parliament met in January 1534. The law passed the previous year against the payment of annats was now promulgated. According to this Act the Pope was not to be consulted for the future regarding appointments to English Sees. When a bishopric became vacant, the chapter having received the /Congé d'élire/ should proceed to elect the person named in the royal letters accompanying the /Congé/, and the person so elected should be presented to the metropolitan for consecration. In case of a metropolitan See, the archbishop-elect should be consecrated by another metropolitan and two bishops or by four bishops appointed by the crown. Another Act was passed forbidding the payment of Peter's Pence and all other fees and pensions paid formerly to Rome. The Archbishop of Canterbury was empowered to grant dispensations, and the penalties of Praemunire were levelled against all persons who should apply for faculties to the Pope. By a third Act a prohibition against appeals to Rome was renewed, although it was permitted to appeal from the court of the Archbishop of Canterbury to the king's Court of Chancery. Convocation was forbidden to enact any new ordinances without the consent of the king, and those passed already were to be subject to revision by a royal commission. Finally, an Act was passed vesting the succession in the children of Henry and Anne to the exclusion of the Princess Mary. The marriage with Catharine was declared null and void by Parliament on the ground principally that no man could dispense with God's law, and to prevent such incestuous unions in the future a list of the forbidden degrees was drawn up, and ordered to be exhibited in the public churches. To question the

marriage of Henry with Anne Boleyn by writing, word, deed, or act was declared to be high treason, and all persons should take an oath acknowledging the succession under pain of misprision of treason. That the Parliament was forced to adopt these measures against its own better judgment is clear from the small number of members who took their seats in the House of Lords, as well as from the fact that some of the Commoners assured the imperial ambassador that were his master to invade England he might count on considerable support.

In Rome the agents of Francis I., fearing that an alliance between France and England would be impossible were Henry to throw off his allegiance to the Church, moved heaven and earth to prevent a definitive sentence. The fact that the Emperor was both unable and unwilling to enforce the decision of the Pope, and that instead of desiring the excommunication and deposition of Henry he was opposed to such a step, made it more difficult for the Pope to take decisive measures. Finally after various consultations with the cardinals, sentence was given declaring the marriage with Catharine valid and the children born of that marriage legitimate (23rd March, 1534). When the news of this decision reached England Henry was alarmed. He feared that the Emperor might declare war at any moment, that an imperial army might be landed on the English shores, and that Francis I. yielding to the entreaties of the Pope might make common cause with the imperialists. Orders were given to strengthen the fortifications, and to hold the fleet in readiness. Agents were dispatched to secure the neutrality of France, and preachers were commanded to denounce the Bishop of Rome. As matters stood, however, there was no need for such alarm. The Emperor had enough to engage his attention in Spain and Germany, and the enmity between Charles V. and the King of France was too acute to prevent them from acting together even in defence of their common religion.

Meantime it was clear to Henry that popular feeling was strong against his policy, but instead of being deterred by this, he became more obstinate and determined to show the people that his wishes must be obeyed. A nun named Elizabeth Barton, generally known as the "Nun of Kent," claimed to have been favoured with special visions from on high. She denounced the king's marriage with Anne, and bewailed the spread of heresy in the kingdom. People flocked from all parts to interview her, and even Cranmer pretended to be impressed by her statements. She and many of her principal supporters were arrested and condemned to death (Nov. 1534). It was hoped that by her confession it might be possible to placate Bishop Fisher, who was specially hated by Henry on account of the stand he had made on the question of the marriage, and the late Lord Chancellor, Sir Thomas More. Both had met the nun, but had been careful to avoid everything that could be construed even remotely as treason. In the Act of Attainder introduced into Parliament against Elizabeth Barton and her confederates, the names of Fisher and More were included, but so strong was the feeling in More's favour that his name was erased. Fisher, although able to clear himself from all reasonable grounds of suspicion, was found guilty of misprision of treason and condemned to pay a fine of £300. Fisher and More were then called upon to take the oath of succession, which, as drawn up, included, together with an acknowledgement of the legitimacy of the children born of Henry and Anne, a repudiation of the primacy of the Pope, and of the validity of Henry's marriage with

Catharine. Both were willing to accept the succession as fixed by Act of Parliament, but neither of them could accept the other propositions. They were arrested therefore and lodged in the Tower (April 1534).

Commissions were appointed to minister the oath to the clergy and laity, most of whom accepted it, some through fear of the consequences of refusal and others in the hope of receiving a share of the monastic lands, which, it was rumoured, would soon be at the disposal of the king. A royal commission consisting of George Brown, Prior of the Augustinian Hermits, and Dr. Hilsey, Provincial of the Dominicans, was appointed to visit the religious houses and to obtain the submission of the members (April 1534). By threats of dissolution and confiscation they secured the submission of most of the monastic establishments with the exception of the Observants of Richmond and Greenwich and the Carthusians of the Charterhouse, London. Many of the members of these communities were arrested and lodged in the Tower, and the decree went forth that the seven houses belonging to the Observants, who had offered a strenuous opposition to the divorce, should be suppressed.[28] The Convocations of Canterbury and York submitted, as did also the Universities of Oxford and Cambridge.

When Parliament met again in November 1534 a bill was introduced proclaiming the king supreme head of the Church in England. The measure was based upon the recognition of royal supremacy extracted from Convocation three years before, but with the omission of the saving clause "as far as the law of Christ allows." According to this Act it was declared that the king "justly and rightly is and ought to be the supreme head of the Church in England, and to enjoy all the honours, dignities, pre-eminences, jurisdictions, privileges, authorities, immunities, profits and commodities" appertaining to the dignity of the supreme head of the Church.[29] An Act of Attainder was passed against Fisher, More, and all others who had refused submission. The First Fruits, formerly paid to the Pope, were to be paid to the king, and bishops were allowed to appoint men approved by the crown to be their assistants.

By these measures the constitution of the Church, as it had been accepted for centuries by the English clergy and laity, was overturned. The authority of the Pope was rejected in favour of the authority of the king, who was to be regarded in the future as the source of all ecclesiastical jurisdiction. This great religious revolution was carried out without the consent of the bishops and clergy. With the single exception of Cranmer the bishops to a man opposed the change, and if they and the great body of the clergy made their submission in the end, they did so not because they were convinced by the royal arguments, but because they feared the royal displeasure. Neither was the change favoured by any considerable section of the nobles and people. The former were won over partly by fear, partly by hope of securing a share in the plunder of the Church; the latter, dismayed by the cowardly attitude shown by their spiritual and lay leaders, saw no hope of successful resistance. Had there been any strong feeling in England against the Holy See, some of the bishops and clergy would have spoken out clearly against the Pope, at a time when such a step would have merited the approval of the king. The fact that the

measure could have been passed in such circumstances is in itself the best example of what is meant by Tudor despotism, in the days when an English Parliament was only a machine for registering the wishes of the king.

In January 1535 an order was made that the king should be styled supreme head of the Church of England. Thomas Cromwell, who had risen rapidly at court in spite of the disgrace of his patron, Cardinal Wolsey, was entrusted with the work of forcing the clergy and laity to renounce the authority of the Pope. The bishops were commanded to surrender the Bulls of appointment they had received from Rome, and to acknowledge expressly that they recognised the royal supremacy. Cromwell was appointed the king's vicar-general, from whom the bishops and archbishops were obliged to take their directions. Severe measures were to be used against anybody who spoke even in private in favour of Rome. The Prior of the London Charterhouse and some other Carthusians were brought to trial for refusing to accept the royal supremacy (April, 1535). After an able and uncompromising defence they were found guilty of treason and were put to death with the most revolting cruelty.[30] Bishop Fisher and Sir Thomas More, who were prisoners in the Tower, were allowed some time to consider their course of conduct. Fisher declared that he could not acknowledge the king as supreme head of the Church. While he lay in prison awaiting his trial, Paul III., in acknowledgment of his loyal services to the Church, conferred on him a cardinal's hat. This honour, however well merited, served only to arouse the ire of the king. He declared that by the time the hat should arrive Fisher should have no head on which to wear it, and to show that this was no idle threat a peremptory order was dispatched that unless Fisher and More took the oath before the feast of St. John they should suffer the penalty prescribed for traitors. Fisher, together with some monks of the Carthusians, was brought to trial (June 1535), and was found guilty of treason for having declared that the king was not supreme head of the Church. The prisoners were condemned to be hanged, drawn, and quartered. In the case of the Carthusians the sentence was carried out to the letter, but as it was feared that Fisher might die before he reached Tyburn he was beheaded in the Tower (22nd June), and his head was impaled on London bridge.[31]

Sir Thomas More was placed on his trial in Westminster Hall before a special commission (1st July). Able lawyer as he was, he had no difficulty in showing that by silence he had committed no crime and broken no Act of Parliament, but no defence could avail him against the wishes of the king. The jury promptly returned a verdict of guilty. Before sentence was passed the prisoner spoke out manfully against royal supremacy, and in defence of the authority of Rome. He declared that the Act of Parliament, which conferred on the king the title of supreme head of the Church, was opposed both to the laws of God and man, that it was in flagrant contradiction to the Magna Charta, and that the king of England could no more refuse obedience to the Holy See than a child could refuse obedience to his father. Even after his trial and condemnation another attempt was made to induce him to submit, but he refused, and on the 6th July he finished his career as a martyr for Rome.[32]

The execution of Fisher and More showed plainly to all that the breach with Rome was not likely to be healed. When news of what had taken place in England reached

Rome Paul III. was anxious to issue a decree of deposition against Henry. Had he done so, and had he been supported by the Emperor and Francis I. there is no doubt that many of the English noblemen would have joined the standard of the invaders, but the hostility between France and the Emperor saved Henry. Neither party was willing to aid the Pope lest the other should form an alliance with England. Fearing such a union, however, between Francis I. and Charles V. Henry hastened to seek the aid of the Protestant princes of Germany. From 1531 he had been in communication with them urging them to be careful about introducing religious innovations, but he was now so alarmed lest the Emperor and the King of France might join hands to assist the Pope in convoking a General Council, that English envoys were directed to meet the Protestant princes at Schmalkald (1535), to arrange for common action. A close union between England and the Protestant states of Germany could not be effected, because the Protestant princes insisted that Henry should accept the Confession of Augsburg, and Henry refused to permit such interference in the religious affairs of England. Still, English divines were instructed to remain at Wittenberg, and Lutheran theologians were invited to come to England for the discussion of religious differences.[33]

Meanwhile Cromwell was engaged in a visitation of the monasteries of England (1535). To bring home to the minds of the bishops the meaning of royal supremacy, he suspended their visitations while the royal visitors were at work. Cromwell, unable to undertake the duty himself, appointed delegates, and supplied them with the list of questions that should be administered. His principal delegates were Richard Leyton and Thomas Leigh, both men, as is evident from their own letters, who were not likely to be over scrupulous about the methods they employed. They were harsh, rude, and brutal in their treatment of both monks and nuns, especially in houses where they suspected hostility to the recent laws. They used every means in their power to break up the harmony of religious life, and to unsettle the minds of the younger members of the communities. In a few months the visitations were finished, and the reports of the visitors were presented to Cromwell. According to these reports most of the monasteries and convents were homes of sin and vice, and many of the monks and nuns were guilty of heinous crimes, but, though in particular instances there may have been some grounds for these charges, there is good reason for not accepting as trustworthy this account of monastic discipline. In the first place the royal visitors traversed the country with such lightning-like rapidity that it would have been impossible for them to arrive at a correct judgment even had they been impartial and honest men. That they were neither honest nor impartial is clear enough from their own correspondence. They were sent out by Cromwell to collect evidence that might furnish a decent pretext for suppressing the monasteries and for confiscating the monastic possessions, and they took pains to show their master that his confidence in them had not been misplaced. Their only mistake was that in their eagerness to black the character of the unfortunate religious they exceeded the limits of human credulity. They positively revelled in sin, and the scandals they reported were of such a gross and hideous kind that it is impossible to believe that they could have been true, else the people, instead of taking up arms to defend the religious houses, would have risen in revolt to suppress such abominations. Nor is it correct to say that the

/Comperta/ were submitted to Parliament for discussion, and that the members were so shocked by the tale they unfolded that they clamoured for the suppression of these iniquitous institutions. There is abundant evidence to prove that Parliament was reluctant to take any action against the religious houses, that it was only by the personal intervention of the king that the bill for the suppression of the lesser monasteries was allowed to pass, and that it is at least doubtful if any but general statements founded on the /Comperta/ were brought before Parliament. The story of the production of the "Black Book" supposed to contain the reports is of a much later date, and comes from sources that could not be regarded as unprejudiced. It had its origin probably in a misunderstanding of the nature of the /Compendium Compertorum/, which dealt only with parishes of the northern province. It is strange that though the commissioners made no distinction between the condition of the larger and the smaller monasteries, the Act of Parliament based upon these reports decreed only the suppression of the smaller monasteries, as if vice and neglect of discipline were more likely to reign in the small rather than in the larger communities; and it is equally strange that the superiors of many of the houses, about which unfavourable reports had been presented, were promoted to high ecclesiastical offices by the king and by his vicar-general, who should have been convinced of the guilt and unworthiness of such ministers, had they trusted their own commissioners. In the case of some of the dioceses, as for example Norwich, it is possible to compare the results of an episcopal visitation held some years previously with the reports of Cromwell's commissioners, and though it is sufficiently clear from these earlier reports that all was not well with discipline, the discrepancy between the accounts of the bishops and the royal commissioners is so striking, that it is difficult to believe that the houses could have degenerated so rapidly in so short a space of time as to justify the /Comperta/ of the commissioners. But what is still more striking is the fact that after the decree of suppression had gone forth, other commissioners, drawn largely from the local gentry, many of whom were to share in the plunder of the monastic lands, visited several of the houses against which serious charges had been made, and found nothing worthy of special blame. These men were not likely to be prejudiced in favour of the monks and nuns. They were well acquainted with the people of the district, and had every opportunity of learning the verdict of the masses about the discipline of the religious communities. They were, therefore, in a much better position to arrive at the truth than the royal commissioners who could only pay a flying visit of a few hours or at most of a few days.[34]

The real object of the visitation and of the scandalous reports to which it gave rise, was to secure some specious pretext that would justify the king in the eyes of the nation in suppressing the monasteries and in confiscating their possessions. The idea that the monastic establishments enjoyed only the administration of their lands and goods, and that these might be seized upon at any moment for the public weal, was not entirely a new one either in the history of England or in that of some of the Continental countries. Years before, Cardinal Wolsey, for example, had dissolved more than twenty monasteries in order to raise funds for his colleges at Ipswich and Oxford, while not unfrequently the kings of England rewarded their favourites and servants by granting them a pension to be paid by a particular monastery. With the

rise of the middle classes to power and the gradual awakening of greater agricultural and commercial activity, greedy eyes were turned to the monasteries and the farms owned by the religious institutions. Unlike the property of private individuals these lands were never likely to be in the market, and humanly speaking a transfer of ownership could be effected only by a violent revolution. Many people, therefore, though not unfriendly to the monks and nuns as such, were not disinclined to entertain the proposals of the king for the confiscation of religious property, particularly as hopes were held out to the nobles, wealthy merchants, and the corporations of cities and towns that the property so acquired could take the place of the taxes that otherwise must be raised to meet local and national expenditure.

For months before Parliament met (Feb. 1536) everything that could be done by means of violent pamphlets and sermons against the monks and the Papacy was done to prepare the country for the extreme measures that were in contemplation. The king came in person to warn the House of Commons that the reports of the royal commissioners, showing as they did the wretched condition of the monasteries and convents called for nothing less than the total dissolution of such institutions. The members do not appear, however, to have been satisfied with the king's recommendations, and it was probably owing to their feared opposition to a wholesale sacrifice of the monasteries that, though the commissioners had made no distinction between the larger and the smaller establishments the measure introduced by the government dealt only with the houses possessing a yearly revenue of less than £200. Even in this mild form great pressure was required to secure the passage of the Act, for though here and there complaints might have been heard against the enclosures of monastic lands or about the competition of the clerics in secular pursuits, the great body of the people were still warmly attached to the monasteries. Once the decree of dissolution had been passed the work of suppression was begun. Close on four hundred religious houses were dissolved, and their lands and property confiscated to the crown. The monks and nuns to the number of about 2,000 were left homeless and dependent merely on the miserable pensions, which not unfrequently remained unpaid. Their goods and valuables including the church plate and libraries were seized. Their houses were dismantled, and the roofless walls were left standing or disposed of as quarries for the sale of stones.[35] Such cruel measures were resented by the masses of the people, who were attached to the monasteries, and who had always found the monks and nuns obliging neighbours, generous to their servants and their tenants, charitable to the poor and the wayfarer, good instructors of the youth, and deeply interested in the temporal as well as in the spiritual welfare of those around them. In London and the south- eastern counties, where the new tendencies had taken a firmer root, a strong minority supported the policy of the king and Cromwell, but throughout England generally, from Cornwall and Devon to the Scottish borders, the vast majority of the English people objected to the religious innovations, detested Cromwell and Cranmer as heretics, looked to Mary as the lawful heir to the throne in spite of the decision of the court of Dunstable, and denounced the attacks on the monasteries as robbery and sacrilege. The excitement spread quickly, especially amongst the peasants, and soon news reached London that a formidable rebellion had begun in the north.

In October 1536 the men of Lincoln took up arms in defence of their religion. Many of the noblemen were forced to take part in the movement, with which they sympathised, but which they feared to join lest they should be exposed to the merciless vengeance of the king. The leaders proclaimed their loyalty to the crown, and announced their intention of sending agents to London to present their petitions. They demanded the restoration of the monasteries, the removal of heretical bishops such as Cranmer and Latimer, and the dismissal of evil advisers like Cromwell and Rich. Henry VIII. returned a determined refusal to their demands, and dispatched the Earl of Shrewsbury and the Duke of Suffolk to suppress the rebellion. The people were quite prepared to fight, but the noblemen opened negotiations with the king's commanders, and advised the insurgents to disperse. The Duke of Suffolk entered the city of Lincoln amidst every sign of popular displeasure, although since the leaders had grown fainthearted no resistance was offered. Those who had taken a prominent part in the rebellion were arrested and put to death; the oath of supremacy was tendered to every adult; and by the beginning of April 1537, all traces of the rebellion had been removed.

The Pilgrimage of Grace in the north was destined to prove a much more dangerous movement. Early in October 1536 the people of York, determined to resist, and by the middle of the month the whole country was up in arms under the leadership of Robert Aske, a country gentleman and a lawyer well-known in legal services in London. Soon the movement spread through most of the counties of the north. York was surrendered to the insurgents without a struggle. Pomfret Castle, where the Archbishop of York and many of the nobles had fled for refuge, was obliged to capitulate, and Lord Darcy, the most loyal supporter of the king in the north, agreed to join the party of Aske. Hull opened its gates to the rebels, and before the end of October a well trained army of close on 40,000 men led by the principal gentlemen of the north lay encamped four miles north of Doncaster, where the Duke of Norfolk at the head of 8,000 of the king's troops awaited the attack. The Duke, fully conscious of the inferiority of his forces and well aware that he could not count on the loyalty of his own soldiers, many of whom favoured the demands of the rebels, determined to gain time by opening negotiations for a peaceful settlement (27th Oct.). Two messengers were dispatched to submit their grievances to the king, and it was agreed that until an answer should be received both parties should observe the truce. The king met the demands for the maintenance of the old faith, the restoration of the liberties of the Church, and the dismissal of ministers like Cromwell by a long explanation and defence of his political and religious policy, and the messengers returned to announce that the Duke of Norfolk was coming for another conference. Many of the leaders argued that the time for peaceful remonstrances had passed, and that the issue could be decided now only by the sword. Had their advice been acted upon the results might have been disastrous for the king, but the extreme loyalty of both the leaders and people, and the fear that civil war in England would lead to a new Scottish invasion, determined the majority to exhaust peaceful means before having recourse to violence.

An interview between the leaders and the Duke of Norfolk, representing the king, was arranged to take place at Doncaster (5th Dec.). In the meantime a convocation of

the clergy was called to meet at Pomfret to formulate the religious grievances, and a lay assembly to draw up the demands of the people. Both clergy and people insisted on the acceptance of papal supremacy, the restoration of all clergy who had been deposed for resisting royal supremacy, the destruction of heretical books, such as those written by Luther, Hus, Melanchthon, Tundale, Barnes, and St. German, the dismissal of heretical bishops and advisers such as Cromwell, and the re-establishment of religious houses. Face to face with such demands, backed as they were by an army of 40,000 men, Norfolk, fearing that resistance was impossible, had recourse to a dishonest strategy. He promised the rebels that a free Parliament would be held at York to discuss their grievances, that a full pardon would be granted to all who had taken up arms, and that in the meantime the monks and nuns would be supported from the revenues of the surrendered monasteries and convents. Aske, whose weak point had always been his extreme loyalty, agreed to these terms, and ordered his followers to disband. He was invited to attend in London for a conference with the king, and returned home to announce that Henry was coming to open the Parliament at York, and that the people might rely with confidence on the royal promises. But signs were not wanting to show that the insurgents had been betrayed, and that they must expect vengeance rather than redress. Soon it was rumoured that Hull and Scarborough were being strengthened, and that in both cities Henry intended to place royal garrisons. The people, alarmed by the dangers that threatened them, attempted vainly to seize these two towns, and throughout the north various risings took place. The Duke of Norfolk, taking advantage of this violation of the truce, and having no longer any strong forces to contend with, promptly suppressed these rebellions, proclaimed martial law, and began a campaign of wholesale butchery. Hundreds of the rebels, including abbots and priests, who were suspected of favouring the insurgents, were put to death. The leaders, Aske, Lord Darcy, Lord Hussey, Sir Thomas Percy, Sir Francis Bigod, together with the abbots of Jervaux and of Fountains, and the Prior of Bidlington were arrested. Some of them suffered the penalty of death in London, while others were sent back to be executed in their own districts. By these measures the rebellion was suppressed in the north, and the rest of the counties were intimidated into submission.[36]

Had the Emperor decided upon supporting the people of the north the course of English history might have been different, but as war had broken out once more between France and the empire, both nations, anxious to maintain good relations with England, abstained from active interference in English affairs. Pope Paul III., deeply interested as he was in the English revolution, summoned to his assistance one who understood better than most of his contemporaries the character of the king and the condition of the country, namely, Reginald Pole. The latter, turning his back on the favour of the king and the offer of the Archbishopric of York, had left England rather than approve of the king's separation from Catharine. Henry, however, hoping to induce him to return to England, maintained friendly relations with Pole, and requested him to state frankly his views on royal supremacy. Pole replied in a long treatise afterwards published under the title /Pro ecclesiasticae unitatis Defensione/ (1536), in which he reproved the conduct of the king, and warned him of the dangers that his religious policy might involve. Henry, though deeply mortified by the

substance and tone of this work, pretended not to be displeased, and in the hope of silencing his distinguished kinsman whom he now both feared and hated he urged him to come back to England. Pole's mother and brothers besought him to yield to the royal wishes, or else he should prove the ruin of all those who were dear to him. Though deeply affected by their appeals, he preferred duty to family affection. He went to Rome where he was created a cardinal (1536), and appointed to assist in drawing up a scheme of ecclesiastical reforms in preparation for the General Council. Soon news arrived in Rome that a rebellion had broken out in England, that the people were ready to die in defence of their religion, and that the king might be forced to adopt a more conciliatory attitude towards Rome. It was decided to appoint Cardinal Pole papal legate, and to send him to England. Such an appointment coming at such a time filled Henry with alarm. He feared that James V. of Scotland might be induced to lead an army across the borders to the assistance of the northern rebels, and that France and the Emperor might unite their forces against one who was regarded by both as little less than a heretic. He induced the privy council to address a letter to the cardinal (Jan. 1537) reproaching him for his ingratitude and disloyalty to the king, and inviting him to come to Flanders for a friendly discussion with the English agents. Before the legate could leave Italy the Pilgrimage of Grace had been suppressed, and all hope of a successful mission in England was lost. He passed through France and Flanders, where he received a very cool reception from Francis I. and the regent of the Netherlands, both of whom had been requested to deliver him to Henry VIII. After a short stay in the territory of the Prince-bishop of Liège he returned to Rome in August 1537.[37]

But though the rebellion in the north had been suppressed, it was sufficiently grave to show Henry the danger incurred at home by religious innovations, while the legatine mission of Cardinal Pole made it advisable to prove to the Catholic rulers of Europe that England had not gone over to the Lutheran camp. The greatest objection taken by the conservative party in England to the /Ten Articles/, drawn up by the king and accepted by Convocation in the previous year (1536), was the absence of express reference to any Sacrament except Baptism, Penance, and the Eucharist. At the meeting of Convocation (1537) the battle was waged between the Catholic-minded bishops let by Tunstall of Durham and the Lutheran party let by Cranmer. At last the other four Sacraments were "found again," and a settlement agreeable to both parties arrived at and embodied in a treatise known as /The Institution of a Christian Man/. It consisted of four parts, the Apostle's Creed, the Seven Sacraments, the Ten Commandments, and the Our Father and Hail Mary. Two separate articles dealing with justification and purgatory taken from the Ten Articles previously issued were appended. The bishops submitted /The Institution/ to the judgment of the king, inviting him as supreme head of the Church to correct whatever was amiss with their doctrine, but Henry, anxious to hold himself free to bargain with the Lutheran princes if necessary, refused to take any responsibility for the work beyond ordering that it might be read in the churches for three years. Hence it was called the /Bishop's Book/.[38]

Against this and as a concession to the reforming party in England Henry was pleased to approve of a translation of the Bible presented to him by Cranmer, and to

order copies of it to be provided for the use of the faithful in every parish church (1537-38). William Tyndale, who had fled from England to Wittenberg, set himself to complete a translation of the Bible, which translation was published and smuggled into England in 1526. The translation was in itself bristling with errors, and the marginal notes were stupidly offensive. The bishops made desperate attempts to secure its suppression, but despite their efforts the obnoxious translation and even many of the more objectionable works written by the same author continued to find their way into England. The king, though nominally supporting the bishops, was not sorry that such works should be spread amongst the people, as a warning to the Pope of the consequences of a refusal to comply with the royal wishes. In 1530, however, he took counsel with the bishops and learned men to see what might be done to procure a good English translation of the Bible. They agreed that the reading of an English version of the Bible was not necessary for salvation, that, though the Scriptures in the vulgar tongue might be useful in certain circumstances and for certain people, they were more likely to be harmful at a time when erroneous books and heretical books were being propagated. Furthermore they advised that a proper correct translation should be made and placed in the king's hands, so that he might order its publication whenever he thought that a favourable moment had arrived for such a work.

Cromwell was, however, determined to push forward the new religious teachings. He was in close correspondence with an apostate Augustinian friar named Coverdale, who had been obliged to leave the country on account of his heretical opinions. At Cromwell's instigation Coverdale set himself to prepare a new translation of the Bible, and it was completed and published about 1535. Unlike that of Tyndale, who had gone to the Greek and Hebrew originals, Coverdale's Bible was made from the Vulgate with the aid of the German Lutheran translation. It was if anything even more objectionable than Tyndale's, but Cromwell intended to force it upon the clergy in the /Injunctions/ drawn up for their guidance in 1536, though apparently on further consideration he doubted the prudence of such a step, and the clause regarding the English Bible was omitted.[39] In 1537 Cranmer presented the English Bible to Cromwell for approval. It was supposed to contain "the Old and New Testament, truly and purely translated into English by Thomas Matthew," but in reality it was only a compilation of the works of Tyndale and Coverdale made by one John Rogers. Though very objectionable from the point of view of Catholic doctrine it was approved by Cromwell as vicar-general, and copies were ordered to be placed in every church (1538). Nearly two years later Coverdale's "Great Bible" with a preface by Cranmer was published.[40]

The results of the free use of such translations were soon apparent in the religious discussions that took place in many parts of England. Henry began to fear that he had acted unwisely in allowing the people to make their religion for themselves, and besides, as Cromwell had fallen, the conservative bishops like Gardiner of Winchester were in the ascendant. In the Convocation of 1542 grave objections were raised against these various translations, and with the approval of the king it was resolved to undertake a revision of them; but while the committee appointed for this revision was at work, a messenger arrived from the king forbidding Convocation to proceed

further, as His Majesty had decided to take the matter out of the hands of the bishops and submit it to the universities. The bishops protested against this order, but their protests were unheeded, and an English Bible, that had been condemned by Convocation, was forced on the clergy and people against the advice of the ecclesiastical authorities. In 1543, however, an Act was passed in Parliament at the request of the king forbidding private individuals to take it upon themselves to interpret the Bible in any public assembly; noblemen, gentlemen householders, and even merchants might retain the English translation and read it, but this favour was denied to the lower classes "unless the king perceiving their lives to be amended by the doctrines he had set forth thought fit to give them liberty to read it."[41]

Early in 1536 Queen Catharine died. Her heart had been broken by the conduct of the king and by separation from her daughter the Princess Mary. Time and again she had been commanded under threat of the severest punishment to accept the sentence of Cranmer's court, but both herself and the Princess refused steadfastly to subscribe to such a dishonourable verdict. After Catharine's death and merely to save her life Mary signed a document agreeing to the abolition of papal supremacy and the invalidity of her mother's marriage, though nobody attached any importance to a submission that was obtained in such circumstances. The death of Catharine was a great relief to Henry and Anne, more especially to the latter, who had some reason for believing that she herself had lost her hold on the affections of the king. Henry had already grown weary of the woman for whose sake he had put his lawful wife away and separated his kingdom from the Catholic Church, and the disappointment of his hopes for the birth of an heir to the throne confirmed his intention of ridding himself of a partner, who was regarded by his own subjects and the nations of Europe only as his concubine. She was arrested on a charge of misconduct with her brother and other gentlemen of the court, was tried before a body of the peers, and was put to death at Tyburn (17th May, 1536). Cranmer, who in his heart was convinced of her innocence, promptly held a court and pronounced her marriage with Henry null and void. On the very day of her execution he issued a license for the king to marry Jane Seymour, one of Anne's maids of honour, and before the end of the month the marriage was celebrated. In June Parliament confirmed Cranmer's sentence by declaring the invalidity of Henry's previous marriages, and the illegitimacy of Mary and Elizabeth, and by fixing the succession on the heirs of the king and Jane Seymour. Furthermore, in case there might be no children it empowered the king to determine by his will who should succeed. The object of this was to enable him to appoint as his heir his bastard son, the Duke of Richmond, but this intention was frustrated by the death of the Duke (July 1537).

While Parliament was in session Convocation assembled once more. Cromwell, as the king's vicar-general in spirituals, claimed the right to preside either in person or by proxy. Many of the new bishops who had been appointed since 1533 were distinctly Lutheran in their ideas and tendencies. Latimer of Worcester, who was well known to favour German theology, was supported by five others, Shaxton, Goodrich, Edward Foxe, Hilsey, and Barlow. Though Latimer on a former occasion had been censured by Convocation he was selected to deliver the opening sermon, in which he inveighed against Purgatory, images, altars, relics, pilgrimages, the carelessness of

the clergy, and the abuses of the spiritual courts. Convocation having approved of Cranmer's verdict regarding Henry's marriage with Anne Boleyn, a petition was sent up from the lower house to the bishops complaining of the erroneous views propagated by various preachers in the province of Canterbury. The vast body of the older bishops were determined to condemn these heretical views, which were little less than the renewal of the Lollard teaching with a slight admixture of Lutheran theology, but Cranmer, Latimer, and Foxe were equally determined to prevent such a condemnation. The dispute promised to be both warm and protracted. Cromwell, however, appeared in the assembly with a book of /Ten Articles/ drawn up by the king for securing religious unanimity, and insisted that the prelates should accept them. The Articles were moderate in tone, and generally were not in opposition to the old theology. They approved of Transubstantiation, emphasised the importance and necessity of Baptism, Penance, and the Eucharist without affirming that these were the only three Sacraments, declared that good works were necessary for justification, that prayers might be offered for those who were dead, that the use of the word Purgatory was not to be recommended, that reverence should be shown to images and pictures, and that the older ceremonies should be retained. The great objection to these Articles was not the doctrine they set forth, but the fact that they were issued by the king's authority. That the King of England could revise the beliefs and ceremonies of the Catholic Church was in itself a revolution, and should have opened the eyes of the Catholic-minded bishops to the full meaning of royal supremacy. Furthermore, Convocation declared that the Bishop of Rome could not convene a General Council without the permission and co-operation of the Christian princes. A few weeks later Cromwell issued a set of /Injunctions/ to be observed by the clergy charged with the care of souls. They were to set forth the Articles drawn up by the king, to discourage pilgrimages and the observation of holidays that had not been abrogated, not to lay too much stress upon images and relics, and to warn the people to teach their children in English the Our Father, the Creed, and the Ten Commandments; they were to give one-fortieth of their incomes to the poor, one-fifth to the repair of the churches, and those who held the richer benefices were commanded to spend their surplus revenue in maintaining a student or students at Oxford and Cambridge.

In the autumn of 1536 three sets of royal commissioners were at work, one superintending the suppression of the lesser monasteries, a second charged with communicating Cromwell's instructions to the clergy, and removing those priests who were unwilling to accept them, and a third entrusted with the collection of royal taxation on ecclesiastical benefices. By these commissions the entire face of the country was changed. The monastic institutions were suppressed and the servants and labourers in their employment were turned adrift, the relief to the poor and the wayfarer was discontinued, and the tenants awaited with nervousness the arrival of the new grandees. The possessions of the religious houses, instead of being spent on the development of education and the relief of the taxes, found their way for the most part into the royal treasury, or into the pockets of the officials charged with the work of suppression. Oxford and Cambridge were reduced to sullen submission, and obliged to accept a new set of statutes, to abolish the study of canon law in favour of

civil law, to confine the divinity courses to lectures on the Scriptures, and to place in the hands of the students the classical authors together with the Humanist commentaries thereon, instead of the tomes of Duns Scotus or St. Thomas. Such changes, as has been shown, led to rebellion in different parts of the country, but especially in the north, where loyalty to Rome was still regarded as compatible with loyalty to the king.

After the suppression of the rebellions in the north and the failure of Cardinal Pole to bring about an European coalition against Henry, the war against the greater monasteries was begun (1537). Those situated in the northern counties were charged with having been implicated in the rebellion. Many of the abbots were put to death or imprisoned, and the goods of the communities were confiscated. Several others in order to escape punishment were induced to surrender their property to the king's commissioners. In some cases the abbots were bribed by promises of special favours for themselves, in others they were forced to yield up their titles to avoid charges of treason on account of documents supposed to have been discovered in their houses or evidence that had been extracted from some of their monks or retainers. During the years 1538 and 1539 the monasteries fell one by one, while during the same period war was carried on against shrines and pilgrimages. The images of Our Lady of Ipswich and of Our Lady of Walsingham were destroyed; the tomb of St. Thomas à Becket was rifled of its precious treasures, and the bones and relics of the saint were treated with the greatest dishonour. Everywhere throughout the country preachers inspired by Cromwell and Cranmer, the latter of whom aimed at nothing less than a Lutheran revolution in England, were at work denouncing images, pilgrimages, invocation of saints, and Purgatory. So long as money poured into the royal treasury from the sale of surrendered monastical property and of the ecclesiastical goods, or so long as a blow could be struck at the Papacy by desecrating the tomb of a saint who had died as a martyr in defence of the Holy See, Henry looked on with indifference if not with pleasure.

But the news of such outrages could not fail to horrify the Catholic world, and to prove to Paul III. that there was little hope of any favourable change in Henry's religious policy. It was determined to give effect to the Bull of excommunication that had been prepared for years, and to call upon the Catholic powers of Europe to put it into execution either by a joint declaration of war, or by an interruption of commercial relations with England. The time seemed specially favourable for the publication of such a sentence. After years of active or smouldering hostility the two great rivals Charles V. and Francis I. had arranged a ten years truce (June 1538), and Cardinal Pole was sent as legate to Spain and France to induce the Emperor and Francis I. to take common action. James V. of Scotland promised his assistance, and a papal envoy was dispatched to Scotland to bear the cardinal's hat to Archbishop Beaton, and to encourage the king to co-operate with the Catholic rulers of the Continent.

When the news of these preparations reached England Henry was thoroughly alarmed for the safety of his kingdom. The brothers of Cardinal Pole, Sir Geoffrey Pole and Lord Montague, his mother, the Countess of Salisbury, Henry Courtenay,

Marquis of Exeter, Lord Delawarr, Sir Edward Neville, Sir Nicholas Carew, and others were arrested, nominally on the charge of treason, but in reality because the Poles and the Courtenays were regarded as dangerous claimants to the English throne. With the exception of Sir Geoffrey Pole, who turned king's evidence, and the Countess of Salisbury who was kept in confinement for years, the others were put to death, and commissioners were sent into Cornwall to suppress all attempts at rebellion. During the spring of 1539 preparations for repelling an invasion were pushed forward with feverish activity, and so great was the loyalty of the vast body of the English people, and so hateful to them was the idea of a foreign invasion that many, who detested Henry's religious policy, came forward with their assistance. The fortresses along the coast and on the Scottish borders were strengthened, and replenished; the fleet was held in readiness in the Thames; and a volunteer army trained and equipped was raised to contest the progress of the invaders or at least to defend the capital. Negotiations with the Protestant princes of Germany for the conclusion of an offensive and defensive alliance were opened, and to prevent a commercial boycott a proclamation was issued that except in case of wool foreigners trading in England should be obliged to pay only the duties and customs imposed upon Englishmen. But as events showed there was no necessity for these warlike preparations. Francis I. could not dare to forward an ultimatum to England unless aided by the Emperor, and Charles V., confronted with a Turkish invasion and a Protestant rebellion in Germany, found it impossible to undertake an expedition against England. Nor was the project of a commercial boycott likely to be more successful. The Flemish merchants in the Netherlands were too deeply interested in English trade to permit them to look favourably upon a scheme that was likely to prove as ruinous to their own country as to England, particularly as the recent proclamation in favour of foreign merchants offered them a special opportunity for pushing their wares beyond the Channel.

A new Parliament was summoned to meet in April 1539. Cromwell, who was a past master in the art of selecting and managing such assemblies, took care that men should be returned who were likely to favour the projects of the king, and in this action he succeeded beyond expectation. An Act of Attainder was passed against Cardinal Pole and against the Countess of Salisbury, as well as against those who had been executed a short time before. As the /Ten Articles/ on religion published by the king and the improved version of these Articles known as the /Bishop's Book/ had not proved sufficient to suppress religious controversy in the kingdom or to prevent England from being regarded as a heretical nation on the Continent, Henry determined to lay down a fixed rule of faith, that should be accepted by all his subjects, and that should prove to the Emperor and to France that England, though separated from Rome, was still loyal to the Catholic religion. A commission of bishops was appointed to prepare a report on the principal points of faith that had been called in question, but the bishops were divided into two hostile camps. While Cranmer, Latimer, Shaxton, Goodrich, and Barlow were strongly Lutheran in their tendencies, Archbishop Lee of York, Gardiner of Winchester, Tunstall of Durham, and Aldrich of Carlisle were opposed to all dogmatic innovations. Though Cromwell supported secretly the reforming party it soon became known that Henry VIII. favoured the

conservatives. As no agreement could be arrived at by the bishops, the Duke of Norfolk, who was rising rapidly at court as the champion of conservative interests, took the matter out of the hands of the bishops, by proposing to the House of Lords Six Articles dealing with the main points of difference between the Catholics and the Lutherans of the Continent. On these Articles the laymen did not venture to express any opinion, but Cranmer, Latimer and their friends held out till at last Henry appeared himself and "confounded them all with God's learning."

The decision was embodied in an Act of Parliament entitled "An Act abolishing diversity of Opinions," which having received the royal assent was placed upon the Statute Book (1539). The Articles agreed upon by Convocation and Parliament and published by the king's authority were: (1) that in the Eucharist the substance of the bread and wine is changed into the Body and Blood of Christ; (2) that Communion under both kinds is not necessary for salvation; (3) that clerical celibacy should be observed; (4) that vows of chastity should be observed; (5) that private Masses ought to be retained; and (6) that auricular confession is expedient. Denial of the first article, namely, that regarding Transubstantiation, was to be deemed heresy punishable by death at the stake, and denial of the others was felony punishable by forfeiture for the first and by death for the second offence. Priests who had taken to themselves wives were commanded to put them away under threat of punishment for felony, and people, who refused to confess and receive the Eucharist at the usual times, were to be imprisoned or fined for the first offence, and to be judged guilty of felony for the second offence. The Act of Six Articles, as it is commonly known, or "the whip with six strings," as it was nicknamed contemptuously by the Reformers, marked a distinct triumph for the conservative party, led by the Duke of Norfolk among the peers and by Gardiner and Tunstall amongst the bishops. Cranmer made his submission and concealed his wife, but Latimer and Shaxton with greater honesty resigned their Sees rather than accept the Act. The vast body of the clergy and people hailed it with delight as a crushing blow delivered against heresy, and as proof that Henry was determined to maintain the old religion in England.[42]

But if Cromwell had received a check on the question of dogma, he determined to curry favour with the king and at the same time to advance the cause he had at heart, by securing the suppression of the remaining monasteries. An Act was passed through all its stages in one day vesting in the king the property of all monasteries that had been suppressed or that were to be suppressed. This was done under the pretence that the monks, being ungodly and slothful, should be deprived of their wealth, which if handed over to the king could be devoted to the relief of poverty, the education of youth, the improvement of roads, and the erection of new bishoprics. Under threat of penalties nearly all the great monasteries surrendered their titles and lands except the abbots of Glastonbury, Reading, and Colchester, all of whom were arrested and put to death (1539). This punishment struck terror into the hearts of the others, and by the surrender of Waltham Abbey (March 1540) the last of the great English monasteries disappeared. Finally, to show the state of complete subserviency to which the English Parliament was reduced, it passed an Act giving to the royal proclamation with certain ill-defined limits the force of law (1539).

It was evident to all that the position of Cromwell at court had become very insecure. While England was threatened with an European coalition he had suggested an alliance with the Protestant princes of Germany, and as Henry's third wife Jane Seymour had died (1537), after having given birth to a son (later on Edward VI.), he determined to cement the bond of friendship by a new matrimonial alliance. The Duke of Cleves was brother-in-law to the Elector of Saxony and one of the guiding spirits of the Schmalkaldic League, and as he had given mortal offence to the Emperor by his acceptance of the Duchy of Guelders, Cromwell decided that a marriage between the Duke's sister, Anne, and Henry VIII. would secure for England both the alliance of the League of Schmalkald and at least the neutrality of France. Though Henry detested the Elector of Saxony and his friends as heretics, and though the Six Articles aroused considerable resentment in the Lutheran camp, the close union between Charles V. and Francis I. and the uncertainty of what steps they might take made it imperative to push forward Henry's marriage. The marriage treaty was signed in October 1539, and in December Anne of Cleves landed at Deal. Henry, who had been led to believe that Anne was both accomplished and moderately beautiful, could not conceal his disappointment when he met his prospective bride; but, as his trusted counsellors could devise no plan of escape, he consented with bad grace to go through the ceremony of marriage (6th Jan., 1540). Henry was displeased and made no secret of his displeasure. Cromwell, whom he blamed specially for this matrimonial misfortune, felt himself in considerable danger, though at the same time he resolved not to yield without a struggle. The contest between Cranmer, backed by the Lutheran party in the council, and Gardiner, the Duke of Norfolk, and the conservatives was sharp though by no means decisive. The king appeared at one time to favour one side, at another the other side, unwilling to commit himself definitely to either, especially as Cromwell was still reaping a rich harvest from the suppression of the Knights of St. John and from the taxes imposed on the clergy.

Parliament met again in April 1540. To the surprise of many Cromwell was created Earl of Essex (17th April), while a little later Bishop Sampson was arrested as a supporter of the Pope. The hopes of Cromwell and of the reforming party rose rapidly, and they believed that victory was within their grasp. The committee of bishops was at work considering the sacraments, but as both the old and the new clung tenaciously to their opinions no progress could be made. Suddenly on the 10th June an officer appeared in the council chamber and placed Cromwell under arrest. The long struggle was at last ended, and the men who had followed Gardiner had won the day. The war clouds, that had driven Henry to negotiate with the heretical princes of Germany, had blown over, and Cromwell, who had taken a leading part in the German negotiations, must be sacrificed to satisfy his enemies at home and Catholic opinion on the Continent. He was committed to the Tower to await the sentence of death which he knew to be inevitable, but, before handing him over to the executioner, Henry insisted that he should perform for him one last service. As Cromwell had involved him in an undesirable marriage with Anne of Cleves, he should provide evidence that might set his master free to seek for a more congenial partner. At the command of the king Cromwell wrote a long letter, in which he showed that Henry never really consented to the marriage with Anne, against which

marriage the existence of a pre-nuptial contract was also adduced. On the strength of this, Parliament demanded an investigation, and a commission was issued empowering the Archbishops of Canterbury and York and others of the clergy to examine into the validity of the marriage. Convocation decided that it was null and void (July 1540), a decision with which Anne expressed her complete satisfaction. She was assigned a residence and a pension of £4,000 a year. On the 28th July, 1540, Cromwell was led to execution at Tyburn, where he expressed publicly his adherence to the ancient faith, for the destruction of which in England he had contributed more than any single individual with the exception possibly of the king.[43] A few days later Henry was married to Catharine Howard, a niece of the Duke of Norfolk, the recognised lay head of the conservative party in England.

The penalties prescribed in the Statute of the Six Articles were enforced with great vigour, and at the same time those who maintained papal supremacy were treated with equal severity. While the men who denied Transubstantiation were burned as heretics at Smithfield, their opponents, who dared to express views derogatory to royal supremacy, were hanged, drawn, and quartered as traitors. Latimer retired into private life; Cranmer showed no signs of open opposition to the king's religious policy, and, practically speaking, all traces of the new teachings that had disturbed England for years disappeared. The aged Countess of Salisbury, mother of Cardinal Pole, was put to death in 1541, two years after sentence of attainder had been passed against her by Parliament, as were, also, a large number of priests and laymen suspected of having been implicated in an attempt to bring about another rebellion in the north. In consequence of this plot Henry determined to undertake a journey to York (1541) with the hope of strengthening his hold upon the people, and possibly also of securing the friendship of his nephew, James V. of Scotland, who had remained loyal to Rome and to France. The Archbishop of York made his submission on bended knees, presenting the king with a gift of £600 as a sign of the repentance of the people for their recent disobedience, an example that was followed in many of the cities and towns; but James V., unwilling to trust his life and liberty to the king, refused to cross the English border.

Henry returned to London only to find that serious charges of immorality were being brought against his wife, Catharine Howard. She was arrested and put to death with her chief accomplices (1542). Though the king could not conceal his joy at finding himself free once more, he hesitated for some time before choosing another wife; but at last in 1543, his choice fell upon Catharine Parr, a young widow twenty years his junior, who was believed to favour royal supremacy, though she had been married previously to one of the leaders of the Pilgrimage of Grace. It is said that once at least she stood in serious risk because she ventured to disagree with her husband's theological views, but, however that may be, it is certain that she had the good fortune to survive the king.

The struggle between the old principles and the new continued, notwithstanding all Henry's attempts to secure unanimity. As early as 1540 a set of questions had been circulated amongst the bishops, and as a result of the replies received and of the discussions that took place in Convocation a book was issued, entitled /A

Necessary Doctrine and an Erudition for any Christian Man/ (1543). It was issued by order of the king, and for this reason is known as the /King's Book/ in contradistinction to the /Bishop's Book/, published with his permission but not by his authorisation. Just as the /Bishop's Book/ represented a revision of the Ten Articles, so the /King's Book/ was an extension or completion of the /Bishop's Book/, in many respects even more Catholic in its tone than the original. The king was now nearing his end rapidly, and both parties in the royal council strove hard for mastery. Gardiner and Bonner, Bishop of London, stood firm in defence of Catholic doctrine, and once or twice it seemed as if they were about to succeed in displacing Cranmer from the favour of the king; but the danger of an attack from the united forces of France and the Emperor, especially after the peace of Crépy had been concluded (1544), made it necessary for Henry not to close the door against an alliance with the Protestant princes of Germany by an attack on Cranmer, who was regarded by them as an active sympathiser. Once indeed Henry ordered that the archbishop should be arrested, but a sudden change of mind took place, and the order for the arrest was cancelled.

A new Parliament met in 1545. The royal exchequer had been emptied by the war with France and Scotland, and to replenish it an Act was passed empowering the king to dissolve chantries, hospitals, and free chapels, and to appropriate their revenues for his own use. Henry addressed the Parliament on Christmas Eve 1545 in a speech in which he deplored the religious differences that divided his people, differences which were due, he said, partly to the obstinacy of the clergy, some of whom wished to cling to all the old ways, while others of them would be content with nothing less than a complete renewal; partly to the fault of the people who spoke scandalously of their clergy, and abused the Scriptures they had been permitted to read. In itself this speech was a sad commentary on Henry's religious campaign, containing as it did a confession that despite all his violence and persecution, religious formularies imposed by royal authority were not sufficient to preserve religious unity. During the year 1546, though many persons were still sent to the stake for denying Transubstantiation, the power of Cranmer and his party was on the increase. The Earl of Hertford, uncle of the young Prince Edward and Cranmer secured the upper hand in the council, and the Duke of Norfolk, together with his son the Earl of Surrey, was imprisoned in the Tower (Dec. 1546). Surrey was tried and executed, and a similar fate was in store for the Duke, were it not that before the death- sentence could be carried out, Henry himself had been summoned before the judgment-seat of God (28th Jan. 1547). For some weeks before his death the condition of the king had been serious, but the Earl of Hertford and his party kept the sickness and even the death a secret until all their plans had been matured. On the 31st January Edward VI. was proclaimed king, and the triumph of the Lutheran party seemed assured.

On the death of Henry VIII. all parties looked forward to a complete change in the religious condition of England. On the one hand, those, who longed for a return to Roman obedience, believed that royal supremacy must of necessity prove both unintelligible and impracticable in the case of a mere child like Edward VI. (1547-53); while, on the other hand, those, who favoured a closer approximation to the theology and practices of Wittenberg or of Geneva, saw in the death of Henry and the

succession of a helpless young king an exceptional opportunity for carrying out designs against which Henry had erected such formidable barriers. To both parties it was evident that at best Edward VI. could be but a tool in the hands of his advisers, and that whichever section could capture the king and the machinery of government might hope to mould the religious beliefs of the English people.

For more than a year before the death of Henry VIII., Edward Seymour, Earl of Hertford and uncle of Edward VI., the Earl of Essex, brother of Catharine Parr, Viscount Lisle, Lord Admiral and afterwards Earl of Warwick, all of whom were in favour of religious innovations, had been advancing steadily in power, to the discomfiture of the conservative section led by Bishop Gardiner, the Duke of Norfolk, and the Lord Chancellor Wriothesley. The death of Henry VIII. had been kept a secret until the Earl of Hertford had all his plans matured for securing control, and for the proclamation of Edward VI.[44] (31st Jan. 1547), then a boy of ten years. Henry VIII. had bequeathed the crown to his son, and on his death without heirs to his daughters in turn, the Princess Mary daughter of Catharine of Aragon, and Elizabeth daughter of Anne Boleyn. By his will also he appointed a council the members of which were to govern the kingdom as a body till the king should attain his eighteenth year, but he sought to provide against any serious innovations by authorising the king to repeal all changes that might have been made by the council during his minority. If one may judge from the terms of his will Henry's religious views at his death were evidently what they had been when in 1539 he passed the Statute of Six Articles, but, at the same time, it is a noteworthy fact that he excluded Bishop Gardiner from the list of executors of his will, and appointed two divines well known for their leaning towards German theology as tutors to the young king.

In nearly every particular the council of executors failed to carry out the wishes of the late king. The Earl of Hertford, created later on Duke of Somerset, became Protector with almost royal powers, and instead of defending the religious settlement the majority of the council set themselves from the very beginning to initiate a more advanced policy. Cranmer as Archbishop of Canterbury could be relied upon to support such a course of action, while, of the principal men who might be expected to oppose it, the Duke of Norfolk was a prisoner in the Tower and the Lord Chancellor Wriothesley was dismissed to make way for a more pliable successor. The bishops, who were regarded merely as state officials, were commanded to take out new commissions. Cranmer obeyed without protest, as did all the others except Gardiner, who questioned the authority of the council to issue such a command at least until the supreme head of the Church should have reached his majority.[45]

Those who had been held in check by the repressive legislation of Henry VIII. felt themselves free to renew the attacks on the practices and doctrines of the Church. The royal preachers who had been appointed for the Lenten sermons, Dr. Barlow, Bishop of St. David's, Ridley one of Cranmer's chaplains, and others, not content with abusing the Bishop of Rome, declared war on images, relics, and even on the Lenten fasts and abstinences. Against such novelties Gardiner addressed an indignant protest to the Protector and council, warning them that during the minority of the king there was no power in England competent to change the religious settlement

that had been accomplished by Henry VIII. But his protest fell on deaf ears. The war against images was carried on vigorously, though legally only those images that had been abused were forbidden, and even in Bishop Gardiner's own diocese he was powerless to resist those who knew they could count on the support of the Protector.

In July 1547 two important publications were issued, one, /The Injunctions of Edward VI./, the other, /The Book of Homilies/, composed by Cranmer, and issued by the authority of the council. The former of these commanded that sermons should be delivered at fixed intervals against the Bishop of Rome, that images which had been abused, shrines, pictures, and other monuments of superstition should be destroyed, that the Gospels and Epistles should be read in English, that alms boxes should be set up in all churches, and that the clergy should inform their people that the money spent on pardons, pilgrimages, candles, and other blind devotions should now be devoted to the support of the poor.[46] The /Book of Homilies/[47] was to serve as a guide for preachers in their public services. A royal commission was appointed to insist upon the observance of these Injunctions, but in London Bishop Bonner refused at first to accept the commands of the visitors, and though later on he weakened in his resistance, he was committed to prison as a warning to others. Gardiner boldly denounced the visitation as illegal and unwarrantable, but the council instead of meeting his arguments and remonstrances ordered his arrest (September 1547). In many places the proclamation for the removal of images led to violent disturbances, and free fights within the churches were not uncommon. To put an end to any misunderstanding on this subject for the future the council ordered the removal of all images from the churches (Feb. 1548).

For various reasons the Protector and council delayed assembling Parliament as long as possible, but at last it was convoked to meet in November 1547. As happened in the case of all the Parliaments in the Tudor period, careful steps were taken to ensure that only men who could be relied upon were returned by the sheriffs. Neither from the lay members in the House of Lords, many of whom had been enriched by the plunder of the monasteries, nor from the spiritual peers lately appointed, could any effective resistance be expected, while the bishops who were still strongly Catholic in tone were deprived of a capable leader by the imprisonment of Gardiner. It was significant that in the Mass celebrated at the opening of Parliament the /Gloria/, Creed, and /Agnus Dei/ were sung in English. The bishops had been taught a lesson already by being forced to take out new commissions like other officers of the crown, by having their jurisdiction suspended during the progress of the royal visitation, and by being prohibited from preaching outside their own cathedrals. But, lest they might have any lingering doubts about the source or extent of their jurisdiction, Parliament enacted that for the future bishops should be appointed not by election but by royal letters patent, and that all their official documents should be issued in the king's name and under his seal or some other seal authorised by him.[48] All the Acts against heresy that had been passed since the days of Richard II., including the Statute of Six Articles, were repealed; most of the new treason-felonies created during the previous reign were abolished; and, though denial of royal supremacy was accounted still as treason, it was enacted that by merely speaking against it one did not merit the punishment of death unless for the third offence.

The question of the Blessed Eucharist had come to the front rapidly owing to the violent and abusive sermons of some of the new preachers, and the irreverent and sacrilegious conduct of those who accepted their teaching. The bishops of the old school demanded that measures should be taken to prevent such attacks on the very centre point of Christian worship, while Cranmer and his supporters were determined to insist upon Communion under both kinds. Apparently two different measures were introduced, which were merged ultimately into one Act, whereby it was decreed that all who spoke irreverently against the Blessed Eucharist should be punished by fines and imprisonment, and that Communion should be administered under both kinds except necessity otherwise required. The linking together of these two Acts was a clever move to ensure the support of the bishops who desired to put down irreverence against the Eucharist, and it is noteworthy that out of the eleven bishops present five voted against the measure even in its improved form.[49]

Already an Act had been passed in the previous reign against colleges, chantries, guilds, etc., but since most of these remained as yet undisturbed, it was determined to replenish the royal treasury by decreeing their immediate dissolution, and by vesting their property in the king. This was done with the avowed object of diverting the funds from superstitious uses to the erection of grammar schools, the maintenance of students at the universities, and the relief of the poor; but in reality the property of the guilds, and of the free schools and chantry schools, was confiscated, and little if anything was done for the improvement of education or for the relief of the poor. Edward VI. is represented generally as the founder of the English grammar schools and colleges, but it would be much more correct to say that through his greedy ministers he was their destroyer. True, indeed, he established a few colleges and hospitals, but such beneficence was only a poor return for the wholesale overthrow of more than four hundred flourishing educational establishments, and for the confiscation of thousands of pounds bequeathed by generous benefactors for the education of the poor.[50]

Convocation had met on the day after the assembly of Parliament. The lower house presented four petitions to the bishops, the most important of which was that the proctors of the clergy should be admitted to Parliament, or at least that ecclesiastical legislation should not pass until the clergy had been consulted, but the bishops were too conscious of their helplessness to support such an appeal. It is doubtful if the bill regarding Communion under both kinds was ever submitted regularly to Convocation, though later on a proposal to abolish the canons enforcing clerical celibacy was carried by a majority. It is asserted, and apparently on good authority, that the higher and more learned of the clergy consented to this proposal only under pressure.

The year 1548 opened ominously for the Catholic party. Preachers, licensed by the Archbishop of Canterbury and protected openly by the court, delivered wild harangues against Catholic doctrines and practices. Pamphlets, for the most part translations of heretical works published in Germany or Switzerland attacking the Mass, Transubstantiation, and the Real Presence, were sold publicly in the market places without any interference from the authorities. In January a royal proclamation

was issued enjoining the observance of the Lenten fasts, but ten days later an order was made forbidding the use of candles on Candlemas Day, of ashes on Ash Wednesday, or of palms on Palm Sunday. This was followed quickly by a command for the removal of all statues, images, pictures, etc. from the churches. The use of Communion under both kinds was to come into force at Easter 1548, and to prepare for this a royal proclamation was set forth making obligatory the English /Order for Communion/. As the new rite regarded only the Communion of the laity, the Latin Mass was to remain in use as heretofore "without any varying of any rite or ceremony."[51] The clergy were commanded to announce the Sunday on which they proposed to distribute Communion to their flocks. After the priest had himself communicated, the communicants, who did not wish to go to confession, should make a general confession, and should receive Communion under both kinds, the whole service being completed by the usual blessing. This was a clever trick to prepare the way for still greater changes. Owing to the retention of the Latin Mass it was expected that the new Communion service would not lead to serious trouble, while at the same time it would accustom the people to portions of the Mass being read in English, and would imply both that auricular confession was unnecessary and that Mass without Communion of the laity was of no particular importance. The council anticipated that the Communion service would prove unacceptable to many of the clergy, and their anticipations were fulfilled, though, as shall be seen, they adopted a novel method of allaying the trouble.

Bishop Gardiner, who had been kept in prison while Parliament was in session lest his presence in the Upper House might lead to trouble, was released in January 1548, but in May a peremptory summons was issued commanding him to come to London without delay. He obeyed, and for some time negotiations were carried on, until at last he was ordered to preach against the Pope, monasteries, confession, and in favour of the English Communion service (29th June). He was urged not to treat of the sacrifice of the Mass, or of Transubstantiation, and warned of the serious consequences that might ensue in case he disobeyed; but Gardiner was a man who could not be deterred by such means from speaking his mind, and as a consequence he was again placed under arrest, and sent as a prisoner to the Tower. Cranmer, who had rejected the authority of the Pope because he was a foreigner, finding that he could get no support from the clergy or the universities--for in spite of everything that had taken place the theology of Oxford and Cambridge was still frankly conservative--invited preachers to come from abroad to assist in weaning the English nation from the Catholic faith. The men who responded to his call formed a motley crowd. They were Germans like Martin Bucer and Paul Fagius, Italian apostate friars like Peter Martyr (Pietro Martire Vermigli) and Ochino, Frenchmen like Jean Véron, Poles like John à Lasco, Belgians like Charles Utenhove, à Lasco's disciple, and Jews like Emmanuel Tremellius.[52] The order for the total removal of images and for the Communion service in English led to serious disturbances even in the London churches, where the new opinions should have found the strongest support, and confusion reigned throughout the country.

The Communion service in England was, however, only the prelude to the total abolition of the Mass. Early in 1548 a series of questions had been addressed by

Cranmer to the bishops regarding the value of the Mass as a religious service apart from the Communion.[53] The bishops were asked to say also whether private Masses offered for the living and the dead should continue to be celebrated, and what language should be used. In their replies Cranmer and Ridley favoured innovation, and were supported generally by Holbeach, Barlow, Cox, and Taylor. One, Bishop Goodrich of Ely, expressed his willingness to accept whatever might be enjoined, while the rest of the bishops adopted a conservative attitude. But whatever might be the opinions of the bishops generally the Protector and Cranmer were determined to procure the abolition of the Mass. Later in the year an assembly of the bishops was held to discuss the new English service to be substituted in its place. It is difficult to determine what precisely was done at this meeting. From the discussions which took place afterwards in the House of Lords it is clear that the bishops could not agree upon the Eucharist, that all with one exception signed their names to a rough draft drawn up on the understanding that they did not commit themselves thereby to Cranmer's views, and that the episcopal report was changed by some authority before it was presented to Parliament, especially by the omission of the word "oblation" in regard to the Mass. That the Book of Common Prayer as such was ever submitted to or approved by a formal convocation of the clergy cannot be shown.[54]

Parliament met in November 1548. To put an end to the religious confusion that had arisen an Act of Uniformity enjoining on all clergy the use of the Book of Common Prayer was introduced.[55] The main discussion centred around the Eucharist and the Mass. Bishop Tunstall of Durham objected that by the omission of the Adoration it was implied that there was nothing in the Sacrament except bread and wine, a contention that he could not accept, as he believed in the Real Presence of the Body and Blood of Christ both spiritual and carnal. Bishop Thirlby of Westminster maintained that the bishops had never agreed to the doctrine contained in the Book regarding the Eucharist but had allowed it merely to go forward for discussion. The Protector reproved him warmly for his tone and statement, but Thirlby stood firmly by his point of view, adding the interesting item of information that when the Book left the hands of the bishops it contained the word "oblation" in reference to the Mass, which word had since been omitted. Bonner of London pointed out that the Book of Common Prayer, embodying as it did statements condemned abroad and in England as heresy, should not be accepted. Cranmer and Ridley defended strongly the Eucharistic doctrine it contained. When the disputation between the bishops had been closed (19th Dec., 1548) the Bill for Uniformity was brought down and read in the Commons. Of the bishops present in the House of Lords ten voted in favour of the measure and eight against it. Gardiner was still in prison, the Bishop of Llandaff, who had spoken against Cranmer, was absent from the division, and some others are not accounted for.[56]

The first Act of Uniformity (1548), as it is called, displaced the Mass as it had been celebrated for centuries in the English Church, and substituted in its place the new liturgy contained in the /Book of Common Prayer/.[57] This latter while differing completely from any rite that had been followed in the Catholic Church, had a close affinity both in regard to the rites themselves and the ceremonies for the administration of the Sacraments to the liturgy introduced by the German Lutherans.

According to the Act of Parliament it was to come into force on Whit Sunday the 9th June (1549). That it was expected to meet with strong opposition is evident from the prohibition against plays, songs, rhymes, etc., holding it up to ridicule, as well as by the heavy fines prescribed against those who might endeavour to prevent clergymen from following it. Forfeiture of a year's revenue together with imprisonment for six months was the penalty to be inflicted on any clergyman who refused to follow the new liturgy. Complete deprivation and imprisonment were prescribed for the second offence, and the third offence was to be punished by life-long imprisonment. For preventing any clergyman from adopting the new liturgy the penalties were for the first offence a fine of £10, for the second £20, and for the third forfeiture and perpetual imprisonment. Finally Parliament satisfied Cranmer's scruples by permitting clergy to contract marriages.

The attempt to abolish the Mass and to force the new liturgy on the English people led to risings and disturbances throughout the country. In London, where it might have been expected that the influence of the court should have secured its ready acceptance, many of the churches maintained the old service in spite of the frantic efforts of Cranmer and his subordinates. Bishop Bonner was reproved sharply for encouraging the disobedience of his clergy, and as he failed to give satisfaction to the government he was committed to prison. In Devonshire and Cornwall[58] the peasants and country gentlemen rose in arms to protest against the new service which they had likened to a Christmas game, and to demand the restoration of the Mass, Communion under one kind, holy water, palms, ashes, images, and pictures. They insisted that the Six Articles of Henry VIII. should be enforced once more and that Cardinal Pole should be recalled from Rome, and honoured with a seat at the council. In the Universities of Oxford and Cambridge, where royal visitors and hired foreigners like Peter Martyr, Bucer, and Ochino were doing their best to decatholicise these seats of learning, violent commotions took place, that served to arouse both students and people, and soon the country around Oxford was in a blaze. The religious disturbances encouraged those who preferred small farms and sturdy labourers to grazing inclosures and sheep to raise the standard of revolt against the new economical tendencies, and to accept the leadership of the Norfolk tanner, William Kett.[59] By the strenuous exertions of the Protector and the council, backed as they were by foreign mercenaries raised in Italy and Germany to fight against Scotland, these rebellions were put down by force, and the leaders, both lay and clerical, were punished with merciless severity. The disturbed condition of the country, however, the open dissatisfaction of the Catholic party, the compromises that were offered to those who fought against inclosures, and the unfortunate war with France into which the country had been plunged, pointed to Somerset's unfitness for the office of Protector. A combination was formed against him by the Earl of Warwick, assisted by the leaders of the Catholic party. He was arrested, found guilty, and deprived of all his offices (Dec. 1549), and the Earl of Warwick, created later Duke of Northumberland, secured the principal share in the new government.

Cranmer and his foreign assistants were filled with alarm for the future of their cause. They feared that the new administration would be controlled by Wriothesley, ex-Chancellor, the Arundels, Southwell and other prominent Catholics, that Gardiner

and Bonner might be released from imprisonment, and that the demands of many of the insurgents for the abolition of the Book of Common Prayer and the restoration of the Mass might be conceded. The Catholic party were filled with new hope; in Oxford and throughout the country the old missals and vestments that had been hidden away were brought forth again, and the offices and Mass were sung as they had been for centuries.[60] But Warwick soon showed that the change of rulers meant no change in the religious policy of the government. Gardiner and Bonner were still kept in confinement; Wriothesley was dismissed from the council; many of the other Catholic noblemen were imprisoned, and Somerset who was supposed to have fallen a victim to the hatred of the Catholics was released from his prison and re-admitted to the privy council (1550). By the inglorious war with France and by the still more inglorious peace of Boulogne the government felt itself free to devote its energies to the religious situation at home. Warwick went over completely to the camp of the reforming party and determined in consultation with them to push forward the anti-Catholic campaign.

The Parliament that assembled in November 1549 was distinctly radical in its tendencies. In the House of Lords the bishops complained that their authority had been destroyed, and that their orders were set at naught. In reply they were requested to formulate a proposal for redress, but on such a proposal having been submitted, their demands were regarded by the laymen as exorbitant. A commission was appointed against the wishes of a strong minority of the bishops to draw up a new Ordinal as a complement to the Book of Common Prayer. The committee was appointed on the 2nd February 1550, and it appears to have finished its work within a week. In the new /Ordinal/[61] (1550) the ceremonies for the conferring of tonsure, minor orders, and sub- deaconship were omitted entirely, while the ordination rites for deacons, priests, and bishops were considerably modified. Just as the sacrificial character of the Mass had been dropped out of the Book of Common Prayer, so too the notion of a real priesthood disappeared from the forms for ordination. In spite of the opposition of a large body of the bishops, an Act was passed ordering the destruction of all missals, antiphonals, processionals, manuals, ordinals, etc., used formerly in the service of the Church and not approved of by the king's majesty, as well as for the removal of all images "except any image or picture set or graven upon any tomb in any church, chapel or churchyard only for a monument of any king, prince, nobleman or other dead person who had not been commonly reputed and taken for a saint."[62] As a result of this measure a wholesale destruction of valuable books and manuscripts took place in the king's own library at Westminster and throughout the country. The royal visitors, entrusted with the difficult work of Protestantising Oxford, acting under the guidance of Dr. Cox, chancellor of the University or "cancellor" as he was called, ransacked the college libraries, tore up and burned priceless manuscripts or sold them as waste paper, and even went so far as to demand the destruction of the chapel windows, lest these beautiful specimens of art might encourage loyalty to the old religion that had inspired their artists and donors.

As it had been determined to abandon completely the religious conservatism of the former reign it was felt absolutely necessary to remove the Catholic-minded bishops,

to make way for men of the new school on whom the government could rely with confidence. Gardiner of Winchester and Bonner of London were already in prison. Heath of Worcester, who had refused to agree to the new Ordinal, was arrested in March 1550, as was also Day of Chichester in October. Tunstall of Durham, whose conservative views were well known to all, was placed under surveillance in May 1551, and thrown into prison together with his dean in the following November. In a short time a sentence of deprivation was issued against Bonner, Heath, Day and Gardiner. Bishop Thirlby of Westminster, who had given great offence by his uncompromising attitude regarding the Blessed Eucharist, was removed from Westminster, where his presence was highly inconvenient, to Norwich, and the aged Bishop Voysey was forced to resign the See of Exeter to make way for a more reliable and more active man. At the same time steps were taken in the universities to drive out the men whose influence might be used against the government's plans. The Sees of Westminster and London were combined and handed over to Ridley of Rochester, one of Cranmer's ablest and most advanced lieutenants. Hooper, who looked to Zwingli as his religious guide, was appointed to Gloucester; but as he objected to the episcopal oath, and episcopal vestments, and as he insisted on his rights of private judgment so far as to write publicly against those things that had been sanctioned by the supreme head of the Church, it was necessary to imprison him[63] before he could be reduced to a proper frame of mind for the imposition of Cranmer's hands (March 1551). Ponet was appointed to Rochester, and on the deprivation of Gardiner, to Winchester, where his scandalous and public connexion with the wife of a Nottingham burgher[64] was not calculated to influence the longing of his flock for the new teaching. Scory was appointed to Rochester and afterwards to Chichester, and Miles Coverdale to Oxford.

The zeal of the new bishops in seeking out the suppression of papistical practices and their readiness to place the property of the churches at Northumberland's disposal soon showed that those who selected them had made no mistake. On Ridley's arrival in London he held a conference for the purpose of compelling the clergy to adopt the new liturgy in place of the Mass. He issued an order for the removal of altars, and for the erection in their places of "honest tables decently covered," whereon Communion might be celebrated. The high altar in the Cathedral of St. Paul was pulled down, and a plain Communion table set up in its stead. As such a sacrilegious innovation was resented by a great body of both clergy and people, the council felt it necessary to instruct the sheriff of Middlesex to enforce the commands of the bishop. The example thus set in the capital was to be followed throughout the country. In November 1550 letters were sent out to all the bishops in the name of the youthful head of the Church, commanding them to pull down the altars in their dioceses, and for disobedience to this order Bishop Day was arrested. Hooper, once his scruples regarding the episcopal oath and vestments had been removed, threw himself with ardour into the work of reforming the clergy of his dioceses of Worcester and Gloucester, but only to find that nothing less than a royal decree could serve to detach them from their old "superstitions" (1552). While the wholesale work of destruction was being pushed forward care was taken that none of the spoils derived from the plunder of the churches should go to private individuals. Warwick insisted

on the new bishops handing over large portions of episcopal estates to be conferred on his favourites, and royal commissions were issued to take inventories of ecclesiastical property. During the years 1551 and 1552 the churches were stripped of their valuables, and the church plate, chalices, copes, vestments, and altar cloths, were disposed of to provide money for the impecunious members of the council.

Violent measures such as these were not likely to win popularity for the new religion, nor to bring about dogmatic unity. Risings took place in Leicester, Northampton, Rutland, and Berkshire, and free fights were witnessed even in the churches of London. Rumours of conspiracy, especially in the north, where the Earls of Shrewsbury and Derby still clung to the Catholic faith, were circulated, and fears of a French invasion were not entirely without foundation. A new Act of Uniformity[65] was decreed (1552) threatening spiritual and temporal punishments against laymen who neglected to attend common prayer on Sundays and holidays. Acts were passed for the relief of the poor who had been rendered destitute by the suppression of the monasteries and the wholesale inclosures, and to comfort the married clergy, whose children were still regarded commonly as illegitimate, a second measure was passed legalising such unions. Fighting in churches and churchyards was to be put down with a heavy hand. If spiritual punishments could not suffice for the maintenance of order offenders were to be deprived of an ear or branded on the cheek with a red hot iron.

Though according to some the Book of Common Prayer had been compiled under the guidance of the Holy Ghost, soon it came to be regarded by many as unsatisfactory. The men, who had rejected the authority of the Pope because he was a foreigner to follow the teaching of apostate friars from Switzerland, Italy, Poland, and Germany, clamoured for its revision on the ground that it seemed to uphold the Real and Corporeal Presence of Christ in the Eucharist. Cranmer, who had accepted Transubstantiation in the days of Henry VIII., and had defended a kind of Real Presence in 1549, veered gradually towards Calvin's teaching on the Eucharist. In order to remove the ambiguities and difficulties of the old Prayer Book, it was determined to subject it to a complete revision by which everything that implied a real objective presence of Christ in the Eucharist should be omitted. The second Book of Common Prayer was submitted and approved by Parliament (1552), and its use was authorised by royal proclamation. It was to come into force in November 1552, but late in September, when some copies of the Book were already printed, the council issued a command that the work should be stopped until further corrections had been made. It seems that by a new rubric inserted by Cranmer communicants were enjoined to receive the communion on bended knees, and John Knox, who had arrived lately in England and was high in the favour of the council, objected strongly to such an injunction as flavouring of papistry. Notwithstanding the spirited remonstrances of Cranmer, the council without authority from Parliament or Convocation obliged him to insert on a fly leaf the famous "Black Rubric" which remains in the Book of Common Prayer till the present day, except that in the time of Charles II. a change was made, by which "corporeal presence" was inserted in place of the "real and essential presence" repudiated in the first form of the rubric.[66]

One other matter was considered by Cranmer as necessary for the success of the new religious settlement, namely, the publication of an authoritative creed for the English Church. The great diversity of opinion in the country, the frantic appeals of men like Hooper who had tried in vain to make an unwilling clergy accept their own dogmatic standard, and the striking success of the Council of Trent in vindicating Catholic doctrine, made it necessary to show the English people what could be done by the supreme head of the Church at home even though he was only a helpless boy. In 1549 Cranmer drew up a series of Articles to be accepted by all preachers in his diocese. These he submitted to the body of the bishops in 1551, and later at the request of the privy council to a commission of six amongst whom was John Knox. They were returned with annotations to Cranmer, who having revised them besought the council to authorise their publication. Finally in June 1553 Edward VI., four weeks before his death, approved them, and commanded that they should be accepted by all his subjects. The /Forty-two Articles/ represented the first attempt to provide the English Church with a distinct dogmatic creed. In the title page it was stated that the Articles had been agreed upon "by the bishops and other learned and godly men in the last Convocation held in London in the year of Our Lord 1552"; but notwithstanding this very explicit statement, it is now practically certain that the Articles were never submitted to or approved by Convocation. In other words, as Gairdner puts it,[67] the title page is "nothing but a shameful piece of official mendacity" resorted to in order to deceive the people, and to prevent them from being influenced by the successful work accomplished by the Fathers of Trent.

The Duke of Northumberland, who had scrambled into power on the shoulders of the Catholic party, deserted his former allies, and went over completely to the party of Cranmer, Ridley, and Hooper. Taking advantage of England's peaceful relations with France and Scotland and of the difficulties of the Emperor in Germany, he had risked everything to make England a Protestant nation. He had removed the bishops whose influence he feared, and had packed the episcopal bench with his own nominees. He had destroyed the altars and burned the missals to show his contempt for the Mass, and his firm resolve to uproot the religious beliefs of the English people. So determined were he and his friends to enforce the new religious service that even the Princess Mary was forbidden to have Mass celebrated in her presence, and her chaplains were prosecuted for disobeying the king's law. Once indeed the Emperor felt it necessary to intervene in defence of his kinswoman, and to warn the council that if any attempt were made to prevent her from worshipping as she pleased, he would feel it necessary to recall his ambassador and to declare war (1551). The situation was decidedly embarrassing, and the council resolved to seek the advice of Cranmer, Ridley, and Hooper. The bishops replied that though to give licence to sin was sinful Mary's disobedience might be winked at for the time.[68] The suggestion was followed by the council, but later on when the Emperor's hands were tied by the troubles in Germany, the attempt to overawe the princess was renewed. Mary, however, showed the true Tudor spirit of independence, and, as it would have been dangerous to imprison her or to behead her, she was not pushed to extremes.

In 1553 it was clear to Northumberland that Edward VI. could not long survive, and that with his death and the succession of Mary, his own future and the future of

the religious settlement for which he had striven would be gravely imperilled. In defiance therefore of the late king's will, and of what he knew to be the wishes of the English people, for all through Edward's reign the Princess Mary was a great favourite with the nation, he determined to secure the succession for Lady Jane Grey, the grand-daughter of Henry VIII.'s sister Mary. Such a succession, he imagined, would guarantee his own safety and the triumph of Protestantism, more especially as he took care to bring about a marriage between the prospective queen and his son, Lord Guildford Dudley. When everything had been arranged the Chief Justice and the two leading law officers of the crown were summoned to the bedside of the dying king, and instructed to draw up a deed altering the succession. They implored the king to abandon such a project, and pointed out that it was illegal and would involve everyone concerned in it in the guilt of treason, but Northumberland's violence overcame their scruples, particularly as their own safety was assured by a commission under the great seal and a promise of pardon. When the document was drawn up it was signed by the king, the judges, and the members of the council. Cranmer hesitated on the ground that he had sworn to uphold the will of Henry VIII., but as the situation was a desperate one, he agreed finally to follow the example that had been set (June 1553). The preachers were instructed to prepare the people for the change by denouncing both Mary and Elizabeth as bastards. On the 6th July Edward VI. died at Greenwich, but his death was kept a secret until Northumberland's plans could be matured. Four days later Lady Jane Grey arrived in London, and the proclamation of her accession to the throne was received with ominous silence in the streets of the capital. ----------

[1] /The Life and Death of Thomas Wolsey, written by one of his Servants/; ed. by Simpson, 1901. Cavendish, /The Life of Cardinal Wolsey/, 1885. Creighton, /Cardinal Wolsey/, 1888. Taunton, /Thomas Wolsey, Legate and Reformer/, 1902.

[2] O'Donovan, /Assertio Septem Sacramentorum/, etc., 1908.

[3] Id., 118-26.

[4] On the Divorce proceedings, cf. Harpsfield, /A Treatise on the Pretended Divorce between Henry VIII. and Catharine of Aragon/, (written 1556, ed. 1878). Hope, /The First Divorce of Henry VIII. as told in the State Papers/, 1894. Ehses, /Römische Dokumente zur Geschichte der Ehescheidung/, 1893. Thurston, /Clement VII., Campeggio and the Divorce/ (American Cath. Quart. Rev., 1904). Id., /The Canon Law of the Divorce/ (Eng. Hist. Review, 1904). Gairdner, /New Lights on the Divorce/ (Eng. Hist. Rev., 1897, also 1892). Friedman, /Anne Boleyn/, 2 vols., 1884.

[5] Ehses, op. cit., 21-7.

[6] Ehses, op. cit., p. xxxiii.

[7] Id., 14-16.

[8] Ehses, op. cit., pp. 28-31.

[9] /Political History of England/, vol. v., 280-1.

[10] Ehses, op. cit., p. xxxi., sqq.

[11] Brewer, /Reign of Hen. VIII./, ii., 346-51.

[12] Ehses, 120-5.

[13] Brewer, op. cit., 466-7.

[14] /Pol. Hist. of England/, v., 301.

[15] /Letters and Papers, Henry VIII./, iv., 64-78.

[16] Rymer, /Foedera/, xiv., 405.

[17] Ehses, op. cit., 163-4.

[18] Ehses, 167 sqq.

[19] Gairdner, /Lollardy and the Reformation/, i., 300.

[20] Gairdner, /Hist. of Eng. Ch. in XVIth Century/, 114.

[21] /Letters and Papers/, v., 886.

[22] Ehses, op. cit., 200-1.

[23] Haile, /The Life of Reginald Pole/, 1910, p. 88.

[24] For his dying statement against Royal Supremacy, vid. /Dublin Review/ (April, 1894).

[25] /Pol. Hist. of England/, v., 318.

[26] /Pol. Hist. of England/, v., 318-19.

[27] Ehses, op. cit., 212-13.

[28] Gairdner, /Lollardy and the Reformation/, i., 48-52.

[29] /Pol. Hist. of England/, v., 344.

[30] /Lollardy and the Reformation/, i., 424-35.

[31] Cf. Bridgett, /Life of Blessed John Fisher/, 1888. Stewart, /Life of John Fisher/, 1879. Baily (Hall), /Life and Death of John Fisher/, 1655.

[32] Cf. Roper, /The Life, Arraignment, and Death of ... Sir Thomas More/, 1629 (reprinted 1903). Bridgett, /Life and Writings of Sir Thomas More/, 1891. Gairdner, /Lollardy and the Reformation/, (chap. iv., v.).

[33] /Pol. Hist. of England/, v., 361.

[34] Cf. Gasquet, /Henry VIII. and the English Monasteries/. Gairdner, /Lollardy and the Reformation, II./ (chap. ii., iii.).

[35] Turnbull, /Account of Monastic Treasures confiscated at the Dissolution/, etc., 1836.

[36] Gairdner, /Letters and Papers Hen. VIII./, xi., xii.

[37] Haile, /Life of Reginald Pole/ (chap. ix.-xi.).

[38] Gairdner, /Lollardy and the Reformation/, vol. ii., 304 sqq.

[39] Gairdner, /Hist. of the Eng. Church in the XVIIth Cent./, 177-8.

[40] Gairdner, /The Story of the English Bible/ (/Loll. and the Ref./, ii. 221 sqq.).

[41] /English Statutes/, 34 and 35 Hen. VIII., c. 50.

[42] Gairdner, /German Protestants and the Act of Six Articles/ (op. cit., ii., 170-220.)

[43] Merriman, /Life and Letters of Thomas Cromwell/, 2 vols., 1902.

[44] Tytler, /England under Edward VI. and Mary/, 2 vols., 1839.

[45] Gasquet-Bishop, /Edw. VI. and the Book of Common Prayer/, 43-4.

[46] Cf. Dodd-Tierney, /Church Hist. of England/, ii., app. iii.

[47] Id., app. iv.

[48] Lee, /Edw. VI., Supreme Head/, 39.

[49] Gasquet-Bishop, op. cit., 69-77.

[50] Leach, /Eng. Schools at the Reformation/, 1-7.

[51] Gasquet-Bishop, op. cit., 92-96.

[52] /Cambridge Mod. History/, ii., 477.

[53] Gasquet-Bishop, op. cit., 83 sqq. Dixon, /History of the Church/, ii., 476.

[54] Gasquet-Bishop, op. cit., chap. ix.

[55] Dodd-Tierney, ii., app. ix.

[56] Gasquet-Bishop, op. cit., chap. x.

[57] /The First Prayer Book of King Edw. VI./, 1549 (Westminster Library). Proctor-Frere, /New History of the Book of Common Prayer/, 1901.

[58] Rose-Troup, /The Western Rebellion of 1549/, 1913.

[59] Russell, /Kett's Rebellion/, 1859.

[60] Gairdner, /Lollardy and the Reformation/, iii., 125-7.

[61] /The Forme and Maner of makyng and consecratyng of Archebishoppes, Bishoppes, Priestes, and Deacons/.

[62] /Stat. 3rd and 4th, Edw. VI./, c. 10.

[63] Gairdner, op. cit., iii., 273.

[64] Lee, op. cit., 214.

[65] /Stat. 5th and 6th, Edw. III./, c. 50.

[66] Gairdner, op. cit., iii., 349-50.

[67] Gairdner, op. cit., iii., 376-77.

[68] Gairdner, op. cit., iii., 201.

CHAPTER III

CATHOLIC REACTION IN THE REIGN OF QUEEN MARY (1553-1558)

See bibliography, chap. i., ii., /State Papers/ (Home, Foreign, Venetian). /The Diary of Henry Machyn, etc., from 1550 to 1563/ (ed. by J. G. Nichols, 1854). Lingard, /History of England/ (vol. v.). Gairdner, /Lollardy and the Reformation/, vol. iv. 1913. Innes, /England under the Tudors/, 1905. Zimmermann, /Maria die Katholische/, 1896. Stone, /Mary I., Queen of England/, 1901. Haile, /Life of Reginald Pole/, 1910. Zimmermann, /Kardinal Pole, sein Leben, und seine Schriften/, 1893. Lee, /Reginald Pole, Cardinal Archbishop of Canterbury/. /Cambridge Modern History/, vol. ii., chap. xv.

Lady Jane Grey might be proclaimed queen, but until Mary had been lodged safely in the Tower the triumph of the conspiracy was not assured. Efforts had been made to induce her to come to London, but warned by secret messages dispatched by her London friends, she fled from her residence in Hundon to a castle in Suffolk, from which she addressed letters to the council and to the prominent noblemen of England asserting her rights to the throne. From all parts of the country thousands flocked to join her standard, while the frantic appeals of Northumberland and his colleagues failed to awaken any genuine response even in London itself. Northumberland, much against his will, consented to lead the army against Mary, who was advancing towards the capital, but after his departure, the members of the council, convinced that their cause was hopeless, deserted their leader, and permitted Mary to be proclaimed (19th July). Northumberland surrendered himself to the mercy of the new queen, and was committed to the Tower together with his principal adherents. On the 3rd August Mary made her formal entrance into London where she received an enthusiastic welcome from the citizens. Her first care was to liberate some of those who had been arrested during the previous reign, Bishops Gardiner, Bonner, Heath, and Day, the Duke of Norfolk, and Lord Courtenay, the latter of whom had been in confinement for fifteen years. As a fervent Catholic, who had upheld the Mass in the days of Edward VI. even at the risk of her life, there could be no doubt about the new queen's religious views, and in many of the churches in London and throughout the country the English service gave place immediately to the Mass. In an interview with the lord mayor of London, and afterwards in the public proclamation addressed to all her subjects, she announced that, though it was her intention to follow the Catholic religion, she had no desire of resorting to compulsion to force it on her people against their will, and she exhorted them to live together in Christian harmony, avoiding the "new found devilish terms of papist and heretic." As a sign that vengeance and cruelty were no part of her programme she exercised great mercy towards those who had conspired to deprive her of the throne, only a few of whom, including the Earl of Northumberland, were put to death. Possibly in the hope of playing upon the feelings of the queen and of securing a pardon Northumberland announced publicly his return to the old faith and his acceptance of the Catholic doctrine on the Eucharist.

Charles V., on whose counsel Mary relied, advised her to proceed cautiously with the restoration of religion in England. Many of the younger generation had been taught to regard papal supremacy as an unwarrantable interference with English independence, while those who had been enriched by the plunder of the Church had every reason for upholding the Edwardine settlement. For their part in promoting the conspiracy against the queen as well as for various other offences laid to their charge Cranmer, Ridley, Hooper, Latimer, and Coverdale were committed to prison; Bishop Ponet went into hiding, and Barlow made his escape from the country. Later on all these were deprived of their Sees. Gardiner was restored to his See of Winchester, and appointed Lord Chancellor, Tunstall to Durham, Heath to Worcester, Day to Chichester, and Voysey to Exeter. Foreign scholars like Peter Martyr, John à Lasco and their friends, whom Cranmer had brought over to teach the English people the new religion, were granted passports and permitted to leave the kingdom. Their example was followed by John Knox, and by many others of the married clergy.

In her heart Mary detested the title supreme head of the Church, and was most anxious to bring about a reconciliation with Rome. When the news of her accession reached Rome it brought joy to the heart of Julius III. He determined at once to send a legate to England, and he selected for this office the great English Cardinal, whose devotion to his country was equalled only by his loyalty to the Church. Cardinal Pole was appointed legate with full powers, and was entrusted also with the work of effecting a reconciliation between the Emperor and Henry II. of France. Charles V. had no desire to see Pole in England installed as Queen Mary's chief adviser. He had planned a marriage between Mary and his eldest son, afterwards Philip II. of Spain, and fully conscious that Pole might oppose such an alliance as dangerous both for England and for religion, he was determined to delay the arrival of the legate until the negotiations for the marriage had been completed.

In October 1553 Mary was crowned solemnly by Bishop Gardiner at Westminster Abbey. She bound herself by oath to preserve the liberties of her kingdom, and to maintain the rights of the Holy See. Four days later she attended the Mass of the Holy Ghost at the opening of Parliament, and listened to the address in which her Lord Chancellor exhorted the members to show their repentance for and detestation of the heresy and schism of which he and they had been guilty, by returning to the unity of the Catholic Church. All the new treasons, felonies, and praemunire penalties of the previous reigns were abolished on the ground, it was declared, that Mary hoped to win the obedience of her subjects through love rather than through fear. The marriage of Henry VIII. with Catharine of Aragon was declared valid, and consequently Mary was acknowledged as the lawful successor to the throne. The Edwardine religious settlement, including the Acts of Uniformity, the Book of Common Prayer, the Ordinal, the Forty-two Articles and the permission for clergymen to marry, was swept away, and an Act was passed against disturbing religious services or exhibiting irreverence towards the Eucharist. All this legislation was in perfect conformity with the wishes of Convocation, which had met shortly after the meeting of Parliament, and which with only a few dissentients condemned the Book of Common Prayer, and re-affirmed the belief of the English clergy in the doctrine of Transubstantiation. Though the queen announced her dissatisfaction with the title of

supreme head, and granted full freedom of discussion regarding it, Parliament showed itself decidedly unwilling to restore the jurisdiction of the Pope. It was not that the members had any real objection to the change from the doctrinal point of view, but, fearing that a return to Roman obedience might involve a restoration of the ecclesiastical property seized or alienated during the previous reign, they wished to secure their property before they made their submission to the Pope.

For so far Mary had acted with considerable mildness and prudence in carrying out her religious programme, against which as yet no serious opposition had been manifested. The question of her marriage, however, was destined to create dissension between herself and her subjects. The Emperor and the imperial ambassador urged her to accept the hand of Philip, on the ground that by such a marriage internal jealousies and dissensions might be avoided, and the triumph of Catholicism might be assured. Many of the members of the council and the vast majority of the English people were opposed to such a union. They feared that were a foreign ruler to become the husband of their queen he must have of necessity the chief voice in English affairs. They believed, therefore, that England would be involved in all the wars of Spain, and that were an heir to be born of such a union, England, instead of being an independent nation, might become a mere Spanish province. The enemies of Mary's religious programme thought they saw in the Spanish marriage an opportunity of overturning her government, and of re-establishing Protestantism in the country. Taking advantage of the unpopularity of this proposal they appealed to the patriotism and love of independence of the English people, and succeeded in winning to their side many who were at least neutral in regard to her religious proposals. It was planned by some to bring about a marriage between the Princess Elizabeth and Edward Courtenay, both of whom had claims to the throne, and to set them up as rivals to Queen Mary. The French ambassador, alarmed at the prospect of Mary's marriage with the hereditary enemy of France, encouraged the conspirators with promises of assistance, not, indeed, because France desired the accession of Elizabeth, but in the hope that during the confusion that would ensue it might be possible to assert the claims of Mary Queen of Scotland, the prospective wife of the Dauphin of France.

Notwithstanding the petition presented against the Spanish marriage by Parliament, Mary persisted in the policy suggested to her by the Emperor. Flemish envoys arrived on New Year's Day 1554 to arrange the preliminaries. The marriage treaty was signed and two days later it was announced to the mayor and the chief citizens of London. This was the signal for the conspirators, who had been working secretly for months, to bring their designs to a head. News soon arrived in London that Sir Peter Carew had risen in Devon and had captured Exeter, that Sir Thomas Wyatt was rousing the men of Kent, and that Sir James Crofts had gone to Wales and the Duke of Suffolk to the midlands to rally the forces of disloyalty. But the great body of the English people were too deeply attached to their sovereign to respond to the appeal of the rebel leaders. Wyatt's movement alone threatened to be dangerous. As his forces advanced to the gates of London, Mary, who had shown the greatest courage throughout the crisis, went in person to the Guildhall to call upon the citizens of London to defend their sovereign. Her invitation was responded to with

enthusiasm, and when Wyatt had succeeded in forcing his way as far as Ludgate Circus, he was obliged to retire and to surrender himself a prisoner to the queen's forces. Mary, who for so far had followed a policy of extreme mildness, felt that she could do so no longer, and that she must make it clear to her subjects that to declare war on the throne was a serious crime. Wyatt, the Duke of Suffolk, father of Lady Jane Grey, and several of the leaders were tried and put to death. Already in November Lady Jane Grey, her husband and Cranmer had been condemned to death as traitors. The sentence was not, however, carried out, nor was it likely to have been, had not the rebellion shown that Mary's enemies might utilise such dangerous claimants to the throne for stirring up new disaffection. Lady Jane Grey[1] and her husband were put to death on Tower Hill (Feb. 1554); several of the other conspirators were punished only by imprisonment, and a general pardon was published for the great body of the insurgents. Mary's treatment of the offenders, however the execution of Lady Jane Grey may be regarded, was in striking contrast to what might have been expected to have taken place in similar circumstances had the throne been occupied by her father or even by her sister Elizabeth. From the confessions of some of the rebels as well as from the correspondence of the French ambassador serious evidence was furnished to show that Elizabeth was implicated in the rebellion. She was summoned to London to answer the charges brought against her, and though she protested her innocence she was committed to the Tower. Many members of the council were convinced of her guilt, but Mary, refusing to believe that her sister was privy to the designs of the conspirators, ordered her release.

The terms of the marriage treaty having been confirmed by Parliament (April 1554) Philip arrived in England, and on the 25th July the marriage was celebrated in Westminster Abbey. Philip and Mary were proclaimed "by the grace of God King and Queen of England, France, Naples, Jerusalem, and Ireland, Defenders of the Faith, Princes of Spain and Sicily, Arch-Dukes of Austria, Dukes of Milan, Burgundy and Brabant, Counts of Habsburg, Flanders, and Tyrol." The Emperor had at last carried his point, and, as the presence of Cardinal Pole in England could no longer prove a danger to his designs, the latter was now free to come to England. During the early portions of the year steps had been taken to prepare England for the worthy reception of the papal legate. In March four of the reforming bishops were deprived of their Sees on the ground that they were married, and three others who held their appointments only by letters patent of Edward VI. were removed. On the 1st April six new bishops were consecrated by Gardiner to fill the vacant Sees. Cranmer, Latimer, and Ridley were sent down to Oxford to defend their views in a public discussion, arranged undoubtedly with the object of forwarding the national reconciliation with Rome. There were still, however, difficulties that must be removed before Cardinal Pole could be allowed to land on English soil. The real objection to the return of England to the Roman obedience was the ownership of the Church lands, and from what had happened in the two previous sessions it was perfectly clear that those who had benefited by the plunder of the Church lands were determined to refuse to make restoration. After prolonged negotiations Pole agreed that, while the Pope could not approve of what had been done, he would not insist on the restoration of ecclesiastical property.

When everything had been arranged Parliament was summoned to meet in November 1554. The sheriffs were instructed to see that men "of the wise, grave and Catholic sort" should be returned. An Act was passed immediately reversing the sentence of Attainder against Cardinal Pole. The legate hastened on his way to London where he was welcomed by the King and Queen and Parliament. A supplication was adopted unanimously in the House of Lords, and with but one dissentient in the House of Commons, requesting the King and Queen to procure from the legate absolution from heresy and schism for the English people and a reconciliation of the nation with the Pope. Cardinal Pole attended Parliament on the 30th to pronounce the sentence of absolution, which was received by the King, Queen, Lords, and Commons on bended knees. This happy event was celebrated by a procession through the streets of London in which the clergymen, aldermen, and citizens took part. Parliament petitioned that the old jurisdiction of the clergy should be restored, that the liberty granted to the Church by the Magna Charta should be confirmed, and that the English religious service- books of the previous reign should be delivered to the flames. Once it was made clear that the owners of ecclesiastical property should not be disturbed there was no difficulty in procuring a complete reversal of all the laws that had been passed against the apostolic See of Rome since the twentieth year of Henry VIII. (3rd January 1555).[2]

The close connexion of the leaders of the Reformers with the late rebellion, the ugly pamphlets that made their way into England from Frankfurt and Geneva, the fact that prayers were offered in secret for the speedy death of the queen, that a shot had been fired at one of the royal preachers while he was in the pulpit, and that a violent commotion was being stirred up, that led later on to a priest being struck down at the altar by one who is designated by Foxe as "a faithful servant of God,"[3] made it necessary for the safety of the crown and the advancement of religion to deal harshly with those who themselves had relied on persecution for the promotion of their designs. Mary herself, Philip, and Cardinal Pole did not favour a recourse to violent measures, but they were overruled by the judgment of those who should have known best the character of the opponents with whom they had to deal. An Act was passed renewing the legislation that had been made in the reigns of Richard II., Henry IV., and Henry V. for the suppression of the Lollard heresy.

Parliament was dissolved in January 1555, and several of the political prisoners were released from the Tower. The heretical leaders, who though under arrest had been treated with great mildness and allowed such liberty that they were able to meet together and to publish writings and challenges against Mary's religious policy,[4] were brought to trial before a commission presided over by Gardiner. A few consented to sign a formula of recantation, but the majority, persisting in their opposition, were degraded and handed over for punishment to the civil authorities. On the 4th February the long series of burnings began. John Rogers was committed to the flames in Smithfield, Bishop Hooper in Gloucester, Taylor in Suffolk, Saunders in Coventry, and before the year had elapsed about seventy prisoners had met a similar fate. In September 1555 a commission was sent down to Oxford to examine Latimer and Ridley. Both refused to admit Transubstantiation, the sacrificial character of the Mass, or Roman supremacy. They were condemned, and it must be

said of them that they met their fate like men. Judges were appointed by the Pope to take evidence against Cranmer. He was charged with perjury because he had broken his oath to the Pope, with heresy on account of his teaching against the Eucharist, and with adultery. The minutes of the trial were forwarded to Rome for the final decision, and after careful consideration the Pope deposed him from the Archbishopric of Canterbury, and excommunicated him. Meanwhile Cranmer's theological views had been undergoing another revision. On the question of prayers for the dead, Purgatory, and the Mass, he was willing to admit that he might have been mistaken, and even on the question of papal supremacy he professed himself ready to listen to argument. In his eagerness to escape punishment he signed recantation after recantation, each of them more comprehensive and more submissive than its predecessor, acknowledging his guilt as a persecutor of the Church and a disturber of the faith of the English nation, and praying for pardon from the sovereigns, the Pope, and God. But in the end, when he realised that his recantations could not save him and that he was face to face with death, he deceived his chaplains at the last moment as he had deceived many others, by withdrawing his previous admissions and announcing that he still clung to his heretical views[5] (21st March 1556).

An embassy had been sent to Rome to inform the Pope that England had returned to the Holy See. The envoys reported, too, that though Mary had failed to secure a restoration of the ecclesiastical lands, she had at least set a good example to the lay usurpers by returning the possessions of the Church still held by the crown. The synod summoned by Cardinal Pole to restore the discipline of the Church in England, met in November 1555. It was agreed in the synod that the 30th November should be kept as a national holiday in memory of the reconciliation of England to the Church, that the decrees binding in England before the troubles began under Henry VIII. should be enforced, that the clergy should be mindful of their duties of residence and preaching, that seminaries should be set up in each diocese for the education of the clergy, that bishops should hold frequent visitations, that a set of homilies should be compiled for the guidance of preachers, and that an English version of the Scriptures should be published without delay.[6] This new code of constitutions issued under the title /Reformatio Angliae ex decretis Reginaldi Pole/ is in itself a testimony to the ability, moderation, and prudence of the papal legate. Some months later he was consecrated bishop and took possession of the See of Canterbury to which he had been appointed on the deposition of Cranmer. In pursuance of her plans for the complete re-establishment of the Catholic religion the queen took steps to ensure that the monastic institutions, which had been suppressed during the previous reigns, should begin to make their appearance once more in England. The Carthusians returned to London, the Grey Friars occupied a house at Greenwich, the Dominicans took possession of St. Bartholomew's, and the Benedictines were installed in Westminster (1556).

The queen, who two years before had been full of courage and hope, began to lose confidence in the success of her work. The Spanish marriage was the beginning of her misfortunes, and the apparent dependence of Catholicism on Spanish help proved to be the undoing of the Catholic religion in England. Disappointed in the birth of an

heir, deserted by her husband who found enough to engage his attention in Spain and the Netherlands, confronted with conspiracies promoted by heretics and encouraged for its own selfish purpose by France, doubtful of the real sentiments of Elizabeth, and with hardly any friends upon whose advice she could rely with confidence, it is not to be wondered at that Mary felt inclined to despair. She was determined, however, to continue the work she had begun, and to see that at least during her life heresy should be put down with a heavy hand. Unfortunately for the success of her projects she was involved in difficulties with Rome. Paul IV. (1555-59) was a man of stern, unbending character, firmly resolved to maintain the rights and liberties of the Holy See. Annoyed at the domineering policy of Charles V., and of his son Philip II., he was anxious to put an end to Spanish rule in Naples. The relations became so embittered that a Spanish force under the command of the Duke of Alva crossed the frontiers of the Papal States, and Paul IV. recalled his agents from Philip's territories (1557). France decided to support the Pope, and soon active hostilities began. Philip, for whose return to England Mary had so often appealed in vain, came back early in 1557, but only to request that England should join with him in a war with France.

Mary's position was a particularly cruel one. She could not well resist the demands of her husband, particularly as France had lent its patronage and assistance to the conspiracies plotted for her overthrow. The position of Cardinal Pole was even more cruel. He had done all that man could do to prevent the outbreak of war, and when all his efforts proved unavailing, he retired from court lest he, a legate of the Holy See, should be obliged to meet Philip who was at war with the Pope. By the papal order (1557) recalling all his agents from the Spanish territories the Cardinal found himself deprived of the office of legate, to the astonishment of his friends and the grief of the queen. Agents were dispatched to Rome to induce Paul IV. to cancel the legate's recall. The Pope, however, having taken some time for consideration refused to accede to the request, but agreed to send a new legate in the person of the Observant, Friar William Peto (14 June 1557), who had preached so manfully against Henry's divorce, and who was now created cardinal to prepare him for his new position. The messenger dispatched to announce these tidings was refused admission into England, although Pole who had learned of what had taken place in Rome refused to act any longer as legate, and addressed a strong but respectful letter of remonstrance to the Pope. Both from the point of view of religion and of politics the French war, in which Mary's husband had succeeded in involving England, proved disastrous. It led to the loss of Calais and Guisnes (1558) the last of the English possessions in France, to increased taxation, and to a strong feeling against Mary and all her counsellors. Distrust of the Spanish alliance led to distrust of the religion of which Philip had constituted himself the champion, and helped to forward the schemes of those who sought to identify patriotism with Protestantism. Though the great body of the people had accepted the Catholic religion, and though to all appearances its restoration was complete, Mary's last days were embittered by the thought that under the reign of her successor the religious settlement that had been effected might be overturned. Already courtiers and diplomatists were abandoning her presence to win favour with Elizabeth, who professed to be a sincere Catholic, but on whose professions too much reliance could not be placed. On November 17th

1558 Mary passed away, and a few hours later her great counsellor and friend Cardinal Pole was called to his reward. ----------

[1] Taylor, /Life of Lady Jane Grey/, 1908.

[2] Dodd-Tierney, ii., App. xxv.

[3] Gairdner, /Heretics Painted mostly by Themselves/, op. cit., iv., 305 sqq.

[4] Gairdner, /Hist. of Eng. Church in Sixteenth Century/, 348.

[5] Gairdner, op. cit., 370-7. Strype's /Life of Cranmer/ (Oxford edition of Strype's Works, 1812-24).

[6] Haile, /Life of Cardinal Pole/, 476-83.

CHAPTER IV

THE REIGN OF QUEEN ELIZABETH (1558-1603)

See bibliography, chap. ii., iii. /Publications of the English Catholic Record Society/, 1904-14. Strype, /Annals of the Reformation/, 1708-9 (a complete edition of Strype's Works published, Oxford, 1812-24, 25 vols.; Index Vol., 1828). Birt, O.S.B., /The Elizabethan Religious Settlement/, 1907. Meyer, /England und Die Katholische Kirche unter Elisabeth und Den Stuarts/. Gee, /The Elizabethan Clergy and the Settlement of Religion/, 1898. Lee, /The Church under Queen Elizabeth/, 2 vols., 2nd edition, 1893. Bridgett, /The True Story of the Catholic Hierarchy/, 1889. Phillips, /The Extinction of the Catholic Hierarchy/, 1905. Gillow, /Literary and Biographical History of English Catholics/. Foley, /Records of the English Province of the Society of Jesus/, 7 vols., 1880. Challoner, /Memoirs of Missionary Priests/, etc. (1577-1684), 2 vols., 1803. Camm, /Lives of the English Martyrs/ (1583-88), 1914. Guilday, /The English Catholic Refugees on the Continent/ (1558-1795), 1914. Husenbeth, /Notices of the English Colleges and Convents on the Continent after the Dissolution of the Religious Houses in England/, 1849. Knox, /Records of the English Catholics under the Penal Laws/. /The Month/ (1900-2).

A few hours after Mary's death Elizabeth was proclaimed queen according to the terms of her father's will, and messengers were dispatched to Hatfield to announce her accession and to escort her to the capital. During the reign of her brother her relations with Thomas Seymour nearly led to a secret marriage and the loss of her rights to the throne, while during the lifetime of her sister the disclosures of Wyatt and his followers and the correspondence of the French ambassador brought her to the Tower on suspicion of treason. Mary was, however, averse to severe measures, more especially as Elizabeth expressed her devotion to the Catholic religion and her willingness to accept the new religious settlement. But in secret she treasured other views, not because she was hostile to the Catholic religion, but because opposition to Catholicism seemed to be the best means of maintaining her claim to the crown and of resisting Mary Queen of Scots, who from the Catholic point of view was the nearest legitimate heir to the throne. Already, before the death of Mary, Elizabeth was in

close correspondence with those who were unfriendly to Catholicism and to the Spanish connexion, and she had selected William Cecil, whose religious views and practices during Mary's reign coincided with her own, to be her secretary. Her accession was hailed with joy throughout England, for Englishmen were glad to have a ruler of their own so as to be rid of the Spanish domination, that had led to taxation at home and disaster abroad. The official announcement of Elizabeth's accession was as welcome to Philip II., who was still England's ally, as it was distasteful to France, which regarded Mary Queen of Scots as the lawful claimant to England's throne. It is noteworthy, as affording a clue to Elizabeth's future policy, that no official notice of her accession was forwarded to the Pope, nor were the credentials of the English ambassador at Rome either confirmed or revoked. Paul IV., notwithstanding the efforts of the French, was unwilling to create any difficulties for England's new ruler by declaring her illegitimate or by treating her otherwise than as a rightful sovereign.[1]

Though many of Mary's old councillors were retained it is remarked by many interested observers that the new members selected by the queen belonged to the party likely to favour religious innovations, and that her real advisers were not the privy council but a select coterie, the principal of which were William Cecil, Secretary of State, and his brother-in-law, Nicholas Bacon, appointed Lord Keeper of the Seal, both of whom, while outwardly professing their devotion to the old religion under Queen Mary, were well known to sympathise with the Edwardian régime. The men who had fled to Frankfurt or Geneva began to return and to preach their doctrines to the crowd, and the Italian church in London was attacked by a mob. Outwardly no change took place in the religious ceremonial. A royal proclamation was issued (27th Dec., 1558) forbidding preaching or the use of other public prayers, rites, or ceremonies save those approved by law until Parliament should have determined otherwise, except in regard to the recitation in English, of the Litany, the Commandments, the Creed, together with the Epistles and Gospels.[2] Still the anti-Catholic party boasted that the new ruler was on their side. The queen's own inclinations were soon made clear by her prohibition addressed to Bishop Oglethorp of Carlisle against the elevation of the Host in the Mass celebrated in her presence on Christmas Day (1558), and by her withdrawal from the church when he refused to obey her instructions. Bishop Christopherson of Chichester was arrested for his sermon preached on the occasion of the late queen's funeral, and Archbishop Heath of York resigned the Chancellorship.

The coronation of the queen was fixed for the 25th January (1559), and as her title to the throne might be questioned on so many points, it was obviously of the greatest importance that the ceremony should be carried out in the orthodox fashion so as to elude all the objections of her rivals. The Archbishop of York and the bishops generally, well aware of the religious changes that were in contemplation, refused to take part in the coronation, though in the end Bishop Oglethorp of Carlisle was induced to undertake the task, probably in the hope of averting still greater evil. The bishops attended at Westminster to welcome the queen on her arrival and to take the oath of allegiance, but declined to be present at the Mass, as did also the Spanish ambassador. The rite was carried out with punctilious attention to the old rubrics,

and the sermon was preached by Dr. Cox, a Frankfurt exile, who regaled his hearers with a wild tirade against the monks, clergy, and the existing idolatry.[3]

Parliament was summoned to meet in January 1559. In the House of Lords the government was confronted with the fact that the bishops to a man would oppose the religious changes that were to be introduced, but it was hoped that by careful directions to the sheriffs a House of Commons might be returned that could be trusted.[4] There was no difficulty in procuring acts confirming Elizabeth's title to the throne, more especially as the legitimacy of her mother's marriage though implied was not directly affirmed, but the bill for the restoration of First Fruits to the crown met with considerable opposition and delay, especially at the hands of the spiritual peers, and another for the restoration of those clergymen who had been deprived in the previous reign on account of their non-observance of celibacy was abandoned. The two great measures however on which Elizabeth's ministers had set their hearts were royal supremacy and the re-introduction of the Book of Common Prayer in place of the Latin Mass, but from the first the bishops offered to these measures the most determined opposition, and though the bishops were not supported by a very large number of the lay peers, the idea of forcing such momentous changes on the country against the wishes of the united episcopate was so repugnant to the religious instincts of the nation that the ministers found themselves again and again compelled to withdraw or modify their proposals.

To add to their confusion Convocation met in February (1559) and forwarded to the bishops for presentation to the queen a strong document, in which the clergy without a dissentient voice affirmed their belief in the Real Presence, Transubstantiation, the sacrificial character of the Mass, Roman supremacy and the inability of laymen to legislate regarding the doctrines, discipline, or sacraments of the Church.[5] This judgment of Convocation though hardly unexpected was a deadly blow struck against the government measures, showing as it did that if Parliament undertook a new religious settlement it must do so on its own responsibility and against the wishes of the ecclesiastical authorities. The difficulties against the two bills were so great that when Easter arrived the work upon which the queen and her advisers had set their hearts was still incomplete. The Bill of Uniformity of belief had been rejected, and though the Royal Supremacy Bill had passed the two Houses in modified form it had not yet reached the statute book. The inconvenience of according the title of supreme head of the Church to a woman was disliked by many, and was distasteful even to Elizabeth herself.

Parliament was prorogued for a few weeks at Easter, and recourse was had to a clever expedient to win popular sympathy for the measures. A disputation was arranged to take place between the bishops and the Protestant exiles. Cecil took care that both in regard to the subjects to be discussed and the manner of procedure the latter party should have every advantage. The questions were the use of English or Latin in the religious services, the authority of particular churches to change their rites and ceremonies, and the propitiatory character of the Mass. The Catholic representatives were to open the discussion each day, but the last word was always reserved for the Reformers. From the very beginning it was clear that the dice had

been loaded against the defenders of the old faith, and on the second day the Catholic party refused to continue the discussion.[6] Their refusal, however justified it may have been in the circumstances, could not fail to make a bad impression. It was seized upon by their opponents to show that the supporters of Rome had disobeyed the queen, had quailed before the apostles of the new religion, and that, therefore, even though they were bishops, they could not be regarded as trustworthy guides in matters of religion. The Bishops of Winchester and Lincoln were arrested because they refused to continue the disputation, and by their arrest the Catholic peers were deprived of two votes in the House of Lords at a time when the fate of the old religion was trembling in the balance.

When Parliament re-assembled the queen announced her intention of refusing the title of supreme head of the Church, and requested the House "would devise some other form with regard to the primacy or supremacy." A new bill conceding to the sovereign the title "supreme governor" was introduced, but met with as strong opposition from the bishops as its predecessors, and was passed against their unanimous wishes. The Act of Uniformity, commanding the use of the Second Book of Common Prayer with a few alterations, met with even a worse reception, as several of the laymen joined the bishops in their resistance, and in the end it was carried only by a majority of three. Had the imprisoned bishops been free to cast their votes against the measure, or had the lay peers who disliked it had the courage to be present in their places at the division the whole course of English history might have been altered.[7] As it was a religious revolution had been effected. The Mass, Transubstantiation, the Real Presence and Roman supremacy, all of which had been accepted without contradiction from the days of St. Augustine till the reign of Henry VIII., were abolished and a new church established that bore but a faint resemblance to the old. And what was more extraordinary still, all this was done solely by an assembly of laymen, against the wishes and appeals of the united episcopate and against the practically unanimous judgment of Convocation. "The Church of England as by law established" is a parliamentary institution set up and shaped by Parliament in the beginning, and dependent upon Parliament ever since for guidance and protection.

By the Act of Supremacy the queen was declared to be supreme governor of the Church in England; all foreign jurisdiction was abolished; a body of commissioners was to be appointed to administer the oath of supremacy and to carry on ecclesiastical functions in the name of the queen; officials who refused to take the oath were to be deprived, and penalties varying from fines to death were to be imposed on those who were unwilling to accept the law. By the Act of Uniformity the English service, as contained in the Second Book of Common Prayer with some slight alterations, was made obligatory on all clergymen, as was attendance at this service on all laymen. The Act was to be enforced by the spiritual authorities under threat of excommunication against offenders, and by the civil authorities by the infliction of fines or imprisonment.

A royal commission was appointed (1559) to administer the oath of supremacy to the clergy, and to enforce the provisions of the Act of Uniformity. As was to be

expected, the attention of the commissioners was directed immediately to the bishops. If some of them could be induced to submit--and the government was not without hope in this direction--their submission would produce a good impression on the country; but if on the contrary they persisted in their attachment to the Mass and their obedience to the Pope, they must be removed to make way for more trustworthy men. To their credit be it said, when the oath of supremacy was tendered to the bishops they refused with one exception to abandon the views they had defended with such skill and bravery in the House of Lords, and preferred to suffer imprisonment and deprivation rather than lead their people into error by submission. Bishop Kitchin of Llandaff had opposed royal supremacy for a time. The Spanish ambassador reported to his master that he was about to follow the example of his brethren, but in the end he submitted and consented to administer the oath to his clergy.[8] The religious communities, the Observants, the Carthusians, the Dominicans, the Benedictines, and the few communities of nuns that had re-established houses in England during the reign of Queen Mary, were suppressed; their property was seized according to an Act passed in the late Parliament, and many of the monks and nuns were obliged to depart from the kingdom. The commissioners proceeded through England administering the oath to the clergy, a large percentage of whom seems to have submitted. From the returns preserved it is difficult to estimate accurately what number of the clergy consented to acknowledge the supremacy of the queen or to abandon the Mass, but it is certainly not true to say that out of 9,000 beneficed clergymen in England at the time only about 200 refused the oath. On the one hand, the disturbances during the reigns of Henry VIII. and Edward VI. had reduced considerably the number of priests in England, while on the other, the fact that several clergymen did not put in an appearance before the commission, that others were allowed time to reconsider their views, and that not even all those who obstinately refused the oath were deprived, shows clearly that the lists of deprivations afford no sure clue to the number of those who were unwilling to accept the change. It is noteworthy that the greatest number of refusals were met with amongst the higher officials or dignitaries of the Church, the deans, archdeacons, and canons, who might be expected to represent the best educated and most exemplary of the clergy of their time in England. In the universities, too, the commissioners met with the strongest resistance. Several of the heads of the colleges, both in Cambridge and Oxford, the fellows and the office-bearers, either were deprived or fled, and men of the new school were appointed to take their places. But notwithstanding all the government could do, the universities, and particularly Oxford, continued during the greater part of the reign of Elizabeth to be centres of disaffection.[9]

The complete extinction of the old hierarchy by death, deprivation and imprisonment, left the way open for the appointment of bishops favourable to the religion. Matthew Parker, who had been chaplain to Anne Boleyn and who had lived privately since he was removed from the deanship of Lincoln on account of his marriage, was selected to fill the Archbishopric of Canterbury, left vacant since the death of Cardinal Pole. The royal letters of approval were issued in September, and the mandate for his consecration was addressed to Tunstall of Durham, Bourne of Bath and Wells, Poole of Peterborough, Kitchin of Llandaff, together with Barlow and

Scory. The three former, however, refused to act, and apparently even Kitchin was unwilling to take any part in the ceremony. New men were then sought, and found in the persons of Barlow, Coverdale, Scory, and Hodgkin. But even still grave legal difficulties barred the way. The conditions for the consecration of an archbishop laid down by the 25th of Henry VIII., which had not been repealed, could not be complied with owing to the refusal of the old bishops, and besides the use of the new Ordinal of Edward VI. without a special Act of Parliament for its revival was distinctly illegal; but the situation was so serious that Elizabeth's advisers urged her to make good the illegalities by an exercise of her royal authority. In the end the consecration of Parker was carried out in the chapel of Lambeth Palace on the morning of the 17th December, 1559. The story of the Nag's Head is a pure legend used by controversialists for impugning the validity of Anglican Orders. As a matter of fact the main argument against these Orders is drawn neither from the fable of the Nag's Head nor from the want of episcopal orders in the case of Barlow, the consecrator of Parker, though his consecration has not been proved, but from the use of a corrupt form, which was then as it is now rejected as insufficient by the Catholic Church, and from the want of the proper intention implied both by the corruption of the form and by the teaching of those who corrupted it.[10] Once the difficulty about Parker's consecration had been settled other bishops were appointed by the queen, and consecrated by the new archbishop, so that before March 1560 good progress had been made in the establishment of the new hierarchy in England.

With the establishment of the ecclesiastical commission (1559) to search out and punish heresy and generally to carry out the provisions of the Supremacy Act, and with the appointment of new bishops (1559- 60) the work of reforming the faith of England was well under way. Still the new bishops were confronted with grave difficulties. From the reports of the Spanish ambassador, who had exceptional opportunities of knowing the facts but whose opinions for obvious reasons cannot always be accepted, the great majority of the people outside London were still Catholic, and even in London itself the adherents of the old faith could not be despised. Quite apart, however, from his reports, sufficient evidence can be adduced from the episcopal and official letters and documents to show that the change was not welcomed by a great body in the country. As the best means of enforcing the Act of Supremacy and the Act of Uniformity a visitation of both provinces was arranged. In London Masses were still celebrated, and attended by great multitudes; in Canterbury itself within sight of the archiepiscopal palace public religious processions were carried out. In Winchester, where the memory of Gardiner was still cherished, many of the clergy refused to attend the visitation; the laymen were discreetly absent when their assent was required; the churches were deserted and even the people attending the cathedral "were corrupted by the clergy." In Hereford Bishop Scory described his cathedral, "as a very nest of blasphemy, whoredom, pride, superstition, and ignorance;" the justices threw every obstacle in the way of his reforms; fasts and feasts were observed as of old; and even the very butchers seemed leagued against him, for they refused to sell meat on Thursdays. In Bath and Wells many of the justices were openly disobedient, and even the people who conformed outwardly could not be relied upon. In Norwich, Ely, Salisbury and Chichester

"Popery" was still strong amongst the clergy, people, and officials. At Eton it was necessary to expel the provost and all the teachers except three before the college could be reduced to subjection, and at Oxford the visitors were driven to admit, that if they expelled the fellows who refused to subscribe, and the students who would have no religious service except the Mass, the houses would be deserted. In the northern provinces where the visitation did not begin till some time later it was discovered that matters were still worse. The principal noblemen were openly Catholic, and many of the magistrates denied that they had ever heard of the Act of Supremacy, while others of them "winked and looked through their fingers." In York the diocese was in a state of anarchy; in Carlisle the bishop confessed that he could not prevent the public celebration of the Mass; in Durham the bishop wrote that he found himself engaged in a conflict with wild beasts even more savage than those which had confronted St. Paul at Ephesus. To make matters worse it was reported that public sympathy was on the side of the recusants, and that hopes were being expressed by many that the present advisers of her Majesty might soon be displaced, even though it were necessary to have recourse to France or Spain.[11]

Nor was it merely from the side of the Catholics that the bishops and the government anticipated serious danger. The men, who, like Hooper, objected to the Edwardine settlement as not being sufficiently extreme, had approached more closely to Calvinism in doctrine and in ritual during their enforced sojourn at Frankfurt and Geneva. They were enthusiastic in their praise of Elizabeth for her attacks upon Rome, but they found fault with her religious programme as flavouring too much of idolatry and papistry. They objected to crosses, candles, vestments, copes, blessings, and much of the old ritual that had been retained in the Book of Common prayer, and insisted that, until religion had been brought back to a state of scriptural purity, the English people should not rest satisfied. Whatever sympathy some of the English political advisers may have had with the Puritans in theory they had no intention of yielding to their demands, as such a policy would have stirred up all the latent Catholicity in the country. The official church "as by law established" was to be a church for the nation, standing midway between Rome and Puritanism, a kind of compromise between both extremes. Elizabeth was determined to put down Puritanism, irreverence, and unlicensed preaching with a heavy hand. As a foretaste of what the champions of innovation might expect, much to the disgust of the archbishop, she struck a blow at the married clergy by ordering the removal of women and children from the enclosures of colleges and cathedrals (1561).

It cannot be said that it was the opposition of Rome to her accession that forced Elizabeth to establish a national church. Paul IV., whose undiplomatic and imprudent proceedings had caused such grave embarrassment to her predecessor, made no protest against the recognition of Elizabeth's claims, although he was urged to do so by France. The same attitude of friendly reserve was maintained by his successor Pius IV. (1559-65).[12] Shortly after his consecration he addressed a kindly letter to Elizabeth exhorting her to return to the bosom of the Church.[13] His envoy was not allowed, however, to enter England, nor had another envoy, dispatched in 1561 to invite the queen and the English bishops to take part in the Council of Trent, any better success. Though Elizabeth discussed the matter with the Spanish ambassador

and even made preparations for the reception of the papal envoy, the necessary safe conducts were not forwarded to Flanders, and in the end a notification was sent that the papal messenger could not be received, nor would the English bishops attend the Council of Trent. Possibly owing to the friendly attitude of the Pope, rumours were put in circulation that he was not unwilling to accept the new English Book of Common Prayer if Elizabeth would consent to acknowledge the supremacy of Rome. That there was never the least foundation for such a statement is now generally admitted, but at the time it helped to confirm many Catholics in the view that to escape fines and punishment it was lawful for them to attend the English service, particularly as they took care to assist at Mass in secret and made it clear both by their actions and demeanour that their presence at the new religious rite was not voluntary. Others, however, refused to follow this opinion, and in order to put an end to the dissensions that had arisen a petition was drawn up and forwarded to the Pope requesting him for permission to attend Common Prayer, but, though the request was supported by the Spanish ambassador, the permission was refused (1562).

Elizabeth's second Parliament (1563) met at a time when the downfall of the Huguenots to whom England had furnished assistance, the failure of a plot entered into by the nephews of Cardinal Pole for the overthrow of Elizabeth's government, and the reports from the ecclesiastical commissioners and the bishops, showing as they did that contempt for the Acts of Supremacy and Uniformity was still strong, made it necessary to undertake more repressive measures against the Catholics. An Act was passed entitled, "an Act for the assurance of the queen's royal power" commanding that the oath of supremacy should be administered to members of the House of Commons, schoolmasters, tutors, attorneys, and all who had held any ecclesiastical office during the reigns of Elizabeth, Mary, Edward VI. or Henry VIII., and to all who manifested their hostility to the established religion by celebrating Mass or assisting at its celebration. Refusal to take the oath when first tendered was to be punished by forfeiture and life imprisonment, and on the second refusal the penalty was to be a traitor's death. Had such an Act been enforced strictly it would have meant the complete extirpation of the Catholics of England, but Elizabeth, having secured a weapon by which she might terrorise them, took care to prevent her bishops from driving them to extremes by a close investigation of their opinions regarding royal supremacy. Fines and imprisonment were at this stage deemed more expedient than death.

Convocation met at the same time, but Convocation had changed much since 1559 when it declared bravely in favour of the Real Presence, Transubstantiation, the Mass, Papal supremacy, and the independence of the Church. The effects of the deprivation of the bishops, deans, archdeacons, canons, and clergy, and of the wholesale ordinations "of artificers unlearned and some even of base occupations" by Parker and Grindal and others were plainly visible.[14] Convocation was no longer Catholic in tone. It was distinctly Puritan. A proposal was made that all holidays and feasts should be abolished except Sundays and "the principal feasts of Christ," that there should be no kneeling at Communion, no vestments in the celebration of Common Service except the surplice, no organs in the churches, no sign of the cross in baptism, and that the minister should be compelled to read divine service facing

the people. The proposal was debated warmly and in the end was defeated only by one vote.[15] One of the principal objects for which Convocation had been called was to draft a new dogmatic creed for the Church "as by law established." This was a matter of supreme importance. But as it was necessary to affirm nothing that would offend the Huguenots of France and the theologians of Switzerland and Germany, or rouse the latent Catholic sentiments of the English people, it was also a work of supreme difficulty. In other words the creed of the established Church must be in the nature of a compromise, and a compromise it really was. The Forty Two Articles of Edward VI. were taken as the basis of discussion. As a result of the deliberations they were reduced to Thirty Nine,[16] in which form they were signed by the bishops and clergy, before being presented to Elizabeth and her ministers for approval. As an indication to the clergy that the office of supreme governor was no sinecure Elizabeth would not authorise the publication of the Articles until a very important one dealing with the Eucharist had been omitted, and until another one regarding the authority of the Church to change rites and ceremonies had been modified. That influences other than doctrinal were at work in shaping the Thirty Nine Articles is evident from the fact that the particular Eucharistic Article referred to was omitted in 1563 lest it should drive away Catholics who were wavering, and inserted again in 1570 when the government, then in open war with Rome, was determined to give back blow for blow. The catechism drawn up by Convocation for the use of the laity was promptly suppressed by Cecil.

By the adoption of the Thirty Nine Articles as its official creed the English Church "by law established," cut itself adrift from the Catholic Church and from the faith that had been delivered to the Anglo-Saxon people by Rome's great missionary St. Augustine. However ambiguous might be the wording to which the authors of the Articles had recourse in order to win followers, there could be no longer any doubt that on some of the principal points of doctrine the new creed stood in flagrant contradiction to the doctrines received by the Catholic world. The Pope, whose spiritual powers had never been called into question till the days of Henry VIII., was declared to have no jurisdiction in England. The Sacrifices of the Masses (as it is put) were denounced as blasphemous fables and dangerous deceits; Transubstantiation was regarded as unscriptural and opening the way to superstition; the doctrine of the Real Objective Presence of Christ was implicitly condemned; the summoning of a General Council was made dependent on the will of the secular princes; the fact that such assemblies could err and did err in the past was emphasised; five of the Sacraments, namely, Confirmation, Penance, Holy Orders, Matrimony and Extreme Unction were declared not to be Sacraments of the Gospel, and the Roman doctrine concerning Purgatory, Indulgences, the invocation of saints, and veneration of images and relics was pronounced to be a foolish and vain invention, contradictory to the Word of God.[17]

The new repressive legislation, at least in regard to fines and imprisonment, was enforced strictly against Catholics who were still a strong body, especially in the north. On the accession of Pius V. (1566-72) the friendly attitude hitherto maintained by Rome was changed. There could no longer be any hope that Elizabeth would modify her religious policy, as even her former ally and supporter Philip II. was

forced to admit, and there was grave danger that the opinion entertained by some, that Catholics should be permitted to attend Common Prayer was a purely legal function, might do considerable harm. Hence a strong condemnation of the English service was published by the Pope, and a commission was granted to two English priests, Sanders and Harding, empowering them to absolve all those who had incurred the guilt of schism (1566). As even this was not sufficient to put an end to all doubts, and as the authority of the papal agent Laurence Vaux was questioned by certain individuals, a formal Bull of reconciliation was issued in 1567, authorising the absolution of those who had incurred the guilt of heresy or schism by their obedience to the Acts of Supremacy and Uniformity.

Apart from other considerations, this clear and definite statement of the attitude of the Pope towards attendance at the English service helped to stiffen the backs of the English Catholics, and to determine even the waverers to stand firm; but in addition to this the question of the succession to the throne raised considerable discussion. Elizabeth was still without a husband, and for reasons probably best known to herself she refused to allow her Parliament to drive her into marriage, although partly through vanity, partly through motives of policy she was not unwilling to dally with the advances of several suitors both native and foreign. In the eyes of Catholics Elizabeth was illegitimate, and except for her father's will and the parliamentary confirmation of that will, as an illegitimate she had no right to the throne. Mary Queen of Scotland, the grand-daughter of Henry VIII.'s eldest sister Margaret, was from the legal point of view the lawful heir; but as she was the wife of the Dauphin of France at the time of Elizabeth's accession, Englishmen generally did not wish to recognise her claim for precisely the same reasons that drove them to oppose Queen Mary's marriage with Philip II. of Spain. After the death of her French husband and her return to Scotland opinion began to change in her favour, and this grew stronger in Catholic circles, when she fled into England to claim the support of her cousin Queen Elizabeth against the Scottish rebels (1568). A strong body even in the council favoured the plan of a marriage between Mary and the Duke of Norfolk, and the recognition of their rights and the rights of their children to the throne on the death of Elizabeth, as the best means of avoiding civil war and of escaping from the delicate position created by the presence of Scotland's Queen in England. Norfolk was regarded as a kind of Protestant and was backed by a very considerable body of the council, but his communications with Philip II. of Spain, who favoured the marriage, and with the Catholic lords of the north, who, driven to extremes by religious persecution and by the treatment accorded to Mary in England, were not unwilling to depose Elizabeth, he professed his intention of becoming a Catholic. Elizabeth, however, was strong against the marriage, and Cecil, though he pretended to favour it, supported the views of his sovereign. Rumours of conspiracies especially in the north were afloat. The noblemen of Lancashire had met and pledged themselves not to attend the English service; the Earls of Northumberland and Westmoreland declared openly their attachment to the Catholic Church; the attitude of Wales and Cornwall was more than doubtful, and the Spanish ambassador was well known to be moving heaven and earth to induce his master to lend his aid.[18]

Elizabeth determined to strike at once before the plans of the conspirators could be matured. The Duke of Norfolk was commanded to appear at court and was soon lodged safely in the Tower (11th Oct., 1569). A peremptory order was issued to the Earls of Northumberland and Westmoreland to come immediately to London, and as they knew well the fate that was in store for them they determined to stake their fortunes on the chance of a successful rising. They appealed to the Catholic lords of Scotland, to the Duke of Alva, and to Spain for support, and mustered their forces for war. They entered Durham (10th Nov. 1569), where they swept out from the cathedral both the Book of Common Prayer and the communion table, set up the altar once more, and had Mass celebrated publicly. They marched southwards with the object of getting possession of the Queen of Scotland who was imprisoned at Tutbury, but their design having been suspected Mary was removed suddenly to Coventry. A strong force was sent to prevent their march southward, while Moray, the regent of Scotland and Elizabeth's faithful ally, assembled his troops on the border to prevent the Scottish Catholic lords from rallying to the assistance of their co-religionists. The insurgents, caught between the two fires, were routed completely, and the leaders hastened to make their escape. Westmoreland to the Netherlands, where he lived for thirty years in exile, and Northumberland to Scotland only to be sold again to Elizabeth for £2,000 and executed. Martial law was proclaimed and hundreds "of the poorer sort" were put to death. The trouble seemed to be over for the time, but suddenly in January 1570, encouraged by the assassination of Moray and by the raids of the Catholic borderers, Lord Dacre rose in revolt, and threw himself upon the queen's forces on their march from Naworth to Carlisle. He was defeated and barely succeeded in escaping with his life. All resistance was now at an end, and more than eight hundred of the insurgents were executed. The failure of the Northern Rebellion served only to strengthen Elizabeth's power, and to secure for Protestantism a firm footing in England.

While preparations were being made in England for the rebellion, Catholic representatives in Rome, both lay and clerical, pressed Pius V. to issue a decree of excommunication and of deposition against Elizabeth. Such a decree, it was thought, would strengthen the hands of those who were working in the interests of Mary Queen of Scotland, and would open the eyes of a large body of Catholics who stood firmly by Elizabeth solely from motives of extreme loyalty. Philip II. was not acquainted with the step that was in contemplation, though apparently the French authorities were warned that Rome was about to take action.[19] Had the advice of the King of Spain been sought he might have warned the Pope against proceeding to extremes with Elizabeth, and in doing so he would have had the support of those at home who were acquainted most intimately with English affairs. In February (1570) the process against Elizabeth was begun in Rome, and on the 25th of the same month the Bull, /Regnans in Excelsis/,[20] announcing the excommunication and deposition of Elizabeth was given to the world. Had it come five or six months earlier, and had there been an able leader capable of uniting the English Catholic body, a work that could not be accomplished either by the Duke of Norfolk or the Northern Earls, the result might have been at least doubtful; but its publication, at a time when the northern rebellion had been suppressed, and when Spain, France, and the

Netherlands were unwilling to execute it, served only to make wider the breach between England and Rome, and to expose the English Catholics to still fiercer persecution.[21] For so far Catholics had been free to combine with moderate Protestants to secure the peaceful succession of Mary Queen of Scotland without any suspicion of disloyalty to Elizabeth, but from this time forward they were placed in the cruel position of being traitors either to the Pope or to Elizabeth, and every move made by them in favour of Mary Queen of Scotland must necessarily be construed as disloyalty to their sovereign. Copies of the Bull were smuggled into England, and one man, John Fenton, was found brave enough to risk his life by affixing a copy to the gates of the palace of the Bishop of London. He was taken prisoner immediately, and subjected to the terrible death reserved for traitors (8th August 1570).

While anti-Catholic feeling was running high, Elizabeth summoned Parliament to meet in April 1571. As danger was to be feared both from the Catholics and the Puritans special care was taken to ensure that reliable men should be returned. Several measures were introduced against the Catholic recusants, who had few sympathisers in the House of Commons, but in the House of Lords, where the Duke of Norfolk, who had been released, pleaded for moderation, and was supported by a small but determined body of the Lords, the feeling was less violent. Bills were both framed and passed making it treason to obtain Bulls, briefs, or documents from Rome. The penalty of Praemunire was levelled against all aiders and abettors of those offenders mentioned above, together with all who received beads, crosses, pictures, etc., blessed by the Bishop of Rome, or by any one acting with his authority;[22] while those who had fled from the kingdom were commanded to return within six months under penalty of forfeiture of their goods and property. It was proposed too that all adults should be forced to attend the Protestant service and to receive Communion at stated times, but the latter portion was dropped probably at the request of the Catholic lords. However subservient Parliament might be in regard to the Catholics it was not inclined to strengthen the hands of the bishops against the Puritans. Notwithstanding Elizabeth's refusal to allow discussion of the Thirty Nine Articles, or to permit them to be published under parliamentary sanction, the members succeeded in attaining their object indirectly by imposing them on recusants. Elizabeth was determined, however, to show her faithful Commons that she and not the Parliament was the supreme governor of the Church.[23] She took Convocation and the bishops under her protection and empowered them to issue the Articles in a revised form, so that there were then really two versions of the Thirty Nine Articles in force, one imposed by Convocation and the queen and the other by Parliament.

To secure aid against Spain as well as to draw away the French from supporting the Queen of Scotland Elizabeth made overtures for marriage to the Duke of Anjou, and at the same time the party in favour of Mary determined to make a new effort to bring about a marriage between Mary and the Duke of Norfolk. Ridolfi[24] was the life and soul of the conspiracy, assisted by the Duke of Norfolk and by the Bishop of Ross, Mary's ambassador in London. It was hoped to enlist the sympathy of the Duke of Alva, Philip II. and the Pope, none of whom were unwilling to aid in overthrowing Elizabeth's rule, but before anything definite could be done Cecil's spies brought him news of the steps that were being taken. The Duke of Norfolk was arrested in

September 1571, and placed on his trial in the following January. He was condemned to death, but as Elizabeth did not wish to take the responsibility of his execution on herself she waited until it had been confirmed by Parliament, after which he was led to the block (2nd June 1572). Parliament also petitioned for the execution of the Queen of Scotland, but for various reasons Elizabeth refused to accede to their request.

Though the new laws were enforced strictly it is clear from the episcopal reports that in London itself, in Norwich, Winchester, Ely, Worcester, in the diocese and province of York, and indeed throughout the entire country Catholicism had still a strong hold.[25] The old Marian priests were, however, dying out rapidly. The monasteries and universities, that had supplied priests for the English mission, were either destroyed or passed into other hands, so that it became clear to both friends and foes that unless something could be done to keep up the supply of clergy the Catholic religion was doomed ultimately to extinction. This difficulty had occurred to the minds of many of the English scholars who had fled from Oxford to the Continent, but it was reserved for Dr. William Allen,[26] formerly a Fellow of Oriel College, and Principal of St. Mary's Hall, Oxford, and later in 1587 a Cardinal of the Roman Church, to take practical measures to meet the wants of his co-religionists in England. He determined to found a college on the Continent for the education of priests for the English mission, and as Douay had a new university, in which many of the former Oxford men had found a home, he opened a college at Douay in 1568.[27] Depending on his own private resources, the contributions of his friends, and the pensions guaranteed by the King of Spain and the Pope, he succeeded beyond expectation. Students flocked from England to the new college, whence they returned on the completion of their studies to strengthen and console their co-religionists at home. Could Douay College boast only of the 160 martyrs whom it trained and sent into England Cardinal Allen would have had good reason to be proud of his work, but in addition to this the numerous controversial tracts of real merit that were issued from the Douay printing-press, and scattered throughout England, helped to keep alive Catholic sentiment in the country. In Douay too was begun the translation of the Scriptures into English, the New Testament being published at Rheims (1582) whither the college had been removed in 1578, and the old Testament in 1609. In 1576 Allen visited Rome and persuaded Gregory XIII. to found a college in Rome for the education of English priests.[28] Students were sent in 1576 and 1577, and a hospice was granted in 1578 as an English seminary, over which the Jesuits were placed in the following year. A college was established at Valladolid by Father Persons (1589), another at Seville in 1592, and one at St. Omers in 1594.

The failure of the northern rebellion, the repressive measures adopted by Parliament in 1571, and the betrayal of Ridolfi's fantastic schemes, did not mean the extinction of Catholicism in England. On the contrary there was a distinct reaction in its favour, partly through the failure of the Protestant bishops and clergy to maintain a consistent religious service such as that which they had overthrown, partly to the revulsion created by the fanatical vapourings of the Puritans, but above all to the efforts of the "seminary priests," as the men who returned from Douay and the other colleges abroad were called. The older generation of clergy who had been deprived

on Elizabeth's accession were content to minister to their flocks in secret, and were happy so long as they could escape the meshes of the law; but the new men who returned from Douay were determined to make the country Catholic once more or to die in the attempt. They went boldly from place to place exhorting the Catholics to stand firm, and they seemed to have no dread of imprisonment, exile or death. Many of them were arrested and kept in close confinement, while others, like Thomas Woodhouse (1573), Cuthbert Mayne (1577), John Nelson, and Thomas Sherwood (1578), gloried in being thought worthy of dying as their Master had died.[29]

Nor did their fate deter others from following in their footsteps. It was reported in 1579 that a hundred students had been ordained and sent into England from Rome and Rheims. The result of the labours of these apostolic men was soon evident. The government, alarmed at the sudden resurrection of Popery, urged the bishops and officials to make new efforts for its suppression. Throughout the various dioceses inquiries were begun which served only to show that recusancy was no longer confined to Lancashire or the north. The bishops were obliged to admit (1577) with sorrow that papists "did increase in numbers and in obstinacy." They recommended the infliction of fines, and furnished the authorities with a list of recusants and the value of their property. In York the archbishop reported that "a more stiff-necked or wilful people I never knew or heard of, doubtless they are reconciled with Rome and sworn to the Pope," and what was worse they preferred to be imprisoned than to listen to the archbishop's harangues. From Hereford it was announced that "rebellion is rampant, attendance at church is contemptuous, and John Hareley read so loudly on his latin popish primer (that he understands not) that he troubles both minister and people." In Oxford and amongst the lawyers in the Inns of Court and in the Inns of Chancery popery and superstition were still flourishing.[30]

To make matters worse it was soon bruited about that the Jesuits, whose very name was sufficient to instil terror, were preparing for an invasion of England. The invading force it was true was small, but it was select. Persons and Campion,[31] both Oxford men, who having gone into exile joined themselves to the Society of St. Ignatius, were entrusted with the difficult undertaking. The government, warned by its spies of their mission, had the ports watched to capture them on their arrival, but the two priests contrived to elude the vigilance of their enemies, and succeeded in arriving safely in London (1580). The news of their arrival could not be kept a secret, and hence they determined to leave London. Before they separated for the different fields they had selected, to prevent future misrepresentation of their aims, Campion wrote an open letter addressed to the lords of the privy council in defence of his views, which letter having been published was known as "Campion's challenge." Persons went through the country from Northampton to Gloucester, while Campion preached from Oxford to Northampton. They took pains to set up a small printing press, which was removed from place to place, and from which was issued sufficient literature to disconcert their opponents. Probably the most remarkable volume published from the Jesuit printing-press was Campion's /Ten Reasons/,[32] addressed particularly to the Oxford students amongst whom it created a great sensation. At last after many hair-breadth escapes Campion was captured at Lyford and committed to the Tower. He had challenged his opponents to meet him in a public disputation,

and now that he was in their hands, worn out by his labours and imprisonment, they determined to take up the challenge in the hope that by overthrowing him they might shake the faith of his followers. But despite his weakness and infirmity they found in him so dangerous and so learned an adversary that the government thought it wiser to bring the controversy to an end, or rather to transfer it to the law courts. Even here the captive Jesuit showed that he was quite able to hold his own with the lawyers. He had been guilty of no treason, he averred; he acknowledged the queen to be his lawful sovereign; but he refused to disown the Bull of Deposition. He was found guilty, condemned to death as a traitor, and was executed with two other priests in December 1581.[33]

During the wild start of alarm and vexation caused by the reports of the rising strength of the recusants, the invasion of seminary priests and of Jesuits, and the help given by Gregory XIII. to the Desmond rebellion, Parliament met (Jan. 1581). An Act was passed immediately making it high treason to possess or to exercise the power of absolving or withdrawing anybody from the established church, and a similar penalty was levelled against those who permitted themselves to be reconciled or withdrawn, together with all aiders or abettors. The punishment decreed for celebrating or assisting at Mass was a fine of 100 marks and one year's imprisonment. Fines of £20 per lunar month were to be inflicted upon all those who absented themselves from Common Prayer, and if their absence lasted for an entire year the delinquents should be obliged to provide heavy securities for their good behaviour. All schoolmasters or tutors not licensed by the bishop of the diocese were declared liable to a year's imprisonment, and the person who employed them to a fine of not less than £10 per month. The Act was enforced with merciless severity. Fathers Campion, Sherwin, and Briant were hanged, drawn and quartered at Tyburn (Dec. 1581); eleven other priests met a similar fate before the end of the following year, and two priests and two school-masters were hanged, drawn and quartered in 1583.[34] The news of the execution of Campion and his fellow labourers created a profound impression on the country. In reply to the protests that were raised Elizabeth thought at first of issuing an official statement, but in the end the idea was abandoned and Cecil, now Lord Burghley, published anonymously two pamphlets to justify the action of the government. The jails were so filled with popish recusants that in order to escape the expense of supporting them, a plan was formed to convey them to North America, but it could not be executed owing to the opposition of the Spanish Government. The seminary priests did not, however, allow themselves to be drawn away from their work either by the terrors of treason or by the echoes of the wordy war, that was being carried on between Lord Burghley and his friends on one side, and Dr. Allen and his friends on the other. A catechism introduced by them was bought up so rapidly that in a few months it was out of print. A great body of the English noblemen still held the old faith. In the north Catholics were numerous and active, and even in the southern and western counties and in Wales opinion was veering rapidly towards Rome. Had the seminary priests been left free to continue their work, unimpeded by foreign or English political plots on the Continent, it is difficult to say what might have been the result. Unfortunately new plots were hatched under the protection of France or Spain for the release of Mary Queen of Scotland, and for her proclamation

as Queen of England. Throckmorton, who had taken the principal part in this affair, was arrested and put to death; the principal conspirators, men like the Earl of Northumberland and the Earl of Arundel were sent to the Tower; the jails were filled with Catholics, and five priests were put to death at Tyburn (1584).[35]

Parliament met (1585) at a time when the discovery of the plot against Elizabeth and the news of the assassination of William of Orange had created great excitement through the country. An association that had been formed to defend the life of the queen or to revenge her death was granted statutory powers by Parliament. The queen was authorised to create a special commission with authority to deal with all plotters and to exclude from succession to the throne everyone in whose interest she herself might be assassinated. An Act was passed by which all Jesuits and seminary priests were commanded to leave England within forty days under penalty of treason; all persons not in holy orders studying in any foreign seminary or college were ordered to return within six months and to take the oath of supremacy within two days of their arrival if they did not wish to be punished as traitors; all persons harbouring or assisting a priest were to be adjudged guilty of felony; all who sent their children abroad except by special permission were to be fined £100 for each offence, and all who had knowledge of the presence of a priest in England, and who did not report it to a magistrate within twelve days were liable to be fined and imprisoned at the queen's pleasure.[36] This Act was designed to secure the banishment or death of all the seminary priests, and if any of them survived it was due neither to the want of vigilance nor to the mildness of the government. Spies were let loose into every part of England to report the doings of the clergy and laity. Wholesale arrests were effected, and great numbers of the clergy put to death merely because they were priests, and of the laymen merely because they harboured priests. Three were executed in 1585, thirteen in 1586, and seven in 1587. To secure the conviction of the prisoners, though the law had made the conviction sufficiently certain, but more especially to create popular prejudice against them in the minds of loyal Englishmen, a series of questions were administered to them known as the "bloody" or "cut-throat" questions, as for example, "whose part would you take if the Pope or any other by his authority should make war on the queen."[37]

The dismissal of the Spanish ambassador after the discovery of the Throckmorton plot and the assistance given by England to the rebels in the Netherlands helped to increase the hostility between England and Spain, and to induce Philip II. to make renewed efforts for the overthrow of Elizabeth's government, while at the same time the merciless persecution of the Catholics in England drove many of them who wished to remain loyal to co-operate with their brethren abroad and to assist Philip's schemes. This unfortunate combination of English Catholics with Spanish politicians did more to mar the work of the seminary priests, and to set back the rising Catholic tide than all that could have been accomplished by Elizabeth's penal laws or merciless persecution. The large and increasing body of English people who began to look with a friendly eye towards the old faith were shocked by the adoption of such means, and when they found themselves face to face with the necessity of selecting between an Anglo-Spanish party and Elizabeth, they decided to throw in their lot with the latter. The discovery of the Babington plot for the rescue of Scotland's queen led

to the death of its author and the execution of the lady in whose favour it had been planned (1587). The news of Mary's execution created a great sensation both at home and abroad. To prevent hostilities on the part of Mary's son, James VI. of Scotland, or of the Catholic sovereigns on the Continent, Elizabeth, pretending to be displeased with her ministers for carrying out the sentence, ordered the arrest of Davison the secretary to the council, and had him punished by a fine of £10,000 and imprisonment in the Tower. Philip II. was not, however, deceived by such conduct, or influenced by the overtures made for peace. Elizabeth's interference in the affairs of the Netherlands, the attacks made by her sailors on Spanish territories and Spanish treasure-ships, and the execution of Mary Queen of Scotland determined him to make a final effort for the overthrow of the English government. The great Armada was got ready for the invasion of England (1588). But the Spanish ships were not destined to reach the English harbours, nor the Spanish soldiers whom they carried on board to test their bravery and skill in conflict with Elizabeth's forces on English soil.

Though there is no evidence either from English or Spanish reports that Catholics in England welcomed the Armada, since both Lord Burghley[38] and Philip II. were convinced that Spain could not rely on their co-operation, and though in many parts of the country Catholics volunteered for service to fight the invader, the government determined to wreak its vengeance on the helpless victims in prison. Within three days six priests and eight laymen were executed near London (August); nine priests and three laymen were put to death in October, and before the end of the year thirty-one had suffered the terrible punishment reserved for traitors, merely because they refused to conform. The prisons were so full of recusants that new houses were opened for their detention. The government reaped a rich harvest by the heavy fines inflicted on the wealthy Catholics and took pains, besides, to annoy them at every turn by domiciliary visits in search of concealed priests. Yet the reports from the country, especially from such places as Lancashire and Cheshire, showed that the Papists were still dangerously strong. A new proclamation was issued against seminary priests and Jesuits (1591). Nine priests and two laymen had been put to death in the previous year (1590), and in 1591 fifteen were martyred, seven of whom were priests and the rest laymen. Throughout the remainder of Queen Elizabeth's reign Catholics in England were not allowed to enjoy peace or respite. If priests, they were by that very fact liable to be hunted down and condemned as traitors; if they were laymen of substance, they were beggared by heavy fines imposed for non-attendance at the English service, or punished by imprisonment, and if they were too poor to pay a fine they could be driven from the kingdom for refusing to conform. Apart altogether from the immense sums levied on Catholics by fines and forfeitures, and from the number of people who died in prison either from confinement or torture, one hundred and eighty-nine were put to death for the faith under Elizabeth, one hundred and twenty-eight of whom were priests; and yet, notwithstanding this persecution, Catholics were still comparatively strong at the death of Elizabeth, and the supply of clergy showed no signs of being exhausted. Over three hundred and sixty priests were in England attending to the wants of their co-religionists in 1603.

Unfortunately the dissensions among the Catholic party in England and on the Continent did more harm to their cause than Elizabeth's persecutions. The close

co-operation of Allen and Persons with Spanish political designs for the overthrow of Elizabeth and the invasion of England was as distasteful to a large body of the lay Catholics in England as it was to many of the clergy.[39] Though serious disputes had broken out long before, it was only after the death of Cardinal Allen in 1594 that the crisis reached a head. Many of the secular clergy objected warmly to the influence of the Jesuits, and ugly controversies broke out in England and in the English colleges abroad. Persons and his friends were supposed to be plotting in favour of the succession of a Catholic to the throne on the death of Elizabeth, while most of their opponents favoured the succession of James VI. of Scotland, from whom they expected at least toleration. To put an end to what the latter regarded as the excessive authority of the Jesuits they insisted on the appointment of a bishop who would take charge of English affairs, but for various reasons the Holy See refused to yield to their request. As a compromise, however, George Blackwell was appointed archpriest (1598) with secret instructions, it was said, to consult Garnet, the Jesuit superior in England. The selection was singularly unfortunate, as neither from the point of view of prudence nor of reliability was Blackwell fitted for the extremely delicate position which he was called upon to fill. The seculars refused at first to obey his authority and appealed again to the Pope, who confirmed the appointment. As many of the seculars were still unwilling to yield some of the leaders were censured by the archpriest. A new appeal was forwarded to Rome. In 1602 Clement VIII. issued a document upholding the authority of the archpriest, and, while firmly defending the Jesuits against the charges that had been made against them, warned Blackwell that he should not take his instructions from any person except from the Pope or the Cardinal Protector of England.[40] This controversy could not be kept a secret. It was known to the entire Catholic body, and it was used with great force and success by their opponents. The government took sides with the secular clergy and offered them facilities for carrying their appeals to Rome, but news of the secret negotiations between the seculars and the authorities having been divulged Elizabeth issued a new proclamation (1602) in which she announced that she had never any intention of tolerating two religions in England.[41] The Jesuits and their adherents were commanded to quit the kingdom within thirty days, and their opponents within three months under penalty of treason. To give effect to this proclamation a new commission with extraordinary powers was appointed to secure the banishment of the Catholic clergy. The seculars, who had opposed the archpriest, encouraged by the distinction drawn in the proclamation between the two classes of English priests, the loyal and the disloyal, determined to draw up an address to the queen proclaiming their civil allegiance,[42] but before it was considered Elizabeth had passed away, and the fate in store for them was to be determined by a new ruler. ----------

[1] Cf. F. W. Maitland in /Eng. Hist. Review/ (April, 1900). Father Pollen, S.J., in /The Month/ (Oct., 1900). Id., /Papal Negotiations with Mary Queen of Scots/, xxvi.

[2] Wilkins, /Concilia/, iv. 180.

[3] Birt, /The Elizabethan Religious Settlement/, 36-8.

[4] On the constitution of the House of Commons, cf. Froude, /Hist. of Eng./, vii., 40-41.

[5] Wilkins, /Concilia/, iv., 179.

[6] For an account of this Conference, cf. /English Catholic Record Society/, vol. i. Foxe, /Acts and Monuments/, 1839, viii., 679 sqq.

[7] Birt, op. cit., 91-2.

[8] Phillips, /The Extinction of the Ancient Hierarchy/, 112-114.

[9] For a full treatment of the attitude of the clergy, cf. Blirt, op. cit., chap. iv. The best history of the resistance and sufferings of the Marian Bishops is to be found in Phillips' /Extinction of the Ancient Hierarchy/, 1905.

[10] Cf. Estcourt, /The Question of Anglican Orders/, 1873. Barnes, /The Pope and the Ordinal/, 1898. Smith, S.J., /Reasons for Rejecting Anglican Orders/, 1896. Moyes (in the /Tablet/, 1895, Feb.-May, Sept.-Dec., also 1897).

[11] Cf. Birt, op. cit., chaps. iv., v., xii. Kennedy, /Parish Life under Queen Elizabeth/, 1914, chap. vii. Frere, /History of the English Church in the reigns of Elizabeth and James I./, 1904, 61-7.

[12] Pollen, /Papal Negotiations/, etc., xlvi-vii.

[13] Dodd-Tierney, op. cit., iii., app. cccxi.

[14] Frere, op. cit., 60.

[15] Id., op. cit., 99.

[16] Hardwick, /Articles of Religion/, 1859. Gibson, /Thirty-nine Articles/, 2nd edition, 1898.

[17] Cf. Newman, /Tract 90/ (/Tracts for the Times/). Duchesne, /Églises Séparées/, 1896. Lingard, vii., 384 sqq. Moyes, /A Talk on Continuity/ (C. T. Society, authorities cited). /Tablet/ (1911- 12).

[18] /Political History of England/, vi., chap. xv. (The Crisis of Elizabeth's Reign).

[19] Meyer, /England und die Katholische Kirche/, 64.

[20] Printed in Dodd-Tierney, iii., app. ii.

[21] Meyer, op. cit., 70 sqq.

[22] /Statutes/, 13 Eliz., c. 2.

[23] /Political History of England/, vi., 363.

[24] Rev. J. H. Pollen, S.J., /The Month/, Feb., 1902.

[25] Kennedy, /Parish Life under Queen Elizabeth/, chap. vii., viii.

[26] Haile, /An Elizabethan Cardinal/, 1914. Knox, /Letters and Memorials of William Cardinal Allen/, 1882. /Allen's Defence of Eng. Catholics/, 1913 (The Cath. Library, ii.).

[27] Cf. /The English Cath. Refugees on the Continent/, i., 1914. Lechat, /Les Refugiés anglais dans les Pays-Bas espagnols durant le règne d'Elisabeth/, 1914.

Bellesheim, /Wilhelm Cardinal Allen und die Engl. Seminare auf dem Festlande/, 1885.

[28] Foley, /Records of the English Province of the Society of Jesus/, ii. /Cath. Record Society of Engl./, ii., 1906.

[29] Bede-Camm, /Lives of the Eng. Martyrs/, ii., 204-49.

[30] Frere, op. cit., 206-15.

[31] Persons, /Memoirs Cath. Rec. Society of Eng./, ii., iv., 1906-7. Simpson, /Edmund Campion/, 1896.

[32] Published in Cath. Library Series, vol. 6, 1914.

[33] Allen, /Martyrdom of Edmund Campion, and his Companions/, edited, Father Pollen, 1908.

[34] Bede-Camm, op. cit., 249 sqq.

[35] Burton-Pollen, /Lives of English Martyrs/, vol. i., 1583-88, 1914.

[36] /Statutes/, 27 Eliz., c. 2.

[37] Burton-Pollen, op. cit., xvi. sqq.

[38] Burton-Pollen, op. cit., xxiv. sqq.

[39] Pollen, /Politics of the English Catholics during the reign of Elizabeth/ (/Month/, 1902-4). Law, /Jesuits and Seculars in the reign of Elizabeth/, etc., 1889. Id., /The Archpriest Controversy Documents/, etc., 1896 (Camden Society). /Eng. Catholic Record Society/, vol. ii.

[40] Dodd-Tierney, iii., app. xxxiv.

[41] Dodd-Tierney, app. xxxv.

[42] Id., app. no. xxxvi.

CHAPTER V

CATHOLICISM IN ENGLAND FROM 1603 TILL 1750

See bibliography of chap. ii., iii., iv. /Calendars of State Papers/ (James I., Charles I., The Commonwealth, Charles II.). Knox, /Records of the English Catholics under the Penal Laws/, 2 vols., 1882-84. Challoner, /Memoirs of Missionary Priests and other Catholics that suffered death in England/ (1577-1684), 2 vols., 1803. Lilly-Wallis, /A Manual of the Law specially affecting Catholics/, 1893. Butler, /Historical Memoirs of English, Scottish, and Irish Catholics/, 3 vols., 1819-21. Id., /Historical Account of the Laws respecting the Roman Catholics/, 1795. Willaert, S.J., /Négociations Politico-Religieuses entre L'Angleterre et les Pays-Bas/, 1598-1625 (/Rev. d'Histoire Ecclés/, 1905-8). Kirk, /Biographies of English Catholics in the Eighteenth Century/ (edited by Rev. J. H. Pollen, S.J., and E. Burton, 1909). Morris, /The Condition of Catholics under James I./, 1871. Id., /The Troubles of our Catholic Forefathers/,

1872-77. Payne, /The English Catholic Nonjurors of 1715/, etc., 1889. Id., /Records of English Catholics of 1715/, etc., 1891. Pollock, /The Popish Plot/, etc., 1903. /The Position of the Catholic Church in England and Wales during the last two Centuries/, 1892. Hutton, /The English Church from the Accession of Charles I. to the death of Anne/.

With the accession of James I. (1603-25) Catholics expected if not a repeal at least a suspension of the penal laws. As a son of Mary Queen of Scots for whose rescue Catholics in England and on the Continent had risked so much, and as one whose religious views were thought to approximate more closely to Catholicism than to Nonconformity, it was hoped that he would put an end to the persecution that had been carried on so bitterly during the reign of his predecessor. But whatever might be the sentiments he entertained secretly or gave expression to while he was yet only King of Scotland, his opinions underwent a sudden change when he saw an opportunity of strengthening his hold upon the English people, and of providing for the penniless followers who accompanied him to his new kingdom. Unfortunately a brainless plot, the "Bye Plot," as it is called, organised to capture the king and to force him to yield to the demands of the conspirators, afforded the more bigoted officials a splendid chance of inducing James to continue the former policy of repression. Two priests named Watson and Clarke joined hands with a number of malcontents, some of whom were Protestants, others Puritans anxious to secure more liberty for their co-religionists; but news of the plot having come to the ears of the archpriest and of Garnet the provincial of the Jesuits, information was conveyed to the council, and measures were taken for the safety of the king, and for the arrest of the conspirators. James recognised fully that the Catholic body was not to blame for the violent undertakings of individuals, especially as he knew or was soon to know that the Pope had warned the archpriest and the Jesuits to discourage attempts against the government, and had offered to withdraw any clergyman from England who might be regarded as disloyal. James admitted frankly his indebtedness to the Catholics for the discovery of the plot, and promised a deputation of laymen who waited on him that the fines imposed on those who refused to attend the Protestant service should not be exacted. For a time it was expected that the policy of toleration was about to win the day, and the hopes of Catholics rose high; but in autumn (1603) when the episcopal returns came in showing that Catholics were still strong, and when alarming reports began to spread about the arrival of additional priests, the wonderful success of their efforts, and the increasing boldness of the recusants, an outcry was raised by the Protestant party, and a demand was made that the government should enforce the law with firmness.[1]

Shortly before the meeting of Parliament in March (1604) James determined to show the country that his attitude towards Catholicism was in no wise different from that of his predecessor. In a proclamation (Feb. 1604) he deplored the increasing number and activity of priests and Jesuits, denounced their efforts to win recruits for Rome, declared that he had never intended to grant toleration, and ended up by commanding all Jesuits and seminary priests to depart from the kingdom before the 19th March, unless they wished to incur the penalties that had been levelled against them in the previous reign.[2] In his speech at the opening of Parliament (March

1604) after announcing his adhesion to the religion "by law established" he outlined at length his attitude towards Rome. "I acknowledge" he said "the Roman Church to be our mother church although defiled with some infirmities and corruptions as the Jews were when they crucified Christ;" for the "quiet and well-minded" laymen who had been brought up in the Catholic faith he entertained feelings of pity rather than of anger, but in case of those who had "changed their coats" or were "factious stirrers of sedition" he was determined if necessary to take measures whereby their obstinacy might be corrected. The clergy, however, stood on a different footing. So long as they maintained "that arrogant and impossible supremacy of their head the Pope, whereby he not only claims to be the spiritual head of all Christians, but also to have an imperial civil power over all kings and emperors, dethroning and decrowning princes with his foot as pleaseth him, and dispensing and disposing of all kingdoms and empires at his appetite," and so long as the clergy showed by their practices that they considered it meritorious rather than sinful to rebel against or to assassinate their lawful sovereign if he be excommunicated by the Pope, they need expect no toleration.[3] Parliament soon showed that it was guided by the old Elizabethan spirit. An Act was passed ordering that the laws framed during the late reign against Jesuits, seminary priests, and recusants should be rigidly enforced; all persons studying in foreign colleges who did not return and conform within one year, as well as all students who should go abroad for instruction in future should be declared incapable of inheriting, purchasing, or enjoying any lands, chattels, or annuities in England; all owners or masters of vessels who should convey such passengers from the country were to be punished by confiscation of their vessel and imprisonment, and if any person should dare to act as tutor in a Catholic family without having got a licence from the bishop of the diocese, both the teacher and his employer should be fined £2 for every day he violated the law.[4] Lord Montague, having ventured to speak his mind openly in the House of Lords against such a measure, was arrested for his "scandalous and offensive speech," and was committed to the Fleet. The old penal laws and the new ones were enforced with unusual severity. Courts were everywhere at work drawing up lists of recusants and assessing fines. Never before, even in the worst days of Elizabeth, were the wealthy Catholics called upon to pay so much. Numbers of priests were seized and conveyed to the coasts for banishment abroad; one priest was put to death simply because he was a priest, and two laymen underwent a like punishment because they had harboured or assisted priests.

English Catholics were incensed at such pitiless persecution. Had it been inflicted by Elizabeth from whom they expected no mercy, it would have been cruel enough; but coming from a king, to whom they had good reason to look for toleration, and who before he left Scotland and after his arrival in London had promised an improvement of their condition, it was calculated to stir up very bitter feeling. Forgetful of the warnings of the Pope conveyed to the archpriest and the superior of the Jesuits, some of the more extreme men undertook a new plot against the king. The leading spirit in the enterprise was Robert Catesby, a gentleman of Warwickshire, whose father had suffered for his adhesion to the old faith. He planned to blow up the Parliament House at the opening of the session of Parliament when king, lords, and commons would be assembled. Hence his plot is known as the Gunpowder Plot. His followers

had to be ready to rise when the results of this awful crime would have thrown the government into confusion. They were to seize the children of the king and to assume control of the kingdom. The scheme was so utterly wicked and impracticable, that it is difficult to understand how any man could have conceived it or induced others to join in its execution. Unfortunately, however, Catesby secured the assistance of Thomas Winter, Guy Fawkes, an Englishman who had served in the Spanish army, John Wright, Thomas Percy, cousin of the Earl of Northumberland, Sir Everard Digby, and Francis Tresham. A mine was to be run under the House of Commons charged with gunpowder, which Fawkes undertook to explode. An adjoining house was secured, and the cellar stretching under the Parliament buildings was leased. Everything was arranged for the destruction of the king, lords and commons at the opening of Parliament fixed finally for the 5th November 1605, but Tresham, anxious to save his brother-in-law, Lord Monteagle, sent him a letter warning him to absent himself on the occasion. By means of this letter the plot was discovered, and Guy Fawkes was arrested. The other conspirators fled to Wales, where they hoped to stir up an insurrection, but at Holbeche where they halted they were surrounded by the forces of the sheriff of Worcester. In the struggle that ensued Catesby and several of his followers, who defended themselves with desperate courage, were killed, and the remainder were put to death before the end of the month (Nov. 1605).

Whether the plot had not its origin in the minds of some of the ministers, who in their desire for the wholesale destruction of Catholics had employed agents to spur on Catesby and his companions, or, at least had allowed them to continue their operations long after the designs had been reported it is difficult to determine; but immediately an outcry was raised that the plot had been organised by the Jesuits Garnet, Gerard, and Greenway, for whose arrest a proclamation was issued. Garnet had undoubtedly done much to persuade Catesby from having recourse to outrage or violence, and had never been consulted except in such a vague way that he could not possibly have suspected what was in contemplation. He had even secured from Rome a condemnation of violent measures, and had communicated this to Catesby. Greenway was consulted after the plot had been arranged, but apparently under the seal of confession with permission, however, to reveal it to none but Garnet, and according to Greenway's own statement he had done his best to persuade Catesby to abandon his design. Garnet was then consulted by his Jesuit companion, from whom he obtained permission to speak about the secret in case of grave necessity and after it had become public. When Garnet and Oldcorn had been arrested they were permitted to hold a conversation with spies placed in such a position that all they said could be overheard. Garnet, when informed of this, told his story plainly and frankly. He was condemned and put to death, as was also Father Oldcorn. There is no evidence to show that the Jesuits urged on the conspirators to commit such a crime. On the contrary, both from the statements of the conspirators and of the Jesuits, it is perfectly clear that the Jesuits had used every effort to persuade the plotters to abandon their design, and the worst that could be said of Garnet is that he failed to take the steps he should have taken when he found that his advice had fallen on deaf ears.[5]

Though Blackwell, the official head of the Catholic body in England, hastened to issue a letter urging his co-religionists to abstain from all attempts against the government (7th Nov. 1605), Parliament, without attempting to distinguish between the innocent and the guilty, determined to punish Catholics generally. Recusants who had conformed were commanded to receive the Sacrament at least once a year under penalty of a heavy fine. In place of the £20 per month levied off those Catholics who refused to attend Protestant service, the king was empowered to seize two-thirds of their estates. Catholics were forbidden to attend at court, to remain in London or within ten miles of London unless they practised some trade and had no residence elsewhere, or to move more than five miles from their homes unless they got the permission of two magistrates, confirmed by the bishop or deputy-lieutenant of the county. They could not practise as lawyers or doctors, hold any commissions in the army or navy, act as executors, guardians, or administrators, appoint to benefices or schools, or appear as suitors before the courts. Fines of £10 per month were to be paid by anyone who harboured a servant or visitor who did not attend the English service. In order to test the loyalty of his Majesty's subjects it was enacted that a bishop or two justices of the peace might summon any person who was suspected of recusancy, and require him to take a special oath of loyalty embodied in the Act. If any persons not of noble birth refused to take the oath they should be committed to prison till the next quarter sessions or assizes, and if in these assemblies they persisted in their refusal they incurred thereby the penalty of Praemunire.[6]

Both in its substance and particularly in its form the oath of allegiance was objectionable, and whether or not it was designed with the intention of dividing the Catholic body, it succeeded in producing that effect. Many Catholics thought that, as they were called upon to renounce merely the authority of the Pope to depose princes or to make war on them, they could take it as a sign of civil allegiance without abandoning their obedience to the Pope as their spiritual superior. Others thought differently, however, and as a consequence a violent controversy broke out which disturbed the England Catholics for close on a century. The archpriest Blackwell condemned the oath at first, but in a conference with the clergy held in July 1606 he declared in its favour. Acting on this opinion the lay peers and many of the clergy consented to take the oath. The other side appealed to Rome for a decision, and a brief was issued on the 22nd September 1606, by which the oath was condemned as unlawful. Blackwell neglected to publish the brief probably from motives of prudence, though other grounds were alleged, and in the following year a new condemnation was forwarded from Rome (Aug. 1607). Meanwhile Blackwell had taken the oath himself, and had published letters permitting Catholics to act similarly. As he was unwilling to recede from his position notwithstanding the appeals of Father Persons and Cardinal Bellarmine, he was deposed from his office and George Birkhead or Birket was appointed archpriest (1608). The controversy now became general. James I. entered the lists with a book entitled /Apologie for the Oath of Allegiance/, in which he sought to meet the reasons contained in the papal documents and in the letters of Father Persons and Cardinal Bellarmine. Both writers replied to the royal challenge, and soon hosts of others, both Catholic and Protestant hastened to take part in a wordy war, the only result of which was to disedify the faithful, to turn away waverers

from the Church, and to cause rejoicings to the enemies of the Catholic cause. Birkhead, who had been empowered to suspend all priests who did not show some signs of repentance for having taken the oath, acted with great moderation in the hope of avoiding a schism, but at last he was obliged to make use of the powers with which he was entrusted (1611).[7]

The old controversies between the Jesuits and a large section of the seminary priests were renewed both at home and on the Continent. The seculars objecting to the control exercised by the Jesuits in England, in regard to English affairs at Rome, and in the foreign colleges, continued to petition for the appointment of a bishop. Ugly disputes ensued and many things were done by both sides during the heat of the strife that could not be defended. The Holy See found it difficult to decide between the various plans put forward, but at last in 1623 Dr. Bishop was appointed Bishop of Calcedon /in partibus infidelium/, and entrusted with the government of the English mission. During these years of strife one important work, destined to have a great effect on the future of Catholicism in England, was accomplished, namely the re-establishment of the English congregation of the Benedictines. The Benedictine community had been re-established at Westminster in 1556 with the Abbot Feckenham as superior, but they were expelled three years later. Of the monks who had belonged to this community only one, Dom Buckley, was alive in 1607. Before his death he affiliated two English Benedictines belonging to an Italian house to the English congregation, and in 1619 the English Benedictines on the Continent were united with the English congregation by papal authority.[8] The houses of the English Benedictines on the Continent were situated at Douay (1605), at Dieulouard (1606), at Paris (1611), Saint-Malo (1611) and Lambspring in Germany (1643). The members bound themselves by oath to labour for the re-conversion of their country, and the list of Benedictine martyrs who died for the faith in England bears testimony to the fact that their oath was faithfully observed.

While these unfortunate controversies were weakening and disheartening the Catholics the penal laws were enforced with great severity. One martyr suffered in 1607, three in 1608, five in 1610, two in 1616, and five in 1618. Great numbers of priests were confined in prison or transported abroad. Laymen were ruined by imprisonment, and especially by the high fines required by the king to meet his own expenses. According to his own statement he received from the fines of Popish recusants a net income of £36,000 a year. Parliament and the Protestant party generally were anxious about the marriage of Prince Charles, the heir to the throne, and of the princess Elizabeth his sister. If they were married into Protestant families the religious difficulty, it was thought, might disappear; but, if, on the contrary, they were united to the royal houses of France or Spain the old battle might be renewed. Hence the marriage of Elizabeth to the Elector Frederick of the Palatinate, one of the foremost champions of Protestantism in Germany, gave great satisfaction at the time, though later on it led to serious trouble between the king and Parliament, when Elizabeth's husband was driven from his kingdom during the Thirty Years' War.

Regardless of the wishes of his Parliament the king was anxious to procure for Prince Charles the hand of the Infanta Maria, second daughter of Philip III. of Spain.

To prepare the way for such a step both in Spain and at Rome, where it might be necessary to sue for a dispensation, something must be done to render less odious the working of the penal laws. Once news began to leak out of the intended marriage with Spain and of the possibility of toleration for Catholics Parliament petitioned (1620) the king to break off friendly relations with Spain, to throw himself into the war in Germany on the side of his son-in-law, and to enforce strictly all the laws against recusants. But the king refused to accept the advice of his Parliament or to allow it to interfere in what, he considered, were his own private affairs. The marriage arrangements were pushed forward, and at the same time care was taken to inform the magistrates and judges that the laws against Catholics should be interpreted leniently. In a few weeks, it is said that about four thousand prisoners were set at liberty. The articles of marriage were arranged satisfactorily (1623), due provision being made for the religious freedom of the Infanta, and a guarantee being given that the religious persecution should cease, but for various reasons the marriage never took place. Parliament promised the king to provide the funds necessary for war if only he would end the negotiations for a Spanish alliance, and this time James much against his will followed the advice of his Parliament (1624). A new petition was presented for the strict enforcement of the penal laws against priests and recusants, to which petition the king was obliged to yield. But hardly had the negotiations with Spain ended than proposals were made to France for a marriage between the prince and Henrietta Maria, sister of Louis XIII., and once more it was necessary to be careful about offending Catholic feeling. By a secret article of the agreement with France James promised to grant even greater freedom to Catholics than had been promised them in his dealings with the Spanish court, and as a pledge of his good faith he released many prisoners who had been convicted on account of their religion, returned some of the fines that had been levied, and gave a hint to those charged with the administration of the law that the penal enactments should not be enforced. Application was made to Rome for a dispensation, which though granted, was to be delivered by the papal nuncio at Paris only on condition that James signed a more explicit statement of his future policy towards his Catholic subjects. Louis XIII., annoyed by the delays interposed by the Roman court, was not unwilling to proceed with the marriage without the dispensation, but for obvious reasons James refused to agree to such a course. Finally all difficulties were surmounted, though not before James had passed away leaving it to his son and successor to ratify the agreement. In May 1625, Charles was married by proxy to Henrietta Maria, and in the following month the new queen arrived in London.[9]

During the later years of the reign of James I. the foreign policy of the king rendered a relaxation of the penal code absolutely necessary. In the course of the marriage negotiations with France James I. had pledged himself by a secret agreement to adopt a policy of toleration, and on his death the agreement was ratified more than once by his son and successor Charles I. (1625-1649). But Charles, though personally well disposed towards the Catholics, was not a man to consider himself bound by any obligations if the fulfilment of them should involve him in serious difficulties. At the time of his accession public opinion in England as reflected by Parliament was intensely hostile to toleration. On the one hand the Puritan party,

who had grown considerably despite the repressive measures of Elizabeth and James I., was determined to bring the Church into line with Calvinism, while on the other hand a body of able and learned men within the Anglican Church itself longed for a closer approximation towards Catholic beliefs and practices. With both the Bible was still in a sense the sole rule of faith, but the Puritan party would have the Bible and nothing but the Bible, while the High Church men insisted that the Scriptures must be interpreted in the light of the traditional usages of the Christian world, and that in matters of doctrine and practices some jurisdiction must be conceded to the teaching authorities of the Church. The opponents of the latter stirred the people against them by raising the cry of Arminianism and Papistry, and by representing them as abettors of Rome and as hostile to the religious settlement that had been accomplished. As a result of this controversy, in which the king sided with Laud and the High Church party against the Presbyterians and Calvinists,[10] Parliament, which supported the Puritans, clamoured incessantly for the execution of the penal laws.

In the first Parliament, opened the day after Queen Henrietta's arrival in England (1625) a petition was presented to the king praying for the strict enforcement of the penal laws. Yielding to this petition Charles issued a proclamation ordering the bishops and officials to see that the laws were put into execution, but at the same time he took care to let it be known that the extraction of fines from the wealthy laymen and the imprisonment or transportation of priests would be more agreeable to him than the infliction of the death penalty. Louis XIII. and the Pope protested warmly against this breach of a solemn agreement. Charles replied that he had bound himself not to enforce the penal laws merely as a means of lulling the suspicions of Rome and of securing a dispensation for his marriage.[11] Still, though the queen's French household was dismissed, the king did everything he could to prevent the shedding of blood. The Parliamentarians, who were fighting for civil liberty for themselves, were annoyed that any measure of liberty should be conceded to their Catholic fellow-countrymen. They presented a petition to Charles at the very time they were safeguarding their own position by the Petition of Rights (1628) demanding that priests who returned to England should be put to death, and that the children of Catholic parents should be taken from their natural guardians and reared in the Protestant religion.[12] Charles defended his own policy of toleration on the ground that it was calculated to secure better treatment for Protestant minorities in other countries, yet at the same time he so far abandoned his policy of not shedding blood as to allow the death penalty to be inflicted on a Jesuit and a layman (1628).[13] So long however as he could secure money from the Catholics he was not particularly anxious about their religious opinions. Instead of the fines to which they had been accustomed, he compounded with them by agreeing not to enforce their presence at the Protestant service on condition that they paid an annual sum to be fixed by his commissioners according to the means of the individual recusants.

The appointment of a bishop to take charge of the English Mission (1623) did not unfortunately put an end to the regrettable controversies that divided the Catholic party. On the death of Dr. Bishop, Dr. Richard Smith was appointed to succeed him (1625), and was consecrated in France. For a time after his arrival affairs moved smoothly enough, but soon a more violent controversy broke out regarding the

respective rights and privileges of seculars and regulars, and the obligation on confessors of obtaining episcopal approbation. The dispute became public, and in a short time numerous pamphlets were published in England and in France by the literary champions of both parties. As the Puritans resented strongly the presence of a bishop in England, Dr. Smith was obliged to go into hiding, and ultimately made his escape to France, where he died in 1665. The Pope found it difficult to apportion the blame or to put an end to the strife, but an opportunity was afforded him of learning the facts of the case when an English agent deputed by the queen arrived in Rome (1633). In return Urban VIII. determined to send an envoy into England mainly to settle the controversy between the regulars and the seculars, but also to discover the real sentiments of the court and the country towards Rome. The person selected for this difficult work was Gregory Panzani,[14] an Oratorian, who arrived in England in 1634 and had several interviews with the king and queen. Whatever might have been the hopes of inducing Laud and some of the leading bishops to consider the question of returning to the Roman allegiance, the main object the king had in view in permitting the residence of a papal envoy in London and in sending English agents to Rome was to secure the help of Urban VIII. for his nephew of the Palatinate, and especially to induce the Pope to favour a marriage between this nephew and the daughter of the King of Poland. Very little was obtained on either side by these negotiations, nor did the papal agents in England succeed in composing the differences between the clergy.

In 1640 Laud published the canons framed by Convocation for the government of the English Church. With the object of clearing himself of the charge of Papistry he ordered a new persecution to be begun, but the king intervened to prevent the execution of this measure. At a time when Charles was receiving large sums of money by way of compensation for non-attendance at the Protestant services, and when he foresaw that in the conflict that was to come he could rely on the Catholic noblemen to stand loyally by him, he had no wish to exasperate the Catholics in England, or to outrage Catholic feeling in France and at Rome. In 1640, however, Parliament returned to the charge. The presence of papal agents in England, the payment of £10,000 by the Catholic noblemen to help the king in his expedition against the Scots, and the enrolment of a Catholic army in Ireland by Strafford, were urged as arguments to prove that the king's failure to carry out the laws against Catholics was due to causes other than had been alleged. Indeed both before and after the outbreak of the Civil War (1642) the king's cause was damaged badly by his secret alliance with Rome. As a matter of fact the Catholics did rally to the standard of the king, but the persecution to which they had been subjected wherever the Parliament had control made it impossible for them to act differently. During the years that elapsed between 1642 and 1651, twenty-one victims, including priests, both secular and regular, and laymen, were put to death for their religion.[15] When at last Parliament had triumphed a new persecution was begun. An Act was passed in 1650 offering for the apprehension of priests rewards similar to those paid for securing the arrest of highway robbers. Informers and spies were set at work, and as a result of their labours many priests were captured and confined in prison or transported. Yet, though the opponents of the king made it one of their main charges against him that

he refused to shed the blood of the clergy, they adopted a similar policy when they themselves were in power. During the whole Protectorate of Cromwell only one priest was put to death in England. But recourse was had to other methods for the extirpation of the Catholic religion, imprisonment, transportation, and above all heavy fines exacted off those Catholics who held property in the country.

From Charles II. (1660-1685) Catholics had some reason to expect an amelioration of their sad condition. They had fought loyally for his father and had suffered for their loyalty even more than the Protestant loyalists. In the hour of defeat they had shielded the life of the young prince, and had aided him in escaping from enemies who would have dealt with him as they had dealt with the king. Mindful of their services and of promises Charles had made in exile, and well aware that he had inherited from his mother, Queen Henrietta, a strong leaning towards the Catholic Church, they hoped to profit by the Declaration of Breda, which promised liberty of conscience to all his subjects. But Charles, though secretly in favour of the Catholics on account of their loyalty to his father and to himself, was not a man to endanger his throne for the sake of past services, more especially as his trusted minister, the Earl of Clarendon, was determined to suppress Dissenters no matter what creed they might profess. A number of Catholics, lay and cleric, met at Arundel House to prepare a petition to the House of Lords (1661) for the relaxation of the Penal Laws. The petition was received favourably, and as there was nobody in the House of Lords willing to defend the infliction of the death penalty on account of religion, it was thought that the laws whereby it was considered treason to be a priest or to shelter a priest might be abolished. But dissensions soon arose, even in the Catholic committee itself. The kind of oath of allegiance that might be taken, the extension of the proposed relaxations so as to include the Jesuits, and the anxiety of the laymen to get rid of the fines levied on rich recusants rather than of the penalties meted out to the clergy, led to the dissolution of the committee, and to the abandonment of their suggested measures of redress.[16]

Clarendon was determined to crush the Nonconformist party notwithstanding the promises that had been held out to them in the Declaration of Breda. He secured the enactment of a number of laws, the Act of Uniformity (1662), the Conventicle Act (1664) and the Five Mile Act (1665) known as the Clarendon Code, which, though directed principally against the Dissenters, helped to increase the hardships of the Catholic body. Once, indeed, in 1662-63, Charles made a feeble attempt to redeem his promise to both Catholics and Nonconformists by announcing his intention of applying to Parliament to allow him to exercise the dispensing power in regard to the Act of Uniformity and other such laws, but the opposition was so strong that the proposed declaration of indulgence was abandoned. The terrible fire that broke out in London (September 1666) and which raged for five days, destroying during that time a great part of the city, led to a new outburst of anti-Catholic feeling. Without the slightest evidence the fire was attributed to the Papists, and an inscription to this effect placed upon the monument erected to commemorate the conflagration remained unchanged until 1830. When Parliament met a committee was appointed to inquire into the increase of popery, and a demand was made that proclamations should be issued for the banishment of all priests and Jesuits.

On the fall of Clarendon (1667) the Cabal ministers succeeded to power. These were Clifford, who was a convinced Catholic, Arlington who if not a Catholic at this time had at least Catholic tendencies, Buckingham, Ashley, a man of no fixed religious opinions, and Lauderdale, a Scotch Presbyterian (1670).[17] The contest for the succession to the Spanish throne was at hand, and Louis XIV. was as anxious to secure the support of England as was Charles to escape from the Triple Alliance and the domination of Parliament. Besides, his brother James, Duke of York, and heir-presumptive to the English throne, had announced his adhesion to the Catholic Church, and his example produced such an effect upon the king's mind that he determined to imitate it if only France would promise support. It was resolved to conclude a secret treaty with France by which Charles should pledge himself to profess openly the Catholic religion and to assist Louis in his schemes against Holland and Belgium, provided that Louis would supply both money and men to suppress the disturbance to which the king's change of religion might give rise in England. The treaty was signed in May 1670, but as Charles was more anxious about the subsidies than about the change of religion, and as Louis XIV. preferred that the religious question should not be raised till the war against Holland had been completed, very little, if anything, was done, except to publish a Declaration of Indulgence (1672) in which Charles by virtue of his "supreme power in ecclesiastical matters" suspended "all manner of penal laws against whatsoever sort of Nonconformists and Recusants." By this document liberty of public worship was granted to Dissenters, while Catholics were allowed to meet for religious service only in private houses.

A strong Protestant feeling had been aroused in the country by the rumour of the conversion of the Duke of York, by the certainty that his first wife, the daughter of the Earl of Clarendon, had become a Catholic on her death-bed, and by the suspicion of some secret negotiations with France. When Parliament met (1673) a demand was made that the Declaration of Indulgence should be withdrawn. The Duke of York urged the king to stand firm in the defence of his prerogatives, but as neither Charles nor his ally Louis XIV. wished to precipitate a conflict with the Parliament at that particular period, the king yielded to the storm by revoking his original declaration. Immediately the Test Act was introduced and passed through both houses despite the warm opposition of the Duke of York and of Lord Clifford of Chudleigh. According to the terms of this measure it was enacted that all civil or military officials should be obliged to take the oath of supremacy and allegiance, to receive Communion according to the English service, and to make a declaration "that there is not any Transubstantiation in the sacrament of the Lord's Supper, or in the elements of bread and wine at or after the consecration thereof by any persons whatsoever." James, Duke of York, resigned his office of Lord High-Admiral and his example was followed by Clifford and most of the Catholic noblemen (1673).

From this time forward the Protestant party concentrated their efforts on securing the exclusion of the Duke of York from the English throne. Charles II. had married Catharine of Braganza, by whom there was no issue, and consequently his brother was the lawful heir. At the same time it was clear to everybody, that James was so firmly attached to the Catholic Church that neither the fear of losing the crown nor

the zealous efforts of Stillingfleet and other distinguished ecclesiastics were likely to bring about his re-conversion to Protestantism. The news, too, of his projected marriage with Mary the daughter of the Duke of Modena, opening as it did the prospect of a long line of Catholic rulers in England, was not calculated to allay the fears of the Protestants. After he had been dismissed from office the Earl of Shaftesbury set himself deliberately to fan the flames of religious bigotry, in the hope of securing the exclusion of the Duke of York from the throne. With this object in view it was proposed either that Charles should procure a divorce from Catharine of Braganza, so as to be free to marry some younger lady by whom an heir might be born, or else that with the consent of Parliament he should vest the succession in his illegitimate son, the Duke of Monmouth. Just then, when feeling was running high in England, a wretch named Titus Oates came forward with a story of a Popish Plot. Oates, formerly a preacher and minister of the Established Church, had feigned conversion to Catholicism, and had gained admission to the English colleges at Valladolid and St. Omer from which he was dismissed. Acting in conjunction with Israel Tonge he concocted the details of a plot, according to which the Pope and the Jesuits were to bring about the murder of the king and the overthrow of the Protestant religion. His story was so full of contradictions and absurdities that it is difficult to understand how it could have obtained credence among sane men, but in the state of opinion at the time, it was seized upon by Shaftesbury and others as the best means of stirring up a great anti-Catholic agitation that would bar the way to the accession of the Duke of York. The mysterious death of Sir Edmund Godfrey, a London magistrate to whom Oates had entrusted a copy of his depositions, and the discovery of some French correspondence amongst the documents of Father Coleman, the private secretary of the Duchess of York, helped to strengthen public belief in the existence of the plot. When Parliament met in 1678 both houses professed their belief in the existence of a "damnable and hellish plot," voted a salary to Oates, ordered all Catholics to leave London and Westminster, procured the arrest of a number of Catholic peers, and decreed the exclusion of Catholics from the House of Commons and the House of Lords by exacting a declaration against the Mass, Transubstantiation and the invocation of the Blessed Virgin (1678). It was only with the greatest difficulty that the king succeeded in securing an exemption in favour of the Duke of York. A number of priests and laymen were arrested, one of whom was put to death in 1678, eleven in 1679, two in 1680 and one, the Venerable Oliver Plunket, Archbishop of Armagh, the last victim put to death for religion upon English soil, in 1681. In addition to this eight priests were put to death during the agitation merely because they were priests.[18]

Three times the Exclusion Bill was introduced, but it failed to become law owing to the determination of Charles II. to uphold the rights of his brother. At last the storm of passion began to die away, and the absurd statements of Oates, even though supported by the testimonies of infamous hirelings like Bedloe and Dangerfield, were no longer accepted as trustworthy. Shaftsebury was obliged to make his escape from England; the Duke of York returned from exile to take up his residence at court, and for the remainder of the reign of Charles II. Catholics enjoyed a comparative calm. In February 1685 Charles II. became seriously ill, and died in a short time, after having

been reconciled to the Catholic Church by the ministrations of Father Hudleston, who had helped to save his life years before, and who had enjoyed the special protection of the king.

The accession of James II. (1685-88)[19] was welcomed by the vast majority of the English people, who had come to admire his honesty and courage, as well as to sympathise with him on account of the violent persecution to which he had been subjected by his unscrupulous adversaries. He had made no secret of his religion and of his desire to abolish the penal laws from which his co-religionists suffered, but at the same time he declared his intention of maintaining the Church of England as by law established. The Tory landowners and the cities were equally loyal to him, and the first Parliament he called was not unwilling to do everything to gratify his wishes, provided, however, he left religion untouched. When the Duke of Monmouth arrived in England to stir up a rebellion (1685) the country in the main rallied to the king, although the cry of "Protestantism in danger" had been utilised to stir up discontent.

The violent persecution that followed the rebellion, and above all the "bloody circuit" of Judge Jeffreys, whose conduct was unworthy of his judicial position, helped to dull the edge of the king's popularity. The selection of advisers like the unprincipled Earl of Sutherland, the position occupied at Court by Father Edmund Petre,[20] the public celebration of Mass at which the king assisted in state, and the opening of direct negotiations with Rome, were calculated to stir up strong Protestant opposition. During the rebellion the king had found it necessary to dispense with the Test Act in the appointment of officers, and to raise a well equipped standing army, and people began to be alarmed lest he should ally himself with Louis XIV., and by means of French subsidies attempt to make himself absolute ruler of England. Parliament met once more in November 1685. The king had set his heart on securing a modification of the Test Act, so as to be free to appoint Catholics to positions of trust, and had dismissed the Earl of Halifax from the council because he refused to agree to the proposal. But on the two questions, the maintenance of the Test Act and of a standing army, Parliament was unbending in its refusal to meet the wishes of James II., and was on this account prorogued (Nov. 1685).

Most of the prominent opponents were dismissed immediately from their offices. The fact that the late king had embraced the Catholic religion before his death was made known officially, and two papers, in which Charles II. explained the motives which induced him to take this step, were given to the public. The papal nuncio at London was received at court, and Lord Castlemaine was dispatched to Rome to act as the agent of James II. Dr. Leyburn arrived in England as vicar apostolic, to be followed by another in the person of Dr. Giffard, and a little later England was divided into four vicarates, over which were placed four vicars with full episcopal orders and jurisdiction. Several of the Protestant ministers, alarmed by these measures, opened a violent campaign against Popery, particularly in London where anti- Catholic feeling was easily aroused. The king appealed to the Bishop of London to moderate the fanaticism of his clergy, and as the bishop was unable or unwilling to comply with this request, the king established once more a king of High Commission Court, to be presided over by a number of bishops and laymen, with the avowed object of keeping

the clergy in subjection.

As Parliament had refused to abolish the Test Act James II. determined to make use of the dispensing powers which he claimed to have as king. To compensate for the absence of parliamentary confirmation, it was decided to secure the approval of the judges. For this purpose Sir Edward Hales, a recent convert to Catholicism, was brought into court for having accepted and retained a commission in the army without having made the necessary declarations. Hales pleaded as his excuse that he had received a dispensation from the king, and that consequently he was not obliged to comply with the terms of the Test Act. The plea was accepted by the judges and the case against the defendant was dismissed. As a result of this decision James II. felt free to confer civil and military offices on Catholics. Four Catholic peers, Lord Bellasis, Powys, Arundell of Wardour and Lord Dover, were sworn in members of the privy council (1687), and later on Father Petre, a Jesuit, took a seat at the council board. For the latter the king sought to obtain a bishopric and a cardinal's hat, but Innocent XI., who was not an admirer of the imprudent haste shown by James II. for the conversion of the English nation, nor of his alliance with Louis XIV., refused to grant either request. By virtue of royal dispensations a Catholic master and three fellows were appointed to some of the Oxford colleges.

The Tory party that had been so loyal to the king hitherto, took offence at the favour shown to the Catholic body, and as there could be no hope of winning their approval for the measures he had in contemplation, James II. determined to appeal to the Dissenters. The Earl of Rochester was dismissed from his office, and the Earl of Clarendon was recalled from Ireland. In April 1687 a Declaration of Indulgence was published, granting freedom of worship to Dissenters and Catholics, and abolishing all religious tests as necessary qualifications for office. For a time it seemed as if the king were likely to secure the support of the Nonconformists, particularly as measures were taken through the lords-lieutenant of the various counties to influence public opinion in their districts. But the hatred entertained by the Dissenters for Rome overcame their gratitude to the king for the liberty he had granted them, and they preferred to live in bondage rather than allow the Catholics to share with them the advantages of religious toleration. The appointment of several Catholic lords to the very highest offices of state, the public welcome given to the papal nuncio, and the attempt to force a Catholic president on the fellows of Magdalen College helped to increase the feeling of dissatisfaction. Dangerous riots broke out in London, and to prevent still more dangerous manifestations a force of 16,000 was concentrated on Hounslow Heath. In April 1688 a second Declaration of Indulgence was published. By a order in council, published some days later, the clergy were commanded to read this declaration on two consecutive Sundays in all their churches.

A petition was presented to the king by Archbishop Sancroft of Canterbury and six of his episcopal colleagues requesting him to withdraw this command to the clergy (18 May 1688). To make matters worse thousands of copies of the petition were printed immediately and circulated throughout the country. Annoyed by such opposition the king summoned the bishops before the council, and as they refused to give securities for their attendance at the trial, they were committed to prison. The

trial opened on the 29th June 1688, and ended with a verdict of acquittal to the great delight of the vast body of the English people.

So long as James II. had no heir many Protestants were inclined to keep silent on the ground that at his death the succession of a Protestant ruler was assured. But during the popular excitement following upon the arrest of the bishops the news spread rapidly that the queen had given birth to a son. Already negotiations had been opened up with William of Orange to induce him to take up the cause of Protestantism in England, but the fact that an heir was born to the throne gave a new impetus to the insurrectionary movement. The state of affairs on the Continent favoured the designs of William of Orange. Louis XIV. was at war with the Emperor and with the Pope, and as James II. was regarded as an ally of France no opposition might be expected from the imperial forces in case William determined to make a descent upon England. Had James II. taken the bold course of inviting Louis XIV. to assist him, the invasion of England from Holland would have been attended with much more serious difficulties, but till the last moment James affected to regard such an invasion as an impossibility. When at last he realised the gravity of the situation he was willing to make some concessions, but soon, finding himself deserted by a great many of the men on whom he had relied, by some of his own relatives, and even by his own daughter, he determined to make his escape from England (Dec. 1688).

During the weeks that preceded the withdrawal of James II. to France violent riots had taken place in London, where several of the Catholic chapels were attacked, and in many of the other leading cities. William III. was not personally in favour of a policy of religious persecution, particularly as he had promised his imperial ally to deal gently with his Catholic subjects. But the popular prejudice against them was so strong that a policy of toleration was almost an impossibility. The Catholics were excluded specially from enjoying the concessions made in favour of the Dissenters, and in the Bill of Rights (1689) it was provided that no member of the reigning family who was a Catholic or had married a Catholic could succeed to the throne, and that any sovereign of England who became a Catholic or married a Catholic thereby forfeited the crown. Catholics were prohibited from residing within ten miles of London; magistrates were empowered to administer the objectionable oath of allegiance to all suspected Papists; Catholics were forbidden to keep arms, ammunition, or a horse valued for more than ten pounds; they were debarred from practising as counsellors, barristers, or attorneys; if they refused to take the oath they were not allowed to vote at parliamentary elections; they were incapacitated from inheriting or purchasing land; and prohibited from sending their children abroad for education; while priests were to be punished with imprisonment for life for celebrating Mass, and spies who secured the conviction of priests were offered £100 as a reward.[21]

During the reign of Anne (1702-14) and during the early portion of the reign of George I. the persecution continued, especially after the unsuccessful rebellion of 1715 in which many Catholics were accused of taking part.[22] After 1722 the violence of the persecution began to abate, and Catholics began to open schools, and to draw together again their shattered forces. Fortunately at the time there was one

amongst them in the person of Richard Challoner, who was capable of infusing new life into the Catholic ranks and of winning for the Church the respect even of its bitterest opponents. Richard Challoner (1691-1781) was born in London, and was converted to Catholicism at the age of thirteen. He entered Douay College, in which he remained twenty-five years, first as a student and afterwards as a professor, and vice- president. He returned to London in 1730, and threw himself into the work of strengthening the faith of his co-religionists in all parts of the city. He went about disguised as a layman, visiting the poorest quarters, and celebrating Mass wherever he could find a place of security. Already he had published a book of meditations under the title /Think Well On't/ (1728), and a little later he found time to prepare for the press /The Christian Instructed in the Sacraments, etc/. In 1740, much against his own will, he was appointed coadjutor to Dr. Petre, vicar-apostolic of the London district. As coadjutor he undertook to make a visitation of the entire district as far as it was situated in England. But his work as bishop did not interfere with his literary activity. In quick succession he published /The Gardin of the Soul/, /The Memoirs of Missionary Priests/, containing the Lives of the English Martyrs (1577-1681), the /Britannia Sacra/, or a short account of the English, Scottish and Irish Saints, an edition of the New Testament (1749), of the old Testament (1750), together with a revised edition (1752).

Besides all this he founded two schools for boys, one at Standon Lordship, the other at Sedgley Park, and one for poor girls at Hammersmith. Though more than once he stood in the gravest danger of having his career cut short by the activity of the priest-hunters, he had the good fortune to survive the storm and to see the First Relief Act of 1778 placed upon the statute book.[23] ----------

[1] Frere, op. cit., 289-90.

[2] Dodd-Tierney, iv., app. no. iv.

[3] Id., iv., 10-13.

[4] /Statutes/, 1 James, c. 4.

[5] On the Gunpowder Plot, cf. Gerard, /What was the Gunpowder Plot/, 1897. Rev. J. H. Pollen, /Arrest and Examination of Father Garnet/; /Trial and Execution of Father Garnet/ (/The Month/, July 1888, Sept., 1888). /The Month/ (Oct., 1878, Sept.-Oct., 1897, Aug., 1898, Aug., 1904). Sidney, /A History of the Gunpowder Plot/, 1904.

[6] /Statutes 3/, 1 James, c. 4, 5.

[7] Many documents relating to this unfortunate controversy are to be found in Dodd-Tierney, op. cit., vol. iv. Appendix. /Memoirs of Gregorio Panzani/, edited by Berington, 1793.

[8] Guilday, op. cit., chap. vii.

[9] /Political Hist. of England/, vii., chap. v., vi.

[10] Hutton, /The Life of Laud/, 1895. Shaw, /The English Church during the Civil War and under the Commonwealth/, 2 vols., 1900. Neale, /History of the Puritans/, 4 vols., 1732-8.

[11] Lingard, vii., 157-9.

[12] Lingard, vii., 168.

[13] Burton-Pollen, op. cit., xxxvi.

[14] /The Memoirs of Gregorio Panzani/, 1634-36, etc. Transl. Ed. by Rev. J. Berington, 1793.

[15] Burton-Pollen, op. cit., xxxvi.

[16] /Memoirs of Panzani/, 308-11 (Supplement).

[17] /Political Hist. of England/, viii., 87.

[18] On the Titus Oates' Plot, cf. Gerard, /Some Episodes of the Oates' Plot/ (/Month/, Aug. 1894). Marks, /Further Light on the Oates' Plot/ (/Month/, Aug. 1903). Pollock, /The Popish Plot/, 1903. Markes, /Who killed Sir Edmund Godfrey?/ 1905.

[19] Onno Klopp, /Der Fall des Hauses Stuarts/, 1875-9.

[20] Cf. Foley, /Records of the English Jesuits/, v., vii., /The Month/ (1886-87).

[21] Cf. Lilly-Wallis, /Manual of the Law specially affecting Catholics/, 1893.

[22] Payne, /Records of the English Catholics of 1715/, 1889.

[23] Cf. Burton, /The Life and Times of Bishop Challone (1691-1781)/, 2 vols., 1909 (an excellent biography).

CHAPTER VI

THE REFORMATION IN SCOTLAND

Lang, /History of Scotland/, 1900-2. Bellesheim-Blair, /History of the Catholic Church in Scotland/, 1887 (tr. from the German, 2 Bde., 1883). Forbes-Leith, S.J., /Narratives of the Scottish Catholics/, 1885. Id., /Memoirs of Scottish Catholics during the Seventeenth and Eighteenth Centuries/, 2 vols., 1909. Walsh, /History of the Catholic Church in Scotland/, 1874. Grub, /An Ecclesiastical History of Scotland/, 4 vols., 1861. Dawson, /The Catholics of Scotland (1593-1852)/, 1890. Pollen, S.J., /Papal Negotiations with Mary Queen of Scots (1561-67)/, 1901. Lang, /Mystery of Mary Stuart/, 1901. /Catholic Tractates of the Sixteenth Century/ (edited by Law, 1901). Theiner, /Vetera Monumenta Hib. et Scotorum (1216-1547)/, 1864. /Works of John Knox/, (edited by Laing), 1855-64. Herkless, /Cardinal Beaton/, etc., 1891. Gordon, /Scoti-Chronicon/, 1867. Tytler, /History of Scotland/, 1879.

In Scotland a long succession of infant kings and weak regents helped to increase the power of the lords at the expense of the crown. The king or regent had no standing army at his disposal, nor were the resources of the royal treasury sufficient to allow the ruler to invoke the assistance of foreign mercenaries. As a result the king was dependent more or less on the lords, who were prepared to support him if their own demands were conceded, or to form private confederations or "bands" against

him if they felt that they themselves were aggrieved. Parliament, which included the spiritual and lay lords, together with representatives of the lower nobility and of the cities, did not play a very important part in the government of the country. For years Scotland had been the close ally of France and the enemy of England. Such an alliance was at once the best pledge for Scotland's independence, and the best guarantee against England's successful invasion of France.

To put an end to the controversies regarding the primatial rights claimed by the Archbishop of York over the Scottish Church, Clement III. issued a Bull in 1188 declaring the Church of Scotland subject directly only to the Apostolic See.[1] A further step was taken by Sixtus IV. in 1472, when St. Andrew's was erected into a metropolitan See, under which were placed as suffragans the twelve dioceses, Glasgow, Dunkeld, Aberdeen, Moray, Brechin, Dunblane, Ross, Caithness, Candida Casa, Argyll, the Isles, and Orkney.[2] This measure was resented by many of the bishops, but more especially by the Bishops of Glasgow, who were unwilling to submit to the jurisdiction of St. Andrew's even after it had been declared that the latter in virtue of its office enjoyed primatial and legatine powers over Scotland (1487). In the hope of putting an end to the controversy Glasgow was erected into a metropolitan See with four suffragan dioceses, Dunkeld, Dunblane, Galloway and Argyll (1492). The bishops of Scotland were supposed to be elected by the chapters, but in reality the king or regent enjoyed a decisive voice in the selection of candidates especially during the greater part of the fifteenth and sixteenth centuries.

As a result of this enslavement of the Church, men were appointed to bishoprics without reference to their fitness for this sacred office, and solely with the intention of providing themselves and their relatives with a decent income. Thus for example, James, Duke of Ross, brother of James IV., was appointed to the See of St. Andrew's at the age of twenty-one, and he was succeeded by Alexander Stuart, the illegitimate son of James IV., when he had reached only his ninth year. What is true of St. Andrew's is almost equally true of many of the other dioceses of Scotland, though it would be very wrong to assume that all the bishops of Scotland during the latter half of the fifteenth or the first half of the sixteenth centuries were unworthy men.

The religious orders of men were well represented by the Benedictines, Cistercians, Franciscans, Dominicans, Augustinians, etc., while in most of the large cities and towns flourishing convents had been founded. The state of discipline in these various institutions varied considerably according to circumstances, but although serious attempts were made to introduce reforms especially in the houses of the Cistercians, Franciscans, and Dominicans, it cannot be contended for a moment that the Scottish monasteries and convents were free from the gravest abuses. Possibly the erection of such a multitude of collegiate churches in Scotland during the fifteenth century was due to the sad condition of so many of the religious houses, but if it was, the remedy was almost as bad as the disease. In connexion with the monasteries, the chapters, and the collegiate churches, schools were carried on with a fair amount of success, sufficient at least to prepare students for the higher education given at the Universities of St. Andrew's founded by Benedict XIII. (1410), of Glasgow, founded by Nicholas V. (1451), and of Aberdeen established through the

exertions of the learned and holy Bishop Elphinstone with the approval of Alexander VI. (1495) and of James IV. Owing to the close connexion with France many of the Scottish ecclesiastics pursued their studies at Paris.

The Church in Scotland was comparatively wealthy at the beginning of the Reformation movement, though it should be remembered that out of its resources it was obliged to maintain the schools, hospitals, and institutes of charity. Still the wealth of the Church in Scotland instead of being a source of strength was in reality a source of weakness, and in the end it proved to be one of the main causes of its overthrow. It excited the cupidity of the hungry nobles, and made them anxious to share in the plunder of religious houses, particularly after the example had been set across the border by Henry VIII.'s attack on the English monasteries. But before any steps were taken to bring about the forcible seizure of the ecclesiastical property the rulers and lords of Scotland adopted other means of controlling the wealth of the Church and of the monasteries. Members of the royal family or sons of the nobles were introduced into the bishoprics irrespective of their merits, and were induced to enrich their relatives by bestowing on them portions of the diocesan property. Many others of a similar class were appointed as commendatory abbots of religious houses solely for the purpose of controlling the revenue of these establishments. In some cases those so appointed were only children, in nearly all cases they were laymen, and in no case did they do anything for the maintenance of discipline, for the cultivation of a good religious spirit, or for the promotion of the wishes of the founders and endowers of the monastic institutions. What was true of the monasteries was equally true of the convents, in many of which discipline was completely relaxed. Several attempts were made to bring about a reformation, but on account of the exemptions and special privileges claimed by the religious houses, such attempts were doomed to failure, whether they were made by the bishops or by the regular superiors. Nothing less than a papal visitation, in which the visitors could have relied upon the full power of the Church and State, would have sufficed to put an end to the evil, and unfortunately no such step was taken in time to avert the calamity.

As elsewhere, so too in Scotland, it was no uncommon thing to find one man holding several benefices to which the care of souls was attached, notwithstanding all the canons that had been passed against such a glaring abuse. The clergy, following the example of so many of their superiors, showed themselves entirely unworthy of their position. Many of them were quite negligent about preaching and instructing their flock, completely regardless of clerical celibacy, and oftentimes they devoted more attention to their farms and to their cattle than to their religious obligations. One has only to refer to the decrees of the diocesan synods held by Archbishop Forman of St. Andrew's (1515- 22),[3] to the national synods of 1549-1552, and to the letter of Cardinal Sermoneta to the Pope in 1557[4] to see how grievous were the abuses flourishing in all departments of the Church in Scotland at the time when the very existence of Catholicism in the kingdom was trembling in the balance. The root of all this evil was the destruction of the independence of the Church, and its complete subjugation to the crown and to the lords. As a result, when the crisis came and when most of the lords went over to the party of Knox, they found but little

resistance from their unworthy relatives, whom they had introduced into positions of trust, not that they might promote religion, but that they might live by it, and in the end betray it.

It was during the reign of James V. (1513-42) that the religious revolution began on the Continent and in England. Henry VIII. of England was his uncle, and he left no stone unturned to detach his nephew from his alliance with France and from his submission to Rome; but despite Henry's endeavours James V. refused to join in Henry's attacks on the Pope, or to listen to the proposals for a closer union with England. The Scottish Parliament held in 1525 forbade the introduction of Lutheran books into the kingdom or the preaching of Luther's doctrine, and a papal envoy was dispatched to the Scottish court to exhort the king to stand firm in the defence of the Church. The reply of James V. was reassuring. Soon however the new heresy began to make its appearance in the kingdom. Patrick Hamilton, commendatory abbot of Ferne and closely related to some of the most powerful families in Scotland, had come into contact with Luther and Melanchthon during his wanderings on the Continent, and on his return home he set himself to spread their teachings amongst his countrymen. He was arrested, tried for heresy, and handed over to the secular authorities who inflicted the death penalty (1528). His execution did not put an end to the movement in Scotland. In 1533 the Benedictine, Henry Forest, was condemned to death for heresy; in the following year a priest and a layman met a similar fate, and before the death of James V. several others including Dominicans and Franciscans, laymen and clerics, were either burned or obliged to seek safety in flight. James V. set himself resolutely to the task of suppressing heresy, and was supported by Parliament, which forbade all discussion on Luther's errors except in so far as it might be necessary for their refutation, and ordered all who had Lutheran writings in their possession to deliver them to the bishops within a period of fourteen days.

Political influences, however, favoured the spread of the new doctrine. It had been the dream of Henry VII., as it was also the dream of his son and successor, to strengthen England at the expense of France, by bringing about an alliance and if possible a union between England and Scotland. It was in furtherance of this design that Henry VII. had given his eldest daughter in marriage to James IV., who was slain with most of his nobles in a battle with the English on the fatal field of Flodden (1513). The schemes for a union with Scotland were continued by Henry VIII., particularly after his rupture with Rome had shown him the danger that might be anticipated from the north in case the French or the Emperor should declare war in defence of the Church. A regular contest began at the Scottish court between the friends of Rome and of France and the agents of Henry VIII., the latter of whom took care to encourage those who favoured religious innovations. The queen-mother, sister of Henry VIII., and many of the nobles favoured the plans of Henry, who sought to induce the King of Scotland to join him in the struggle against Rome, and who promised him in return for this service the hand of his daughter the Princess Mary and the friendship of the English nation. James V., backed by the bishops and encouraged by messengers from Rome, refused to come south for a conference with Henry VIII., or to give any countenance to the schismatical policy of his uncle. As a sign that Scotland was still true to France he married the daughter of Francis I. of

France (1537), and on her death shortly after her arrival in Scotland, he took as his second wife (1538) Mary of Guise, daughter of the Duke of Guise and sister of the Cardinal of Lorraine.[5]

He was ably assisted in his struggle against heresy and English interference by David Beaton, Archbishop of St. Andrew's (1539-46) and a cardinal of the Roman Church. The latter was at once a churchman and a politician, loyal to Rome and to France, earnest in his defence of Scottish independence, and determined to defeat the English schemes against both the religion and liberty of Scotland. As friendly remonstrances and invitations failed to produce any effect, Henry VIII. determined to have recourse to war. He felt that he could rely upon the assistance or the neutrality of many of the Scottish nobles whom he had won over to his side, and soon events showed that this confidence was not misplaced. The Scottish army was put to a shameful flight at Solway Moss, probably more by treachery than by the cowardice of the Scottish nobles, and James V. was so heartbroken by the news of this disaster that he died in a few weeks (Dec. 1542) leaving behind him an infant daughter, to be known later as Mary Queen of Scots.

After the death of James V. the Earl of Arran, who as one of the Hamiltons was next after the king's daughter the heir-presumptive to the throne, and who favoured the new religion and English influence, was appointed regent despite the resistance of Cardinal Beaton and of the clergy. Henry VIII. believed that the favourable moment had come for carrying out his plans. He hoped to be able to imprison his old enemy Cardinal Beaton, to seize the person of the young princess, to arrange for a marriage between her and his own son Prince Edward, and to make himself virtual sovereign of Scotland. To their shame be it said he induced a number of the Scottish nobles, the Douglasses, the Earls of Cassilis, Glencairn, Bothwell, and Angus, together with many others, to agree to his designs and to promise their assistance. Unmindful of their duty to Scotland they consented to sell both their country and their religion for English gold. The regent was only too willing to lend his aid, and before the end of January the English agents were able to announce to "their Sovereign Lord" that the cardinal was a prisoner. Everything seemed to favour the religious change and the plans of union with England. Parliament met in March 1543. It decreed liberty to all to read or to have in their possession a copy of the Bible in the English or the Scottish tongue, and appointed commissioners to treat with Henry for the marriage of Mary to his son. But popular opinion in Scotland supported strongly the religious and political policy of Cardinal Beaton. The clergy of the diocese of St. Andrew's refused to continue their ministrations until their archbishop was released. The people supported them in their demands, as did several of the nobles, and in the end, despite the protests of the English party, among the lords, the cardinal was set at liberty. The regent, the Earl of Arran, deserted his former friends, became reconciled with the Catholic Church, joined himself to the party of the cardinal and of the queen dowager, and welcomed the arrival of the French forces that had come to defend the kingdom against an English invasion.

The Scottish nobles in the pay of Henry VIII. were convinced, as was Henry VIII. himself, that so long as Cardinal Beaton was alive to guide affairs in Scotland no

advance could be made in the work of destroying both the religion and the independence of the kingdom. Several of the Scottish enemies of the cardinal entered into communication with Henry himself or with his agents. They offered to murder the cardinal if only Henry promised a sufficient reward, and Henry expressed his approval of the step that was in contemplation.[6] Meanwhile the cardinal was busy preparing schemes for a genuine reform of the Church to be submitted to a national synod called for January 1546, and in making a visitation of his diocese for the purpose of suppressing heresy. George Wishart, formerly a Greek master at Montrose, had returned from the Continent, and had begun to stir up religious dissension in several cities of Scotland. He was the close ally of the Scottish lords who were in the pay of Henry VIII., and he himself was the trusted messenger employed by Crichton, Lord of Brunston, to communicate to the English court the projected murder of Cardinal Beaton and the destruction of certain religious houses in Scotland.[7] The cardinal, who was probably aware of his plots as well as of his preachings, secured his arrest, and brought him to St. Andrew's, where he was tried and executed for heresy (1546). The news of the execution created considerable commotion especially in those centres where Wishart had preached, and gave new impetus to the movement for the assassination of the cardinal. In May 1546 some of the family of Leslie, who had grievances of their own to revenge, with a number of other accomplices secured an entrance to the palace of the Archbishop of St. Andrew's, put his servants and attendants to flight, and murdered him before any help could be summoned. The murder of Cardinal Beaton was an irreparable misfortune for the Catholic Church in Scotland. He was at once an able churchman and a patriot, determined to maintain the independence of his country against the group of pro-English traitors, who were determined to change the religion of Scotland at the bidding of Scotland's greatest enemy. John Knox, a fanatical priest, who had gone over to the new religion, welcomed the murder of the cardinal as a veritable triumph for the gospel and as a "godly act." He hastened to join the murderers who had taken possession of the castle of St. Andrew's, and to whom he preached as the first reformed congregation in Scotland.[8] Henry VIII., no less jubilant for the disappearance of his strongest opponent, was not slow to assist the murderers.

But the assassination of the cardinal did not mean the triumph of the English party. It served only to embitter the feelings of the vast majority of the people, and to force the regent and queen-dowager to throw themselves more unreservedly into the arms of France. A French fleet arrived at Leith and forced the murderers assembled in the castle of St. Andrew's to surrender. Those of them who were not fortunate enough to make their escape were taken prisoners and condemned to the French galleys. An English army led by the Duke of Somerset marched into Scotland to enforce the English demands, and especially to secure the person of the infant queen. But though it inflicted considerable havoc on Scotland, particularly on several of the religious houses, and though it overthrew the forces of the regent in the battle of Pinkie (1547), it was obliged to re-cross the borders without having secured the submission of the nation. In the following year (1548) a new French force arrived in England to assist the Scotch in their struggle against England. A Scottish Parliament

renewed the alliance with France, approved of the betrothal of the young queen to the Dauphin of France, and determined to provide for the safety of her person by sending her into France. After several fruitless attempts made by the English to secure a foothold in Scotland they were obliged to give up the contest in despair, and to conclude a nine years' peace. For so far the alliance between Catholicism and independence had won the victory against heresy and English influence (1550).

The murder of Cardinal Beaton helped to force the bishops and clergy to realise the danger of their position. They urged the regent to take stern measures in defence of the church, and what was of much more importance they attempted to set their own house in order as the best preparation for the conflict. John Hamilton, brother of the regent, was appointed Archbishop of St. Andrew's in succession to Cardinal Beaton (1547). He assembled a national synod at Edinburgh (1549) which was attended by the bishops, abbots, and representatives of the chapters, religious houses, and collegiate churches.[9] Though the presence of men like Lord James Stuart, the illegitimate son of James V., as commendatory prior of St. Andrew's was not calculated to inspire confidence in the decrees of the assembly, a very wholesome scheme of reform was carried through, which, had it been enforced, might have gone far to save Catholicism in Scotland. Severe laws were passed against concubinage of the clergy, their neglect of their primary duties of preaching and instructing their flocks, and against the alienation of ecclesiastical property. Measures were taken to ensure that priests should explain the principal points of Catholic doctrine and the Scriptures regularly in their principal churches. Another synod held in 1552 continued the work of reform. Its references to the question of marriage and to the non-attendance of the people at their religious duties seem to indicate that religion was not then in a flourishing condition. The synods ordered the publication of a catechism, and enjoined all priests who had care of souls to explain a portion of it every Sunday before the principal Mass. In accordance with this decree an excellent catechism[10] containing a very full exposition of Catholic doctrine was published. Had it come earlier, or had the clergy even then been able and willing to explain it to their people, Knox and his companions might have found themselves confronted with a much more difficult task.

Mary of Guise had shown great abilities during the contest with Henry VIII. and the Protector. Though the Earl of Arran was nominally regent it was she who guided his counsels and inspired his policy. The French government, distrustful of the regent who was also the next claimant for the Scottish throne, induced him to resign his office, for which he received in return the empty title of Duke of Châtelherault, and Mary of Guise undertook the government of Scotland for her infant daughter. About the ability of the new regent or her devotion to the Catholic Church there could be no difference of opinion, but unfortunately she was more anxious to strengthen the French hold upon Scotland than to take the necessary measures for the peace of the kingdom and the suppression of heresy. She filled her fortresses with French subjects, showing thereby that in her opinion Scotchmen could not be trusted. As a result she gave great offence to the native lords, aroused Scottish patriotism against France as it had been aroused against England by the aggressive policy of Henry VIII., and prepared the way for the dissolution of the alliance between patriotism and

Catholicism, an alliance that had hitherto been the main barrier against the success of the reforming English party.

The Scots began to fear that with their young queen united in marriage to the King of France Scotland stood in danger of becoming a French province, and though the Scottish Parliament took care to safeguard the independence of the country in the marriage settlement drawn up in 1558, the leading men had grave suspicions that the agreement would have little effect. Besides, Mary of Guise had no longer anything to fear from English Protestantism, which was rendered powerless after the accession of Queen Mary. England was now united to Spain, the mortal enemy of France, and French political interests would best be served by maintaining an attitude of friendly neutrality towards English Protestants, who were likely to prove more dangerous to Spanish designs than to France. Such a policy of neutrality might result, too, it was thought, in securing the throne of England for the young Scottish queen, whose claims as the nearest legitimate heir could not be questioned. For these reasons the regent was not unwilling to allow Protestant refugees to take up their residence in Scotland, and to permit the followers of the new religion to continue their campaign so long as they did not disturb the public peace. In her correspondence with the Pope she paid little attention to the religious danger that was threatening the kingdom, and seemed to be more anxious to obtain permission to tax the clergy than to secure an energetic reform of the abuses that she painted in such dark colours.[11] The Scottish lords, many of whom were offended by the preponderance of French soldiers and French officials, were only too willing to assist the new preachers, and what was worse, to stir up their clansmen against the old religion by holding up the bishops and clergy as the friends of France and the enemies of Scottish independence. National patriotism was now utilised to help forward the cause of Protestantism, by the very men who a few years before had agreed to betray their country for English gold, and had striven with all their might to make Henry VIII. the protector of Scotland.

Some Protestant refugees from England were soon at work in different centres of the country, and encouraged by the regent's policy of neutrality, the man, who was destined to be the apostle of the Reformation, returned to his native land (1555). John Knox,[12] who had shown his devotion to the Gospel by applauding the murder of Cardinal Beaton as a "godly act," and who had founded the first reformed congregation among the murderers gathered in the castle of St. Andrew's, having been released from the French galleys, became a pensioner of Edward VI., and took up his residence in some of the northern towns of England. In a short time he was appointed royal chaplain, and might have had the Bishopric of Rochester had he not expressed the view that such an office was incompatible with devotion to the true evangelical religion. On the accession of Queen Mary he fled from England to Geneva, from which he returned to Scotland in 1555. His violent and overbearing manner, his extravagant denunciations of his opponents, his misrepresentations of their actions and policy, and his readiness both as a speaker and as a writer, qualified him perfectly for the leadership of a revolutionary party, were it not that at certain critical moments his anxiety to avoid personal danger was calculated to shake the confidence of his followers. He was welcomed by many of the discontented nobles, amongst others by Lord Erskine afterwards Earl of Mar, Lord Lorne and his father

the Earl of Argyll, Maitland Lord of Lethington, the Earl of Glencairn, and Lord James Stuart prior of St. Andrew's, who as Earl of Moray was soon to betray his sister, Mary Queen of Scots.

Encouraged by the protection of such powerful patrons he preached freely and with great success in several districts of Scotland. The clansmen were so united to their lords that they were prepared to follow their example even in matters of religion. The bishops and the regent, to whom these proceedings must have been known, were strangely oblivious to their duties, and when at last they mustered up sufficient courage to summon Knox to appear at Edinburgh (1556), they were so alarmed by the strength of his following that they abandoned the trial. Knox, encouraged by their cowardice, preached openly in the capital, and even went so far as to address a letter to the regent calling upon her to open her mind for the reception of the truth.[13] By this public challenge, however, he overshot the mark, and not being gifted with any particular desire to suffer martyrdom for the faith, he left Scotland suddenly and retired to the Continent (1556). For years he was the leading spirit in many of the fierce and unseemly disputes between the English Protestant exiles in Geneva and Frankfurt. Although summoned more than once by his followers to return, he contented himself with sending them written exhortations to stand firm in the faith, or by publishing violent pamphlets such as /The First Blast of the Trumpet against the Monstrous Regiment of Women/, in which he undertook to prove that the rule of women is repugnant to nature, contrary to God's ordinances, and subversive of good order, equity, and justice. Though this document was aimed principally against Catharine de' Medici, Queen Mary of England, and Mary of Guise regent of Scotland, it rankled in the mind of Queen Elizabeth after her accession, and did not serve to raise the apostle of Scotland in her estimation.

The Protestant lords, undeterred by the absence of Knox, decided to go forward with their programme. In December 1557 the Earl of Argyll, his son Lord Lorne, Glencairn, Morton, Erskine of Dun, and others, met at Edinburgh and signed a bond or covenant, by which they bound themselves solemnly to establish the "Blessed Word of God," to encourage preachers, to defend the new doctrines even with their lives, and to maintain the Congregation of Christ in opposition to the Congregation of Satan. They pledged themselves to introduce the Book of Common Prayer, to insist on the reading of portions of the Scriptures in the vulgar tongue on Sundays and holidays, and to appoint preachers wherever the Catholic clergy were unable or unwilling to undertake this work.[14] In many districts, where the lords of the Congregation held sway, measures were taken at once to enforce these resolutions. Confronted with this revolutionary step, the regent and the bishops should have had recourse to strong action, but the former was so interested in the approaching marriage of her daughter to the Dauphin of France (1558) that she did not wish to offend the lords, while the primate, as one of the Hamiltons, disliked the regent because she had supplanted his brother, and contented himself with gentle admonitions. The lords, confident in their strength, met in November 1558, and presented a petition to the regent, in which they demanded that the members of the Congregation should be allowed to meet in the churches, and to follow their own ritual in the vulgar tongue, that Communion should be administered under both

kinds, that private individuals should be at liberty to explain difficult passages of the Sacred Scriptures, and that the clergy should be reformed. The regent after consultation with the primate consented to these requests, at least in regard to private religious assemblies, but refused to yield to another petition demanding the abolition of all laws against heresy.[15]

The religious controversies became more and more embittered during the year 1559. The lords of the Congregation denounced the abuses of the clergy, demanded permission to use the vulgar tongue in all public religious services as well as in the administration of the sacraments, and insisted on the admission of the lower nobles and of the people to a voice in the appointment of bishops and of pastors. To put an end to the abuses that were proving such a useful weapon in the hands of the adversaries of the Church, and at the same time to give public and formal expression to the faith of the Scottish nation, a national synod[16] met at Edinburgh (April 1559). It denounced once again the awful scandal of concubinage among the clergy, laid down useful regulations regarding preaching and the appointment of bishops, condemned plurality of benefices, nonresidence, and demands on the part of the clergy for excessive fees. To raise the standard of education among the clergy it ordained that those presented to benefices should be examined, and that each monastery should maintain some of its members at the universities. In its profession of faith the synod emphasised the Real Presence of Christ in the Eucharist, Transubstantiation, the propitiatory character of the sacrifice of the Mass, the sufficiency of Communion in one kind, the existence of a real priesthood, and purgatory, prayers for the dead, invocation of the saints, fasting, and holidays. In response to the demands of the Congregation the synod pointed out that it had not the power to change the rites and ceremonies that had been handed down for centuries, that as the Church was the definitely appointed guardian and interpreter of the Scriptures private individuals were not permitted to expound them at their will, and that in the appointment of bishops and pastors the rules laid down in canon law were quite sufficient to prevent abuses if only they were followed.

About the same time Quintin Kennedy, Benedictine Abbot of Crossraguel, conferred an immense service on religion by his written apology[17] for the Catholic Church. Starting with the Bible and its relation to ecclesiastical authority, he undertook to show that from the very nature of the case such a book required the presence of a divinely appointed official interpreter, that the reading of the Scriptures was not necessary for salvation though in many cases it might be useful, and that the authority of the Church should not be overthrown even though the existence of scandals among churchmen could not be denied. Turning to his adversaries, he demanded what was the source of all the abuses and scandals which they charged against the Church? Was it not, he asked, the unwarrantable interference of the nobles in the nominations to ecclesiastical benefices, an interference that was responsible for having even children who were too young to hold an apple in their hands appointed to the charge of populous parishes, in order that the relatives of these children might grow rich on the revenues, and was it not the very men who were guilty of such conduct who were loudest in their denunciation of the Church? On the nobles he laid the blame for oppressing the Church, for

introducing unworthy ecclesiastics into offices of trust, for depriving the poor of instruction and education, and for promoting thereby heresy and revolution.

As the year (1559) advanced the state of affairs in Scotland became daily more alarming. Preachers were everywhere at work under the protection of the lords. The regent and the French authorities, who had shown a fatal apathy in their dealings with Scottish heretics, began to wake up to the political danger involved in such a movement. A French agent, M. Béthencourt,[18] arrived in Scotland in April 1559, and, whether it was due to his advice or not, the regent forbade the preachers to continue their disturbances. On their refusal to submit she summoned them to appear at Stirling for trial (10th May). Encouraged by the return of Knox who had landed at Leith early in the same month, and by the armed forces placed at their disposal by some of their principal patrons, they refused to attend and were outlawed. A number of the reforming lords immediately took possession of Perth, and destroyed several Catholic churches in the city. When news of this rising reached the regent she assembled her forces and marched against Perth, but as neither side was anxious for civil war at the time, a truce was agreed upon, and the forces of the regent were allowed to occupy the town. From Perth the reforming lords retreated to St. Andrew's, where they burned and destroyed the altars, pictures, statues, and even the sacred vessels used for religious worship. The abbey church of Scone, in which a long line of Scottish kings had been crowned, was destroyed; Perth and Stirling were seized, and before the end of June 1559 Edinburgh was in the hands of the lords of the Congregation. The regent issued an appeal in the name of the king and queen of Scotland calling upon all loyal subjects to defend the government against the revolutionary Congregation, but her unfortunate preference for French soldiers and officials gave the Protestant lords the advantage of enabling them to pose as patriots engaged in the defence of their country against foreigners. They were forced, however, to capitulate and to surrender Edinburgh to the regent (26th July).

Early in this same month (1559) Henry II. of France died, and was succeeded by Francis II., the husband of Mary Queen of Scots. Elizabeth and her advisers were alarmed at the prospect that opened before them. Mary Queen of Scots, as the nearest legitimate heir to the English throne, was a dangerous neighbour, especially at a time when England was thrown into confusion by a new religious revolution, and when English Catholics might rally to her standard with the blessing of the Pope and of the Kings of France and Spain. Even though the Queen of Scotland did not resort to extremes, the very existence of a Catholic kingdom in Scotland, united by bonds of friendship and interest to France, constituted a grave danger for England; whereas if Scotland could be induced to accept the Protestant religion and to throw in its lot with its southern neighbour, the enemies of England on the Continent might rage in vain. The rebellion of the lords of the Congregation was, therefore, very welcome to Elizabeth and to Cecil. It gave them an opportunity of interfering in Scottish affairs, not, indeed, in the untactful manner in which Henry VIII. had interfered, but as the apparent defenders of Scottish independence against a French protectorate. On this occasion Scottish patriotism was to be made subservient to English political aims and at the same time to Protestant interests.

The lords of the Congregation, realising that without assistance they could never hope to overcome the regent, turned to England for support. Their petitions were welcomed by Cecil and the leading counsellors of Elizabeth, but the queen herself distrusted Knox, and disliked allying herself with open rebels. To give the movement an appearance of constitutionalism the young Earl of Arran, who had been brought to France and who had secretly embraced Calvinism, was induced to make his escape into England. As a near claimant to the Scottish throne he was welcomed at the English court, and was led to believe that if he acted prudently he might become the husband of Elizabeth, and the king of a united England and Scotland. He was dispatched into Scotland, where he succeeded in detaching his father, the Duke of Châtelherault, and several other nobles from the side of the regent. Relying on the protection of England, from which a plentiful supply of money was dispatched to the rebels, and on the new accessions to their ranks, the lords of the Congregation announced the suspension of the regent from her office (Oct. 1559) though they hesitated to take the further step of proclaiming the Earl of Arran or Lord James Stuart sovereign of Scotland. The regent replied to this act of rebellion by marching on Edinburgh, forcing the rebels to retreat to Stirling (Nov.), while the Earl of Bothwell seized large sums of money that were being forwarded to the rebel camp from England. The English advisers began to realise that money and secret assistance were not enough to secure the triumph of the Congregation in Scotland, and that the time had come when more decisive measures must be taken.

In December 1559 and January 1560, an armed force was dispatched to the north, and Admiral Winter was commanded to blockade the Forth against a French fleet. A little later a formal agreement was concluded between the Duke of Norfolk representing Elizabeth, and Lord James Stuart the commissioner for the Congregation. At first it was proposed to act in common for "the maintenance of the Christian religion," but as these words might have given rise to serious complications on the Continent, it was decided that an alliance should be concluded for the defence of the ancient rights and liberties of Scotland. An English army of eight thousand men marched into Scotland, and the English fleet blockaded the fortress of Leith which was the key to the capital. Owing to the Huguenot risings in France the assistance that had been promised could not be sent, but nevertheless the invaders were thrown back in their first assault. In June 1560, however, Mary of Guise, worn out by the anxieties and cares of her difficult office, passed away, and three weeks later the garrison was obliged to surrender. English and French plenipotentiaries met to arrange the terms of peace. It was agreed that the French soldiers, with the exception of about one hundred and twenty men, should be drafted from Scotland, that no foreigners should be promoted to any office in the kingdom, that until the arrival of the king and queen the country should be governed by a council of twelve, seven of whom were to be selected by Mary and Francis and five by the Parliament, that the entire question of religion should be submitted to a Scottish Parliament convoked to meet on the 1st August (1560), and that, in the meantime, a kind of religious truce should be observed by both sides. It was agreed, furthermore, that the spiritual peers should hold their seats in Parliament as before, and that they should not be disturbed in their ecclesiastical possessions.

The successful invasion of Scotland by the English troops had turned the scales in favour of the lords of the Congregation. They were now masters in Scotland, but, had the bishops and clergy been zealous men worthy of their sacred office, the cause of the old Church in Scotland would not have been even then hopeless. While Knox and his friends were straining every nerve to consolidate their work by the appointment of preachers and superintendents for the rising congregation, many of the Catholic bishops and abbots, several of whom were allied by blood and friendship with the lay lords, either contented themselves with doing nothing, or went over to the enemies of the Church for the sake of securing for themselves and their descendants the ecclesiastical property that they administered. The Archbishop of St. Andrew's and Primate of Scotland was the brother of the Earl of Arran. Though a convinced Catholic himself, he was not the man either to make a struggle or to inspire confidence at such a crisis. Archbishop Beaton of Glasgow had fled already from the kingdom; the Bishop of Argyll, another illegitimate scion of the house of Hamilton, was a Protestant or was soon to become one; Adam Bothwell,[19] whom the Pope had appointed the previous year to the See of Orkney on the petition of the king and queen of Scotland, could not be trusted, as his subsequent conduct showed; Alexander Gordon, who claimed to be Bishop of Galloway, though he was never consecrated, had gone over openly to the enemies of the Church, as had also the provincial of the Dominicans, the sub-prior of the chapter of St. Andrew's, and John Rowe a former agent of the Scottish bishops at the Roman Court. With men such as these to guard the interests of Catholicism in Scotland there could be little doubt about the result.

In August 1560 the Parliament met at Edinburgh. In addition to the lay lords and representatives of the lesser nobles and of the cities, there were present a number of bishops and abbots. Amongst these latter it is interesting and instructive to note the presence of Lord James Stuart, the bastard brother of the queen and one of the leaders of the Congregation, as prior of St. Andrew's, of Lord James Hamilton son of the Earl of Arran and a follower of Knox as abbot of Arbroath, of John Stuart abbot of Coldingham, of the son of the Duke of Argyll as bishop-elect of Brechin, together with a number of other laymen, who, though holding high office in the Church, were determined to promote the new movement for the sake of the property that they hoped to obtain. The discussion opened under the presidency of Maitland, Lord of Lethington, the Scottish Cecil, a double dealer who was even more dangerous than an open enemy. A petition was presented immediately on the part of Knox and his friends that doctrines such as Transubstantiation, the sacrificial character of the Mass, Purgatory, prayers for the dead, meritorious works, etc., which had been forced upon the people by the clergy should be rejected. A confession of faith was drafted and submitted to the assembly. The Primate and the Catholic bishops present protested against the discussion of such a document on the ground that according to the terms of the Treaty of 1560 the religious question should have been submitted previously to the king and queen, and also because the treaty had never been confirmed owing to the fact that the French commissioners had exceeded their instructions. It was no doubt for this reason that a large number of the ecclesiastical and lay lords who were strongly Catholic had refused to attend the Parliament.

Indeed the supporters of the old religion, relying on the help of the queen, seemed to think that any religious settlement made by Parliament was of no importance. Their refusal to discuss the confession of faith was taken, however, as a sign of their inability to refute it, and the confession was passed with but few dissentients. Later on (24th August) three other acts were formulated with the object of uprooting Catholicism in Scotland. The jurisdiction of the Pope was abolished, and the bishops were forbidden to act under his instructions; all previous Acts of Parliament contrary to God's word or to the confession of faith as now approved were declared null and void; and all persons were forbidden to celebrate or to hear Mass under pain of confiscation of their goods for the first offence, banishment for the second, and death for the third.[20]

/The Book of Discipline/ which contained an exposition of the ecclesiastical policy of the Scottish Reformers was compiled by Knox and his companions. It dealt with the preaching of the Scriptures, the two sacraments Baptism and the Eucharist, the suppression of religious houses of all kinds, the election and appointment of ministers, elders and deacons, and with the means to be provided for their support and for the maintenance of education. Though the separate congregations were left more or less free regarding the kind of religious service that should be followed, the Book of Common Prayer formerly accepted in Scotland was abolished to make way for the Calvinistic Book of Common Order. In the general assemblies of the reformed Church (December 1560-May 1561) decrees were issued for the destruction of the religious houses and of all signs of idolatry, and individuals were appointed to see that these decrees were put into immediate execution.[21]

Both parties in Scotland turned instinctively to their queen. Mary had been married in 1558, and in 1559 her husband succeeded to the throne of France under the title of Francis II. A minister was dispatched to inform her of the proceedings in Parliament, but she refused to confirm the terms of the treaty with England, or to sanction the changes that had been decreed. The death of her husband Francis II. (1560) threw her into great grief and forced her to consider the question of returning at once to her kingdom. She believed that many of those who opposed her previously, lest Scotland should become a French province, might now abandon their league with Elizabeth, and welcome home their own lawful sovereign. Nor was there anything at this time to indicate that Mary had any intention of playing the part of a champion of Catholicism,[22] or of running the risk of forfeiting her throne in Scotland or her claims to the English crown by undertaking a campaign against the new religion. Her years of residence at the French court, where religious interests were only too often sacrificed to political designs, could not fail to have produced their natural effect. In February 1561 she sent commissioners to assure the lords of her forgiveness for what they had done, and to empower the Duke of Châtelherault and others to convoke a Parliament in her name. At a meeting of the nobles held in January 1561 her natural brother, Lord James Stuart, was deputed by the lords to offer Mary their allegiance, while the Catholic party including the Earls of Huntly, Atholl, Crawford, Sutherland, and some bishops, dispatched a messenger to warn her against the Congregation, and to place at her disposal a strong force in case she decided to land in the north. But Mary, distrusting the motives of Huntly and his friends, treated their offers of

assistance with neglect, and welcomed as her saviour and friend the man who even then was not unwilling to act as a spy on his sister and his queen at the bidding of Elizabeth. Mary's selection of him as her trusted adviser boded ill for the future of her reign.

At last with a heavy heart Mary determined to leave the country of her adoption. As she was unwilling to confirm the treaty with England in its entirety and to renounce her claims to the English throne, Elizabeth refused to grant passports through England, but under the shelter of a thick mist Mary succeeded in eluding all danger of capture and landed safely at Leith (Aug. 1561). From the people generally she received an enthusiastic welcome, but, when on the following Sunday she insisted that Mass should be celebrated in the private chapel of Holyrood, it required all the efforts of her brother to prevent a riot. Knox and his brethren denounced such idolatrous conduct as intolerable, and bewailed the misfortunes that God must inevitably pour out upon the country in punishment for so grievous a crime. A few days later Mary issued a proclamation announcing that no change would be made in the religious settlement without the consent of Parliament, but that in the meantime no attempt should be made to interfere with her household. A new privy council was appointed, in which the two principal members were Lord James Stuart and Maitland, Lord of Lethington, both equally untrustworthy. None of the Catholic bishops was offered a seat at the council board, and the Catholic lords were represented only by the Earls of Huntly and Argyll. A general assembly of the Reformers was held at Edinburgh (1561), which succeeded in securing a share of the ecclesiastical endowments, and another in 1562, which appointed John Craig as the assistant of Knox in Edinburgh. For so far Mary could do little for her co-religionists in Scotland, nor indeed does it appear that any serious effort was made in that direction. Still her own example was not without its effect. Several of the waverers especially in Edinburgh seem to have returned to the Church. Pius IV., who was anxious to learn the true state of affairs, commissioned the Jesuit Nicholas de Gouda (Goudanus) to visit Scotland for the purpose of encouraging the queen and of inviting the bishops to assist at the Council of Trent. He arrived in Scotland (June 1561). After waiting six weeks in the house of a Catholic nobleman he secured a secret interview with the queen at Holyrood. With most of the bishops he was not even so successful. Though he reported that they were for the greater part Catholics and men of good intentions, some of them like Sinclair of Ross refused to see him, from others he got no reply to his letters, and it was only with the greatest difficulty he contrived to have a short conversation with Bishop Crichton at Dunkeld.[23] There is no doubt that the bishops were surrounded by powerful and watchful enemies, but it seems strange that they should have effaced themselves so completely, at a time when Knox and his opponents by means of general assemblies and other such bodies were impressing the country with their strength and activity. Even though the bishops were silent the old religion was not without some able and energetic defenders in the person of Leslie, soon to be the Bishop of Ross, Quintin Kennedy whose services have been referred to already, and Ninian Winzet, who caused Knox considerable embarrassment by his tracts, letters, and public disputations.

In his report Father de Gouda alluded to the imminent peril in which the queen stood owing to her complete reliance on her unworthy ministers. Her brother Lord James Stuart, and Maitland, both hostile to the Catholic religion, were her principal advisers. Although the Earl of Huntly had not played a very noble part in the disputes between the regent and the Congregation, he was the recognised head of the Catholic party. He had offered his services to the queen while she was still in France, but at the instigation of her brother she had refused to accept them. After her return to Scotland Huntly found that he was treated with coldness, and the earldom of Moray that belonged to his family was taken from him and conferred on his old rival, Lord James Stuart. During the queen's journey to the north (August 1562) she refused to visit Huntly. A dispute having broken out regarding the execution of one of his followers, who was unwilling to open the gates of a Gordon castle to the queen, Huntly took up arms. He was overthrown and slain at Corrichie by the Earl of Moray (1562). In a Parliament held in May 1563 the Earls of Huntly and Sutherland and eleven nobles of the house of Gordon were attainted, and their goods confiscated. The overthrow of this nobleman, on whom the bishops had counted for support, helped to strengthen the Congregation in Scotland, and to encourage it to persecute more rigorously the followers of the old religion. During the spring of 1563 some of the Catholic clergy seem to have adopted a more forward policy, but they were accused of violation of the law. The primate and close on fifty others were tried before the courts in Edinburgh for celebrating or hearing Mass, and were committed to custody by the queen. To show that she was still Catholic, however, Mary dispatched a letter to the Council of Trent. It was read to the assembled Fathers in May 1563, and it gave entire satisfaction if we may judge by the answer that was prepared. The papal legates were not unwilling that the council should declare sentence of excommunication against Queen Elizabeth, thereby preparing the way for Mary's claims to the throne, but the opposition of the Emperor and of Philip II. of Spain put an end to the scheme.[24]

The question of Mary's marriage was of paramount importance, particularly as it was probable that the issue of the marriage would succeed to the thrones of Scotland and of England. The Pope and the French favoured the Archduke Charles of Austria who was disliked by the Scottish nobles as being too poor; Philip II., more for the purpose of defeating a proposed marriage of the Queen of Scotland to Charles IX. of France, suggested his own son Don Carlos as a probable suitor, but he showed little real earnestness in pushing forward the project, while Elizabeth was inclined to support her own former lover, Dudley, who was created Earl of Leicester, as it is said, to prepare the way for his marriage with the Scottish queen. But Mary, bewildered and annoyed by the varying counsels of her friends, put an end to the intrigues by marrying her cousin Lord Darnley, who as the son of the Earl of Lennox and of Margaret Douglas, granddaughter of Henry VII., had very strong claims on the English and Scottish thrones. A papal dispensation from the impediment of consanguinity was sought, but it would appear that the marriage was solemnised (29th July 1565) before the dispensation was granted.[25] Darnley was a young man of prepossessing appearance, and as a Catholic he was the idol of his co-religionists in England. His marriage with the Queen of Scotland was agreeable to the Pope and

to Philip II. of Spain, who hastened to send Mary financial assistance as well as congratulations. Such a union was, as might be expected, distasteful to the Protestant party in England, and particularly distasteful to Elizabeth, who foresaw the disastrous consequences that might ensue to England from the union of two such formidable Catholic claimants to the English throne.

The Earl of Moray and the other reforming lords, realising that the marriage was likely to destroy their influence, determined to take up arms. Encouraged by Elizabeth, the Earls of Moray, Glencairn, the Duke of Châtelherault and others rose in rebellion, nominally in defence of Protestantism but in reality to maintain their own supremacy at court. Mary, displaying more courage than she had displayed hitherto, assembled her forces, overthrew the lords, and forced Moray and his confederates to escape across the borders into England (Oct. 1565). This victory gave new hopes to the Catholics in Scotland. Darnley began to attend Mass openly, as did several of the nobles, while the queen took steps to secure appointments to some of the vacant bishoprics.

But soon a new danger appeared from an unexpected quarter. Darnley was a vain and foolish youth who treated his wife with but scanty respect. He wished to be sovereign of Scotland, to secure the crown for the family of Lennox to the exclusion of the Hamiltons, and to force the queen to follow his counsels in all matters of state. As his wishes were not granted he determined to revenge himself on Mary's secretary, David Riccio, whom he pretended to regard as Mary's secret adviser. For this purpose he turned for assistance to the reformed party whose fears had been aroused by Mary's religious policy. A confederation was formed consisting of Darnley, the Earl of Morton, Lord Ruthven, and Lindsay for the murder of Riccio. The Earl of Lennox Darnley's father, Moray, Argyll, and Maitland of Lethington, the English ambassador, and apparently John Knox, were aware of the design and approved of it.[26] When everything was ready for the opening of Parliament the murderers forced their way into the presence of the queen, and slew her secretary almost in her presence (9 March 1566). On the next day Darnley issued a proclamation ordering those who had assembled for the Parliament to leave Edinburgh, and on the same evening the Earl of Moray arrived in the capital.

The conspirators had agreed to proclaim Darnley king of Scotland. For this purpose the queen was to be held a prisoner or to be slain if she attempted to make her escape, but she succeeded in eluding the vigilance of her captors and in making her way to Dunbar, where she was joined by Archbishop Hamilton, the Earls of Huntly, Atholl, and Bothwell. She advanced on Edinburgh without meeting any resistance, while the murderers of Riccio were obliged to make their escape into England. Darnley deserted his fellow conspirators by communicating to the queen the details of the plot. His desertion did not, however, gain him the dictatorship he desired, as Mary pardoned Moray and Argyll, and received them together with Huntly, Atholl, and Bothwell into her councils. The birth of an heir to the throne would, it was thought, lead to a better understanding between Mary and her husband, but unfortunately it had no result. Though the baptism of the prince was carried out in the chapel-royal of Stirling Castle with all the pomp and splendour of

Catholic ceremonial (December 1566) Darnley refused to be present or to take any part in the festivities. A few days later Morton and the other murderers of Riccio were pardoned, and allowed to return to Scotland.

The Earls of Moray and Argyll and the other leading conspirators were incensed against Darnley for having communicated to the queen their share in the plot that led to Riccio's murder. Bothwell, who had done so much to frustrate the conspiracy, detested Darnley almost as fiercely as he himself was detested by both Darnley and the Earl of Lennox. During the latter half of the year 1566 nearly all the great lords of Scotland entered into a confederation or "band" against Darnley. Whether they meant merely to assist the queen to procure a legal separation from her husband with the support and approval of Parliament, or whether they intended to bring about Darnley's death by legal or illegal means is not sufficiently clear.[27]

Soon after the baptism of the prince, Darnley fell ill in Glasgow of small-pox. The queen sent her physician to attend him, went herself to visit him, and when he began to improve had him removed to a lonely house outside Edinburgh, where she frequently spent hours in his company. To all appearances a complete reconciliation had been effected, and Darnley in his letters expressed his entire satisfaction with the kindness and attention of his wife. Suddenly on the night of the 11th February 1567 the house was blown up, and Darnley was killed. Suspicion pointed to Bothwell as the author of the crime, and no doubt the case against him was strong, though how far he was assisted and encouraged by some of the other lords must for ever remain a mystery. Mary's concurrence or implication in the design is not proved by any reliable evidence, and were it not for her subsequent conduct it is not likely that complicity in the murder of her husband would have been laid to her charge. At the privy council on the day following the murder an explanation was drawn up and forwarded to France, declaring that a plot against the lives of the queen, king, and principal nobles had been discovered, and that it was only by a happy accident that the queen's life had been saved.

The Earl of Lennox, Darnley's father, charged Bothwell publicly with the murder of the king and demanded that he should be brought to justice. A day was fixed for the trial, but as Bothwell was powerful in the councils of the queen and was both able and willing to resort to force if force were necessary, it was very difficult to procure evidence against him. Lennox pleaded unsuccessfully for a delay, and as no one was prepared to come forward to prove the charges, Bothwell was acquitted (12th April 1567). A few days later most of the lords who had assembled in Edinburgh for the meeting of Parliament met at Ainslie's tavern and signed an agreement (Ainslie's Band) pledging themselves before God to defend Bothwell who had been declared innocent of the murder, and, stranger still, to procure his marriage with the queen. Various and contradictory lists of the signatories have been published, but from an examination of these different lists it is sufficiently clear that most of the great lords were attached to the confederation.[28] As usually happened when a serious crisis was approaching, Moray was absent from the country.

Bothwell, under pretence of punishing some of the robber bands, mustered his forces, overcame the small guard that accompanied the queen on her journey from

Stirling to Edinburgh, and carried off herself and Maitland as prisoners to Dunbar (19 April). That Bothwell acted in collusion with Mary is not proved, but despite the advice of her confessor, of the French representative, and of her best friends Mary agreed to go through a form of marriage with Bothwell. Her new husband was a Protestant, married already to the Earl of Huntly's sister from whom he had obtained a separation. The marriage ceremony was performed by the apostate Bishop of the Orkneys, who was soon to prove as disloyal to his queen as he had proved dishonest towards the Pope. Such a marriage celebrated under such circumstances created a most painful impression amongst the Catholics at home as well as in France and at Rome. It served to confirm their worst suspicions, and made them fear that Mary was about to desert the religion of her fathers. "With this act," wrote the papal ambassador who had been deputed to come to Scotland but who remained at Paris, "so dishonourable to herself, the propriety of sending any sort of envoy ceases unless indeed her Majesty, in order to amend her error and inspired by God, convert the Earl to the Catholic faith."[29]

Many of the lords, who had signed the bond to promote the marriage of Bothwell and Mary, professed to be shocked when they learned that the marriage had taken place. Relying upon the active intervention of Elizabeth they took up arms to avenge the murder of their king. The armies of the queen and of the lords met at Carbery Hill, where after some discussion Mary surrendered herself to the lords, and Bothwell was allowed to make his escape. The queen surrendered on the understanding that she was to be treated as queen, but she soon discovered that her captors intended to deprive her of her kingdom and possibly of her life. As a first step in the proceedings she was removed from Holyrood to Loch Leven (16th June). A document was drawn up embodying her abdication of the Scottish throne in favour of her infant son, and the appointment of her brother the Earl of Moray as regent during the minority. Until Moray's return the government was to be entrusted to a commission consisting of the Duke of Châtelherault, Lennox, Argyll, Atholl, Morton, Glencairn and Moray. Lord Lindsay and Sir Robert Melville were deputed to obtain the queen's signature, which they succeeded in obtaining only by threats and violence (24th July 1567). The young prince was crowned a few days later, John Knox acting as preacher on the occasion, and the apostate Bishop of the Orkneys as the chief minister. Steps were taken to ensure that Mary should not make her escape from imprisonment, and Bothwell who had fled to the Orkneys was forced to escape to Denmark, where he died in 1578. Moray hastened back from France, interviewed the queen at Loch Leven, accepted the office to which he had been appointed, and was proclaimed regent in Scotland. Severe measures were taken against the Catholic clergy many of whom fled from the kingdom. The queen's chapel at Holyrood was destroyed, and care was taken that the young king should be reared in the Protestant religion.

The lords of Scotland had taken up arms to avenge the murder of Darnley, but once they established themselves in power they took no steps to bring the murderers to justice, for the obvious reason that any judicial investigation must necessarily result in establishing their own guilt. Sir James Balfour, who had been involved deeply in the affair, was forgiven, on condition that he should surrender Edinburgh Castle into the hands of the regent. Parliament met in December 1567. It confirmed

the abdication of the queen and the appointment of Moray. The laws passed against the Catholic Church in 1560 were renewed. It was enacted furthermore that for the future the kings and rulers of Scotland should swear to uphold the reformed religion and to extirpate heresy. The queen had demanded that she should be allowed to defend herself before Parliament against the attacks of her enemies, but the regent and council refused to comply with her request. Some of her friends, however, endeavoured to uphold her good name, and when they were defeated in Parliament they appealed to the people by publishing a defence of their sovereign.

Though every precaution was taken to ensure the safe-keeping of the queen, she succeeded in escaping from Loch Leven (2 May 1568). She was welcomed at Dunbar by the Primate of Scotland, the Hamiltons, Huntly, Argyll, Seaton, Cassillis, and others, and soon found herself at the head of an army of eight thousand men. She declared that her abdication having been secured by violence was worthless, and that the acts of the recent Parliament were null and void. She called upon all her loyal subjects to flock to her standard. The regent, aware that unless a sudden blow could be struck help would come to Mary from the Catholics of the north as well as from France and Spain, determined to take the field at once. The armies met at Langside, near Glasgow (13th May), where the forces of the queen were overthrown. Mary accompanied by a few faithful followers made her way south towards Galloway, and at last against the advice of her best friends she determined to cross the border to throw herself on the protection of the Queen of England.

The arrival of Mary in England created a great difficulty for Elizabeth. If she were allowed to escape to France, both France and Spain might join hands to enforce her claims to the English succession, and if she were restored to the throne of Scotland, Moray and his friends could expect no mercy. It was determined, therefore, that Elizabeth should act as umpire between the queen and her rebellious subjects, so that by inducing both sides to submit their grievances to Elizabeth feeling between them might be embittered, and that in the meantime a divided Scotland might be kept in bondage. In her reply to the letter received from the Queen of Scotland Elizabeth informed her that she could not be received at court nor could any help be given to her unless she had cleared herself of the charges brought against her. Both parties in Scotland were commanded to cease hostilities, but at the same time Cecil took care to inform Moray secretly that he should take steps to enforce his authority throughout Scotland.[30]

Mary, while repudiating Elizabeth's right to sit in judgment on her conduct, consented that a conference should be held between her commissioners and those appointed by Elizabeth and by the rebel lords. The Dukes of Norfolk, Sussex, and Sir Ralph Sadler were the English commissioners; Bishop Leslie, Lord Livingstone, and Lord Herries represented Mary; while Moray, Morton, and Maitland of Lethington appeared to present the case of the rebel lords. The conference opened at York (October 1568). Several days were wasted in attempts made by Maitland to effect a compromise so that the production of charges and counter-charges might be unnecessary, and in considering inquiries put forward by the Earl of Moray regarding Elizabeth's attitude in case the charges against the Scottish queen were proved.

Some of the letters supposed to have been written by Mary to Bothwell were shown secretly to the English commissioners, but they do not seem to have produced any great effect on the Duke of Norfolk or even on the Duke of Sussex who was certainly not prejudiced in Mary's favour. The latter reported that Moray could produce no proofs except certain letters the authorship of which the Queen of Scots would deny. In fact, Sussex believed that were the affair to come to trial it would go hard with the queen's accusers.[31] In a short time Elizabeth ordered that the venue should be changed from York to London, and Mary, believing that she would be allowed an opportunity to defend herself before the peers and representatives of foreign governments, accepted the change. She sent Bishop Leslie and Lord Herries to represent her in London, but on their arrival they found that Mary would not be allowed to appear in person, though her accusers were received by the queen, nor would the foreign ambassadors be admitted to hear the evidence.

The new commission opened at Westminster (4th Dec. 1568). The lords brought forward their charges against the queen accusing her of complicity in the murder of her husband. In proof of this they produced a number of letters that were supposed to have been contained in a casket left behind him by Bothwell in Edinburgh, when he fled from that city in June 1567. This casket contained eight letters and some sonnets, which, if really written by Mary, proved beyond doubt that she was hand in glove with Bothwell in bringing about the murder of Darnley. The Casket Letters considered in the light of her own conduct furnished damaging evidence of Mary's guilt. Whether these letters were genuine or forged is never likely to be established with certainty,[32] but considering the character of Mary's opponents, their well-known genius for duplicity, the contradictory statements put forward by their witnesses and the indecent haste with which the whole enquiry was brought to a close, it is difficult to believe that the evidence of Mary's authorship was convincing. The commissioners acting on Mary's behalf laboured under grave disadvantages from the fact that their mistress was not at hand for consultation. As a consequence they made many mistakes in their pleadings, but they were on sure ground when they demanded that copies of the incriminating letters should be forwarded to Mary for examination. This demand, though supported by the French ambassador, was refused, and Mary was never allowed an opportunity to reply to the main charge brought against her. An offer was made that proceedings should be dropped if Mary would consent to resign the throne of Scotland in favour of her son, and when she refused this offer the conference was brought to a sudden termination. Moray and his friends were informed that "nothing had been produced against them as yet that might impair their honour and allegiance; and on the other part there had been nothing sufficiently produced or shown by them against the queen their sovereign, whereby the Queen of England should conceive or take any evil opinion of the queen her good sister for anything yet seen" (Jan. 1569).[33] The Earl of Moray and his companions were allowed to return to Scotland, and nothing more was done either to establish the innocence or the guilt of the Queen of Scotland. The object of Elizabeth and her advisers had been attained. They had blackened the character of Mary; they had driven a wedge between herself and her nobles, and had allowed Moray to return to Scotland to rule as an English dependent.

To prevent Queen Mary from falling into the hands of the Catholic lords of the north she was removed from Tutbury to Coventry (26th January 1569). Whatever might be said of Mary's conduct during her early years in Scotland, or whatever doubt might have been entertained about her orthodoxy by the Pope and by the Catholic powers of the Continent, everything unfavourable to her was forgotten by them in their sympathy for her sufferings, and in their admiration for her fortitude and sincere attachment to her religion. Pius V. and Philip II. were as deeply interested in her fate as were the Catholics of Scotland and of England. A scheme was arranged to promote her marriage to the Duke of Norfolk and to secure her succession to the English throne, but Elizabeth anticipated the design by imprisoning the Duke, suppressing the rebellion of the northern lords (1569), and by braving the terrors of the papal excommunication levelled against her the following year.

When later on a new plot was discovered with the same object in view Norfolk was put to death (1572). While Mary was alive in England she was a source of constant danger to Elizabeth's throne. English Catholics driven to desperation by the penal laws were certain to turn to her as their lawful sovereign, while the Catholic nations on the Continent could fall back on the imprisoned queen whenever they chose to stir up disorder, or possibly to attempt an invasion. Dangerous as she was in prison, she might be still more dangerous if she were free to effect her escape either to Scotland or to France. In her death lay Elizabeth's best hope of peace, and as the rigour of her confinement failed to kill her, an attempt was made to induce the Scots to undertake a work that the English feared to undertake.[34] At last an opportunity was given of bringing about her execution and of covering the measure with an appearance of legality. A scheme for her release was undertaken by Babington,[35] with every detail of which the spies of Cecil were intimately acquainted, if they did not actually help to arrange them. Babington's letters to Mary and her replies were betrayed and copied. It is certain that Mary knew what was intended, but there is no evidence to show that she approved of the murder of Elizabeth. When the proper time came Babington and his accomplices were arrested and put to death (October 1586), and Mary's fate was submitted to the decision of Parliament. Both houses petitioned that the Queen of Scotland should be executed, but Elizabeth, fearful of the consequences and hoping that Mary's jailer Paulet, would relieve her of the responsibility, hesitated to sign the death warrant. At last, however, she overcame her scruples, and on the 8th February 1587, Mary Queen of Scots was beheaded at Fotheringay. Her attitude to the last was worthy of praise. She died a martyr for her religion, and by her death she expiated fully the imprudences and waverings of her youth. Elizabeth pretended to be horrified by the action of her ministers. Her secretary was imprisoned and fined to prove to Scotland, France, and Spain that the Queen of England had no responsibility for the tragedy of Fotheringay.

Meanwhile how fared it with Catholicism in Scotland? The Regent Moray returned from England early in 1569. Acting on the repeated requests of the General Assembly he undertook new measures against the Catholic Church. Catholic officials and professors were removed from Aberdeen University; several priests were arrested and punished though the regent was unwilling to inflict the death penalty, and many distinguished clerics and laymen, including the Primate and Bishop Leslie, were

outlawed and their goods confiscated. The regent was not destined however to enjoy long the fruits of his treachery against his sister. In 1570, at the very time when he was plotting with the English government to get the Queen of Scotland into his power, he was shot in Linlithgow by one of the Hamiltons, the hereditary enemies of his house.

On his death there were two strong parties in Scotland. The majority of the nobles, including the Duke of Châtelherault, Argyll, Huntly, Atholl, and even Kirkcaldy and Maitland of Lethington, two former supporters of Moray, ranged themselves on the side of their imprisoned queen, and might have succeeded in re-establishing her authority had not Elizabeth espoused the cause of Morton, Mar, Glencairn and Ruthven, backed as these were by Knox and the preachers. Two English armies were dispatched into Scotland, and with the help of the English forces the Earl of Lennox, Darnley's father, was appointed regent (July 1570). It was not the first time that he had sought to destroy the independence of his country by invoking the assistance of the English, and as he had gone over to Protestantism he was determined to throw himself into the arms of the Reformers. The castle of Dunbarton was still in the possession of the queen's supporters. He laid siege to it, and captured it in April 1571. Here he seized the Primate of Scotland, and had him put to death after a summary trial. The chapter met and elected Robert Hay, but he was never consecrated, and for more than three hundred years St. Andrew's was without a Catholic bishop. In September 1571 Lennox was slain, and the Earl of Mar was elected regent. During his short reign he was unable to enforce his authority in the country. Negotiations were opened with him by Cecil's agents to induce him to undertake the execution of the Queen of Scotland, who was to be sent back from England for the purpose, but his sudden death in 1572 put an end to the scheme.

He was succeeded by the Earl of Morton, another of Elizabeth's agents. At first Morton was not unfavourable to the Catholics owing to the disputes that arose between himself and the preachers about the re-establishment of the episcopal form of government, but later on he adopted a policy of violent opposition to the old religion. Some of the priests were put to death; others were arrested or banished; a list of Catholics including Beaton the Archbishop of Glasgow, Leslie Bishop of Ross, and Chisholm Bishop of Dunblane was drawn up for proscription, and steps were taken to suppress Catholic holidays and to remove from the churches everything that called to mind Catholic devotions.

In 1578 the young king demanded Morton's resignation. A council of twelve was appointed in his place, at the head of which stood the Earls of Argyll and Atholl. Elizabeth was annoyed at the fall of her minion, and took no pains to conceal her annoyance from the young king. It looked as if friendly relations between the two courts might be broken, and the Catholic party both at home and on the Continent were filled with new hopes. In 1579 Esmé Stuart, Lord d'Aubigny, a nephew of the former Earl of Lennox, arrived from France, where he had been educated as a Catholic. He was welcomed at court by the king and created Earl of Lennox. James fell completely under his sway, though the preachers regarded d'Aubigny as a Catholic spy. Regardless of Elizabeth's friendship, James was induced to open

communications with his mother, and when the Earl of Morton rose in rebellion against such a policy he was arrested and put to death (1582). Though apparently Lennox made profession of accepting the established religion in Scotland, he was endeavouring secretly to bring about an understanding between Mary and her son, to secure the release of the former from captivity, and to assist the Catholic cause. The preachers took alarm at the sudden and unexpected increase of Popery. "Before this French court came to Scotland," said Walter Belcanqual in one of his sermons in 1580 "there were either few or none that durst avow themselves Papists, neither yet publicly in the country, neither in the reformed cities, neither in the king's palace. But since that time, not only begin the Papists within the realm to lift up their heads, but also our Scottish Papists that were outside the realm swarm home from all places like locusts, and have taken such hardihood unto them that not only have they access to the French court, but also in the king's palace, in the particular sessions of our kirks, and general assemblies thereof, durst plainly avow their Papistry, and impugn the truth, both against the laws of the realm and discipline of the Church, contrary to all practice that we have had before."[36]

The members of the General Assembly, annoyed at the attempt of the king to support the episcopal system of government, were determined to remove Lennox, whom they regarded as an emissary of Rome. Elizabeth's agents, too, were busy stirring up discontent. A plot formed by Ruthven Earl of Gowrie, the Earl of Mar, and others, for the capture of the king, was carried out successfully during a visit paid by James to Ruthven's castle at Gowrie (The Gowrie Plot). He was seized and lodged safely in Stirling. The Earl of Arran who attempted to rescue his sovereign was made prisoner, and Lennox was obliged to flee to France (1582).

For a time Melville and the preachers, who gloried in Gowrie's successful machinations, held the king in bondage. The General Assembly of 1582 expressed its approval of what had been done,[37] and renewed its attacks upon the episcopal system. James, however, succeeded in making his escape from confinement; the Earl of Arran was recalled to court; Ruthven was declared a traitor and was beheaded, and the other conspirators were obliged to make their escape to England. James entered into close correspondence with some of the Catholic powers abroad, and even went so far as to appeal to the Pope for assistance against the enemies who surrounded him (1584). For a time it seemed as if a great Catholic reaction was about to set in. Priests who had escaped from England were labouring with success in the Scottish mission-fields; a few Jesuits had arrived from the Continent, and France, Spain, and the Pope were in correspondence regarding the assistance that might be given to James and his mother. But the spies of Elizabeth soon obtained knowledge of what was in contemplation. France and Spain were too jealous of one another to undertake an armed expedition, without which success was impossible. Negotiations were opened up with a view of detaching James from the Catholic party, and of inspiring him with distrust for his mother. As he was always more anxious to secure his accession to the English throne than to defend either his mother's life or her religion, he succumbed completely to English influence.

Not even the execution of his mother in 1587 was sufficient to rouse him to take serious action. Though he was urged by many of the Scottish nobles to declare war he contented himself with angry speeches and protests that passed unheeded. Even many of the Presbyterian lords were ready to support him had he declared war, and Catholic noblemen like the Earls of Huntly, Erroll, and Crawford, Lord Maxwell, and Lord Hamilton, offered their assistance. It was well- known, too, that Philip II. was preparing at the time for an invasion of England. Had Scotland declared war the results might have been disastrous for England, but James, instead of taking the offensive, accepted a pension from Elizabeth and offered to assist in the defence of the kingdom. He endeavoured at first to conciliate the Catholic party by restoring John Leslie Bishop of Ross, who had been for years a most zealous defender of Mary Queen of Scots, to his See and his possessions, and by appointing the exiled Archbishop of Glasgow to be his ambassador at the French court. The General Assemblies, however, backed up by Elizabeth forced him to take strong measures against the adherents of the old religion. In 1593 a proclamation was issued ordering all Jesuits and seminary priests to leave Edinburgh within two hours under pain of death, and a violent campaign was begun in nearly every part of Scotland against the Catholic nobles and clergy. The Catholic lords who were in close communication with Spain were forced to take up arms. Their forces were mustered under the Earls of Huntly and Erroll, and gained a complete victory at Glenlivet over the Earl of Argyll who was dispatched against them. When the news of this defeat reached the king at Dundee he displayed unwonted activity. He assembled a large army to punish his rebellious subjects, and the Catholic lords were at last forced to make their escape from the country. With the flight of Huntly and Erroll (1595) and the dispersal of their troops the triumph of Protestantism in Scotland was assured.

The great leader in the attack on the Catholic Church in Scotland was John Knox who belonged to the Geneva school, and who worked hard for the introduction of the Calvinist system of Church government. The state of affairs in Scotland at the time was very favourable to his designs. Obviously there could be no question of royal supremacy or of a State Church being established after the English model, since the Queen of Scotland was a staunch supporter of the Roman Church. Neither could the principle of parliamentary control be accepted since the Scottish Parliament was comparatively powerless. Had the revenues and possessions of the Scottish bishoprics and ecclesiastical benefices been left untouched the democratic form of government would have been impossible, but as the hungry lords of Scotland had appropriated already the wealth of the Church they had no special interest in the ecclesiastical appointments. The result was that the General Assemblies, composed of both preachers and laymen, became the recognised governing body of the new religion, and they arrogated to themselves full control of ecclesiastical affairs. The bishops who were willing to conform were not, however, removed from office. They were subjected to the control of the General Assembly, and were placed on the same level as the recently named superintendents.

But the regents who governed Scotland during the minority of James VI. were not inclined to receive with favour the idea of ecclesiastical independence. In 1571 the Earl of Mar insisted on appointing an archbishop to St. Andrew's without reference to

the General Assembly, and immediately the preachers were up in arms. They were handicapped in their resistance by the fact that their great leader Knox was too ill to afford them much assistance, and at last they were forced to accept a compromise according to which the old system of ecclesiastical government was left practically untouched. Archbishops, bishops, deans and chapters were retained; the bishops were to be elected by the chapters with the permission and approval of the king and were to receive the temporalities by royal grant; and all persons admitted to benefices were to promise obedience to their bishops. At the same time it was agreed that the bishops should be subject to the General Assemblies in spiritual matters, as they were subject to the king in temporals. It was hoped that by means of this compromise peace might be secured, but in a short time the attack on episcopal government was renewed with still greater vigour. A new leader had appeared in the person of Andrew Melville, the Principal of the College of Glasgow, and the friend of the great Swiss Reformer, Beza. Despite the fact that the regent espoused the cause of episcopacy the General Assemblies were determined to continue the struggle for its overthrow. The adoption in 1580 of the /Second Book of Discipline/, involving as it did the overthrow of episcopal authority, the rejection of state interference and the assertion that spiritual authority was derived only from the people, was a severe blow to the young king and his advisers; but they found some consolation in the fact that the Scottish Parliament re-asserted the principle of royal supremacy and recognised the authority of the bishops (1584).

A form of declaration was drawn up which all preachers were required to sign under threat of dismissal. During the years 1585 and 1586 serious attempts were made by the government to reduce them to subjection, but without any important result. In fact, at the suggestion of Melville, the General Assembly pronounced sentence of excommunication against Archbishop Adamson (1586), and the archbishop was obliged to submit himself to the judgment of that body. From that time things went from bad to worse till in 1592 Parliament gave its formal sanction to Presbyterianism, though the /Second Book of Discipline/ was not approved, nor were the bishops deprived of their civil positions. Hardly had James been seated on the English throne than he determined to make another effort to force episcopacy and royal supremacy on the Scottish Church. He appointed several new bishops to the vacant Sees (1603). As the preachers still offered a strong opposition Melville was invited to a conference at Hampton Court (1606) where a warm debate took place between the representatives of the Presbyterians and their opponents. Melville and his friends refused to yield, and when the former was summoned to appear before the privy council to answer for certain verses he had composed, he seized the Archbishop of Canterbury by the sleeves of his rochet, denounced him as an enemy of the gospel truth, and assured him that he would oppose his schemes to the last drop of blood. He was arrested and thrown into prison. Parliament supported the king (1609); a High Commission Court was established in 1610 to deal with the preachers, and in the same year the nominees of James were consecrated by English prelates. But despite the efforts of James and of his successor Charles I., Presbyterianism still continued to flourish in Scotland.

Though the flight of the Earls of Huntly and Erroll (1595) had assured the triumph of Presbyterianism many of the people of Scotland, particularly of those in the north, still remained devoted to the old religion. The Jesuit Fathers had been untiring in their efforts, and the labours of men like Fathers Creighton, Hay, Gordon, and Abercromby were far from being unfruitful. Still the ecclesiastical organisation had broken down; the supply of priests was likely to become exhausted, and, unless some attempt was made to maintain unity and authority, as well as provide means of education for clerical students, there was grave danger that Catholicism might soon be extinguished. In 1598 George Blackwell received faculties as archpriest or superior of the Scotch mission, and was provided with a number of consultors to assist him in his difficult task. A Scotch college was established at Rome by Clement VIII. to supply Scotland with priests (1600). Another college of a similar kind was founded at Tournai in 1576 by Dr. James Cheyne. Later on it was removed to Pont-à-Mousson and placed under the control of the Jesuits, and finally it was brought to Douay. The old Irish foundations at Würzburg and Regensburg were taken over by the Scotch, and utilised for the education of priests. Scottish colleges were also established at Paris and at Madrid (transferred to Valladolid).

The Catholics of Scotland expected some toleration from James I., but they were doomed to disappointment. The king was unable and unwilling to put an end to the violent persecution carried on by the kirk, which aimed at wiping out every trace of Catholicity by directing its attackings against the Catholic nobility of the north and against the Jesuits, one of whom, Father Ogilvie was put to death (1516). Similarly under Charles I. the persecution continued unabated, but, notwithstanding all the penalties levelled against the clergy, many priests were found willing and ready to help their co-religionists in Scotland. Jesuits, Benedictines, Franciscans from Ireland, Capuchins, and Vincentians[38] vied with each other in their efforts to confirm the faith of those who remained true and to win back those who had fallen away. During the Protectorate the Catholics could hope for no mercy, nor did the accession of Charles II. make much change in their sad condition. Under James II. they enjoyed a brief spell of liberty. The chapel at Holyrood was opened once again, and some provision was made from the private resources of the king for the support of the missions, and of the foreign colleges.

But the favour of James II. led to still greater persecutions once he had been overthrown to make way for William of Orange. During the reigns of William and Mary, of Anne and of George I. the position of the Scotch Catholics was even worse than that of their brethren in England or Ireland. In his anxiety to encourage both the priests and the laity Innocent XII. appointed Bishop Thomas Nicholson as vicar-apostolic of Scotland in 1694, and, as it was impossible for him to give sufficient attention to the districts in the north and west where Catholics were still fairly numerous, Dr. Hugh MacDonald was appointed vicar-apostolic of the Highlands in 1726. When the Pretender arrived in Scotland the Catholics flocked to his standard, and when he was defeated at Culloden (1746) they were obliged to pay a heavy penalty for their loyalty to the old rulers. The Highland clans were either cut up in battle or deported; the Catholic chapels were closed, and so violent was the persecution that ensued that it seemed as if the wishes of the kirk were about to be

realised. But events soon showed that those who imagined they had seen the extinction of Catholicism in Scotland were doomed to disappointment. ----------

[1] Theiner, /Vet. Mon. Scot./, 8.

[2] Id., 465-68.

[3] Robertson, /Concilia Scotiae (1225-1559)/, cclxx.-cclxxxv.

[4] Pollen, /Papal Negotiations/, etc., 525-30.

[5] Forneron, /Les ducs de Guise et lour époque/, 1877.

[6] Herkless, /Cardinal Beaton/, 263 sqq.

[7] Id., 289-301.

[8] /Cambridge Modern History/, ii., 556.

[9] Robertson, /Concilia Scotiae/.

[10] Law, /Archbishop Hamilton's Catechism/, 1884.

[11] Pollen, op. cit., xxv., xxiv.-vi.

[12] For a reliable account of Knox, cf. Lang, /John Knox and the Reformation/, 1905.

[13] Grub, /Ecc. Hist. of Scotland/, ii., 45-6.

[14] Bellesheim, i., 389.

[15] Grub, op. cit., ii., 53-54.

[16] Wilkins, /Concilia/, iv., 204 sqq.

[17] Published in 1558. Dedicated to the writer's nephew, "Gilbert Maister of Cassillis."

[18] Pollen, op. cit., xxxii. sqq.

[19] Pollen, op. cit., 56.

[20] Bellesheim, op. cit., i., 424-32.

[21] Grub, op. cit., ii., 89 sqq.

[22] Pollen, op. cit., xlix. sqq.

[23] On the mission of Gouda, cf. Pollen, op. cit., liv.

[24] Pollen, op. cit., 162-76.

[25] Pollen, op. cit., lxxxv.-xcviii.

[26] Lang, /The Mystery of Mary Stuart/, 54-9.

[27] Lang, /The Mystery of Mary Stuart/, 74 sqq.

[28] Lang, op. cit., 148 sqq.

[29] Pollen, op. cit., 293, cxxvi.-xxxiii.

[30] /Political History of England/, vi., 272.

[31] Rait, /Mary Queen of Scots/, 145.

[32] Cf. Hosack, /Mary Stuart and her Accusers/, 2 vols., 1870-4. Henderson, /Casket Letters/, 2nd edition, 1890. Id., /Mary Queen of Scots/, 2 vols., 1905. Fleming, /Mary Queen of Scots/, 2 vols., 1897-8. Nau-Stephenson, /History of Mary Stuart/, 1883. Lang, /Mystery of Mary Stuart/, 1904.

[33] Lang, /The Mystery of Mary Stuart/, 160-1.

[34] Bellesheim, ii., 129.

[35] Pollen, /Mary Stuart and the Babington Plot/ (/Month/, 1907).

[36] Grub, op. cit., ii., 210.

[37] Grub, op. cit., ii., 229.

[38] Bellesheim, op. cit., 283-98.

CHAPTER VII

RELIGION IN IRELAND DURING THE FIFTEENTH CENTURY

/Annals of the Four Masters/. /State Papers/, 11 vols., 1832-5. /Papal Letters/, 9 vols. /De Annatis Hiberniae/, vol. i., Ulster, 1912; vol. ii., Leinster (app. ii. /Archivium Hibernicum/, vol. ii.). Brady, /The Episcopal Succession in England, Scotland and Ireland (1400-1873)/, 3 vols., 1876. Theiner, /Vetera Monumenta Scotorum (1216-1547)/, 1864. Ware's /Works/, 2 vols., 1729. Wilkins, /Concilia Magnae Britanniae et Hiberniae/, iii. vol., 1737. /Reports of the Deputy Keeper of Public Records, Ireland/. /Reports of the Royal Commission on Historical Manuscripts/. De Burgo, /Hibernia Dominicana/, 1762. Gilbert, /The Viceroys of Ireland/, 1865. Id., /Facsimiles of National Manuscripts of Ireland/, 4 vols., 1875. Lawlor, /A Calendar of the Register of Archbishop Sweetman/, 1911. Bellesheim, /Geschichte der Katholischen Kirche in Ireland/, 3 Bde, 1890. Malone, /Church History of Ireland from the Anglo-Norman Invasion to the Reformation/, 2 vols., 3rd edition, 1880. Brenan, /An Ecclesiastical History of Ireland/, 1864. Gogarty, /The Dawn of the Reformation in Ireland (I. T. Q.)/, 1913, 1914. Green, /The Making of Ireland and its Undoing (1200-1600)/, 1908. Bagwell, /Ireland under the Tudors/, 1885. Wilson, /The Beginnings of Modern Ireland/, 1912.

From the beginning of the fourteenth century English power in Ireland was on the decline. The Irish princes, driven to desperation by the exactions and cruelties of the officials, adopted generally a more hostile attitude, while the great Norman nobles, who had obtained grants of land in various parts of Ireland, began to intermarry with the Irish, adopted their language, their laws, their dress, and their customs, and for all practical purposes renounced their allegiance to the sovereign of England.

Owing to the civil war that raged in England during the latter portion of the fifteenth century the English colonists were left entirely without support, and being divided among themselves, the Geraldines favouring the House of York, and the Ormonds, the House of Lancaster, they were almost powerless to resist the encroachments of the native princes. Nor did the accession of Henry VII. lead to a combined effort for the restoration of English authority. The welcome given by so many of the Anglo-Irish, both laymen and clerics, to the two pretenders, Simnel and Warbeck, and the efforts the king was obliged to make to defend his throne against these claimants, made it impossible for him to undertake the conquest of the country. As a result, the sphere of English influence in Ireland, or the Pale, as it was called, became gradually more restricted. The frantic efforts made by the Parliament held at Drogheda (1494, Poynings' Parliament) to protect the English territory from invasion by the erection "of a double ditch six feet high" is the best evidence that the conquest of the country still awaited completion.[1] In the early years of the reign of Henry VIII. the Pale embraced only portions of the present counties of Dublin, Louth, Meath and Kildare, or to be more accurate, it was bounded by a line drawn from Dundalk through Ardee, Kells, Kilcock, Clane, Naas, Kilcullen, Ballymore-Eustace, Rathcoole, Tallaght, and Dalkey. Within this limited area the inhabitants were not safe from invasion and spoliation unless they agreed to purchase their security by the payment of an annual tribute to the neighbouring Irish princes; and outside it, even in the cities held by Norman settlers and in the territories owned by Norman barons, the king's writ did not run.[2]

Recourse was had to legislative measures to preserve the English colonists from being merged completely into the native population. According to the Statutes of Kilkenny (1367) the colonists were forbidden to intermarry with the Irish, to adopt their language, dress, or customs, or to hold any business relations with them, and what was worse, the line of division was to be recognised even within the sanctuary. No Irishman was to be admitted into cathedral or collegiate chapters or into any benefice situated in English territory, and religious houses were warned against admitting any Irish novices, although they were quite free to accept English subjects born in Ireland[3] (1367). This statute did not represent a change of policy in regard to Irish ecclesiastics. From the very beginning of the Norman attempt at colonisation the relations between the two bodies of ecclesiastics had been very strained. Thus, in the year 1217 Henry III. wrote to his Justiciary in Ireland calling his attention to the fact that the election of Irishmen to episcopal Sees had caused already considerable trouble, and that consequently, care should be taken in future that none but Englishmen should be elected or promoted to cathedral chapters. The Irish clerics objected strongly to such a policy of exclusion, and carried their remonstrances to Honorius III. who declared on two occasions (1220, 1224) that this iniquitous decree was null and void.[4] As the papal condemnations did not produce the desired effect, the archbishops, bishops, and chapters seem to have taken steps to protect themselves against aggression by ordaining that no Englishman should be admitted into the cathedral chapters, but Innocent IV., following the example of Honorius III., condemned this measure.[5]

Notwithstanding its solemn condemnation by the Holy See this policy of exclusion was carried out by both parties, and the line of division became more marked according as the English power began to decline. The petition addressed to John XXII. (1317) by the Irish chieftains who supported the invasion of Bruce bears witness to the fact that the Statutes of Kilkenny did not constitute an innovation, and more than once during the fifteenth century the legislation against Irish ecclesiastics was renewed. The permission given to the Archbishop of Dublin to confer benefices situated in the Irish districts of his diocese on Irish clerics (1485, 1493) serves only to emphasise the general trend of policy.[6] Similarly the action of the Dominican authorities in allowing two superiors in Ireland, one of the houses in the English Pale, the other for the houses in the territories of the Irish princes[7] (1484), the refusal of the Irish Cistercians to acknowledge the jurisdiction of their English superiors, the boast of Walter Wellesley, Bishop of Kildare and prior of the monastery of Old Connal (1539) that no Irishman had been admitted into this institution since the day of its foundation,[8] prove clearly enough that the relations between the Irish and English ecclesiastics during the fifteenth century were far from being harmonious.

In the beginning, as has been shown, the Holy See interfered to express its disapproval of the policy of exclusion whether adopted by the Normans or the Irish, but later on, when it was found that a reconciliation was impossible, the Pope deemed it the lesser of two evils to allow both parties to live apart. Hence the Norman community of Galway was permitted to separate itself from the Irish population immediately adjoining, and to be governed in spirituals by its own warden (1484); and Leo X. approved of the demand made by the chapter of St. Patrick's, Dublin, that no Irishman should be appointed a canon of that church (1515).[9] But though the Holy See, following the advice of those who were in a position to know what was best for the interests of religion, consented to tolerate a policy of exclusion, it is clear that it had no sympathy with such a course of procedure. In Dublin, for example, where English influence might be supposed to make itself felt most distinctly, out of forty-four appointments to benefices made in Rome (1421-1520) more than half were given to Irishmen; in the diocese of Kildare forty-six out of fifty-eight appointments fell to Irishmen (1413-1521), and for the period 1431- 1535, fifty-three benefices out of eighty-one were awarded in Meath to clerics bearing unmistakably Irish names.[10] Again in 1290 Nicholas IV. insisted that none but an Irishman should be appointed by the Archbishop of Dublin to the archdeaconry of Glendalough, and in 1482 Sixtus IV. upheld the cause of Nicholas O'Henisa whom the Anglo-Irish of Waterford refused to receive as their bishop on the ground that he could not speak English.[11]

But though attempts were made by legislation to keep the Irish and English apart, and though as a rule feeling between both parties ran high, there was one point on which both were in agreement, and that was loyalty and submission to the Pope. That the Irish Church as such, like the rest of the Christian world, accepted fully the supremacy of the Pope at the period of the Norman invasion is evident from the presence and activity of the papal legates, Gillebert of Limerick, St. Malachy of Armagh, Christian, Bishop of Lismore, and St. Laurence O'Toole, from the frequent pilgrimages of Irish laymen and ecclesiastics to Rome, from the close relations with

the Roman Court maintained by St. Malachy during his campaign for reform, and from the action of the Pope in sending Cardinal Paparo to the national synod at Kells (1152) to bestow the palliums on the Archbishops of Armagh, Dublin, Cashel, and Tuam. Had there been any room for doubt about the principles and action of the Irish Church the question must necessarily have been discussed at the Synod of Cashel convoked by Henry II. to put an end to the supposed abuses existing in the Irish Church (1172), and yet, though it was laid down that in its liturgy and practices the Irish Church should conform to English customs, not a word was said that could by any possibility imply that the Irish people were less submissive to the Pope than any other nation at this period.[12]

After the Normans had succeeded in securing a foothold in the country, both Irish and Normans were at one in accepting the Roman supremacy. The Pope appointed to all bishoprics whether situated within or without the Pale; he deposed bishops, accepted their resignations, transferred them from one See to another, cited them before his tribunals, censured them at times, and granted them special faculties for dispensing in matrimonial and other causes. He appointed to many of the abbeys and priories in all parts of the country, named ecclesiastics to rectories and vicarages in Raphoe, Derry, Tuam, Kilmacduagh, and Kerry, with exactly the same freedom as he did in case of Dublin, Kildare or Meath, and tried cases involving the rights of laymen and ecclesiastics in Rome or appointed judges to take cognisance of such cases in Ireland. He sent special legates into Ireland, levied taxes on all benefices, appointed collectors to enforce the payment of these taxes, and issued dispensations in irregularities and impediments.

The fiction of two churches in Ireland, one the Anglo-Irish acknowledging the authority of the Pope, the other the Irish fighting sullenly against papal aggression, has been laid to rest by the publication of Theiner's /Vetera Monumenta Hibernorum et Scotorum/, the /Calendars of Papal Letters/, the /Calendars of Documents (Ireland)/ and the /Annats/. If any writer, regardless of such striking evidence, should be inclined to revive such a theory he should find himself faced with the further disagreeable fact that, when the English nation and a considerable body of the Anglo-Irish nobles fell away from their obedience to Rome, the Irish people, who were supposed to be hostile to the Pope, preferred to risk everything rather than allow themselves to be separated from the centre of unity. Such a complete and instantaneous change of front, if historical, would be as inexplicable as it would be unparalleled.

Nor is there any evidence to show that Lollardy or any other heresy found any support in Ireland during the fourteenth or fifteenth centuries. During the episcopate of Bishop Ledrede in Ossory (1317- 60), it would appear both from the constitutions enacted in a diocesan synod held in 1317 as well as from the measures he felt it necessary to take, that in the city of Kilkenny a few individuals called in question the Incarnation, and the Virginity of the Blessed Virgin, but it is clear that such opinions were confined to a very limited circle and did not affect the body of the people.[13] About the same time, too, the dispute that was being waged between John XXII. and a section of the Franciscans found an echo in the province of Cashel, though there is no

proof that the movement ever assumed any considerable dimensions.[14] Similarly at a later period, when the Christian world was disturbed by the presence of several claimants to the Papacy and by the theories to which the Great Western Schism gave rise, news was forwarded to Rome that some of the Irish prelates, amongst them being the Archbishop of Dublin and the Bishop of Ferns, were inclined to set at nought the instructions of Martin V. (1424), but the latter pontiff took energetic measures to put an end to a phenomenon that was quite intelligible considering the general disorder of the period. The appeal of Philip Norris, Dean of Dublin, during his dispute with the Mendicants, to a General Council against the decision of the Pope only serves to emphasise the fact that throughout the controversy between the Pope and the Council of Basle Ireland remained unshaken in its attachment to the Holy See.[15] Although the first measure passed by the Parliament at Kilkenny (1367) and by nearly every such assembly held in Ireland in the fifteenth century was one for safeguarding the rights and liberties of the Church, yet the root of the evils that afflicted the Church at this period can be traced to the interference of kings and princes in ecclesiastical affairs. The struggle waged by Gregory VII. in defence of free canonical election to bishoprics, abbacies, and priories seemed to have been completely successful, but in reality it led only to a change of front on the part of the secular authorities. Instead of claiming directly the right of nomination they had recourse to other measures for securing the appointment of their own favourites. In theory the election of bishops in Ireland rested with the canons of the cathedral chapters, but they were not supposed to proceed with the election until they had received the /congé d'élite/ from the king or his deputy, who usually forwarded an instruction as to the most suitable candidate. As a further safeguard it was maintained that, even after the appointment of the bishop-elect had been confirmed by the Pope, he must still seek the approval of the king before being allowed to take possession of the temporalities of his See. As a result even in the thirteenth century, when capitular election was still the rule, the English sovereigns sought to exercise a controlling influence on episcopal elections in Ireland, but they met at times with a vigorous resistance from the chapters, the bishops, the Irish princes, and from Rome.[16]

Towards the end of the fourteenth century, however, and in the fifteenth century, though the right of election was still enjoyed nominally by the chapters, in the majority of cases either their opinions were not sought, or else the capitular vote was taken as being only an expression of opinion about the merits of the different candidates. Indirectly by means of the chancery rules regarding reservations, or by the direct reservation of the appointment of a particular bishopric on the occasion of a particular vacancy, the Pope kept in his own hands the appointments. Owing to the encroachments of the civil power and the pressure that was brought to bear upon the chapters such a policy was defensible enough, and had it been possible for the Roman advisers to have had a close acquaintance with the merits of the clergy, and to have had a free hand in their recommendations, direct appointment might have been attended with good results. But the officials at Rome were oftentimes dependent on untrustworthy sources for their information, and they were still further handicapped by the fact that if they acted contrary to the king's wishes the latter might create

serious trouble by refusing to restore the temporalities of the See. Instances, however, are not wanting even in England itself to show that the Popes did not always allow themselves to be dictated to by the civil authorities, nor did they recognise in theory the claim of the king to dispose of the temporalities.[17]

It is difficult to determine how far the English kings succeeded in influencing appointments to Irish bishoprics. About Dublin, Meath, and Kildare there can be no doubt that their efforts were attended with success. In Armagh, too, they secured the appointment of Englishmen as a general rule, and in Cashel, Waterford, Limerick, and Cork their recommendations, or rather the recommendations of the Anglo-Irish nobles, were followed in many instances. Outside the sphere of English influence it does not seem that their suggestions were adopted at Rome. At any rate it is certain that if they sought for the exclusion of Irishmen their petitions produced little effect. During the early years of the reign of Henry VIII. more active measures seem to have been taken by the king to assert his claims to a voice in episcopal appointments. In the appointments at this period to Armagh, Dublin, Meath, Leighlin, Kilmore, Clogher, and Ross it is stated expressly in the papal Bulls that they were made /ad supplicationem regis/.[18]

Unfortunately several of the ecclesiastics on whom bishoprics were conferred in Ireland during the fifteenth century had but slender qualifications for such a high office. On the one hand it was impossible for Rome in many cases to have a close acquaintance with the various candidates, and on the other the influence of the English kings, of the Irish princes, and of the Anglo-Irish nobles was used to promote their own dependents without reference to the effects of such appointments on the progress of religion. The Archbishops of Dublin and Armagh, and the Bishops of Kildare and Meath were more interested as a rule in political and religious affairs than in their duties as spiritual rulers. They held on many occasions the highest offices in the state, and had little time to devote their attention to the government of their dioceses. Absenteeism was as remarkable a characteristic of the Church in the fifteenth century as it was of the Established Church in the eighteenth, and in this direction the bishops were the worst offenders. Very often, too, Sees were left vacant for years during which time the king's officials or the Irish princes, as the case might be, wasted the property of the diocese either with the connivance or against the wishes of the diocesan chapters. Of the archbishops of Ireland about the time of the Reformation, George Cromer, a royal chaplain, was appointed because he was likely to favour English designs in Ireland, and for that purpose was named Chancellor of Ireland; John Alen, another Englishman, was recommended by Cardinal Wolsey to Dublin mainly for the purpose of overthrowing the domination of the Earl of Kildare; Edmund Butler, the illegitimate son of Sir Piers Butler, owed his elevation to the See of Cashel to the influence of powerful patrons, and Thomas O'Mullaly of Tuam, a Franciscan friar, passed to his reward a few days before the meeting of the Parliament that was to acknowledge Royal Supremacy, to be succeeded by Christopher Bodkin, who allowed himself to be introduced into the See by the authority of Henry VIII. against the wishes of the Pope.

But, even though the bishops as a body had been as zealous as individuals amongst them undoubtedly were, they had no power to put down abuses. The patronage of Church livings, including rectories, vicarages, and chaplaincies enjoyed by laymen, as well as by chapters, monasteries, convents, hospitals, etc., made it impossible for a bishop to exercise control over the clergy of his diocese. Both Norman and Irish nobles were generous in their gifts to the Church, but whenever they granted endowments to a parish they insisted on getting in return the full rights of patronage. Thus, for example, the Earl of Kildare was recognised as the legal patron of close on forty rectories and vicarages situated in the dioceses of Dublin, Kildare, Meath, Limerick, and Cork, and he held, besides, the tithes of a vast number of parishes scattered over a great part of Leinster.[19] The Earl of Ormond enjoyed similar rights in Kilkenny and Tipperary, as did the Desmond family in the South, and the De Burgos in Connaught. The O'Neills,[20] O'Donnells, O'Connors, McCarthys, O'Byrnes, and a host of minor chieftains, exercised ecclesiastical patronage in their respective territories. Very often these noblemen in their desire to benefit some religious or charitable institution transferred to it the rights of patronage enjoyed by themselves. Thus the monastery of Old or Great Connal in Kildare controlled twenty-one rectories in Kildare, nineteen in Carlow, one in Meath and one in Tipperary,[21] while the celebrated convent of Grace-Dieu had many ecclesiastical livings in its gift.

Owing to these encroachments the bishop was obliged frequently to approve of the appointment of pastors who were in no way qualified for their position. The lay patrons nominated their own dependents and favourites, while both ecclesiastical and lay patrons were more anxious about securing the revenues than about the zeal and activity of the pastors and vicars. Once the system of papal reservation of minor benefices was established fully in the fifteenth century, the authority of the bishop in making appointments in his diocese became still more restricted. Ecclesiastics who sought preferment turned their eyes towards Rome. If they could not go there themselves, they employed a procurator to sue on their behalf, and armed with a papal document, they presented themselves before a bishop merely to demand canonical institution. Though, in theory, therefore, the bishop was supposed to be the chief pastor of a diocese, in practice he had very little voice in the nomination of his subordinates, and very little effective control over their qualifications or their conduct.

Very often benefices were conferred on boys who had not reached the canonical age for the reception of orders, sometimes to provide them with the means of pursuing their studies, but sometimes also to enrich their relatives from the revenues of the Church. In such cases the entire work was committed to the charge of an underpaid vicar who adopted various devices to supplement his miserable income. Frequently men living in England were appointed to parishes or canonries within the Pale, and, as they could not take personal charge themselves, they secured the services of a substitute. In defiance of the various canons levelled against plurality of benefices, dispensations were given freely at Rome, permitting individuals to hold two, three, four, or more benefices, to nearly all of which the care of souls was attached. In proof of this one might refer to the case of Thomas Russel, a special favourite of the Roman Court, who held a canonry in the diocese of Lincoln, the

prebends of Clonmethan and Swords in Dublin, the archdeaconry of Kells, the church of Nobber, the perpetual vicarship of St. Peter's, Drogheda, and the church of St. Patrick in Trim.[22]

This extravagant application of patronage and reservations to ecclesiastical appointments produced results in Ireland similar to those it produced in other countries. It tended to kill learning and zeal amongst the clergy, to make them careless about their personal conduct, the proper observance of the canons, and the due discharge of their duties as pastors and teachers. Some of them were openly immoral, and many of them had not sufficient learning to enable them to preach or to instruct their flocks. It ought to be remembered also that in these days there were no special seminaries for the education of the clergy. Candidates for the priesthood received whatever training they got from some member of the cathedral chapter, or in the schools of the Mendicant Friars, or possibly from some of those learned ecclesiastics, whose deaths are recorded specially in our Annals. Before ordination they were subjected to an examination, but the severity of the test depended on many extrinsic considerations. Some of the more distinguished youths were helped by generous patrons, or from the revenues of ecclesiastical benefices to pursue a higher course of studies in theology and canon law. As the various attempts made to found a university in Ireland during the fourteen and fifteenth centuries[23] proved a failure, students who wished to obtain a degree were obliged to go to Oxford, from which various attempts were made to exclude "the mere Irish" by legislation,[24] to Cambridge, Paris, or some of the other great schools on the Continent. If one may judge from the large number of clerics who are mentioned in the papal documents as having obtained a degree, a fair proportion of clerics during the fifteenth century both from within and without the Pale must have received their education abroad. Still, the want of a proper training during which unworthy candidates might be weeded out, coupled with the unfortunate system of patronage then prevalent in Ireland, helped to lower the whole tone of clerical life, and to produce the sad conditions of which sufficient evidence is at hand in the dispensations from irregularities mentioned in the /Papal Letters/.

As might be expected in such circumstances, the cathedrals and churches in some districts showed signs of great neglect both on the part of the ecclesiastics and of the lay patrons. Reports to Rome on the condition of the cathedrals of Ardagh and Clonmacnoise[25] indicate a sad condition of affairs, but they were probably overdrawn in the hope of securing a reduction in the fees paid usually on episcopal appointments, just as the account given by the Jesuit Father Wolf about the cathedral of Tuam[26] was certainly overdrawn by Archbishop Bodkin with the object of obtaining papal recognition for his appointment to that diocese. The Earl of Kildare represented the churches of Tipperary and Kilkenny as in ruins owing to the exactions of his rival, the Earl of Ormond, while the latter, having determined for political reasons to accept royal supremacy, endeavoured to throw the whole blame on the Pope. Both statements may be regarded as exaggerated. But the occupation of the diocesan property during the vacancy of the Sees by the king or the nobles, the frequent wars during which the churches were used as store-houses and as places of refuge and defence, the neglect of the lay patrons to contribute their share to the

upkeep of the ecclesiastical buildings, and the carelessness of the men appointed to major and minor benefices, so many of whom were removed during the fifteenth century for alienation and dilapidation of ecclesiastical property, must have been productive of disastrous effects on the cathedrals and parish churches in many districts. Yet it would be a mistake to suppose that such neglect was general throughout the country. The latter half of the fourteenth century and particularly the fifteenth century witnessed a great architectural revival in Ireland, during which the pure Gothic of an earlier period was transformed into the vernacular or national composite style. Many beautiful churches, especially monastic churches, were built, others were completely remodelled, and "on the whole it would not be too much to say that it is the exception to find a monastery or a parish church in Ireland which does not show some work executed at this period."[27]

The disappearance of canonical election, the interference of lay patrons, the too frequent use of papal reservations, and the appointment of commendatory abbots and priors, led to a general downfall of discipline in the older religious orders, though there is no evidence to prove that the abuses were as general or as serious as they have been painted. Even at the time when the agents of Henry VIII. were at work preparing the ground for the suppression of the monasteries, and when any individual who would bring forward charges against them could count upon the king's favour, it was only against a few members in less than half a dozen houses that grave accusations were alleged. Even if these accusations were justified, and the circumstances in which they were made are sufficient to arouse suspicions about their historical value, it would not be fair to hold the entire body of religious in Ireland responsible for abuses that are alleged only against the superiors or members of a small number of houses situated in Waterford or Tipperary. Long before the question of separation from his lawful wife had induced Henry VIII. to begin a campaign in Ireland against Rome, the Mendicant Friars had undertaken a definite programme of reform. In 1460 the Bishop of Killala in conjunction with the Franciscan Friar, Nehemias O'Donohoe, determined to introduce the Strict Observance into the Franciscan Houses,[28] and from that time forward in spite of obstacles from many quarters the Observants succeeded in getting possession of many of the old Conventual Houses, and in establishing several new monasteries in all parts of Ireland, but particularly in the purely Irish districts. The Dominicans, too, took steps to see that the original rules and constitutions of the order should be observed. In 1484 Ireland was recognised as a separate province, though the houses within the Pale were allowed to continue under the authority of a vicar of the English provincial, while at the same time a great reform of the order was initiated. Several houses submitted immediately both within and without the Pale, amongst the earliest of them being Coleraine, Drogheda, Cork, and Youghal. The various religious orders of men did excellent work in preaching, instructing the people, in establishing schools both for the education of clerics and laymen, and in tending to the wants of the poor and the infirm. In the report on the state of Ireland presented to Henry VIII. it is admitted that, though the bishops and rectors and vicars neglected their duty, the "poor friars beggers" preached the word of God.[29] That the people and nobles, both Irish and Anglo-Irish, appreciated fully the labours and services of the Friars is

evident from the number of new houses which they established for their reception during the fifteenth century. The convents of Longford, Portumna, Tulsk, Burishool, Thomastown, and Gola were established for the Dominicans; Kilconnell, Askeaton, Enniscorthy, Moyne, Adare, Monaghan, Donegal, and Dungannon for the Franciscans; Dunmore, Naas, Murrisk and Callan for the Augustinians, and Rathmullen, Frankfort, Castle-Lyons and Galway for the Carmelites.

The abuses that existed in the Irish Church at this period arose mainly from the enslavement of the Church, and they could have been remedied from within even had there been no unconstitutional revolution. As a matter of fact those who styled themselves Reformers succeeded only in transferring to their own sect the main sources of all previous abuses, namely, royal interference in ecclesiastical affairs and lay patronage, and by doing so they made it possible for the Catholic Church in Ireland to pursue its mission unhampered by outside control. It ought to be borne in mind that the faults of certain individuals or institutions do not prove that the whole organisation was corrupt, and that if there were careless and unworthy bishops, there were also worthy men like the Blessed Thaddeus MacCarthy of Cloyne, who though driven from his diocese by the aggression of the nobles, was venerated as a saint both in Ireland and abroad. The great number of provincial and diocesan synods held in Ireland during the period between 1450 and 1530 makes it clear that the bishops were more attentive to their duties than is generally supposed, while the collections of sermons in manuscript, the use of commentaries on the Sacred Scriptures and of concordances, the attention paid to the Scriptures in the great Irish collections that have come down to us, and the homilies in Irish on the main truths of religion, on the primary duties of Christians, and on the Lives of the Irish Saints, afford some evidence that the clergy were not entirely negligent of the obligations of their office. Had the clergy been so ignorant and immoral, as a few of those foisted into Irish benefices undoubtedly were, the people would have risen up against them. And yet, though here and there some ill-feeling was aroused regarding the temporalities, probates, fees, rents, rights of fishing, wills, etc., there is no evidence of any widespread hostility against the clergy, secular or regular, or against Rome. The generous grants made to religious establishments, the endowment of hospitals for the poor and the infirm, the frequent pilgrimages to celebrated shrines in Ireland and on the Continent, the charitable and religious character of the city guilds, and above all the adherence of the great body of the people to the religion of their fathers in spite of the serious attempts that were made to seduce them, prove conclusively enough that the alleged demoralisation of the Irish Church is devoid of historical foundation.

Nor could it be said that the Irish people at this period were entirely rude and uncultured. Though most of their great schools had gone down, and though the attempts at founding a university had failed, learning had certainly not disappeared from the country. Clerics and laymen could still obtain facilities for education at the religious houses, the cathedral and collegiate churches, at the schools of Irish law and poetry, and from some of the learned teachers whose names are recorded in our Annals during this period. Many of the clerics, at least, frequented the English universities or the universities on the Continent. During the fifteenth and sixteenth

centuries one can point to several distinguished Irish scholars such as O'Fihely, the Archbishop of Tuam, who was recognised as one of the leading theological writers of his day, Cathal Maguire the author of the Annals of Ulster, Bishop Colby of Waterford, the author of several commentaries on Sacred Scripture, the well-known Carmelite preacher and writer Thomas Scrope, Patrick Cullen Bishop of Clogher, and his arch-deacon Roderick O'Cassidy, and Philip Norris, the determined opponent of the Mendicants, and the Dominicans John Barley, Joannes Hibernicus, and Richard Winchelsey.[30] The catalogue of the books contained in the library of the Franciscan convent at Youghal about the end of the fifteenth century affords some indication of the attitude of the monastic bodies generally towards education and learning. In addition to the missals, psalteries, antiphonies, and martyrologies, the convent at Youghal had several copies of the Bible together with some of the principal commentaries thereon, collections of sermons by well-known authors, several of the works of the early Fathers and of the principal theologians of the Middle Ages, the Decrees of Gratian, the Decretals and various works on Canon Law, spiritual reading-books, including the life of Christ, and works on ascetic theology, the works of Boetius and various treatises on philosophy, grammar, and music, and some histories of the Irish province of the Franciscans.[31]

Similarly the library of the Earl of Kildare about 1534 contained over twenty books in Irish, thirty-four works in Latin, twenty-two in English and thirty-six in French,[32] while the fact that Manus O'Donnell, Prince of Tyrconnell, could find time to compose a Life of St. Columba in 1532, and that at a still later period Shane O'Neill could carry on his correspondence with foreigners in elegant Latin bears testimony to the fact that at this period learning was not confined to the Pale. Again it should be remembered that it was between the thirteenth and sixteenth centuries that the great Irish collections such as the Book of Lecan, the Book of Ballymote, the Leabhar Breac, the Book of Lismore, etc., were compiled, and that it was about the same time many of the more important Irish Annals were compiled or completed, as were also translations of well-known Latin, French, and English works.[33] ----------

[1] Hardiman, /A Statute of the 40th Year of Edw. III./, p. 4.

[2] /State Papers, Henry VIII./, vol. ii., pp. 1-31 (/State of Ireland and plan for its Reformation/).

[3] Hardiman, op. cit., pp. 46-54.

[4] Theiner, /Vetera Monumenta Hibernorum/, etc., pp. 16, 23.

[5] /Calendar Pap. Documents/, an. 1254.

[6] Hardiman, op. cit., pp. 47-9.

[7] De Burgo, /Hibernia Dominicana/, p. 75.

[8] /State Papers Henry VIII./, xiv., no. 1021.

[9] Mason, /The History and Antiquities of ... St. Patrick's, Dublin/, 1820, p. xviii.

[10] /De Annatis Hiberniae/, vol. i., 1912; vol. ii. (app. ii. /Archive Hib./ vol. ii.).

[11] Theiner, op. cit., 487-8.

[12] Wilkins, /Concilia/, ii., an. 1172.

[13] Carrigan, /History of Ossory/, i., 45-57.

[14] Theiner, op. cit., 261.

[15] Theiner, op. cit., 371. De Burgo, /Hib. Dom./ 68.

[16] /Irish Theol. Quarterly/, ii., 203-19.

[17] Capes, /History of the English Church in the Fourteenth and Fifteenth Centuries/, 1909, p. 222.

[18] Brady, /Episcopal Succession/ (see various dioceses mentioned).

[19] /Ninth Report of Commission on Hist. MSS./, pt. ii., 278.

[20] /Archiv. Hibernicum/, vol. i., 39-45.

[21] Id., app. ii., 40.

[22] /Archiv. Hibernicum/, app. ii., 6.

[23] By John de Lech, Archbishop of Dublin (1312); by his successor, Alexander Bicknor; by the Earl of Desmond in the Parliament at Drogheda (1465); by the Dominicans, 1475; and by Walter Fitzsimons, Archbishop of Dublin (1485-1511).

[24] Green, /The Making of Ireland/, etc., p. 271.

[25] /De Annatis Hiberniae/, i., 155-6.

[26] /Hib. Ignatiana/, 13.

[27] Champneys, /Irish Eccl. Architecture/, 1910, p. 172.

[28] Theiner, op. cit., pp. 425, 436. /Annals F. M./, 1460.

[29] /State Papers Henry VIII./, ii., 15.

[30] /Hib. Dom./, p. 540.

[31] Malone, op. cit., ii., 206 sqq.

[32] O'Grady, /Catalogue of Irish MSS. in British Museum/, p. 154.

[33] Green, op. cit., pp. 261 sqq.

CHAPTER VIII

THE CHURCH IN IRELAND DURING THE REIGNS OF HENRY VIII. AND EDWARD VI. (1509-1553)

See bibliography, chap. vii. /Annals of the F. M./ (ed. O'Donovan), 7 vols., 1851. /Annals of Loch Cé/ (ed. Hennessy), 2 vols., 1871. Theiner, /Monumenta Scotorum/, etc. (/ut supra/). Moran, /Spicilegium Ossoriense/, 3 vols., 1874-85. Publications of Catholic Record Society of Ireland, /Archivium Hibernicum/, 3 vols., 1912-14. /De

Annatis Hiberniae/, vol. i. (Ulster), 1912. /State Papers/, 11 vols., 1832-51 (vols. ii., iii., /Correspondence between the Governments of England and Ireland/, 1515-46). Brewer and Gairdner, /Calendar of Letters and Papers ... of Reign of Henry VIII./, 13 vols., 1862-92. /Calendar of State Papers, Ireland/, vol. i. (1509-1573). /Calendar of State Papers/ (Carew), 1 vol., 1515-1574. Morrin, /Calendar of Patent Rolls/ (Ireland), 1 vol., 1861 (Hen. VIII., Ed. VI., Mary, Elizabeth). Shirley, /Original Letters and Papers in Illustration of the History of the Church of Ireland during the Reigns of Ed. VI., Mary and Elizabeth/, 1851. /Holinshead's Chronicles of England, Scotland, and Ireland/, 6 vols., 1807 (/Chronicle of Ireland/, by Holinshead; Stanyhurst, 1509-47; John Hooker, 1547-86). D'Alton, /History of Ireland/, vol. i., 1903. Bagwell, /Ireland under the Tudors/, 3 vols., 1885-90. Bonn, /Die Englische Kolonisation in Irland/, 2 Bd., 1896. Bellesheim, op. cit. Brenan, /An Ecclesiastical History of Ireland/, 1864. Mant, /History of the Church of Ireland/, 2 vols., 1840. Killen, /The Ecclesiastical History of Ireland/, 2 vols., 1875. Cox, /Hibernia Anglicana/, etc., 1689. /Hibernia Pacata/ (ed. O'Grady, 2 vols., 1896). Ware's /Works/ (ed. Harris, 1764). /Harleian Miscellany/, 10 vols., 1808- 13. Moran, /History of the Catholic Archbishops of Dublin since the Reformation/, 1 vol., 1864. Renehan-McCarthy, /Collections on Irish Church History/, vol. i. (Archbishops), 1861. Brady, /Episcopal Success in England, Scotland, Ireland/, 3 vols., 1876.

When Henry VIII. ascended the English throne, though he styled himself the Lord of Ireland, he could claim little authority in the country. The neglect of his predecessors, the quarrels between the English colonists, especially between the Geraldines and the Butlers, and the anxiety of both parties to ally themselves with the Irish princes, had prevented the permanent conquest of the country. Outside the very limited area of the Pale English sheriffs or judges dare not appear to administer English law; no taxes were paid to the crown; no levies of troops could be raised, and the colonists could only hope for comparative peace by paying an annual tribute to the most powerful of their Irish neighbours. The barony of Lecale in Down paid £40 a year to O'Neill of Clandeboy, Louth paid a similar sum to O'Neill of Tyrone, Meath paid £300 a year to O'Connor of Offaly, Kildare £20 to O'Connor, Wexford £40 to the McMurroughs, Kilkenny and Tipperary £40 to O'Carroll of Ely, Limerick city and county £80 to the O'Briens, Cork £40 to the McCarthys, and so low had the government fallen that it consented to pay eighty marks yearly from the royal treasury to McMurrough.[1]

During the early years of his reign Henry VIII. was so deeply interested in his schemes for subduing France and in continental affairs generally that he could give little attention to his dominions in Ireland. Sometimes the Earl of Kildare was superseded by the appointment of the Earl of Surrey (1520), and of Sir Piers Butler, the claimant to the Earldom of Ormond (1521), and of Sir William Skeffington (1529), but as a general rule Kildare, whether as Deputy or as a private citizen, succeeded in dictating the policy of the government. By his matrimonial alliances with the Irish chieftains, the O'Neills, the MacCarthys, O'Carroll of Ely, and O'Connor of Offaly, his bargains with many of the other Irish and Anglo-Irish nobles, and by his well-known prowess in the field, he had succeeded in making himself much more powerful in Ireland than the English sovereign. But his very success had raised up against him a

host of enemies, led by his old rival the Earl of Ormond, and supported by a large body of ecclesiastics, including Allen, the Archbishop of Dublin, and of lay nobles. Various charges against him were forwarded to England, and in 1534 he was summoned to London to answer for his conduct. Before setting out on his last journey to London he appointed his son, Lord Thomas Fitzgerald (Silken Thomas), then a youth of twenty-one, to take charge of the government. The latter had neither the wisdom nor the experience of his father. Rumours of his father's execution, spread by the enemies of the Geraldines, having reached his ears, despite the earnest entreaties of Archbishop Cromer of Armagh, he resigned the sword of state, and called upon his retainers to avenge the death of the Earl of Kildare (1534).

The rebellion of Silken Thomas forced Henry VIII. to undertake a determined campaign for the conquest of Ireland. His hopes of winning glory and territory in France had long since disappeared. He was about to break completely with Rome, and there was some reason to fear that Charles V. might make a descent upon the English coasts with or without the aid of the King of France. Were an invasion from the Continent undertaken before the conquest of Ireland had been finished it might result in the complete separation of that kingdom from England, and its transference to some foreign power. It was well known that some of the Irish princes were in close correspondence with France and Scotland, that Silken Thomas was hoping for the assistance of the Emperor, and that once England had separated herself definitely from the Holy See, many of the Irish and Anglo-Irish nobles might be induced to make common cause with the Pope against a heretical king. Hitherto the king's only legal title to the Lordship of Ireland was the supposed grant of Adrian IV., and as such a grant must necessarily lapse on account of heresy and schism a new title must be sought for in the complete conquest of the country. The circumstances were particularly favourable for undertaking such a work. The royal treasury was well supplied; England had little to fear for the time being from Francis I. or Charles V., as the energies of both were required for the terrible struggle between France and the Empire; the friends of Ormond and the enemies of Kildare, both Irish and Anglo-Irish, could be relied upon to lend their aid, and even the Irish princes friendly to Kildare might be conciliated by fair promises of reward. Relying upon all these considerations Henry VIII. determined to reduce Ireland to submission, and at the same time to put an end to its religious and political dependence on the Holy See.

William Skeffington was re-appointed Deputy and sent over to quell the rebellion, together with Sir Piers Butler who, in consideration of the bestowal upon him of the territories of the former Earls of Ormond, agreed to resist the usurped jurisdiction of the Pope especially in regard to appointments to benefices[2] (1534). The campaign opened early in 1535, but as the new deputy was physically unable to command a great military expedition, Lord Leonard Grey, the brother-in-law of the Earl of Kildare, was soon entrusted with the conduct of the war. Though in the beginning Silken Thomas had met with success, the news that the rumoured execution of the Earl was untrue, the murder of the Archbishop of Dublin by some of the Geraldine followers, and the excommunication that such a deed involved, disheartened his army and caused many of those upon whom he relied to desert him. At last in August 1535 he surrendered to Lord Grey who seems to have given him a promise of his life, but

Henry VIII. was not the man to allow any obligations of honour to interfere with his policy. After having been kept in close confinement in the Tower for months he and his five uncles were hanged, drawn and quartered at Tyburn (1537). The king's only regret was that the young heir to the Earldom of Kildare was allowed to escape, and the failure to capture his own sister's son was one of the gravest charges brought afterwards against Lord Leonard Grey. As it was, the rebellion was suppressed; O'More of Leix, O'Carroll of Ely, O'Connor of Offaly, and the other Irish adherents of the Geraldines were reduced to submission, and thereby the work of conquest was well begun.

In 1536, as a reward for the services he had rendered and in the hope that he would carry the work of subjugation to a successful conclusion, Leonard Grey was appointed Deputy. Henry VIII. had separated himself definitely from the Catholic Church and had induced a large number of English bishops, ecclesiastics, and nobles to reject the jurisdiction of the Pope in favour of royal supremacy. In England he owed much of his success to the presence of Cranmer in the metropolitan See of Canterbury, and to the skill with which his clever councillors manipulated Parliament so as to ensure its compliance with the royal wishes. Hence, when he determined to detach Ireland from its allegiance to Rome, he resolved to utilise the Archbishop of Dublin and the Irish Parliament. Fortunately for him Dublin was then vacant owing to the murder of Archbishop Alen during the Geraldine rebellion (1534). After careful consideration he determined to confer the archbishopric on George Browne, an Augustinian friar, who had merited the royal favour by preaching so strongly against Henry's marriage with Catharine of Aragon that most of the congregation rose in a body and left the church. According to the imperial ambassador it was Browne who officiated at the secret marriage of the king to Anne Boleyn, and it was on that account he was created provincial of the English Augustinians and joined in a commission with Dr. Hilsey, the provincial of the Dominicans, for a visitation of the religious houses in England.[3] The new archbishop received his commission from the king without reference to the Pope, and his consecration from Cranmer (1536). Browne was in every way a worthy representative of the new spiritual dictator and of the "new learning." His nomination to Dublin was condemned by the people of Lincoln because he had abandoned the Christian faith. Hardly had he arrived in Dublin when he found himself at loggerheads with Lord Grey, who treated him with studied contempt and took very violent measures to cool his religious ardour. He was assailed by his royal spiritual head for his arrogance and inefficiency, and warned to take heed lest he who had made him a bishop might unmake him. By his fellow-labourers and associates in the work of spreading the gospel, Staples of Meath and Bale of Ossory, he was denounced as a heretic, an avaricious dissembler, a drunkard, and a profligate, who preached only two sermons with which the people became so familiar that they knew what to expect once he had announced his text.[4]

Before the arrival of Browne in Ireland careful steps were taken by the deputy and the Earl of Ormond to ensure that only trustworthy men should be elected as "knights of the shire," while the lawyers were hard at work both in England and Ireland drafting the laws that Parliament was expected to ratify. The assembly opened on Monday, 1st May, at Dublin, was adjourned (31 May) to Kilkenny, then to Cashel (28

July), then to Limerick (2 Aug.), from which place it returned once more to Dublin. The next session opened in September (1536), and after several short sessions and long adjournments it was prorogued finally in December 1537. As far as can be seen no representatives attended this parliament except from the Pale and from the territories under the influence of the Earl of Ormond and his adherents. It was in no sense an Irish Parliament, as not a single Irish layman took part in it, nor could it be described accurately even as a Parliament of Leinster. It is generally assumed that together with the Act of Attainder against the party of Kildare all the legislation passed already in England, including the Act of Succession and of Royal Supremacy, the Acts against the authority of the Bishop of Rome, against appeals to Rome, and transferring to the king the First Fruits, etc., were passed always immediately and with very little opposition except a strong protest lodged by Archbishop Cromer of Armagh. But an examination of the correspondence that passed between the authorities in Dublin and in London reveals a very different story.

It is true that on the 17th May Brabazon informed Cromwell that the Act of Attainder against Kildare, the Acts of Succession, of Royal Supremacy and of First Fruits had already passed the Commons, and that on the 1st June the Deputy wrote that all these, including the Act against Appeals to Rome, had passed the Parliament, and that in the same month Cromwell expressed his thanks to some of the Irish officials for having secured the assent of Parliament to all these measures. But in spite of these assurances of victory secured before Parliament had been a month in session, there must have occurred some very serious hitch in the programme. In October 1536, Robert Cowley wrote to Cromwell to complain that certain acts had been rejected owing to the action of some "ringleaders or bellwethers," who had decided to send a deputation to England to argue stiffly against them, that Patrick Barnewall, the king's sergeant was on the side of the discontents, and that he declared in the House of Commons that "he would not grant that the king had as much spiritual power as the Bishop of Rome, or that he could dissolve religious houses." As nothing could be done, the session was adjourned till February (1537), when the Deputy announced that owing to the confusion caused in the Commons by the reported return of Silken Thomas, and to the boldness of the spirituality on account of the religious rebellion which had taken place in England, no measures could be passed, and a further adjournment was necessary. When Parliament met again matters were still going badly for the king. The Deputy informed Cromwell that the spirituality was still obstinate; that the spiritual peers refused to debate any bill till they should receive satisfactory assurances that the spiritual proctors or representatives of the clergy should be allowed to vote, and that as the Parliament had refused to pass the bill imposing a tax of one-twentieth of their annual revenues on the holders of benefices, he was obliged to adjourn till July. He warned Cromwell that as the proctors and the bishops had formed a combination little could be passed until the proctors were deprived of their votes, and he suggested that as a means of overcoming the resistance of the spirituality the king should send over a special commissioner to be present at the opening of the next session.

Acting on this suggestion a royal commission, consisting of Anthony St. Leger, George Poulet, Thomas Moyle, and William Berners, was dispatched to Ireland (July

1537) to deliver the following acts to be passed by Parliament, namely, acts depriving the spiritual proctors of their right to vote, and against the power of the Bishop of Rome, together with acts giving to the king the tax of one-twentieth on benefices, enforcing the use of the English language and dress, and prohibiting alliances with the "wild Irish." At the same time Henry wrote to the Deputy and council warning them to obey the instructions of the commissioners, and to the House of Lords ordering them to ratify the bills to be submitted, and telling them that if any member be unwilling to do so, "we shall look upon him with our princely eye as his ingratitude therein shall be little to his comfort." When Parliament met again in October the spiritual proctors were deprived of their votes, and it was only then that the Act against the Bishop of Rome could be carried. The threats of royal vengeance seem to have produced the same effects in the Dublin assembly as in the English Parliament. Probably, as happened in England, those who could not agree with the measures were content to absent themselves during the discussions.[5] The truth is, therefore, that Archbishop Cromer was supported in his attitude by the bishops and the representatives of the clergy, and that the acts against the jurisdiction of the Pope were carried against the wishes of the spirituality.

But the placing of the acts upon the statute book did not mean that the cause of the king had triumphed. Steps must be taken to enforce the laws against the jurisdiction of the Pope. Already in October 1537 the royal commissioners, who had been sent over by the king to overawe the Parliament, undertook a judicial tour through the south-eastern portion of Ireland to inquire into the grievances of the people, and especially to secure grounds of complaint against the ecclesiastics, so as to enable the government to overcome the opposition of their representatives in Parliament. During their journey they held sessions at Kilkenny, Waterford, Wexford, New Ross, Clonmel, and Tipperary. In the circumstances it is not difficult to understand how easy it was for them to find individuals ready to come forward with accusations both against the lay lords and the clergy, especially as the commissioners in some cases at least suggested the points of complaint. In Wexford, for example, the crime alleged against the Dean of Ferns and three other priests of having "pursued" Bulls from Rome has a very suspicious ring. Against many individual clerics, including the Archbishop of Cashel and the Bishop of Waterford, the priors and heads of several religious houses and certain rectors and vicars, it was alleged that they levied various exactions like the lay lords, that they demanded excessive fees on the occasion of their ministrations, and that they asserted claims to fishing weirs, etc., to which they were not entitled. If it be borne in mind that the bishops, priors, and heads of religious houses were also landlords like the lay lords, against whom charges of almost similar exactions were lodged, the presentments of grievances at least in this respect were not very convincing. For the same reason the fact that the Archbishop of Cashel was said to have been in a boat which robbed a boat from Clonmel and that he caused a riot in the latter city, that the Bishop of Waterford and Lismore took bribes, or that Purcell, the Bishop of Ferns, joined with O'Kavanagh in an attack upon Fethard need not cause any surprise. It was only against James Butler, the Cistercian abbot of Inislonagh and his monks, the Augustinian monks of Athassel, the Carmelite priors of Lady Abbey near Clonmel and Knocktopher, and the abbot of Duisk that

grave charges of immorality were made. Even if these charges were true, and the evidence is by no means convincing, they serve only to emphasise the downfall of discipline caused in the individual religious houses by the interference with canonical election, and the intrusion oftentimes by family influence of unworthy men as abbots or commendatory abbots.[6]

Henry VIII. was anxious to complete the conquest of Ireland even before he had broken with the Pope, but after the separation of England from Rome he realised more clearly the dangers that might ensue unless the Irish and Anglo-Irish princes were reduced to submission. As things stood, Ireland instead of contributing anything was a constant source of loss to the royal treasury, and, were an invasion attempted by some of his Continental rivals, Ireland might become a serious menace to England's independence. The complete overthrow of the Geraldine rebellion (1535) had prepared the way for a more general advance, but the failure of the Deputy to capture the young heir to the Earldom of Kildare was as displeasing to the king personally as it was dangerous to his plans. The boy was conveyed away secretly by his tutor, a priest named Leverous, who was advanced afterwards to the See of Kildare, and was brought for safety to the territory of O'Brien of Thomond. When Thomond was threatened by the rapid advance of the Deputy, the young Earl of Kildare was conveyed to his aunt, Lady Eleanor MacCarthy of Cork, who on her marriage to Manus O'Donnell, Prince of Tyrconnell, brought the boy with her to Donegal (1538).

O'Connor of Offaly and O'Carroll had been compelled to sue for peace (1535). In the following year Lord Grey made a tour of the south- eastern parts of Leinster, proceeded through Tipperary, and directed his march against the strongholds of O'Brien of Thomond. Partly by his own skill and boldness, partly also by the treachery of one of the O'Briens, he succeeded in capturing some of the principal fortresses including O'Brien's Bridge. Had it not been for a mutiny that broke out among his soldiers Lord Grey might have succeeded in forcing O'Brien to make terms, but, as it was, he was obliged to desist from further attack and to retreat hastily to Dublin. O'Brien soon recaptured the positions he had lost; O'Connor of Offaly took the field once more, and the unfortunate Deputy, harassed by his enemies on the privy council and blamed by the king for his failure to get possession of the hope of the Geraldines, found himself in the greatest difficulties. But he was a man of wonderful military resource, and knowing well that failure must mean his own recall and possibly his execution, he determined to put forth all his energies in another great effort. So long as the Irish in the Leinster districts were active it was little use for him to undertake dangerous expeditions towards the more remote districts, and for this reason he turned his attention to O'Connor of Offaly. Before many months elapsed he forced the MacMurroughs, the Kavanaghs, the O'Moores, the O'Carrolls, MacGillapatrick of Ossory, and O'Connor to sue humbly for peace.

But many difficulties still remained to be overcome before he could boast of final victory. Con O'Neill, Manus O'Donnell, and many of their adherents were still threatening; Desmond, O'Brien of Thomond and the nobles of Munster generally could not be relied upon; while the Irish and Anglo-Irish of Connaught paid but scanty

respect to the king or his deputy. Rumours, too, were in circulation that North and South were about to unite in defence of the heir of the Geraldines, that secret communications were carried on with Scotland, France, and the Empire, and that the Pope was in full sympathy with the movement.[7] Surrounded by discontented subordinates, who forwarded complaints almost weekly to England in the hope of securing his disgrace, Lord Grey was resolved to push forward rapidly even though the campaign might prove risky. In 1538 he marched south and west, passing by Limerick through the territories of O'Brien and Clanrickard to Galway, having received everywhere the submission of the princes except of O'Brien and the Earl of Desmond. In the following year (1539) he directed his attention towards the North, but O'Neill and O'Donnell, having composed their differences, and having strengthened themselves by an understanding with the Earl of Desmond and the adherents of the Geraldines, marched south in the hope of joining hands with their allies. Having learned when in the neighbourhood of Tara that the Deputy was on the march against them, they retreated towards the confines of Monaghan, where they were overtaken and routed at Bellahoe near Carrickmacross (1539). Their defeat seems to have destroyed the spirit of the Irish princes. One by one they began to beg for terms, so that before Lord Grey was recalled in 1540 he had the satisfaction of knowing that he had vindicated English authority in the country. Instead of rewarding his deputy for all that he had done, Henry VIII., giving credence to the stories circulated by Archbishop Browne and others that Lord Grey had connived at the escape of the young Kildare and had supported the cause of Rome, committed him to the Tower, and later on he handed him over to the executioner (1541).

Meanwhile how fared it with the new archbishop who had been sent over to enlighten the Irish nation? In July 1537 Henry felt it necessary to reprove his spiritual representative for his lightness of behaviour, his vain-glory, and his remissness in preaching the pure word of God, and to warn him that if he did not show himself more active both in religious matters and in advancing the king's cause he should be obliged to put a man of more honesty in his place.[8] The archbishop issued a form of prayer in English to be read in all the churches, extolling royal supremacy and denouncing the Pope, but it produced no effect. Once, when the archbishop attended High Mass in St. Andrew's, the rector mounted the pulpit to read the prayer, but immediately one of the canons gave a signal to the choir to proceed, and the archiepiscopal message was lost to the congregation. In January 1538 he acknowledged that though the influence of the king ought to be greatest within the city and province of Dublin, yet, notwithstanding his gentle exhortation, his evangelical instruction, his insistence on oaths of obedience, and his threats of sharp correction, he could not induce any one to preach the word of God or the just title of the king; that men who preached formerly till Christians were tired of them, would not open their lips except in secret, when they gave full vent to their opinions and thereby destroyed the fruits of the labour of their archbishop; that the Observant Friars were the worst offenders of all, refusing to take the oath and showing open contempt for his authority; that he could not persuade the clergy to erase the name of the Pope from the Canon of the Mass and was obliged to send his own servants to carry out this work; that a papal indulgence had been published in Ireland of which

many had hastened to take advantage by fulfilling the conditions laid down, namely, fasting on Wednesday, Friday, and Saturday and receiving Holy Communion, and that all bishops "made by the king" except himself were repelled to make way for these appointed by Rome.[9] Although the chapter in Dublin had been packed carefully to prepare the way for the election of Browne, the archbishop was forced to complain that he had been withstood to his face by one of the prebendaries, James Humfrey, and that of the staff of the cathedral, twenty-eight in number, there was scarce one "that favoured the word of God."[10]

In a letter sent to Cromwell (1538) Agarde informed him that the power of the Bishop of Rome was still strong, that the Observant Friars upheld it boldly, that nobody dared to say anything against them as nearly all in authority were in favour of the Pope except Browne, Alen, Master of the Rolls, Brabazon the Vice-Treasurer, and one or two others of no importance, and that the temporal lawyers who drew the king's fees could not be trusted.[11] Everywhere throughout the country it was the same story. Those who should set an example to others resorted to the Friars for confession, and were encouraged in their boldness; Nangle, who had been intruded into the See of Clonfert by the king, was driven out by Roland de Burgo, the papal bishop, and dared not show himself in his diocese; never was there so much "Rome-running" in the country, four or five bishops together with several priors and abbots having been appointed lately by the Pope, while a friar and a bishop, probably Rory O'Donnell of Derry, who had been arrested, were tried and acquitted at Trim,[12] because the people in authority were hypocrites and worshippers of idols.[13]

From 1536 therefore till 1538 the new gospel had made small progress in Ireland. Had the men entrusted with its propagation been of one mind they might have used the king's power with some effect, but the Deputy, the Archbishop of Dublin, and the Bishop of Meath were at each others throats almost continually. The Deputy treated the archbishop with studied contempt, spoke of him as a "poll-shorn" friar and obstructed his plans. According to Browne and his friends Alen and Brabazon, the Deputy befriended the papists and the friars, knelt in prayer before the shrine of Our Lady of Trim, and supported a bishop appointed by Rome against one appointed by the king. Edward Staples, a former protégé of Cardinal Wolsey, by whom he was recommended to Rome, was appointed by the Pope to Meath in 1530, but being a steady opponent of the Geraldines he was obliged to escape to his own country in 1534. There he took the side of the king against Clement VII., and on his return to Ireland, after he had received a sharp admonition from the king, he undertook to preach in favour of royal supremacy. But his views did not coincide with those of the Archbishop of Dublin. The latter was obliged to complain that Staples denounced him as "a heretic and a beggar with other rabulous revilings," and that not content with this, he preached in the church at Kilmainham where "the stations and pardons" were used as freely as ever, and attacked the archbishop before his face with "such a stomach as I think the three- mouthed Cerberus of hell could not have uttered it more viperously." He glossed every sentence (of the archbishops sermons) after such opprobrious fashion that every honest ear glowed to hear it, and "he exhorted them all, yea, and so much as in him lay he adjured them, to give no credence to (their spiritual guide) whatsoever he might say, for before God he would not."[14] The

Bishop of Meath replied that the archbishop had given himself such airs that every honest man was weary of him and that he (the bishop) had come to the conclusion that "pride and arrogance hath ravished him from the right remembrance of himself." In reply to Browne's covert hint that Staples was conniving at the authority of the Pope, the latter charged the archbishop, whom he described as his purgatory, with abhorring the Mass, and prayed that an inquiry should be held.[15] An attempt was made to patch up the quarrel, but the archbishop was far from content that his authority had not been upheld.[16]

For so far the Reformation had made little or no progress in Ireland, and apparently bishops, clergy and people were still strong on the side of Rome. But during the successful military expedition undertaken by Lord Grey into the centre, south, and west of Ireland in 1538, he claimed to have achieved great success. In March 1538 O'Connor of Offaly made his submission, promising at the same time not to admit the jurisdiction of the Roman Pontiff or to allow others to admit it.[17] The Earl of Ormond and the Butler family generally were attached to the king's cause on account of their opposition to the Geraldines. O'Carroll of Ely agreed to accept the king's peace, but there is no evidence that he agreed to the king's religious programme. At Limerick, according to the Deputy's own story, the mayor and corporation took the oath of Royal Supremacy, and renounced the authority of the Pope, as did also the bishop, who promised furthermore to induce his clergy to follow this example. Similarly in Galway, he assured the king, he had sworn the mayor, corporation and bishop to resist the usurped jurisdiction of the Bishop of Rome.[18] But as against the trustworthiness of this report it should be remembered that it is contradicted in very important particulars by another official account of the proceedings written by eye-witnesses, that the Deputy's doings on this occasion were belittled and disparaged by the privy council, that Browne charged Grey with having deposed, while he was in the neighbourhood of Limerick, a bishop appointed by the king to make room for a Franciscan friar provided by the Pope,[19] and with having supported the Mayor of Limerick, who was a strong adherent of the Geraldines, that according to the same authority, while Grey was in Galway he entertained right royally a bishop, probably Roland de Burgo, "who had expelled the king's presentee from the Bishopric of Clonfert," and that, finally, in Robert Cowley's opinion Grey's expedition had for its object not so much the extension of the king's territory as the formation of a Geraldine League amongst the Irish and Anglo-Irish of the South and West to support O'Neill and O'Donnell.[20]

It is important to bear in mind that the highest English officials in Ireland at this period were divided into two factions, one favouring the Deputy, and another attempting to secure his downfall by charging him with being too friendly towards the Papists and the Geraldines. The leaders of the latter section, and, according to a trustworthy witness, the only men in authority who favoured the campaign against the Pope were Browne, Alen, the Master of the Rolls, Brabazon, the Vice-Treasurer, and one or two others, amongst whom might be reckoned Aylmer the Chief Justice.[21] They were annoyed at the reported success of Lord Grey in 1538, and however much they tried to disparage it, they felt that unless they could accomplish something remarkable for the king's cause the triumph of the Deputy was assured.

Early in December 1538 a message had been received containing "an advertisement for the setting forth of the Word of God, abolishing of the Bishop of Rome's usurped authority, and extinguishing of idolatry."[22] Immediately the members of the council hostile to Lord Grey saw their opportunity of scoring a signal victory. If they could not penetrate into the North or West they determined to make an excursion into the "four shires above the Barrow" to assert the king's supremacy, "but also to levy the first fruits and twentieth part with other of the king's revenue." Leaving Dublin towards the end of December they proceeded first to Carlow, where they were entertained by Lord James Butler, and thence to Kilkenny, where they were welcomed by the Earl of Ormond. On New Year's Day the archbishop preached to a large audience setting forth the royal (or rather Cromwell's) Injunctions (1536), several copies of which were supplied to the bishops and dignitaries of the diocese for the use of the clergy. Something similar was done in Ross, Wexford, and Waterford, except that in the latter place they hanged a friar in his habit, and ordered that his corpse should be left on the gallows "for a mirror to all others of his brethren to live truly." Next they visited Clonmel, in which town according to their own story they achieved their greatest success. "At Clonmel was with us two archbishops and eight bishops, in whose presence my Lord of Dublin preached in advancing the King's Supremacy, and the extinguishment of the Bishop of Rome. And, his sermon finished, all the said bishops, in all the open audience, took the oath mentioned in the Acts of Parliament, both touching the king's succession and supremacy, before me, the king's chancellor; and divers others present did the like."[23]

Though, as shall be seen, there was probably some foundation for this report, there are many things about it which would seem to indicate that its authors were guilty of gross exaggeration. In the first place it should be noted that though it is headed "The Council of Ireland to Cromwell," it is signed only by Browne, Alen, Brabazon, and Aylmer, the sworn enemies of the Deputy, and the very men who had denounced him for magnifying his success in the previous year. Secondly, it deals only in generalities, giving no particulars about the names of the archbishops or bishops who were alleged to have been present, though such details would have been of the highest importance. Thirdly, as can be seen from the correspondence of the period, Browne was not accustomed to hide his merits or his services, and yet in a personal letter written to Cromwell a week later he merely states that during the month he spent in Munster "he did not only preach and set forth the word of God, but also my master, the King's Highness most goodly purpose."[24] Lastly, it should not be forgotten that, though Browne and his friends claim to have been honoured with the presence of the bishops from the entire province of Munster, yet at that time the Earl of Desmond and his adherents, O'Brien of Thomond, the MacCarthys and nearly all the Irish and Anglo-Irish nobles of the province, with the exception of the Ormond faction which controlled only a portion of south-eastern Munster, were still loyal to Rome. The object of the report, then, seems to have been to destroy the influence of the Deputy and the effect of his victory, by showing what his opponents had effected and could effect if only their hands were not tied by the action of a superior who was leagued with the Papists and the enemies of the crown. Any one acquainted with the miserable intrigues and petty jealousies revealed by the official correspondence of

the period can have no difficulty in believing that the authors of this report would have had little scruple in departing from the truth.

Though Browne, like his masters Cromwell and Cranmer, was inclined to push forward rapidly with his radical schemes of reform, yet, well aware of the state of feeling in Dublin and throughout the country, he feared to give offence by proceeding at once to extremes. At first he contented himself with issuing the "bedes" or a form of prayer for the king as supreme head of the church, for Prince Edward, for the Deputy, council, and nobles, and for the faithful departed. Encouraged, however, by the wholesale attack on images and pilgrimage shrines begun in England (1538), he determined to undertake a similar work in Ireland in the same year. But such a work proved to be so distasteful to the people that he was obliged to deny that he had any intention of pulling down the image of Our Lady of Trim or the Holy Cross in Tipperary, though in his letter to Cromwell he admitted that "his conscience would right well serve him to oppress such idols."[25] In August of the same year Lord Butler reported to Cromwell that the vicar of Chester announced in the presence of the Deputy, the archbishop, and several members of the council that the king had commanded that images should be set up again and worshipped as before, whereupon the Deputy remained silent, but some of the others answered, that if the vicar were not protected by the presence of the Deputy they "would put him fast by the heels," as he deserved grievous punishment.[26] In October Lord Grey, the Archbishop of Dublin, and others attended the sessions at Trim for the trial of a bishop and of a Franciscan friar, and, to the no small indignation of the archbishop, Lord Grey visited the shrine of Our Lady of Trim to pray before the image.[27] The encouragement given to Browne and his friends by Cromwell's instructions (Dec. 1538) strengthened them to continue their campaign "for the plucking down of idols and the extinguishing of idolatry." The shrine of Our Lady at Trim was destroyed; the Staff of Jesus was burned publicly; the Cross of Ballybogan was broken, and a special commission was established to search for and to destroy images, pictures, and relics.[28] Even the Deputy, who was accused of favouring idols and papistry, had already despoiled the Cathedral of Down, the monastery of Killeigh and the collegiate church of Galway, though in all probability this action was taken not so much out of contempt for the practices of the Church as with the hope of raising money to pay his troops, and of securing the favour of the king.

In England Henry VIII. had turned his attention almost immediately after the separation from Rome to the suppression of the monasteries and religious houses. This step was undertaken by him, partly because the religious orders were the strongest and most energetic supporters of the Pope, and partly, also, because he wished to enrich the royal treasury by the plunder of the goods and possessions of the monasteries. In England, however, some form of justice was observed; but in Ireland no commission was appointed to report on the condition of the monasteries or convents, and no opportunity was given them to defend themselves against the slanderous statements of officials, who were thirsting to get possession of their lands and their revenues. According to the estimate given by De Burgo, there were in Ireland at the time of Henry VIII. two hundred and thirty-one houses of the Canons Regular of St. Augustine, thirty-six houses belonging to the Premonstratensians,

twenty-two of the Knights of St. John, fourteen to the Trinitarians or Crouched Friars, nine to the Benedictines, forty- two to the Cistercians, forty-three to the Dominicans, sixty-five to the Franciscans, twenty-six to the Hermits of St. Augustine, twenty- five to the Carmelites, and forty-three belonging to various communities of Nuns.[29] Though in many particulars this summary is far from being accurate, it may be taken as giving a fairly correct idea of the number of religious houses at the period. Many of these institutions were possessed of immense wealth, derived for the most part from lands and church patronage. According to a return drawn up in 1536 the annual revenue of the religious houses in Meath was set down at £900 Irish money, in Dublin at £900, in Louth at £600, and in Kildare at £255. If steps were taken to suppress immediately the houses within these four shires it was reckoned that the king might secure an annual revenue of £3,000, but if the communities concerned got warning of the danger it was thought that the king would lose £1,000 of this.[30]

By Henry's orders steps were taken in 1536 to secure the approval of Parliament for the suppression of the monasteries, but though the Abbey of St. Wolstan near Leixlip, belonging to the Canons Regular of St. Victor was suppressed, both the spiritual and the lay peers together with the proctors of the clergy offered a strenuous opposition to the attack on the religious establishments. They knew better than the English officials the work that was being done by many of these institutions for religion, education, and hospitality, as well as for the comfort of the poor and the infirm. In October 1537, however, an act was passed for the suppression of Bective, St. Peter's beside Trime, Duisk, Duleek, Holmpatrick, Baltinglass, Taghmolin, Dunbrody, Tintern, and Ballybogan. Their lands, houses and possessions generally were to be vested in the king, and a pension was to be secured to the abbots and priors.[31] Together with these, eight abbies mentioned in a special commission under the great seal were suppressed.[32]

The other religious houses, alarmed by the course of proceedings both in England and at home, began to cut down the timber on their properties, to dispose of their goods, to hide their valuable church plate, and to lease their farms. Urgent appeals were sent to Cromwell from Archbishop Browne and others, requesting that a commission should be issued instantly for the suppression of the monasteries and convents. Henry VIII. and Cromwell were nothing loath to accede to these demands, particularly as some of the Mendicants had been very zealous in defence of the rights of the Pope; and accordingly a royal commission was addressed to the Archbishop of Dublin, John Alen Chancellor, William Brabazon Vice-Treasurer, Robert Cowley Master of the Rolls, and Thomas Cusake empowering them to undertake the work of suppression (April 1539). "From information of trustworthy persons," it was stated, "it being manifestly apparent that the monasteries, abbies, priories and other places of religious or regulars in Ireland, are at present in such a state that in them the praise of God and the welfare of man are next to nothing regarded; the regulars and nuns dwelling there being so addicted, partly to their own superstitious ceremonies, partly to the pernicious worship of idols, and to the pestiferous doctrines of the Romish Pontiff, that, unless an effective remedy be promptly provided, not only the weak lower order, but the whole Irish people, may be speedily infected, to their total destruction by such persons." To prevent such a calamity the king resolved to take

into his hands the religious houses and to disband the monks and nuns, for which purpose he commanded the commissioners to notify his wishes to the heads of the religious houses, to receive their resignations and surrender of their property, to offer to those who surrendered willingly a benefice or a pension, and "to apprehend and punish such as adhere to the usurped authority of the Romish Pontiff and contumaciously refuse to surrender their houses."[33] It should be noted that from the terms of this commission it is clear that no serious abuses or irregularities could have been charged against the religious houses, else in the decree condemning them to extinction something more serious would have been alleged to their charge than adherence to their own superstitious ceremonies, to the worship of idols, and to the Roman Pontiff. A month later Alen, Brabazon, and Cowley were appointed to survey and value the rents and revenues of the dissolved monasteries, to issue leases for twenty-one years of both their spiritualities and temporalities, to reserve for the king the plate, jewels, and ornaments, and to grant to the monks and nuns pensions for their maintenance.[34]

Although many members of the privy council in Ireland had petitioned more than once for such a commission, yet when rumours reached Dublin that it had been granted, a request was forwarded from the council to Cromwell begging him to spare St. Mary's Abbey Dublin, Christ's Church, Grace-Dieu, Conall, Kells (Co. Kilkenny), and Jerpoint, on the ground amongst others that "in them young men and children, both gentlemen children and others both of man kind and woman kind, be brought up in virtue, learning and in the English tongue and behaviour, to the great charge of the said houses; that is to say, the woman kind of the whole Englishry of this land, for the more part, in the said nunnery, and the man kind in the other said houses."[35] This petition received but scant consideration, and no wonder; because, although the Archbishop of Dublin had agreed to it, he wrote on the same day to Cromwell asking him for the lands of Grace-Dieu,[36] and, according to a letter addressed to Cromwell by another prominent Irish official, the Deputy at that very time "had obtained from the abbot of St. Mary's leases of all the good lodgings in the monastery, and of the farms of Ballyboghill and Portmarnock on an agreement evidently meant to defraud the king."

Hardly had the commission been received than Browne and his companions went to work in good earnest to carry out the task entrusted to them. The superiors of most of the monasteries and convents situated within the Pale or in the territories dominated by the Ormond faction surrendered their houses at the first summons. Not even the Abbey of St. Mary's, which petitioned for mercy on the ground that it kept open house for poor men, scholars, and orphans, was spared,[37] nor the priory of Conall, which boasted that though it lay among the wild Irish it had never any brethren unless they belonged to the "very English nation."[38] During the years 1539, 1540, and 1541 nearly all the monasteries and convents in the territories within the jurisdiction of the king were suppressed. Amongst the communities and institutions that suffered were St. Mary's and the Abbey of St. Thomas the Martyr, the Carmelite, Dominican and Franciscan houses of Dublin; the Hospital of St. John and the Augustinians and Franciscans of Naas, the Priories of Conall and Clane, the Hospital of Castledermott, the Dominicans of Athy; the Franciscans of New Abbey,

the Carmelites of Cloncurry, the Abbey of Baltinglass, and the College of Maynooth, the Priory of St. John in Kilkenny together with the houses of the Franciscans, and Dominicans, and the Hospital for Lepers near the same city, Jerpoint, Inistoge, Kells (Co. Kilkenny), the Carmelites of Leighlin Bridge, Knocktopher, Thurles, Clonmel, the Augustinians of Callan, Tipperary and Fethard, the Franciscans of Cashel and Clonmel, the monastery of Duisk, Hore Abbey, Kilcool and Inislonagh, Mellifont, the Abbey of the Blessed Virgin Mary near Trim, and of Kells, the Priories of St. Fechin at Fore, and of Mullingar, the Hospital of St. John of Jerusalem at Kilmainham, together with several other religious houses at Louth, Dundalk, Drogheda, Waterford, and Carlow. At the same time most of the convents within the English sphere of influence surrendered their houses and possessions, amongst the last to do so being the celebrated convent of Grace-Dieu.[39]

As a rule whenever a house was suppressed a pension was assigned to the superior, to be paid out of the tithes of some of the ecclesiastical livings in the gift of the monastery or priory. The amount of the pension depended to some extent upon the value of the property which was owned by the particular house. The Abbot of St. Thomas the Martyr's, Dublin, received £42 Irish, the Abbot of Mellifont £40, the Prior of Fore £50, the Abbot of Jerpoint £10, the Prioress of Grace-Dieu £6, the Abbess of Grane £4, and the Prioress of Termonfechin £1 6s. 8d., etc. Grants were also made to the members of the suppressed communities, but very frequently these were very small. Of the community of Mellifont one received £4, two £3 6s. 8d., two £2 13s. 4d., six £2, and two £1, while five of the community at Granard received 13s. 4d., and some from other institutions received only 4s. Many of the superiors and religious merely threw off the habit of their order to become secular clergymen, and to accept a rectory or vicarage in some of the churches over which their community had enjoyed the rights of patronage.[40]

Long before the commission for suppression arrived the scramble for a share in the plunder had begun. In this contest the Deputy, Archbishop Browne, and the principal members of the privy council led the way. John Alen, Master of the Rolls, was the first to profit by the spoliation of the religious houses by getting possession of the property of St. Wolstan's (1536), Lord Grey secured for himself the goods and possessions of the Convent of Grane. The Earl of Ormond and the Butler family generally enriched themselves out of the lands of the monasteries situated in the south-eastern portion of Ireland, as did also a host of hungry officials and gentlemen in different parts of Ireland, such as the Cowleys, Alens, St. Legers, Lutrells, Plunketts, Dillons, Nugents, Prestons, Berminghams, Townleys, Aylmers, Flemings, Wyses, Eustaces, Brabazons, etc.[41] Even Patrick Barnewall, who had resisted so strenuously the suppression of the monasteries in 1536, could not resist the temptation of sharing in the plunder. He secured for himself a large portion of the lands and advowsons of the Convent of Grace-Dieu. In this way the Anglo-Irish nobles were bribed into acquiescence with the king's religious policy, and were enabled to transmit to their descendants immense territories over which they were to rule as hereditary landlords long after the origin of their title had been forgotten. Similarly, in order to put an end to the opposition of the city authorities, which had good ground to complain of the suppressions of houses that were doing so much in the cause of

charity and education, large grants were made to the corporations of Dublin, Waterford, Limerick, Clonmel, etc. Wealthy merchants who had money to invest were not slow in coming forward to secure leases of portions of the monastic land and thereby to lay the foundations of a new so-called aristocracy. The gold and silver ornaments, the sacred vessels, the bells, and the church plate generally were sold for the benefit of the king, but the officials were never particularly careful about making the proper returns. From a partial account given by the commissioners in 1541 it appeared that from the sales of the jewels, reliquaries, pictures, and goods of the monasteries they had received over £2,500 (Irish) of which they had given close on £500 to the superiors, servants, etc., and retained £375 as travelling expenses.[42] With the submission of the Earl of Desmond, O'Brien of Thomond, O'Donnell, etc., a more determined campaign was initiated for the total destruction of the religious houses, and particularly of those belonging to the Mendicants, not merely in the Pale but throughout Ireland. A special commission was issued (Aug. 1541) to the Earl of Desmond and others "to take inventories of, to dissolve, and to put in safe custody, all religious houses in Limerick, Cork, Kerry, and Desmond." In return for his activity the Earl of Desmond was rewarded with several grants of monastic land, and even O'Brien did not think it beneath him to share in the plunder. In some places, as for instance in Monaghan, the Franciscan Friars were put to death. But in the Irish districts generally the decree of suppression was not enforced, and even in the English portions of the country the suppression of the monasteries did not mean the extinction of the monks. The Franciscans and Dominicans in particular seem to have been almost as numerous at the end of the reign of Henry VIII. as they had been before he undertook his campaign against Rome.

The whole story of these sad years is summarised in a striking if slightly exaggerated fashion by the Four Masters. "A heresy and new error," they say, "sprang up in England through pride, vain-glory, avarice, and list, and through many strange sciences, so that the men of England went into opposition to the Pope and to Rome. . . . They styled the king the chief head of the Church of God in his own kingdom. New laws and statutes were enacted by the king and council according to their own will. They destroyed the orders to whom worldly possessions were allowed, namely, the Monks, Canons, Nuns, the Crouched Friars, and the four Mendicant Orders, namely the Friars Minor, the Friars Preachers, the Carmelites, and the Augustinians, and the lordships and livings of all these were seized for the king. They broke down the monasteries and sold their roofs and their bells, so that from Aran of the Saints to the Iccian See there was not one monastery that was not broken and shattered, with the exception of a few in Ireland, of which the English took no notice or heed. They afterward burned the images, shrines, and relics of the saints of Ireland and England; they likewise burned the celebrated image of Mary at Trim, which used to perform wonders and miracles, to heal the blind, the deaf, the crippled, and persons affected with all kinds of disease; they burned the Staff of Jesus, which was in Dublin, and which wrought miracles from the time of St. Patrick, and had been in the hands of Christ while He was among men. They also appointed archbishops and bishops for themselves, and though great was the persecution of the Roman emperors against the Church, scarcely had there ever come so great a persecution

from Rome as this, so that it is impossible to narrate or tell its description unless it should be narrated by one who saw it."[43] The Annalists might have added a fact noticed by a distinguished Protestant historian that "instead of bestowing their [of the monasteries] incomes on the amelioration of the Church, or expending them in providing for the religious or secular improvement of the people in any other way, caring little apparently for the impoverishment of the Church, he [Henry VIII.] misapplied those revenues for the purposes of promoting his own gratification or enriching his favourites."[44]

Very early in his reign Henry VIII. had dreamt of the complete subjugation of Ireland, but it was only after the successful overthrow of the Geraldine Rebellion (1534-5) that the realisation of these dreams seemed to be within measurable reach. The boldness and military genius of Lord Leonard Grey bade fair to bring all Ireland within the sphere of English jurisdiction, until the religious crisis arose to complicate the issues. Many of the Irish princes took offence at the doctrine of royal supremacy, the attack on images, pictures, pilgrimages, relics, etc., and at the desperate efforts that were being made to drive out entirely the monks and nuns. During the years 1537 and 1538 rumours of a great confederation reached the ears of the English officials. It was represented that Con O'Neill, Manus O'Donnell, O'Brien of Thomond, the De Burgos of Connaught, and the Earl of Desmond had joined hands to protect the young Garrett Fitzgerald and to defend the authority of the Pope. Messengers, it was said, were passing constantly from Ireland to Scotland, and from Scotland to Rome. It was reported in 1539 that the Irish princes regarded Henry VIII. as a heretic, who had forfeited all title to the Lordship of Ireland, that they were determined to uphold the authority of the Pope, that they expected help from the Emperor, from France, and from Scotland, and that if an invasion were attempted not even the Anglo-Irish of the Pale could be relied upon on account of their attachment to the Pope and to the Geraldines.[45]

But the successful expeditions against both the North and South undertaken by the Deputy in 1539 seems to have put an end to all concerted defence, and to have reduced the Irish princes to a state of utter helplessness. One after another they hastened to make their submission, to accept titles and honours and money from the king, and to consent to hold their territories by royal patent. Already in 1534 the Earl of Ormond had accepted the religious policy of Henry VIII. in the hope of scoring a triumph over his old rivals, the Geraldines. Three years later (1537) MacGillapatrick of Ossory promised faithfully to abolish the usurped jurisdiction of the Pope, to have the English language spoken in his territories, and to send his son to be brought up with a knowledge of the English language and customs. In return for this he received a royal grant of his land and possessions, was created Baron of Colthill and Castleton, and was promised a seat in the House of Lords, a favour which he obtained in 1543, when he was appointed a peer[46] with the title of Baron of Upper Ossory. Brian O'Connor of Offaly and his rival Cahir made their submission in March 1538. They renounced the jurisdiction of the Pope, agreed to hold their lands from the king, and to abandon all claims to tribute or black rent from their neighbours of the Pale. Brian O'Connor was created Baron of Offaly. He was followed in his submission by the Earl of Desmond (1541), MacWilliam Burke, O'Brien of Thomond, Manus O'Donnell (Aug.

1541) and finally by Con O'Neill (1542). All these, together with a host of minor chieftains and dependents, renounced the authority of the Pope, accepted re-grants of their lands from the king, begged for English titles, and did not think it beneath their dignity to accept gifts of money and robes. Con O'Neill became Earl of Tyrone, his son Matthew Baron of Dungannon, O'Brien Earl of Thomond, his nephew Donogh Baron of Ibricken, MacWilliam Burke Earl of Clanrickard, while knighthoods were distributed freely among the lesser nobles.[47] Although there may have existed in the minds of the Irish chieftains a certain amount of confusion about the temporal and spiritual jurisdiction of the Pope, especially as the Popes seem to have claimed a peculiar sovereignty in Ireland, yet it is impossible to suppose that they could have acted in good faith in signing the documents of submission to which they attached their signatures. That they recognised the dangerous and heretical tendencies of Henry's religious policy is evident enough from the correspondence of the years 1537-39, and that they never made any serious efforts to carry out the terms of these agreements must be admitted. It is quite possible that like the noblemen of England they were personally willing to acquiesce in Henry VIII.'s religious policy for the sake of securing good terms for themselves, but that they found it impossible to do anything on account of the opposition of the vast body of the people. Henry VIII. recognised that he was not in a position to enforce his authority in case of O'Brien, O'Donnell, O'Neill, MacWilliam Burke, etc., and hence he advised his officials to seek to win these over by kindness and persuasion rather than by force. In particular they were to endeavour "to persuade them discreetly" to suppress the religious houses in their territories, but at the same time no attempt was to be made "to press them overmuch in any vigorous sort."[48] O'Brien of Thomond and Desmond were not unwilling to share in the plunder of the monasteries, but as a rule the condition of affairs as regards religion was but slightly affected by the submissions of the chieftains.

The new Deputy, Anthony St. Leger (1540), was well fitted to profit by the military successes of Lord Grey. As a royal commissioner three years before he had ample opportunity of knowing the condition of Ireland, the characters of the principal leaders, and the inducements by which they might be tempted to acknowledge the authority of the King of England. He relied upon diplomatic rather than military pressure, and he was so completely successful that the privy council could report in 1542 that Ireland was at peace. Already in 1537, Alen, the Master of the Rolls, had called the attention of the royal commissioners to the fact that many of the Irish regarded the Pope as the temporal sovereign of Ireland and the King of England only as Lord of Ireland by virtue of the Papal authority, and advised them that Henry should be proclaimed King of Ireland by an Act of Parliament. This advice was approved warmly by Staples, Bishop of Meath (1538), and was endorsed by the Deputy and council in a letter addressed to Henry VIII. in December 1540.[49] The suggestion was accepted by the king, who empowered St. Leger to summon a Parliament to give it effect (1541).

Parliament met in June 1541. How many members attended the House of Commons or what particular districts were represented is not known for certain; but in all probability it was only from the eastern and southern counties and cities that

deputies were appointed. In the House of Lords there were present two archbishops together with twelve bishops, the Earls of Ormond and Desmond, and a number of viscounts, lords and barons, nearly all of whom belonged to the Anglo-Irish faction. O'Brien of Thomond did not attend, but he sent deputies to represent him; O'Donnell and O'Neill held themselves aloof from the proceedings; and Donogh O'Brien, MacWilliam Burke, Cahir MacArt Kavanagh, O'Reilly, Phelim Roe O'Neill of Clandeboy, and Kedagh O'More attended in person, but were not allowed to take an active part in the proceedings or to vote.[50] A bill was introduced by St. Leger bestowing on Henry VIII. the title of King of Ireland, and was read three times in the House of Lords in one day. The next day it was passed by the House of Commons. It was agreed that the monarch should be styled "Henry VIII. by the Grace of God King of England, France, and Ireland, Defender of the Faith, and of the Church of England, and also of Ireland, on earth the Supreme Head." The proclamation, it was reported, was received with joyous acclamation in Dublin, where a modified general amnesty was declared in honour of the happy event. The report of what had taken place produced undoubtedly a great effect on those princes who still held aloof, so that before the end of the year 1542 even Con O'Neill had made an ignominious peace with the government.

While the questions of royal supremacy and the jurisdiction of the Pope were being debated in Parliament (1536-7) the bishops and proctors of the clergy incurred the wrath of Browne and the English officials generally by their courageous resistance to the new proposals, showing thereby that they had no sympathy with the anti- Roman measures. Nor is there any reason to suppose that any considerable body of them adopted a different attitude, though the submission of their English brethren could not have failed to produce some effect on them, particularly as some of them were Englishmen themselves, and many of them must have received their education at some of the English universities. In addition to Browne, who boasted of being only "a king's bishop," the only men who can be proved to have taken an active part in propagating the new views were Edmund Staples of Meath and Richard Nangle, the bishop whom Henry VIII. endeavoured to intrude into Clonfert (1536). The former of these was an Englishman appointed by the Pope (1529) at the request of Henry VIII. As might have been expected he took the side of the king against the Earl of Kildare, and when the struggle began in Ireland between the friends and the opponents of royal supremacy in Ireland he joined the former. Like so many of the other Reformers he showed his anxiety for the gospel by taking to himself a wife and by appropriating for his own use the goods of the Church, but there is no evidence that his efforts produced any effect on the great body of his clergy. Richard Nangle of Clonfert found himself opposed by Roland de Burgo, the bishop provided by the Pope to the See of Clonfert (Feb. 1539) Browne announced that he intended personally to carry the light of the gospel wherever English was understood, and that he had secured a suffragan in the person of Dr. Nangle, Bishop of Clonfert, to set forth God's Word and the king's cause in the Irish tongue.[51] Owing to the state of open hostility existing between Browne and Staples the archbishop did not regard the latter as a fellow-labourer. But evidently at this period these were the only three bishops on whom any reliance could be placed by Henry VIII. Similarly in a document drawn up in 1542 entitled /Certain

Devices for the Reformation of Ireland/, Browne and Staples alone were mentioned as favouring the gospel or as capable of "instructing the Irish bishops of this realm, causing them to relinquish and renounce all popish or papistical doctrine, and to set forth within each of their dioceses the true Word of God."[52]

But though none of the Irish bishops appointed by the Pope, with the single exception of Staples of Meath, took any active steps to assist the king, few of them entered the lists boldly in defence of the Roman See, and many of them, like their English brethren, tried to temporise in the hope that the storm might soon blow past.[53] Edmund Butler, the illegitimate son of Sir Piers Butler, afterwards Earl of Ormond, seems to have joined with the rest of his family in acknowledging royal supremacy. He took a seat in the privy council, acted as intermediary between the government and the Earl of Desmond, signed as a witness the document by which the latter renounced the authority of the Pope, accepted for himself portions of the property of the suppressed Franciscan Friary at Cashel, and was present at the Parliament of 1541.[54] Hugh O'Cervallen of Clogher was appointed by the Pope in 1535, but he went to London in 1542 as chaplain to Con O'Neill, surrendered his Bulls of appointment, took the oath proscribed by Henry VIII., and accepted a grant by royal patent of his diocese, together with a pension of £40 a year.[55] Needless to say he was repudiated by the Pope, who appointed another to take his place, and was driven from his See. John Quinn of Limerick was reported by Lord Grey to have taken the oath of royal supremacy in 1538,[56] but the Deputy's leanings towards Rome even on this journey were proclaimed so frequently by his opponents on the council that it would be difficult to believe him, did not the name of the Bishop of Limerick appear amongst the witnesses to the submission of the Earl of Desmond.[57] Though his attitude at this period was at least doubtful, it is certain that he stood loyal to Rome once he discovered the schismatical tendency of the new movement, since it was found necessary by the government to attempt to displace him in 1551 by the appointment of one who was likely to be more pliable.

The fact that some of the bishops surrendered the religious houses of which they were commendatory priors, as for example, Edmund Nugent of Kilmore, Milo Baron of Ossory, and Walter Wellesley of Kildare,[58] and accepted pensions from the king as a compensation for the loss they sustained by the suppression of the monasteries, creates a grave suspicion of their orthodoxy, though it does not prove that they accepted royal supremacy. Baron was undoubtedly in close communication with the government officials, and Nugent seems to have been removed by the Pope. Again, several of the bishops, Roland de Burgo of Clonfert, Florence Kirwan of Clonmacnoise, Eugene MacGuinness of Down and Connor, and Thady Reynolds of Kildare[59] surrendered the Bulls they had received from Rome, and accepted grants of their dioceses from the king. Such a step, however, affords no decisive evidence of disloyalty to the Holy See. For years a sharp controversy had been waged between the Kings of England and the Pope regarding the temporalities of bishoprics. The Popes claimed to have the right of appointment to both the spiritualities and the temporalities, and gave expression to these claims in the Bulls of appointment. The kings on their part asserted their jurisdiction over the temporalities, and to safeguard their rights they insisted that the bishop-elect should surrender the papal grant in

return for a royal grant. Such a custom was well known before any schismatical tendencies had made themselves felt in England, and compliance with it would not prove that the bishops involved looked upon the king as the source of their spiritual jurisdiction. The main point to be considered in case of the bishops who surrendered their monasteries or their Bulls is what kind of oath, if any, were they obliged to take. If they consented to swear the form of renunciation prescribed for Irish bishops by the king their orthodoxy could not well be defended, but it is possible that, as Henry VIII. did not wish to press matters to extremes with the Irish princes, he may have adopted an equally prudent policy in case of the bishops, and contented himself with the oath of allegiance.

Fully cognisant of the importance of winning the bishops to his side, Henry VIII. took care to appoint his own nominees as soon as a vacancy occurred. By doing so he hoped to secure the submission of the clergy and people, and to obtain for himself the fees paid formerly to Rome. During the ten years, between 1536 and 1546, he appointed Dominic Tirrey to Cork, Richard Nangle to Clonfert, Christopher Bodkin, already Bishop of Kilmacduagh to Tuam, Alexander Devereux to Ferns, William Meagh to Kildare, Richard O'Ferral, late prior of Granard to Ardagh, Aeneas O'Hernan (or O'Heffernan), late preceptor of Aney, to Emly, George Dowdall, late prior of Ardee, to Armagh, Conat O'Siaghail, a chaplain of Manus O'Donnell to Elphin, and Cornelius O'Dea, a chaplain of O'Brien of Thomond, to Killaloe. Though there can be little doubt that some of these received their appointments as a reward for their acceptance of royal supremacy, it is difficult to determine how far they were committed to the religious policy of Henry VIII. It is certain that none of them, with the possible exception of Nangle, took an active part in favouring the cause of the Reformation in Ireland once they understood the real issues at stake, and that the fact of their being opposed in every single case by a lawful bishop appointed by the Pope rendered it impossible for them to do much, however willing they might have been to comply with the wishes of the king.[60]

During this critical period in Irish history Pope Paul III. was in close correspondence with several of the Irish bishops and lay princes. Time and again the officials in Ireland complain of the "Rome-runners," of the provisions made by the Pope to Irish bishoprics, of the messengers passing to and fro between Ireland and Rome, and of the Pope's co-operation in organising the Geraldine League in 1538 and 1539. It should be noted, however, that the silly letter attributed by Robert Ware to Paul III., wherein he is supposed to have warned O'Neill that he and his councillors in Rome had discovered from a prophecy of St. Laserian that whenever the Church in Ireland should fall the Church of Rome should fall also, is a pure forgery published merely to discredit the Pope and the Roman See.[61] Undoubtedly Paul III. was gravely concerned about the progress of a movement that threatened to involve Ireland in the English schism, and was anxious to encourage the bishops and princes to stand firm in their resistance to royal supremacy. In 1539 reports reached Rome that George Cromer, the Archbishop of Armagh, who had resisted the measures directed against the Pope during the years 1536-38, had yielded, and as a result the administration of the See was committed (1539) to Robert Wauchope, a distinguished Scotch theologian then resident in Rome. What proofs were adduced in favour of

Cromer's guilt are not known, but it is certain that the official correspondence of the period will be searched in vain for any evidence to show that Cromer accepted either in theory or in practice the ecclesiastical headship of Henry VIII. He held aloof from the meetings of the privy council, never showed the slightest sympathy with the action of the Archbishop of Dublin, and though his name appears on some of the lists of the spiritual peers in the Parliament of 1541, the official report of St. Leger makes it certain that he did not attend.[62] It is quite possible that the Archbishop did not find himself in agreement with the political schemes whereby the Irish princes and the King of Scotland were to join hands for the overthrow of English authority in Ireland, and on this account the King of Scotland was desirous of having him removed to make way for his agent at the Roman Court.

The new administrator of Armagh, Robert Wauchope, though suffering from weak sight, was recognised as one of the ablest theologians of his day. He took a prominent part in the religious conference at Worms (1540) and at the Diet of Ratisbon (1541). He attended the Council of Trent during its earlier sessions, and rendered very valuable assistance, particularly in connexion with the decrees on Justification. The date of his consecration cannot be determined with certainty. Probably he was not consecrated until news of the death of Cromer (1543) reached Rome. In 1549 he set out for Scotland, and apparently landed on the coast of Donegal in the hope of inducing O'Neill and O'Donnell to co-operate with the French and the Scots. His efforts were not, however, crowned with success. Finding himself denounced to the government by O'Neill and by George Dowdall, who had been appointed to the See of Armagh by the king, he returned to Rome where he was granted faculties as legate to Ireland, but he died in a few months before he could make any attempt to regain possession of his diocese.[63] Before the death of Cromer Henry VIII., against the wishes of some members of his council in Ireland, who favoured the nomination of the son of Lord Delvin, had selected George Dowdall, late prior of Ardee, to succeed him in Armagh. Dowdall went to London, in company with Con O'Neill, and received from the king a yearly pension of £20 together with the promise of the Archbishopric of Armagh.[64] Though he must have given satisfactory assurances to the king on the question of royal supremacy, Dowdall was still in his heart a supporter of Rome, and as shall be seen, he left Ireland for a time rather than agree to the abolition of the Mass and the other sweeping religious innovations that were undertaken in the reign of Edward VI.[65]

At the urgent request of Robert Wauchope Paul III. determined to send some of the disciples of St. Ignatius to Ireland to encourage the clergy and people to stand firm in defence of their religion. St. Ignatius himself drew up a set of special instructions for the guidance of those who were selected for this important mission. The two priests appointed for the work, Paschasius Broet and Alphonsus Salmeron, together with Franciscus Zapata who offered to accompany them, reached Scotland early in February 1541, and, having fortified themselves by letters of recommendation from the King of Scotland addressed to O'Neill and others, they landed in Ireland about the beginning of Lent. Their report speaks badly for the religious condition of the country at the period. They could not help noting the fact that all the great princes, with one exception, had renounced the authority of the Pope and had refused to hold any

communications with them, that the pastors had neglected their duty, and that the people were rude and ignorant, though at the same time not unwilling to listen to their instructions. In many particulars this unfavourable report was well founded, especially in regard to the nobles, but it should be remembered that these Jesuits remained only a few weeks in the country, that they were utterly unacquainted with the manners and customs of the people, and that it would have been impossible for them to have obtained reliable information about the religious condition of Ireland in the course of such a short visit. It should be noted, too, that they placed the responsibility for the failure of their mission on the King of Scotland who failed to stand by his promises.[66]

During the last years of Henry VIII.'s reign St. Leger continued his efforts to reduce the country to subjection not by force but by persuasion. The religious issue was not put forward prominently, and with the exception of grants of monastic lands and possessions very little seems to have been done. The Deputy's letters contain glowing reports of his successes. In the course of the warm controversy that raged between him and John Alen, the Chancellor, during the years 1546 and 1547, the various reports forwarded to England are sufficient to show that outside the Pale the English authorities had made little progress. Although St. Leger was able to furnish a striking testimony from the council as to his success, and although a letter was sent by the Irish princes in praise of Henry VIII.[67] (1546), proofs are not wanting that Henry's policy had met with only partial success. According to a letter sent by Archbishop Browne in 1546 the Irish people were not reconciled to English methods of government, and according to the chancellor, the king's writ did not run in the Irish districts. The Irishmen who pretended to submit did not keep to their solemn promises. They still followed their own native laws regardless of English statutes, and the king could not get possession of the abbeys or abbey lands situated within their territories. Even the council, which sought to defend the Deputy against these attacks, was forced to admit that his Majesty's laws were not current in the Irish districts.[68] One of the last steps taken by the council at the suggestion of Henry VIII. was the appointment of a vice-regent in spirituals for the clergy, to grant dispensations as they were granted in England by Cranmer, so as to prevent the Irish from having recourse to Rome for such grants.[69]

Henry VIII. died with the knowledge that he had done more than any of his predecessors for the subjugation of Ireland. "The policy that was devised," writes Cusacke, Lord Chancellor of Ireland, "for the sending of the Earls of Desmond, Thomond, Clanrickard, and Tyrone, and the Baron of Upper Ossory, O'Carroll, MacGennis, and others into England, was a great help of bringing those countries to good order; for none of them who went into England committed harm upon the King's Majesty's subjects. The winning of the Earl of Desmond was the winning of the rest of Munster with small charges. The making of O'Brien an Earl made all that country obedient. The making of MacWilliam Earl of Clanrickard made all that country during his time obedient as it is now. The making of MacGillapatrick Baron of Upper Ossory hath made his country obedient; and the having their lands by Dublin is such a gage upon them as they will not forfeit the same through wilful folly."[70] As far as religion was concerned, however, there was very little change. The Mass was celebrated and

the Sacraments were administered as before. Here and there some of the bishops and clergy might have been inclined to temporise on the question of royal supremacy, but whatever documents they might have signed, or whatever appointments they might have accepted from Henry's agents, the vast body of the princes, bishops, clergy, and people had no desire to separate themselves from the universal Church. Henry VIII. had, however, rendered unintentionally an immense service to religion in Ireland by preparing the way for the destruction of royal interference in episcopal and other ecclesiastical appointments and of the terrible abuse of lay patronage that had been the curse of the Catholic Church in Ireland for centuries. All these abuses having been transferred to the small knot of English officials and Anglo-English residents, who coalesced to form the Protestant sect, the Catholic Church was at last free to pursue her peaceful mission without let or hindrance from within.

The accession of Edward VI. made no notable change in Irish affairs. The Deputy, St. Leger, was retained in office, as were also most of the old officials. Some new members, including George Dowdall, Archbishop of Armagh, were added to the council, and arrangements were made for the collection of the revenues from the suppressed monasteries and religious houses. A royal commission was issued to the Deputy, the Lord Chancellor, and the Bishop of Meath to grant faculties and dispensations in as ample a manner as the Archbishop of Canterbury. From the terms of this commission it is clear that the royal advisers were determined to derive some financial profit from the royal supremacy. The fee for dispensations for solemnising marriage without the proclamation of the banns was fixed at 6s. 8d. (about £3 4s.), for marriage within the prohibited times at 10s., for marriage within the prohibited times and without banns at 13s. 4d., and for marriages to be celebrated without the parish church of the contracting parties at 5s.[71] Similarly, an order was sent that the plate and ornaments of St. Patrick's Cathedral should be dispatched by some trustworthy messenger to Bristol, there to be delivered to the treasurer of the mint. This command must not have been carried out completely, because seven months later (Jan. 1548) the Dean of St. Patrick's was requested to deliver over for the use of the mint the "one thousand ounces of plate of crosses and such like things" that remained in his hands.[72]

From the very beginning of Edward's reign the Protector set himself to overthrow the Catholic Church in Ireland by suppressing the Mass and enforcing the Lutheran or rather the Calvinist teaching regarding Transubstantiation and the Real Presence of Christ in the Eucharist. The /Injunctions/ of Edward VI. and the /Homilies/ of Cranmer were dispatched for the guidance of the Archbishop of Dublin, and of those who, like him, were supposed to favour religious innovations. In like manner the English Communion service (1548) and the First Book of Common Prayer (1549) were made obligatory in those districts where the English language was spoken or understood. As in England, the great subject of controversy in Ireland during the early years of Edward's reign was the Blessed Eucharist. A Scotch preacher had been sent into Ireland during the year 1548 to prepare the way for the abolition of the Mass by attacking the Real Presence of Christ in the Sacrament of the Altar. The Archbishop of Dublin, who had been noted previously for his radical tendencies, objected to such doctrines, and complaints were forwarded against him to the

council. He was charged with having leased or otherwise disposed of the greater portion of the property of his diocese to his children and favourites, with having failed to set forth his Majesty's /Injunctions/ and /Homilies/, with having calumniated the Deputy and held secret communications with the Earl of Desmond and other Irish princes, and with having neglected to preach a single sermon between November 1547 and September 1548, when he took occasion to inveigh against the Scotch preacher who condemned "the abuse of the Bishop of Rome's masses and ceremonies."[73] About the same time the Deputy felt obliged to reprove the Treasurer of Christ's Church for having refused to allow the English Communion Service to be followed in that church, and to warn him of the punishment in store for him if he persisted in his obstinacy.

But if Browne were somewhat backward in adapting himself to the new theories, his rival, Staples of Meath, who had prided himself hitherto on his conservative tendencies, hastened to the relief of the government. He went to Dublin to support the Scotch preacher in his attack on the Mass and the Blessed Eucharist, but if we are to believe his own story his stay in Dublin was hardly less agreeable than was the welcome that awaited him on his return to Meath. His friends assured him that the country was up in arms against him. A lady, whose child he had baptised and named after himself, sought to change the name of her baby, for she "would not have him bear the name of a heretic." A gentleman would not permit his child to be confirmed by one who had denied the Sacrament of the Altar. Many people who heard that the bishop was going to preach at Navan the following Sunday declared their intention of absenting themselves lest they should learn heresy. A clergyman of his own promotion came to him in tears, and having asked permission to speak his mind freely, informed him that he was detested by the people since he had taken the side of the heretics and preached against the Eucharist and Saints, that the curses poured out upon him were more numerous than the hairs of his head, and that he would do well to take heed as his life was in danger.[74]

Sir Edward Bellingham succeeded St. Leger as Deputy, and arrived in May 1548. During the early months of his term of office he was busily engaged against the O'Connors of Offaly, the O'Carrolls, and others, who threatened the Pale once more. His efforts were crowned with considerable success, and during the year 1549 he found himself in a position to push forward with the religious campaign. From inquiries made he learned that in all Munster, Thomond, Connaught, and Ulster the monasteries and other religious establishments remained, and that they followed still the old religious practices.[75] He wrote to the secretary of the Protector asking him to inform his master of the lack of good shepherds in Ireland "to illuminate the hearts of the flock of Christ with His most true and infallible word," taking care at the same time to recommend the Protector to appoint the clergymen who had been brought over from England to vacant bishoprics, so that the public funds might be relieved by the withdrawal of their pensions. The mayor and corporation of Kilkenny were ordered to see that the priests of the city should assemble to meet the Deputy and members of the council. They promised that all the clergy should be present without fail, but, as shall be seen, the instructions of Sir Edward Bellingham and his colleagues produced but little effect even in the very stronghold of the Ormonds

(1549). Walter Cowley was sent on a commission into the diocese of Cashel to "abolish idolatry, papistry, the Mass Sacrament and the like," but he complained that the archbishop, instead of being present to assist him, tarried in Dublin although he had been warned that his presence was required.[76] The truth is that, though the archbishop, as one of the Butlers, was willing to go to great lengths in upholding the policy of Edward VI., he had no intention of taking part in a campaign against the Mass or the Blessed Eucharist.[77] The latter written by this prelate (Feb. 1548), in which he praised highly the conduct of Walter Cowley, who played such a prominent part in the suppression of the monasteries and the seizure of ecclesiastical property, is often quoted as a proof that he was strongly in favour of the Reformation, but such a statement could be made only by one who has failed to understand the difference between Ormondism and Protestantism, and the relations of both Cowley and the archbishop to the former.

Bellingham was recalled to England in 1549, and soon after his departure new disturbances broke out in Ireland. Desmond and O'Brien were regarded as unreliable; a union between the two great rival families of the Ormonds and the Desmonds was not improbable, and to make matters worse, news arrived in Dublin that Robert Wauchope, the papal Archbishop of Armagh, had arrived in the North to bring about a league between O'Donnell, O'Neill, the Scotch, and the French (1550). Dowdall, who had been introduced into Armagh by royal authority, reported the presence of his rival in Innishowen, and O'Neill and Manus O'Donnell pledged themselves to resist the invaders. The council hastened to thank the northern chieftains for their refusal to hold correspondence with the French emissaries, who had accompanied Wauchope, and warned them that the French intended to reduce the Irish to a state of slavery, and that the French nobility were so savage and ferocious that it would be much better to live under the Turkish yoke than under the rule of France.[78]

In July 1550 St. Leger was sent once more as Deputy to Ireland. He was instructed "to set forth God's service according to our (the king's) ordinances in English, in all places where the inhabitants, or a convenient number of them, understand that tongue; where the inhabitants did not understand it, the English is to be translated truly into the Irish tongue, till such time as the people might be brought to understand English." But as usual the financial side of the Reformation was not forgotten. The Deputy was commanded to give order that no sale or alienation be made of any church goods, bells, or chantry and free chapel lands without the royal assent, and that inventories were to be made in every parish of such goods, ornaments, jewels, and bells, of chantry or free chapel lands, and of all other lands given to any church, "lest some lewd persons might embezzle the same."[79] On his arrival in Dublin St. Leger found affairs in a very unsatisfactory condition. "I never saw the land," he wrote, "so far out of good order, for in the forts [there] are as many harlots as soldiers, and [there was during] these three years no kind of divine service, neither communion, nor yet other service, having but one sermon made in that space, which the Bishop of Meath made, who had so little reverence at that time, as he had no great haste since to preach there."[80] Rumours were once more afloat that the French and Scotch were about to create a diversion in Ireland. A large French fleet was partially wrecked off the Irish coast, and some of the Geraldine agents in Paris

boasted openly that the Irish princes were determined to "either stand or die for the maintenance of religion and for the continuance of God's service in such sort as they had received it from their fathers."[81]

While St. Leger was not slow in taking measures to resist a foreign invasion, he did not neglect the instructions he had received about introducing the Book of Common Prayer in place of the Mass. He procured several copies of the English service and sent them to different parts of the country, but instead of having it translated into Irish he had it rendered into Latin for the use of those districts which did not understand English, in the hope possibly that he might thereby deceive the people by making them believe that it was still the Mass to which they had been accustomed. Apparently, however, the new liturgy met with a stubborn resistance. In Limerick, although the city authorities were reported to be favourable, the Bishop, John Quinn, refused to give his consent to the proposed change, and throughout the country generally the Deputy was forced to confess that it was hard to plant the new religion in men's minds. He requested that an express royal command should be addressed to the people generally to accept the change, and that a special commission should be given to himself to enforce the liturgy.[82]

The formal order for the introduction of the English service was forwarded to St. Leger in February 1551, and was promulgated in the beginning of March. Bishop Quinn of Limerick was forced to resign the temporalities of his See to make way for William Casey, who was expected to be more compliant. A number of bishops and clergy were summoned to meet in conference in Dublin to consider the change. At this conference the reforming party met with the strongest opposition from the Primate of Armagh. Although George Dowdall had accepted the primatial See from the hands of the king and had tried to unite loyalty to Rome and to Henry VIII., he had no intention of supporting an heretical movement having for its object the abolition of the Mass. From the very beginning of the Protector's rule he had adopted an attitude of hostility to the proposed changes, as is evident from the friendly letter of warning addressed to him by the Lord Deputy Bellingham.[83] The Primate defended steadfastly the jurisdiction of the Bishop of Rome, and refused to admit that the king had any authority to introduce such sweeping reforms by virtue of his office. Finding that his words failed to produce any effect on the Deputy he left the conference, together with his suffragans, except Staples of Meath, and repaired to his own diocese to encourage the people and clergy to stand firm. St. Leger then handed the royal commission to Browne, who declared that he submitted to the king "as Jesus Christ did to Caesar, in all things just and lawful, making no question why or wherefore, as we own him our true and lawful king."[84]

Though St. Leger pretended to be a strong supporter of the new religion, yet, according to Archbishop Browne, he contented himself with the formal promulgation of the royal orders. He himself on his arrival in Ireland assisted publicly at Mass in Christ's Church, "to the comfort of his too many like Papists, and to the discouragement of the professors of God's word." He allowed the celebration of Mass, holy water, Candlemas candles, and such like to continue in the diocese of the Primate and elsewhere without protest or punishment. He seemed, even, to take the

side of the Primate at the council board, and sent a message to the Earl of Tyrone "to follow the counsell and advice of that good father, sage senator and godly bishop, my lord Primate in everything." He went so far as to present the Archbishop of Dublin with a number of books written in defence of the Mass and Transubstantiation, and when the archbishop ventured to remonstrate with him on his want of zeal for God's word the only reply he received was, "Go to, go to, your matters of religion will mar all."[85] St. Leger's main object was the pacification of the country and the extension of English power, both of which, he well knew, would be endangered by any active campaign against the Mass.

St. Leger was recalled, and Sir James Crofts, who had been sent on a special commission to Ireland a few months earlier, was appointed Deputy in his place (April 1551). His instructions in regard to the Book of Common Prayer and the inventory of the confiscated church plate were couched in terms similar to those given to his predecessor.[86] Anxious from the beginning to conciliate Primate Dowdall, he forwarded to him a respectful letter (June 1551) calling his attention to the respect paid by Christ Himself and St. Peter to the imperial authority, offering his services as mediator between the Primate and his opponents, Browne and Staples, and warning him of the likelihood of much more serious changes, which he (the Deputy) pledged himself if possible to resist.[87] To this communication the Primate sent an immediate reply, in which he offered to meet his opponents in conference, though he could hold out no hope of agreement, as their "judgments, opinions, and consciences were different."[88]

The conference took place at St. Mary's Abbey in the presence of the Deputy. The Archbishop of Dublin, Staples of Meath, and Thomas Lancaster, who had been intruded into the See of Kildare by royal authority, attended to defend the new teaching against the Primate. The subjects discussed were the Mass and the Blessed Virgin. Staples took the leading part on the side of the Reformers, and, as Dowdall had anticipated, no agreement could be arrived at. The Primate appealed to the terms of the oath of loyalty to the Pope taken by both himself and his opponents at their consecration, but Staples had no difficulty in proclaiming that he refused to consider himself bound by this oath. The meeting broke up without any result.[89] Dowdall, having forwarded a declaration to the Lord Chancellor that he could never be bishop where the Holy Mass was abolished, fled from Ireland. Browne wrote immediately to the Earl of Warwick beseeching him to confer on Dublin all the primatial rights enjoyed hitherto by Armagh, while the Deputy sought for instructions about the vacant See of Armagh (Nov. 1551).[90] Dowdall was deprived of his diocese, and the Primacy was transferred to Dublin (1551).

Still Crofts was forced to admit that the Reformation was making but little progress in Ireland. The bishops and clergy gave him no support, and in spite of all he could do "the old ceremonies" were continued. He besought his friends in England to send over reliable men from England to fill the vacant bishoprics and to set forth the "king's proceeding," or if they could not do that, to send some learned men to remain with him by whose counsel he might better direct "the blind and obstinate bishops." The Sees of Armagh, Cashel, and Ossory were then vacant, and, as the Deputy

pointed out, it was of vital importance to the Reformers that reliable priests should be appointed. Cranmer nominated four clerics for the See of Armagh, from whom the king selected Richard Turner, a vicar in Kent. But he declined the honour, preferring to run the risk of being hanged by rebels than to go to Armagh, where he should be obliged to "preach to the walls and the stalls, for the people understand no English." Cranmer tried to re-assure him by reminding him "that if he wilt take the pains to learn the Irish tongue (which with diligence he may do in a year or two) then both his doctrine shall be more acceptable not only unto his diocese, but also throughout all Ireland." Notwithstanding this glorious prospect Turner remained obdurate in his refusal, and at last Armagh was offered to and accepted by one Hugh Goodacre.[91] Cashel was, apparently, considered still more hopeless, and as nobody upon whom the government could rely was willing to take the risk, the See was left vacant during the remainder of Edward VI.'s reign. Though Crofts was strongly in favour of the new religion, he had the temerity to suggest that Thomas Leverous, the tutor and former protector of the young heir of Kildare, should be appointed to Cashel or Ossory. "For learning, discretion, and good living," he wrote, "he is the meekest man in this realm, and best able to preach both in the English and the Irish tongue. I heard him preach such a sermon as in my simple opinion, I heard not in many years."[92]

But as Leverous was well known to be not only a Geraldine but also a strong Papist the Deputy's recommendation was set at nought, and the See of Ossory was conferred on John Bale. The latter was an ex-Carmelite friar, who, according to himself, was won from the ignorance and blindness of papistry by a temporal lord, although according to others, "his wife Dorothy had as great a hand in that happy work as the Lord." On account of his violent and seditious sermons he was thrown into prison, from which he was released by Cromwell, with whom he gained great favour by his scurrilous and abusive plays directed against the doctrines and practices of the Church. On the fall of his patron in 1540 Bale found it necessary to escape with his wife and children to Germany, whence he returned to England after the death of Henry VIII. He was a man of considerable ability, "with little regard for truth if he could but increase the enemies of Popery," and so coarse and vulgar in his language and ideas that his works have been justly described by one whose Protestantism cannot be questioned as a "dunghill."[93]

The consecration of Goodacre and Bale was fixed for February 1553, and the consecrating prelates were to be Browne, Lancaster, who had been intruded by the king into Kildare, and Eugene Magennis of Down. At the consecration ceremony itself a peculiar difficulty arose. Although the First Book of Common Prayer had been legalised in Ireland by royal proclamation, the Ordinal and the Second Book of Common Prayer had never been enforced by similar warrant, and their use was neither obligatory nor lawful. Bale demanded, however, that they should be followed. When the dean of Christ's Church insisted on the use of the Roman Ordinal, he was denounced by the bishop-elect as "an ass-headed dean and a blockhead who cared only for his belly," and when Browne ventured to suggest that the ceremony should be delayed until a decision could be sought, he was attacked as "an apicure," whose only object was "to take up the proxies of any bishopric to his own gluttonous use." The violence of Bale carried all before it even to the concession of common bread for

the Communion Service.[94]

Goodacre was by English law the Archbishop of Armagh, but the threatening attitude of Shane O'Neill prevented him from ever having the pleasure of seeing his own cathedral. Bale was, however, more fortunate. He made his way to Kilkenny where he proceeded to destroy the images and pictures in St. Canice's, and to rail against the Mass and the Blessed Eucharist, but only to find that his own chapter, the clergy, and the vast majority of the people were united in their opposition to him.

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[1] /State Papers Hen. VIII./, ii., 9.

[2] /State Papers/, ii., 197.

[3] Gasquet, /Henry VIII. and the English Monasteries/, p. 51.

[4] /State Papers/, ii., 465, 539; iii., 1, 5, 8, 29, 35, 65. Bagwell, i., 379 sqq.

[5] This account of the Parliament, 1536-7, is taken from Brewer's /Letters and Papers, Foreign and Domestic, Henry VIII./, vols. x., xi., xii. The references can be found under the respective dates.

[6] For the account of the proceedings of this Commission, cf. /Letters and Papers of Henry VIII./ xii., pt. ii., pp. 294-316.

[7] /Letters and Papers Hen. VIII./, xii., pt. i., no. 1447; pt. ii., 159.

[8] /State Papers/, ii., 465-6.

[9] /Letter of Browne to Cromwell/, Id., 539-41.

[10] /Letters and Papers Henry VIII./, xiii., pt. i., no. 961.

[11] /State Papers/, ii., 570.

[12] Id., iii., 6.

[13] Id., ii., 516. /Letters/, etc., xii., pt. 1, 159, 658, 769; xiii., pt. 1, 1420.

[14] /State Papers/, iii., 1-3.

[15] /State Papers/, iii., 8, 29, 31.

[16] /Letters and Papers/, xii., pt. 2, no. 64.

[17] /State Papers/, ii., 560.

[18] Grey to Henry VIII., 26 July, 1538. Id. iii., 57 sqq.

[19] Browne to Cromwell, iii., 122-4.

[20] Id., 63-65.

[21] /State Papers/, ii., 570.

[22] /State Papers/, iii., 110.

[23] Id., iii., 18.

[24] /State Papers/, iii., 122.

[25] /State Papers/, iii., 35.

[26] Id., iii., 95.

[27] Id., iii., 103.

[28] /Annals of F. M./, 1537; /of Loch Cé/, 1538 (correct date, 1538-9).

[29] /Hib. Dominiciana/, pp. 726-52.

[30] /Letters and Papers Hen. VIII./, vol. xi., no. 1416.

[31] /Irish Statutes/, i., 127-32.

[32] /State Papers/, ii., 438.

[33] /Calendar of Patent Rolls, Ireland/, i., 55.

[34] /Calendar of Patent Rolls, Ireland/, i., 54-55.

[35] /State Papers/, iii., 130.

[36] /Letters and Papers/, xiv., 1st pt., no. 1006.

[37] /State Papers/, iii., 142-3.

[38] /Letters and Papers/, xiv., pt. 1, no. 1021.

[39] For surrenders, cf. /Calendar of Patent Rolls/, i., 53-9. /Calendar of State Papers, Ireland (1509-73)/, 56-58.

[40] For the pensions granted to the religious, cf. /Fiants of Henry VIII./ (App. Seventh Report Public Rec. Office). /Calendar of Patent Rolls, Ireland/, i., 59 sqq.

[41] For these grants, cf. /Fiants of Henry VIII. Seventh Report of D. Keeper of P. R., Ireland./

[42] /Letters and Papers/, xvi., no. 775.

[43] Under year 1537. The date is not correct.

[44] Mant, /Church History of Ireland/, 1846, ii., 713.

[45] /State Papers/, iii., 56-7, 136-7, 147, 175-6.

[46] /State Papers/, ii., 514-5.

[47] Cf. /State Papers/, vol. iii. /Letters and Papers Henry VIII./, xiii.-xvii. /Calendar of Documents, Ireland (1537-41)/. /Calendar of Carew Manuscripts/, vol. i.

[48] /State Papers/, iii., 332-3.

[49] Cf. /State Papers/, ii., 480; iii., 30, 278.

[50] /Letters and Papers/, xvi., no. 935. There is a clear discrepancy between this document and the official report of St. Leger (/State Papers/, iii., 305) in regard to the ecclesiastics present.

[51] /State Papers/, iii., 123.

[52] Id., 431.

[53] Gogarty, /The Dawn of the Reformation in Ireland/ (/Ir. Th. Quart./, viii.).

[54] Cf. /State Papers/, vol. iii., 427 sqq., /Letters and Papers Hen. VIII./, xvi. p. 225, /Fiants of Hen. VIII./ (157, 387).

[55] /State Papers/, iii., 429.

[56] /Letters and Papers/, xii., pt. 1, no. 1467.

[57] Id., xvi., p. 225.

[58] Cf. /Fiants of Henry VIII./, nos. 104, 108, 147.

[59] Cf. Id., nos. 187, 262-3, 378.

[60] For these appointments, cf. /Calendar of Patent Rolls/, i., 1536-46.

[61] Bridgett, /Blunders and Forgeries/, 1890, 244.

[62] /State Papers/, iii., 305.

[63] Cf. Stuart-Coleman, /Historical Memoirs of Armagh/, xi., Moran, /Spicileg. Ossiriense/, i., 13-32.

[64] /State Papers/, iii., 429.

[65] Stuart-Coleman, xi. Gogarty, /Documents Concerning Primate Dowdall/, (/Archiv. Hib./, vols. i., ii.).

[66] Hogan, /Hibernia Ignatiana/, 1880, 6-8.

[67] /State Papers/, iii., 562. It is very probable, both from internal and external evidence, that this letter is a forgery.

[68] /State Papers/, iii., 555-66.

[69] Id., 580 sqq.

[70] /Carew Papers (1515-74)/, 245-6.

[71] /Calendar of Patent and Close Rolls/, i., 150.

[72] Shirley, /Original Letters and Papers/, 3, 31.

[73] Shirley, /Original Letters and Papers/, 18, 20.

[74] Id., 22-25.

[75] Shirley, /Original Letters and Papers/, 22.

[76] Id., 32-5.

[77] Shirley, /Original Letters and Papers/, 35. Renehan-McCarthy, /Collections on Irish Church History/, vol. i., 239.

[78] /Calendar of State Papers/ (Ireland), i., 107.

[79] /Calendar of Carew Papers/, i., 226-7.

[80] Shirley, op. cit., 41-2.

[81] Bagwell, /Ireland under the Tudors/, i., 352.

[82] Shirley, op. cit., 47-8.

[83] /Archiv. Hib./, i., 260.

[84] Cf. /Archiv. Hib./, i., 264-76. Cox, /Hib. Anglicana/, 288-90. The report of the Conference is evidently garbled. It is due probably to the pen of Robert Ware.

[85] Shirley, op. cit., 54-60.

[86] /Calendar Carew Papers/, i., 231.

[87] /Archiv. Heb./, ii., 245.

[88] Id., 246.

[89] /Archiv. Hib./, ii., 246-55. (A very partial account of the disputation.)

[90] Shirley, op. cit., 58-61.

[91] Bagwell, op. cit., i., 369.

[92] Shirley, op. cit., 62.

[93] Ware's /Works/, i., 416-17.

[94] From his own account in /Vocacyon of John Bale/, etc. (/Harl. Miscell./, vi.).

CHAPTER IX

THE CHURCH IN IRELAND DURING THE REIGNS OF MARY AND ELIZABETH (1553-1603)

See bibliography, ii. Hamilton, /Calendar of State Papers, Ireland/, 4 vols. /Calendar of State Papers/ (Carew), 6 vols., 1867-73. /Archivium Hibernicus/, vols. i., ii., iii. (1912-14). Moran, /Spicil. Ossor. Id./, Editions of the /Commentarius de Regno Hiberniae/ (Lombard), 1863, and of the /Analecta/ (Rothe), 1884. O'Sullevan, /Historiae Catholicae Iberniae Compendium/ (ed. Kelly), 1850. Bruodin, /Passio Martyrum/, 1666. Molanus, /Idea togatae constantiae . . . cui adjungilur tripartita martyrum Britannicarum insularum epitome/, 1629. Shirley, op. cit. Brady, /State Papers Concerning the Irish Church in the Time of Queen Elizabeth/, 1866. Cotton, /Fasti Ecclesiae Hiberniae/, 6 vols., 1851-78. Hogan, /The Description of Ireland, etc., in 1598/, 1878. O'Daly-Meehan, /The Rise, Increase, and Exile of the Geraldines, Earls of Desmond/, etc., 1878. Spenser, /View of the State of Ireland/, 1633. Lynch-Kelly, /Cambrensis Eversus/, etc., 3 vols., 1848. /Liber Munerum publicorum Hiberniae/, 1152-1824, 2 vols., 1848. Gilbert, /History of the City of Dublin/, 3 vols., 1859. Id., /Facsimiles of National MSS. of Ireland/, 4 vols., 1875. Lodge, /Desiderata Curiosa Hibernica/, etc., 2 vols., 1772. /Pacata Hibernia/, 1633.

The death of Edward VI. (6 July 1553) and the accession of Queen Mary put an end for the time being to the campaign against the Catholic Church. The party of the Earl

of Northumberland made a feeble attempt in Ireland, as they had done in England, to secure the succession for Lady Jane Grey, but their efforts produced no effect. On the 20th July the privy council in England sent a formal order for the proclamation of Queen Mary, together with an announcement that she had been proclaimed already in London as Queen of England, France, and Ireland, Defender of the Faith, and on earth Supreme Head of the Churches of England and Ireland.[1] This command was obeyed promptly in Dublin and in the chief cities in Ireland. In Kilkenny Lord Mountgarret and Sir Richard Howth ordered that a Mass of thanksgiving should be celebrated, and when Bale refused to allow such idolatry they informed the clergy that they were no longer bound to obey the bishop. Mary was proclaimed in Kilkenny (20 Aug.), and on the following day the clergy and people took possession of the Cathedral of St. Canice. Crowds of the citizens proceeded to attack the palace of the bishop, so that it was only with the greatest difficulty that the Mayor of Kilkenny was able to save his life by sending him to Dublin at night under the protection of an armed escort. From Dublin Bale succeeded in making his escape to Holland, from which he proceeded to Basle, where he spent his time in libelling the Catholic religion and the Irish clergy and people.

Shortly after the coronation of Queen Mary Sir Thomas St. Leger was sent over to Ireland as Deputy with instructions that he was to take steps immediately for the complete restoration of the Catholic religion. Primate Dowdall was recalled from exile, and restored to his See of Armagh; the primacy, which had been taken from Armagh in the previous reign owing to the hostile attitude adopted by Dowdall towards the religious innovations, was restored, and various grants were made to him to compensate him for the losses he had sustained.[2] In April 1554 a royal commission was issued to Dowdall and William Walsh, formerly prior of the Cistercian Abbey of Bective, to remove the clergy who had married from their benefices. In virtue of this commission Browne of Dublin, Staples of Meath, Thomas Lancaster of Kildare, and Travers, who had been intruded into the See of Leighlin, were removed. Bale of Ossory had fled already, and Casey of Limerick also succeeded in making his escape. O'Cervallen of Clogher, who had been deposed by the Pope, was driven from his diocese, and an inquiry was set on foot at Lambeth Palace before Cardinal Pole to determine who was the lawful Archbishop of Tuam. Christopher Bodkin, Bishop of Kilmacduagh, had been appointed to Tuam by the king in 1536, while two years later Arthur O'Frigil, a canon of Raphoe, received the same See by papal provision. At the inquiry before Cardinal Pole it was proved that though Bodkin had contracted the guilt of schism he had done so more from fear than from conviction, that he had been always a stern opponent of heresy, and that in the city and diocese of Tuam the new opinions had made no progress. Apparently, as a result of the inquiry, an agreement was arranged whereby Bodkin was allowed to retain possession of Tuam.[3] The other bishops were allowed to retain their Sees without objection, a clear proof that their orthodoxy was unquestionable.

In place of those who had been deposed, Hugh Curwen, an Englishman, was appointed to Dublin, William Walsh, one of the royal commissioners, to Meath, Thomas Leverous, the former tutor of the young Garrett Fitzgerald, to Kildare, Thomas O'Fihil, an Augustinian Hermit, to Leighlin, and John O'Tonory, a Canon

Regular of St. Augustine, to Ossory, while John Quinn of Limerick, who had been forced to resign the See of Limerick during the reign of Edward VI., was apparently restored. The selection of Curwen to fill the archiepiscopal See of Dublin was particularly unfortunate. However learned he might have been, or however distinguished his ancestry, he was not remarkable for the fixity of his religious principles. During the reign of Henry VIII. he had acquired notoriety by his public defence of the royal divorce, as well as by his attacks on papal supremacy, though, like Henry, he was a strong upholder of the Real Presence of Christ in the Eucharist, and of Transubstantiation. Like a true courtier he changed his opinions immediately on the accession of Queen Mary, and he was rewarded by being promoted to Dublin and appointed Lord Chancellor of Ireland (1555). The Cathedral Chapter of St. Patrick's that had been suppressed was restored to "its pristine state;" new dignitaries and canons were appointed, and much of the possessions that had been seized were returned.[4]

The Mass and Catholic ceremonies were restored without any opposition in those churches in Dublin and Leinster into which the English service had been introduced. A provincial synod was held in Dublin by the new archbishop (1556) to wipe out all traces of heresy and schism. Primate Dowdall had convoked previously a synod of the Northern Provinces at Drogheda to undertake a similar work. In this assembly it was laid down that all priests who had attempted to marry during the troubles of the previous reign should be deprived of their benefices and suspended; that the clergy who had adopted the heretical rites in the religious celebrations and in the administration of the Sacraments should be admitted to pardon in case they repented of their crimes and could prove that their fall was due to fear rather than conviction; that all the ancient rites and ceremonies of the Church in regard to crosses, images, candles, thuribles, canonical hours, Mass, the administration of the sacraments, fast days, holidays, holy water, and blessed bread should be restored; that the Book of Common Prayer, etc., should be burned, and that the Primate and the bishops of the province should appoint inquisitors in each diocese, to whom the clergy should denounce those who refused to follow the Catholic worship and ceremonies. Arrangements were also made to put an end to abuses in connexion with the bestowal of benefices on laymen and children, with the appointment of clerics to parishes and dignities by the Holy See on the untrustworthy recommendation of local noblemen, with the excessive fees charged by some of the clergy, with the neglect of those whose duty it was to contribute to the repairs of the parish churches, and with the failure of some priests to wear a becoming clerical dress.[5]

In July 1556 Lord Fitzwalter was sent to Ireland as Deputy. "Our said Deputy and Council," according to the royal instructions, "shall by their own good example and all other good means to them possible, advance the honour of Almighty God, the true Catholic faith and religion, now by God's great goodness and special grace recovered in our realms of England and Ireland, and namely they shall set forth the honour and dignity of the Pope's Holiness and Apostolic See of Rome, and from time to time be ready with our aid and secular force, at the request of all spiritual ministers and ordinaries there, to punish and repress all heretics and Lollards, and their damnable sects, opinions, and errors." They were commanded, too, to assist the commissioners

and officials whom Cardinal Pole as papal legate intended to send shortly to make a visitation of the clergy and people of Ireland.[6] On the arrival of the new Deputy in Dublin he went in state to Christ's Church to assist at Mass, after the celebration of which he received the sword of state from his predecessor before the altar, and took the oath in presence of the archbishop. "That done, the trumpets sounded and drums beat, and then the Lord Deputy kneeled down before the altar until the /Te Deum/ was ended."[7]

The new Deputy was instructed to take measures for summoning a meeting of Parliament in the following year to give legal sanction to the restoration of the Catholic religion, and to deal with the ecclesiastical property that had been seized. Possibly in the hope of securing some of these again for the Church a commission was issued to the Archbishop of Dublin, the Bishop of Kildare, and a number of clerics and laymen "to inquire concerning the chalices, crosses, ornaments, bells, and other property belonging to the parish churches or chapels in the county of the city and county of Dublin and of sales made thereof to any person or persons, the price, in whose hands they then remained, and also in whose possession were the houses, lands, and tenements, belonging to those churches." Similar commissions were issued to others for the counties of Drogheda and Louth, Kildare, Carlow, Wexford, Kilkenny, Meath, Westmeath, Waterford, Tipperary, Limerick, Cork, and "for the county of Connaught."[8]

In June 1557 the Irish Parliament met. A Bull of absolution from the penalties of heresy and schism was read by the Archbishop of Dublin on bended knees, while the Lord Deputy, officials, and members, both Peers and Commoners, knelt around him. When this ceremony was finished all retired to the cathedral, where the /Te Deum/ was sung in thanksgiving, and all pledged themselves as a sign of their sincere repentance to abolish all the laws that had been passed against the Holy See. The acts prejudicial to the rights of the Pope enacted since the year 1529 were abolished. The title of supreme head of the church, it was declared, "never was or could be justly or lawfully attributed or acknowledged to any king or sovereign governor, nor in any wise could or might rightfully, justly, or lawfully, by the king or sovereign governor of the same realms, be claimed, challenged, or used." "All Bulls, dispensations, and privileges obtained before the year 1529 or at any time since, or which shall hereafter be obtained from the See of Rome, not containing matter contrary or prejudicial to the authority, dignity, or pre-eminence royal or imperial of these said realms or to the laws of this realm" were allowed to be "put in execution, used, and alleged in any civil court in Ireland and elsewhere." The jurisdiction of the bishops was restored, the laws against heresy passed in the reign of Richard II. and Henry IV. were renewed, and the payment of First Fruits was suppressed. Care was taken, however, to avail of the dispensation granted by the Holy See, whereby those who had obtained possession of the property of churches and monasteries should not be disturbed, although it was enacted that none of the laymen who had obtained such grants could plead the rights of exemption enjoyed by some of their former owners against the jurisdiction of the bishops, and that notwithstanding the Statutes of Mortmain those who then held "manors, tenements, parsonages, tithes, pensions or other hereditaments" might bequeath or devise them to any spiritual body corporate in the

kingdom, such clause to have the force of law for twenty years.[9]

From no quarter was the slightest opposition offered to the restoration of Catholic worship, and consequently there was no need to have recourse to persecution. There was no persecution of the Protestants of Ireland by fire or torture during this reign. "In truth, the Reformation, not having been sown in Ireland, there was no occasion to water it by the blood of martyrs; insomuch that several English families, friends to the Reformation, withdrew into Ireland as into a secure asylum; where they enjoyed their opinions and worship in privacy without notice or molestation."[10] Yet in spite of this tolerant attitude of both the officials and people of Ireland an absurd story, first mentioned in a pamphlet printed in 1681, is still to be found in many books dealing with Mary's reign. According to this story the queen appointed a body of commissioners to undertake a wholesale persecution in Ireland, and she entrusted this document to one of the commissioners, a certain Dr. Cole. On his way to Ireland the latter tarried at Chester, where he was waited upon by the mayor, to whom he confided the object of his mission. The landlady of the inn, having overheard the conversation, succeeded in stealing the commission and replacing it by a pack of cards. Dr. Cole reached Dublin and hastened to meet the Lord Deputy and council. "After he had made a speech relating upon what account he came over, he presents the box unto the Lord Deputy, who causing it to be opened, that the secretary might read the commission, there was nothing but a pack of cards with the knave of clubs uppermost." Dr. Cole assured them that "he had a commission, but knew not how it was gone." Then the Lord Deputy made answer, "Let us have another commission and we will shuffle the cards in the meanwhile." The messenger returned promptly to England, "and coming to the court, obtained another commission, but staying for a wind at the waterside, news came unto him that the queen was dead. And thus God preserved the Protestants of Ireland."[11] This ridiculous fabrication was first referred to in a pamphlet written by that well-known forger, Robert Ware, in 1681, and was reprinted in his "Life" of Archbishop Browne (1705). Its acceptance by later writers, in spite of its obvious silliness, and unsupported as it is by the official documents of the period, or by any contemporary authority, can be explained only by their religious prejudices.[12]

But though Mary restored the Mass and re-asserted the jurisdiction of the Pope, her political policy in Ireland differed little from that of her father or her brother. She was as determined as had been Henry VIII. to bring the country under English law, and to increase thereby the resources of the Treasury. It is true that she allowed the young Garrett Fitzgerald, who had found a refuge in Rome, to return to the country, that she restored to him his estates and honoured him with a seat at the privy council. Brian O'Connor of Offaly was also released from prison and allowed to revisit his territories. During the time St. Leger held office he followed the old policy of strengthening English influence by conciliation rather than by force. But the Earl of Sussex was of a different mind. He marshalled his forces and made raids into the Irish districts, for the princes and inhabitants of which he entertained the most supreme contempt. It was during the reign of Mary that the plan of the English Plantations was first put into force by the removal of the native Irish from large portions of Leix and Offaly to make room for English settlers. And yet, in spite of the

warlike expeditions of Sussex, the country went from bad to worse, so that Primate Dowdall could write to the privy council in England (1557) that "this poor realm was never in my remembrance in worse case than it is now, except the time only that O'Neill and O'Donnell invaded the English Pale and burned a great piece of it. The North is as far out of frame as it was before, for the Scots beareth as great rule as they do wish, not only in such lands as they did lately usurp, but also in Clandeboy. The O'Moores and O'Connors have destroyed and burned Leix and Offaly saving certain forts."[13]

On the death of Queen Mary in November 1558, her sister Elizabeth succeeded to the English throne. Although she had concealed carefully her Protestant sympathies, and had even professed her sincere attachment to the old religion during the reign of her predecessor, most people believed that important changes were pending. As soon as news of her proclamation reached Ireland early in December, the small knot of officials, who had fallen into disgrace during the reign of the late queen, hastened to offer their congratulations and to put forward their claims for preferment. Sir John Alen, formerly Lord Chancellor and Chief Commissioner for the dissolution of the monasteries, wrote to Cecil to express his joy at the latter's promotion, enclosed "a token," and reminded him of what he (Alen) had suffered during the previous five years. Sir John Bagenall, ex-governor of Leix and Offaly, recalled the fact that he had lost heavily, and had been obliged to escape to France for resisting papal supremacy. He petitioned for a free farm worth £50 a year. Bishop Staples, in a letter to Cecil, took pains to point out that he had been deprived of his See on account of his marriage, and had incurred the personal enmity of Cardinal Pole because he presumed to pray "for his old master's (Henry VIII.) soul."[14] For some time, however, no change was made, and Catholic worship continued even in Dublin as in the days of Queen Mary. The Lord Deputy Sussex went to England in December 1559, and entrusted the sword of state to the Archbishop of Dublin and Sir Henry Sidney, both of whom took the oath of office before the high altar in Christ's Church after Mass had been celebrated in their presence.

But the strong anti-Catholic policy of the new government soon made itself felt in England, and though the ministers were more guarded as far as Ireland was concerned, it was felt that something should be done there to lessen the influence of Rome. In the instructions issued to the Lord Deputy (July 1559) he was told that "the Deputy and Council shall set the service of Almighty God before their eyes, and the said Deputy and all others of that council, who be native born subjects of this realm of England, do use the rites and ceremonies which are by law appointed, at least in their own houses."[15] In the draft instructions as first prepared a further clause was added "that others native of that country be not otherwise moved to use the same than with their own contentment they shall be disposed, neither therein doth her Majesty mean to judge otherwise of them than well, and yet for the better example and edification of prayer in the Church, it shall be well done, if the said councillors being of that country born, shall at times convenient cause either in their own houses or in the churches the litany in the English tongue to be used with the reading of the epistle and gospel in the same tongue and the ten commandments."[16] Although Cecil struck out this clause with his own hand, it helps to show that the government

feared to push things to extremes in Ireland.

On the return of the Earl of Sussex he paid the usual official visit in state to Christ's Church, where apparently the English Litany (probably that prescribed by Henry VIII.) was sung after the Mass. In connexion with this celebration a story was put in circulation by Robert Ware in 1683 that the clergy, dissatisfied with the change in liturgy, determined to have recourse to a disgraceful imposture to prevent further innovations. On the following Sunday when the Archbishop and Deputy assisted at Mass, one of their number having inserted a sponge soaked in blood into the head of the celebrated statue of the Redeemer, blood began to trickle over the face of the image. Suddenly during the service a cry was raised by the trickster and his associates, "Behold Our Saviour's image sweats blood." Several of the common people wondering at it, fell down with their beads in their hands, and prayed to the image, while Leigh who was guilty of the deception kept crying out all the time, "How can He choose but sweat blood whilst heresy is now come into the Church?" Amidst scenes of the greatest excitement the archbishop caused an examination to be made; the trick was discovered; Leigh and his accomplices were punished by being made "to stand upon a table with their legs and hands tied for three Sundays, with the crime written upon paper and pinned to their breasts"; and to complete the story, a recent writer adds, "the Protestants were triumphant, the Roman party confounded, and Curwen's orders to have the statue broken up were obeyed without demur."[17] Needless to say there is no foundation for such a tale. It first saw the light in that collection of gross inventions, /The Hunting of the Romish Fox/, published by Robert Ware in 1683, and is unsupported by any contemporary witnesses. It was not known to Sir Robert Ware, from whose papers the author pretended to borrow it; it was not known to Sir Dudley Loftus who devoted himself to the study of Irish history, and who, as nephew of Elizabeth's Archbishop of Dublin, would have had exceptional opportunities of learning the facts, nor was it known to Archbishop Parker, to whom, according to Ware, a full account was forwarded immediately.[18] The author of it was employed to stir up feeling in England and Ireland so as to prevent the accession of James II., and as a cover for his forgeries he pretended to be using the manuscripts of his father.

For so far the Catholic religion was the only one recognised by law in Ireland, and consequently when Elizabeth instructed the Deputy to see that her English born subjects in Ireland should use the English service in their private houses, she took care to promise that none of them should be impeached or molested for carrying out her commands.[19] But her Deputy was instructed to summon a Parliament in Ireland "to make such statutes as were lately made in England /mutatis mutandis/."[20] The Parliament met in Dublin on the 11th of January 1560. According to the returns[21] seventy-six members representing several counties and boroughs were elected. Dublin, Meath, Westmeath, Louth, Kildare, Carlow, Kilkenny, Waterford, Wexford, and Tipperary were the only counties represented, each of them having returned two members. Of the boroughs represented seventeen were situated in Leinster, eight in Munster, two, Athenry and Galway, in Connaught, and one only, namely, Carrickfergus, was situated in Ulster. Twenty-three temporal peers were summoned to take their seats, all of whom belonged to Anglo-Irish families except O'Brien of

Thomond and MacGillapatrick of Upper Ossory. According to the record preserved in the Rolls' Office, three archbishops and seventeen bishops took their seats, the only absentees being Clogher, Derry, Raphoe, Kilmore, Dromore, Clonmacnoise, Achonry, Kilmacduagh, Kilfenora, and Mayo. Armagh was vacant, Primate Dowdall having died in August 1558, and his successor not having been appointed by Rome till February 1560. But for many reasons it is impossible to believe that the twenty bishops mentioned in this list were present at the Dublin Parliament. At best it is only a rather inaccurate account of those who were summoned to take their seats, as is shown by the fact that for seven of the Sees no names of the bishops are returned; and that Down and Connor are represented as having sent two bishops although both Sees were united for more than a century. If it be borne in mind that according to the returns in the State Paper Office four archbishops and nineteen bishops are represented as having attended the Parliament of 1541,[22] although, in his official report to the king, the Deputy stated expressly that only two archbishops and twelve bishops were present;[23] and also that gross errors have been detected in the lists of spiritual peers supposed to have been in attendance at the Parliaments of 1569[24] and 1585,[25] it will be obvious to any unprejudiced mind that the return for the Parliament of 1560 cannot be accepted as accurate.

No reliable account of the proceedings of the Parliament of 1560 has as yet been discovered. It met on the 11th January, was adjourned on the following day till the 1st of February, when it was dissolved.[26] It is more probable, however, that it lasted till the 12th February. According to the Loftus manuscripts the Parliament was dissolved "by reason of [its] aversion to the Protestant religion, and their ecclesiastical government." "At the very beginning of this Parliament," according to another distinguished authority, "Her Majesty's well wishers found that most of the nobility and Commons were divided in opinion about the ecclesiastical government, which caused the Earl of Sussex to dissolve them, and to go over to England to consult Her Majesty about the affairs of this kingdom."[27] This latter statement is confirmed by the fact that the Earl of Sussex certainly left Ireland in February 1560. And yet, according to the accounts that have come down to us, it was this assembly that gave Protestantism its first legal sanction in Ireland. It abolished papal supremacy, restored to the queen the full exercise of spiritual jurisdiction as enjoyed by Henry VIII. and Edward VI., enjoined on all persons holding ecclesiastical or secular offices the oath of royal supremacy under pain of deprivation, imposed the penalty of forfeiture of all goods for the first offence on those who spoke in favour of the Pope, the punishment laid down for /praemunire/ in case of a second such offence, and death for the third offence, and enjoined the use of the Book of Common Prayer in all the churches of the kingdom. Any clergyman who refused to follow the prescribed form of worship was liable to forfeit one year's revenue and to be sent to prison for the first offence, to total deprivation and imprisonment at will for the second, and for the third to perpetual imprisonment. The laity were obliged to attend the service under threat of excommunication and of a fine of twelve pence to be levied off their goods and chattels by the church-wardens. The First Fruits were restored to the crown, and the formality of canonical election of bishops was abolished. For the future in case of a vacancy the right of appointment was vested directly in the

sovereign.[28]

In view of the fact that the cities and counties from which the members were returned resisted stubbornly the introduction of the English service, that most of the lay peers clung tenaciously to the Mass, some of them, like the Earl of Kildare, being charged with this crime a few months after the dissolution of Parliament, and that the bishops with one or two exceptions, opposed the change, the wonder is how such measures could have received the sanction of Parliament. According to a well-supported tradition they reached the statute book only by fraud, having been rushed through on a holiday, on which most of the members thought that no session would be held. Later on, when objection was taken to such a method, the Deputy, it is said, silenced the resisters by assuring them that they were mere formalities which must remain a dead letter.[29]

It is sometimes said that the Irish bishops of the period acknowledged Elizabeth's title of "supreme governor in spirituals," and abandoned the Mass for the Book of Common Prayer. Nothing, however, could be farther from the truth. With the single exception of Curwen, from whom nothing better could have been expected considering his past variations, it cannot be proved for certain that any of the bishops proved disloyal to their trust. There is some ground for suspicion in case of Christopher Bodkin of Tuam and Thomas O'Fihil, both of whom were represented as having taken the oath, but the strong recommendation of the former to the Holy See by the Jesuit, Father David Wolf, and the fact that the latter is consistently passed over by contemporary writers in their enumeration of the Protestant bishops, show clearly that their lapse, if lapse there might have been, was more or less involuntary. The fact that some of the bishops, as for example Roland Fitzgerald of Cashel, Lacy of Limerick, Walsh of Waterford, De Burgo of Clonfert, Devereux of Ferns, O'Fihil of Leighlin, and Bodkin of Tuam, were appointed on government commissions does not prove that they had ceased to be Catholics, just as the appointment of Browne on a similar commission during the reign of Queen Mary[30] does not prove that he had ceased to be a Protestant. That the Irish bishops remained true to the faith is clear from some of the official papers of the period. In 1564 two of the commissioners, who had been appointed to enforce the Acts of Royal Supremacy and Uniformity of Worship, reported that there were only two worthy bishops in Ireland, namely, Adam Loftus, who had been intruded into Armagh but who dare not visit his diocese, and Brady, who had been appointed by the queen to Meath. "The rest of the bishops," they say, "are all Irish, we need say no more." In the following year it was announced that Curwen of Dublin, Loftus, and Brady were the only bishops zealous "in setting forth God's glory and the true Christian religion"; and in 1566 Sir Henry Sidney reported that, with the exception of Loftus and Brady, he found none others "willing to reform their clergy, or to teach any wholesome doctrine, or to serve their country or common-wealth as magistrates."[31] In a document[32] drawn up by one of Cecil's spies in 1571 the bishops of the province of Armagh, Cashel, and Tuam are all described as /Catholici et Confoederati/, while in the province of Dublin, Loftus, Daly, Cavenagh, and Gafney, the three latter of whom had been intruded by the queen into Kildare, Leighlin, and Ossory, are described as Protestants, as is also Devereux of Ferns, about whose orthodoxy there may be some doubt, though unfortunately there

can be very little about his evil life.

Hardly had the Acts of Royal Supremacy and Uniformity been passed when a commission was addressed to a number of judges and officials to administer the oath of supremacy. Of the bishops within the sphere of English jurisdiction at this period Curwen had already given his adhesion to these measures, William Walsh of Meath promptly refused, as did also Thomas Leverous of Kildare (Feb. 1560).[33] Later on, when the Lord Deputy returned from London, another attempt was made to induce these bishops to change their minds, but without success. In reply to the Deputy the Bishop of Kildare declared that all jurisdiction was derived from Christ, "and since Christ did not deem it right to confer spiritual authority on women, not even on His own Blessed Mother, how, he asked, could it be believed that the Queen of England was the supreme governor of the Church?" Thereupon the Deputy threatened him with deprivation and the consequent loss of his revenues unless he made his submission, but the bishop reminded him of the words of Sacred Scripture, "What shall it profit a man to gain the whole world if he suffer the loss of his own soul?"[34] He was driven from the See, and for a time taught a private school in the County Limerick, but he returned to his diocese, where he died near Nass (1577).[35] The Bishop of Meath continued to oppose the religious policy of the government. In 1565 he was summoned once more by the commissioners, but "he openly protested before all the people the same day that he would never communicate or be present where the service should be ministered, for it was against his conscience and against God's word." As he was a man "of great credit among his countrymen, upon whom in causes of religion they wholly depend," he was thrown into prison,[36] where he languished in great suffering till 1572, when he contrived to make his escape to France. Later on funds were supplied by the Holy See to enable him to continue his journey to Spain. He died amongst his brethren, the Cistercians, at Alcalá in 1577. John O'Tonory, too, who had been appointed to Ossory after the precipitate flight of Bale, seems to have given offence to the government. Though the latter preferred to devote himself to historical studies after the accession of Elizabeth rather than to entrust himself to the tender mercies of the people of Kilkenny, his rival does not seem to have been regarded by the government as the lawful Bishop of Ossory. His name does appear on a list of ecclesiastical commissioners appointed in 1564,[37] but this seems to have been a mistake on the part of the officials or possibly a bait thrown out to induce O'Tonory to make his submission. At any rate it is certain that in 1561 the Bishopric of Ossory was returned as vacant, and it was suggested that the appointment should be conferred on the Dean of Kilkenny,[38] and in July 1565, before the death of O'Tonory, in the instructions drawn up for Sir Henry Sidney and corrected by Cecil, her Majesty is made to say that the "Bishopric of Ossory has been long vacant."[39] As this can refer only to the death of Bale, who died in 1563, it is clear that O'Tonory was bracketed with Walsh and Leverous as far as Elizabeth's ministers were concerned. Had it been possible for the government to do so, similar measures would have been taken against the bishops in the other parts of Ireland, but, faced as it was with Shane O'Neill in the North and a threatened confederation of the whole Geraldine forces in the South, it was deemed prudent not to precipitate a crisis by a violent anti-Catholic propaganda in those parts of the country not yet subject to

English influence.[40]

Commissioners were appointed to administer the oath of supremacy to the bishops, the judges, and higher officials, to the justices of the peace, etc., in Kildare (1560), and to the officials in Westmeath.[41] But unless bishops could be found willing to take the place of those who refused to accept the new laws, no progress could be made. Curwen of Dublin, following his old rule of accepting the sovereign's religion as the true one, submitted to the Act of Supremacy and the Act of Uniformity. In accordance with the queen's instructions he removed the pictures and statues from Christ's Church and St. Patrick's, blotted out the paintings and frescos on the walls, so as to cover up all signs of "idolatry" and to prepare a back-ground for carefully assorted Scriptural texts. He was not, however, happy in his new position. He petitioned to be transferred from Dublin to Hereford, basing his claim on the fact that "he was the man that of his coat hath surlyest stood to the crown either in England or Ireland."[42] But his petition was not granted. Two years later Adam Loftus, who though nominally Archbishop of Armagh feared to visit his diocese, charged Curwen with serious crimes which he was ashamed to particularise, and probably as a result of this the queen instructed her Deputy to induce him to resign on the promise of an annual pension of £200 (1563).[43] But Curwen, fearing that "the leaving of the archbishopric and not receiving another" might lead people to believe that he was deprived, stood out boldly for better terms. Hugh Brady, the queen's Bishop of Meath, then proceeded to attack him. According to him everybody in Dublin from the archbishop to the petty canons were "dumb dogs," "living enemies to the truth," "neither teaching nor feeding any save themselves," and "disguised dissemblers."[44] As this did not produce any effect, he wrote once more, demanding that the authorities should "call home the old unprofitable workman," a petition in which he was supported by Adam Loftus.[45] Their prayers were heard at last, and Curwen was translated to Oxford. When the news of his recall was announced to him he merely expressed the wish that he could get "the last half-year's rent of the Bishopric of Oxford," and that he should be allowed to change quickly so that "he might provide fire for the winter and hay for his horses."[46]

The See of Armagh which was vacant by the death of Primate Dowdall was conferred by the Pope on Donat O'Teige (Feb. 1560). The latter was consecrated at Rome, and arrived in Ireland probably towards the end of the same year. In the summer of 1561 he was present at Armagh with the army of Shane O'Neill whom he encouraged to go forward boldly against the forces of the Deputy. Needless to say such a primate was not acceptable to Elizabeth who determined to appoint one Adam Loftus, then a chaplain to the Earl of Sussex. Loftus was a young man only twenty-eight years of age, who had made a favourable impression on the queen as well by his beauty as by his learning. Letters were dispatched immediately to the Chapter of Armagh commanding the canons to elect him, but as they refused to obey the order, nothing remained except to appoint him by letters patent (1562). As he dare not visit the greater part of his diocese he applied for and received the Deanship of St. Patrick's, Dublin, and about the same time he became a suitor for his brother that he might get the rectory of Dunboyne. In 1563 Elizabeth thought of changing him to Kildare, and in 1566 the Deputy recommended him for Meath, believing that

"he would thankfully receive the exchange, and willingly embase his estate to increase so much his revenue." But Loftus had set his heart on securing the Archbishop of Dublin. Time and again he made the most damaging charges against Curwen so as to secure his removal, although when the removal was arranged he learned to his surprise that the authorities intended to promote not himself, but his fellow-labourer, Hugh Brady of Meath. In April 1566, when he thought that Brady had no chance of succeeding to Dublin, he had recommended him for the appointment, but in September, when he learned that there was danger of his recommendation being followed, he wrote to warn Cecil that "if it would please his honour to pause a while he could show such matter as he would, except it were for the Church of God's sake, be loath to utter by any means, but least of all by writing, upon knowledge whereof the matter, he knows, should go no further." Brady having learned that Loftus had gone to England wrote to Cecil to put him on his guard against believing any charges against him that might be made by the Primate. He returned in November without having succeeded, only to find that Shane O'Neill had overrun his diocese so that it was not worth more than £20 a year. He petitioned to be allowed to resign, "for," he said, "neither is it [Armagh] worth anything to me, nor [am] I able to do any good in it, for that altogether it lieth among the Irish." At last in 1567 his wishes were granted, and he became Archbishop of Dublin. But he was still dissatisfied. As the diocese, according to him, was worth only £400 (Irish) a year (over £30,000) and had only two hundred and forty acres of mensal land, he insisted that he should be allowed to hold with it the Deanship of St. Patrick's, a request, however, that was refused peremptorily by the queen.[47] In Dublin he continued the same policy of grabbing everything for himself, his relatives and dependents until at last the chapter, weary of his importunities, obliged him to promise not to ask for anything more. Fortunately his guarantee was entered in the records, as he appeared soon again to solicit one last favour.

In place of Dr. Walsh of Meath, who refused to take the oath of supremacy, Hugh Brady was appointed (1563). In his letters to Cecil he complained that the payment of his fees and the expenses of the consecration would beggar him, that he was opposed by both the clergy and laity of his diocese in such a stubborn way that he would "rather be a stipendiary priest in England than Bishop of Meath in Ireland," and that unless her Majesty pardoned the debts she was claiming he must lose all hope, as he was very poor and obliged to entertain right royally, "for these people," he wrote, "will have the one or the other, I mean they will either eat my meat and drink or else myself." The relations existing between Loftus of Armagh and the Bishop of Meath were of the most strained kind. When Brady learned that Loftus had been made Dean of St. Patrick's he addressed an indignant protest to Cecil, but as both Loftus and himself aspired to become Archbishop of Dublin, both united to attack Curwen so as to secure his removal. Grave charges were made by Loftus against Brady in 1566, but once he had attained the object of his desires, namely his promotion to Dublin, he had no scruple in attaching his name to a very laudatory commendation of Brady's labours and qualifications (1567).[48]

A certain Dr. Craik was appointed by Elizabeth to Kildare in opposition to Dr. Leverous. The new bishop was far from being content with the honour that had been

conferred upon him. Writing to his patron, Lord Robert Dudley, he complained that he was in continual and daily torment owing to the fact that he was bishop in a diocese where he could neither preach to the people nor could the people understand, and where he had no one to assist him. He succeeded in securing for himself the Deanship of St. Patrick's in Dublin, and was a strong suitor for the Bishopric of Meath. Not content with his revenues, he sold most of the episcopal lands in Kildare so that he reduced the diocese "to a most shameful state of poverty."[49] Finally, he went over to England to petition the queen for a remission of his fees, but he was thrown into the Marshalsea prison from which he was released only a few months before his death.[50] Donald Cavenagh was appointed by the queen to Leighlin (1567), where he devoted himself principally to enriching himself by disposing of the diocesan property; and John Devereux, who, according to Loftus, was most unfit owing to the fact that he had been deprived of the Deanship of Ferns "for confessed whoredom,"[51] was appointed Bishop of Ferns (1566).

With men such as these in charge of the new religious movement it was almost impossible that it could succeed. In spite of the various royal commissions appointed between the years 1560 and 1564 to secure submission to the Acts of Supremacy and Uniformity, the people still clung tenaciously to the old faith. Though Elizabeth and her advisers were anxious to destroy the Catholic religion in Ireland they deemed it imprudent to do so immediately in view of the threatening attitude of O'Neill and of several of the other Irish and Anglo-Irish nobles. In case of the Act of Uniformity it had been laid down expressly that in places where the people did not understand Irish the service might be read in Latin, and as not even the people in Kildare knew English at this time,[52] it followed that outside of Dublin the Book of Common Prayer was not obligatory. Indeed outside Dublin, Meath, Kildare, and portion of Armagh very little attempt seems to have been made to put these laws into execution. From the draft instructions drawn up for Sir Henry Sidney in 1565 it is perfectly clear that outside the Pale territory zealous measures had not been taken to enforce the new doctrines, and that even within the Pale the authorities were not inclined to press matters to extremes. In the various agreements concluded between Shane O'Neill and Elizabeth, O'Neill was not called upon to renounce the Pope. It was thought to be much more prudent to pursue a policy of toleration until the English power could be placed upon a sound footing, and that if this were once accomplished the religious question could be settled without much difficulty.

Although the Lord Deputy was empowered to punish those who refused to attend the English service by imprisonment (1561),[53] he was obliged to report in the following year that the people were "without discipline," and "utterly devoid of religion," that they came "to divine service as to a May game," that the ministers were held in contempt on account of their greediness and want of qualifications, that "the wise fear more the impiety of the licentious professors than the superstition of the erroneous Papists," and that nothing less than a Parliamentary decree rigorously enforced could remedy the evil.[54] The commissioners who had been appointed to enforce the religious innovations reported in 1564 that the people were so addicted to their old superstitions that they could not be induced to hear the new gospel, that the judges and lawyers, however, had promised to enforce the laws, that they had

cautioned them not to interfere with the simple multitude at first but only "with one or two boasting Mass men in every shire," and that with the exception of Curwen, Loftus, and Brady, all the rest of the bishops were Irish about whom it was not necessary to say anything more."[55] In a document presented to the privy council in England by the Lord Deputy and council of Ireland (1566) a good account is given of the progress and results of the so- called Reformation. They reported that Curwen, Loftus, and Brady were diligent in their pastoral office, but that "howbeit it [the work] goeth slowly forward within their said three dioceses by reason of the former errors and superstitions inveterated and leavened in the people's hearts, and in [on account of] want of livings sufficient for fit entertainment of well-chosen and learned curates amongst them, for that these livings of cure, being most part appropriated benefices in the queen's majesty's possession, are let by leases to farmers with allowance or reservation of very small stipends or entertainments for the vicars or curates, besides the decay of the chancels, and also of the churches universally in ruins, and some wholly down. And out of their said dioceses, the remote parts of Munster, Connaught, and other Irish countries and borders thereof order cannot yet so well be taken with the residue till the countries be first brought into more civil and dutiful obedience."[56]

In Dublin, where it might be expected that the government could enforce its decrees, the people refused to conform, and even in 1565, after several commissions had finished their labours, it was admitted that the canons and clergy of St. Patrick's were still Papists. From Meath the queen's bishop received such a bad reception that he declared he would much rather have been a stipendiary priest in England than Bishop of Meath. "Oh what a sea of trouble," he wrote, "have I entered into, storms rising on every side; the ungodly lawyers are not only sworn enemies to the truth, but also for the lack of due execution of law, the overthrowers of the country; the ragged clergy are stubborn and ignorantly blind, so as there is left little hope of their amendment; the simple multitude is through continual ignorance hardly to be won so as I find /angustiae undique/." But while Brady was involved in a sea of difficulties, the Catholics of Meath rallied round their lawful bishop, Dr. Walsh. According to the report of Loftus, who ordered his arrest (1565), "he was one of great credit amongst his countrymen, and upon whom as touching causes of religion they wholly depended." Loftus petitioned to be recalled from Armagh because it was not worth anything to him nor was he able to do any good in it, since it lay among the Irish; and Craik, who was appointed to Kildare, announced that he could not address the people because they were not acquainted with the English language, nor had he any Irish clergymen who would assist him in spreading the new gospel.[57]

In 1564 several bodies of commissioners were appointed to visit certain portions of Leinster, Munster, and Connaught to enforce the Acts of Supremacy and Uniformity, and about the same time a royal proclamation was issued enforcing the fine of twelve pence for each offence on those who refused to attend Protestant service on Sundays and holidays. Whether these commissioners acted or not is not clear, but undoubtedly the commissioners appointed for the Pale made a serious attempt to carry out their instructions. They brought together juries chosen out of the parishes situated within the sphere of English influence "and upon the return of their several verdicts they

found many and great offences committed against her Majesty's laws and proceedings. But among all their presentments they brought nothing against the nobility and chief gentlemen, who yet have contemned her Majesty's most godly laws and proceedings more manifestly than any of the rest, and therefore they determined to call them before them, and to minister to them certain articles, unto which they required the nobility to answer upon their honours and duty without oath. The rest of the gentlemen answered upon their oaths. And when they brought their several answers, they found by their own confession, that the most part of them had continually, since the last Parliament, frequented the Mass and other services and ceremonies inhibited by her Majesty's laws and injunctions, and that very few of them ever received the Holy Communion, or used such kind of public prayer and service as is presently established by law." "Whereupon," Loftus added, "I was once in mind (for that they be so linked together in friendship and alliance one with another, that we shall never be able to correct them by the ordinary course of the statute) to cess upon every one of them, according to the quality of their several offences, a good round sum of money, to be paid to your Majesty's use, and to bind them in sure bonds and recognisances ever hereafter dutifully to observe your Majesty's most godly laws and injunctions. But for that they be the nobility and chief gentlemen of the English Pale, and the greatest number too; I thought fit not to deal any further with them until your Majesty's pleasure were therein specially known."[58] So long as her Majesty required the noblemen of the Pale to fight against Shane O'Neill and the other Irish chieftains she was too prudent to insist on strict acceptance of her religious innovations.

In 1560 Pius IV. determined to send a special commissary into Ireland in the person of the Irish Jesuit, Father David Wolf, who was a native of Limerick, highly recommended to the Holy See by the general of the Society. The commissary was instructed to visit and encourage the bishops, clergy, and chief noblemen of the country to stand firm; he was to draw up lists of suitable candidates for bishoprics, to re-organise some of the religious houses and hospitals, and to establish grammar schools where the youth of the country might receive a sound education. He left Rome in August 1560, and arrived in Cork in January 1561. According to his report the people flocked to him in thousands to listen to his sermons, to get absolution, and to procure the re-validation of invalid marriages. For so far, he was able to assure the Roman authorities, heresy had made no progress among the masses. From Cork he went to Limerick, and from Limerick he journeyed through Connaught. During the course of this journey he learned a great deal that was favourable about Bodkin the Archbishop of Tuam and Roland De Burgo of Clonfert. He visited the greater part of the country with the exception of the Pale, and, as he found it impossible to go there, he empowered one of the priests to absolve from reserved cases, particularly from the crimes of heresy and schism. In 1568 he was arrested and thrown into prison together with Archbishop Creagh of Armagh. Pius V. instructed his nuncio in Spain to request the good offices of Philip II. to procure their release, but apparently the representations of the Spanish government were without effect. In 1572, however, Father Wolf succeeded in making his escape from prison, and before setting sail for Spain he had the happiness of receiving the humble submission of William Casey,

who had been promoted to the See of Limerick by Edward VI. From Tarbet the papal commissary sailed for Spain. Later on he returned once more to Ireland, and was active in assisting James Fitzmaurice. He is supposed to have died in Spain in 1578 or 1579.[59]

Father Wolf had been instructed specially to recommend to the Holy See those priests whom he deemed qualified for appointment to vacant bishoprics. This was a matter of essential importance, and as such he devoted to it his particular care. Thomas O'Herlihy was appointed to Ross (1561); Donald McCongail or Magongail, the companion of his journeys, was appointed to Raphoe (1562); the Dominicans O'Harte and O'Crean were provided to the Sees of Achonry and Elphin in the same year at his request, and during the time he remained in Ireland his advice with regard to episcopal nominations was followed as a rule. He was instructed also to establish grammar schools throughout the country, and he was not long in Ireland till he realised the necessity of doing something for education, and above all for the education of candidates for the priesthood. In 1564 he obtained from Pius IV. the Bull, /Dum exquisita/,[60] empowering himself and the Archbishop of Armagh to erect colleges and universities in Ireland on the model and with all the privileges of the Universities of Paris and Louvain. For this purpose they were empowered to apply the revenues of monasteries, and of benefices, and to make use of the ecclesiastical property generally. Unfortunately owing to the disturbed condition of the country, and the subsequent arrest of both the archbishop and the papal commissary, it was impossible to carry out this scheme.

In the earlier sessions of the Council of Trent the Archbishop of Armagh had taken a leading part. When the Council opened for its final sessions in January 1562 Ireland was represented by O'Herlihy of Ross, McCongail of Raphoe, and O'Harte of Achonry. Nor were these mere idle spectators of the proceedings. They joined in the warm discussions that took place regarding the Sacrifice of the Mass, Communion under both kinds, the source of episcopal jurisdiction and of the episcopal obligation of residence, the erection of seminaries, and the matrimonial impediments. It is said that it was mainly owing to their exertions that the impediment of spiritual relationship was retained.[61] After their return attempts were made to convoke provincial synods to promulgate the decrees of the Council of Trent. In 1566 apparently some of the prelates of Connaught assembled and proclaimed them in the province of Tuam; in 1587 the Bishops of Clogher, Derry, Raphoe, Down and Connor, Ardagh, Kilmore, and Achonry, together with a large number of clergy met in the diocese of Clogher for a similar purpose, and in 1614 they were proclaimed for the province of Dublin by a synod convoked at Kilkenny.[62]

In 1560, and for several years after, the state of affairs in Ireland was so threatening that Elizabeth and her advisers were more concerned about maintaining a foothold in the country than about the abolition of the Mass. In the North Shane O'Neill had succeeded on the death of his father (1559), and seemed determined to vindicate for himself to the fullest the rights of the O'Neill over the entire province of Ulster. The Earl of Kildare refused to abandon the Mass, and was in close correspondence both with his kinsman the Earl of Desmond, and with several of the

Irish chieftains. It was feared that a great Catholic confederation might be formed against Elizabeth, and that Scotland, France, Spain, and the Pope might be induced to lend their aid.[63] Instructions were therefore issued to the Lord Deputy to induce the Earl of Kildare to come to London where he could be detained, and to stir up the minor princes of Ulster to weaken the power of O'Neill. By detaining men like the Earls of Kildare, Desmond, and Ormond in London, by stirring up rivalries and dissensions amongst Irishmen, and above all by getting possession of the children of both the Anglo-Irish and Irish nobles and bringing them to England for their education, it was hoped that Ireland might be both Anglicised and Protestantised.[64]

The most urgent question, however, was the reduction of Shane O'Neill. At first Elizabeth was inclined to come to terms with him, but the Earl of Sussex in the hope of overcoming him by force had him proclaimed a traitor, and advanced against him with a large force (1561). He seized Armagh, took possession of the cathedral, and converted it into a strong fortress. O'Neill soon appeared accompanied by the lawful archbishop, who exhorted the Irish troops to withstand the invader. The English army suffered a bad defeat, and after the failure of several attempts to reduce O'Neill by force, the Deputy determined to try other methods. He hired an individual named Neil Gray to murder O'Neill and acquainted Elizabeth with what he had done,[65] but O'Neill was fortunate enough to elude the assassin. At length O'Neill was induced to go to England (1562), where he was forced to agree to certain terms; but, as he discovered that he had been deceived throughout the entire negotiations, he felt free on his return to assert his claims to Ulster. Elizabeth was not unwilling to yield to nearly all his demands, even to the extent of removing Loftus from the Archbishopric of Armagh and allowing the appointment of O'Neill's own nominee. The Earl of Sussex, however, was opposed to peace. Having been forced, against his will, to come to terms with O'Neill (1563), he determined to have recourse once more to the method of assassination. A present of poisoned wine was sent to O'Neill by the Deputy as a token of his good will,[66] and it was only by a happy chance that O'Neill and his friends were not done to death. The new Deputy, Sir Henry Sidney, succeeded in stirring up O'Donnell and the other Ulster princes against O'Neill by promising them the protection of England. Having been defeated in battle by O'Donnell in 1567, Shane fled for aid to the Scots of Antrim, on whom he had inflicted more than one severe defeat, and while with them he was set upon and slain. By his disappearance the power of the Irish in Ulster was broken, and the way was at last prepared for subduing the northern portion of Ireland.

In the South of Ireland the young Earl of Desmond was in a particularly strong position, but, unfortunately, he was personally weak and vacillating, and by playing off the Earl of Ormond against him Elizabeth was able to keep him in subjection to England, to use him against Shane O'Neill, and to prevent him from taking part in a national or religious confederation. In 1567 the Earl was arrested and sent to London, where he was detained as a prisoner. Although the Lord Deputy allowed himself to be received at Limerick by Bishop Lacy with full Catholic ceremonial, still the appointment of Protestant commissioners to administer the territories of Desmond, and the intrusion of a queen's archbishop into the See of Cashel (1567) made it clear that the government was determined to force the new religion on the people. About

the same time the Pope took steps to strengthen the Catholics of Munster by appointing Maurice Fitzgibbon, commendatory abbot of a Cistercian monastery in Mayo, to the vacant See of Cashel. The new archbishop was in close correspondence with the Desmond party in Ireland, and with Philip II. of Spain. On his arrival in Ireland (1569) he found that James Fitzmaurice, the cousin of the Earl of Desmond, was organising a confederation to defend the Catholic religion. MacCarthy Mor, the O'Briens of Thomond, the sons of the Earl of Clanrickard, and Sir Edmund Butler had promised their assistance. The new archbishop came to Cashel, took possession of his cathedral in spite of the presence of the royal intruder, and even went so far as to force the latter to attend a solemn Mass in the cathedral. This is the only foundation for the story that he suffered personal violence to MacCaghwell or that he captured him and brought him a prisoner to Spain.[67]

The Earl of Sidney mustered his forces to proceed against the rebels, and the Earl of Ormond was sent over from England to detach his brother Sir Edmund Butler from his alliance with the Desmonds. The Archbishop of Cashel was dispatched into Spain to seek the assistance of Philip II. (1569), and he brought with him a document purporting to be signed by thirteen archbishops and bishops, and by most of the leading Irish and Anglo-Irish nobles in Leinster, Munster, and Connaught, asking the King of Spain to assist them in their defence of the Catholic religion, and offering to accept as their sovereign any Spanish or Burgundian prince whom Philip II. might wish to nominate.[68] The fact that the Pope had published in February 1570 the Bull, /Regnans in excelsis/ announcing the excommunication and deposition of Queen Elizabeth served to encourage the Catholics of Munster, but notwithstanding this sentence the archbishop failed to obtain any effective assistance either from Spain or from the Pope. Undaunted by the ill-success of his agent, Fitzmaurice issued a proclamation addressed to the prelates, princes, and lords of Ireland, announcing that he had taken up arms against a heretical ruler who had been excommunicated and deposed by the Pope, that a large body of English Catholics were in rebellion or were ready to rise, that he had been appointed by the Pope captain-general of the Irish Catholic forces, and that it behoved them to rally to his standard to defend the Catholic faith, to suppress all false teachers and schismatical services, and to deliver their country from heresy and tyranny.[69] Fitzmaurice was, however, disappointed in his hopes. The Earl of Ormond hastened over to Ireland to hold the Butler territories for the queen. Many of his confederates deserted him or were overthrown, and after a long struggle he was overcome and obliged to make his submission (1573-74).

In 1575 James Fitzmaurice fled from Ireland to seek assistance from some of the Catholic rulers of the Continent. His petitions met, however, with scant success in Paris, Lisbon, and Madrid, and it was only from Pope Gregory XIII. that he received any promise of men and arms. Already an English adventurer named Stukely had been intriguing with the Pope to obtain a small army and fleet for a descent upon Ireland, and the celebrated English theologian and controversialist, Nicholas Sander,[70] who was working at the Roman Court on behalf of the English exiles, also favoured the attempt. The expedition started in 1578, but when Stukely, who was in supreme command, reached Lisbon, he joined his forces with those of the King of

Portugal in an attack on the Moors, in the course of which he was killed, and his army was destroyed. By the exertions of Sander and of the nuncio at Madrid, Fitzmaurice was enabled to fit out a small ship, and in 1579, accompanied by Sander as papal representative, he arrived in Dingle. At once he addressed an appeal to the people to join him in fighting for the faith against a heretical sovereign. So terrified were the vast body of the noblemen by the punishments inflicted on them already and by the fear of losing all their property in case of another defeat that the proclamation met with only a poor response. Ormond joined Sir William Pelham against the rebels, as did also several of the old enemies of the Geraldines. Fitzmaurice himself was killed early in the campaign by the Burkes of Castleconnell, and although the Earl of Desmond at last decided to take up arms, there was no longer any hope of success. For years the way was carried on with relentless cruelty by Pelham and afterwards by Lord Grey de Wilton; the crops and the cattle were destroyed in a hope of starving out the scattered followers of Desmond, and a force composed of Spaniards and Italians were butchered after they agreed to surrender the fortress of Dunanore. Viscount Baltinglass hastened to take up arms against the Deputy, and with the assistance of Fiach MacHugh O'Byrne he inflicted a severe defeat on Lord Grey at Glenmalure (1580). But in the end the rebellion was completely suppressed, and the Earl of Desmond was taken and murdered (1583). Two years before, Nicholas Sander, the papal representative, died in a wood near Limerick after having received the last sacraments at the hands of the Bishop of Killaloe.[71]

After the death of Shane O'Neill Elizabeth's ministers deemed it advisable to summon a second Parliament (1569). Unfortunately no list of the members returned for the boroughs and counties has been preserved, but from the account that has come down to us of the opening debates it is clear that the most elaborate precautions were taken to pack the assembly. New boroughs, which had not been recognised hitherto as corporations, were created; the sheriffs and deputies appointed by the government returned themselves as fit and proper persons to sit in Parliament, and in a large number of cases English officials and lawyers, who had never seen the constituencies they were supposed to represent, were returned by the sheriffs at the instigation of the Deputy and his agents.[72] From the list of peers it would seem as if twenty-three archbishops and bishops took their seats, but the list is so full of glaring inaccuracies that it cannot be relied upon. At best it represents merely the number who were entitled to sit, and was based entirely on the list drawn up for the Parliaments of 1541 and 1560.[73]

When Parliament met James Stanihurst, Recorder of Dublin, was appointed speaker. From the beginning it was evident that in spite of all his efforts the government party was likely to meet with serious opposition. Sir Christopher Barnewall took strong exception to the methods that had been adopted to pack the assembly, but though the judges when appealed to upheld his objections on two counts they decided against him on the vital question, namely, the selection of English officials who had never seen the constituencies they were supposed to represent. Backed by the decision of the judges, the Lord Deputy and the Speaker bore down all opposition. An act was passed for the attainder of Shane O'Neill, for the suppression of the title The O'Neill, and for securing to her Majesty the County

Tyrone and other counties and territories in Ulster. The spiritual peers resisted strongly a proposal for the erection of schools to be supported out of the ecclesiastical property, but in the end the measure was passed. It enacted that a free school should be established in each diocese at the expense of the diocese, that the salary should be paid by the bishops and clergy, that the schoolmasters should be Englishmen or at least of English extraction, and that their appointment should be vested in the Lord Deputy except in the Dioceses of Armagh, Dublin, Meath, and Kildare, in which the nomination of the teachers should rest in the hands of the archbishop or bishop. The exceptions clearly indicate that only the royal bishops could be relied upon to carry out the educational policy of the government, and this was brought out even more explicitly by the act empowering the Deputy to appoint to all ecclesiastical dignities in Munster and Connaught. A bill for the repair of the churches at the public expense was thrown out in the House of Commons.[74]

The gradual extension of English influence in both the North and the South enabled Elizabeth and her advisers to throw off the mask of toleration, and to take more active measures for enforcing the new religion. Already Bishop Walsh of Meath had been thrown into prison (1565), from which he escaped in 1572 and fled to Spain; Bishop Leverous had been driven from his See in Kildare, though on account of the influence of his patron, the Earl of Kildare, he was permitted to end his days in his own diocese; Bishop Lacy of Limerick was reported by the Lord Deputy (1562) as "a stubborn and disobedient man in causes of religion" and as having committed offences whereby he had forfeited his bishopric by the laws of the realm. For some time Limerick was regarded as vacant, but the threatening attitude of the Geraldines made it impossible to interfere with its bishop, and when the Lord Deputy visited the city in 1567 he even allowed himself to be received by the bishop with full Catholic ceremonial. When, however, the power of the Southern confederation was broken Bishop Lacy was deprived of his See as far as royal letters patent could do it, and William Casey, the nominee of Edward VI. was placed in possession. The latter had made his submission to the Pope and had declared his sorrow for his crimes in the presence of David Wolf. Though apparently he had fallen once again, he was distrusted by those who had appointed him as is shown by the fact that a Scotchman named Campbell was set over him in 1585 to attend "to the spiritual functions of the bishopric."[75]

The Pope appointed Donat O'Teige Archbishop of Armagh in 1560, and on his death Richard Creagh was designated as his successor. The latter was a native of Limerick, who had graduated at Louvain, and at the time he was nominated by David Wolf for an Irish archbishopric he kept a school in his native diocese. Having been consecrated in Rome in 1564 he arrived in Ireland towards the end of that year only to be arrested and thrown into prison, from which he managed to make his escape at Easter (1565). He returned to his diocese, but he soon found himself in conflict with Shane O'Neill. The archbishop was an Anglo- Irishman, who stood for loyalty to the queen, and who regarded O'Neill and his followers as both rebels, and, in a sense, savages. Instead of encouraging O'Neill's men to maintain their struggle he preached on the duty of obedience, whereat O'Neill was so enraged that he was at first inclined to drive the Primate from Armagh. He burned the cathedral of Armagh not, however,

as is sometimes represented, in hatred of the archbishop, but because it had been used as a fortress by the English. The relations between the spiritual and temporal ruler of Ulster improved, and Creagh addressed a petition to the Deputy to be allowed to continue the Catholic services in the churches (1566). He was captured once again early in 1567, and put upon his trial. The jury having refused to find a verdict against him, both they and the accused were committed to prison in Dublin Castle. The archbishop eluded his guards once again, and it was only after the Earl of Kildare had promised that his life should be spared that his whereabouts were discovered. In December 1567 he was lodged in the Tower of London, in which he was kept a close prisoner, though he still contrived to communicate with Rome and with his diocese. Despite the intercession of the Spanish ambassador, and notwithstanding the fact that he suffered from grievous bodily infirmities, he remained a prisoner till his death in October 1585. As a guarantee had been given by the Earl of Kildare that his life would be spared, it was not deemed prudent to execute him, but according to well authenticated evidence his death was brought about by poison.[76]

Thomas O'Herlihy was appointed Bishop of Ross on the recommendation of Father Wolf in 1561, and after having been consecrated he attended the Council of Trent. On his return to Ireland he took an active part in encouraging James Fitzmaurice, and was deputed to accompany the Archbishop of Cashel to seek for aid from Philip II. of Spain. He was captured in 1571 and sent to the Tower of London, where he was kept prisoner for about three years and a half. He came back once again to his diocese, and laboured strenuously, not merely in Ross, but in various districts in the South till his death in 1579 or 1580.[77] Maurice Fitzgibbon, Archbishop of Cashel, went to Spain as the representative of the Southern Geraldines and their allies. Having failed to get any help from Philip II., he endeavoured at various times to interest the King of France, the Duke of Anjou, and the Duke of Alva in Irish affairs. Though he was certainly in Scotland, where he was arrested in 1572, it is doubtful if he ever returned to his diocese. According to one authority he was captured in Munster and kept a prisoner in Cork till his death in 1578, but it is more probable that he died at Oporto.[78]

After the suppression of the Geraldine uprising and after the decree of excommunication had been issued against Elizabeth still more violent measures were taken against the bishops and clergy. The Franciscan, Bishop O'Hely, was taken, together with another member of his order, at Kilmallock, and both were put to death (1578 or 1579). Edmund Tanner, who had been appointed to Cork in 1574, and entrusted with special faculties for the provinces of Dublin and Cashel, was arrested shortly after his arrival in Ireland and was thrown into prison. He succeeded, however, in escaping, and he continued his labours in various parts of Munster and Leinster till his death in 1578 or 1579. Nicholas Skerrett, a graduate of the /Collegium Germanicum/ in Rome, was appointed to Tuam in October 1580. He was thrown into prison after his arrival in Ireland, and, having succeeded in escaping from his captors, he made his way into Spain. He died at Lisbon in 1583 or 1584. Maurice MacBrien was appointed to Emly in 1567 on the recommendation of Father Wolf. During the earlier stages of the Desmond rebellion he took active steps to

promote the Catholic confederation. At this period it is not improbable that he went to Spain to solicit the co-operation of Philip II., but he returned to Ireland, was captured in 1584, and two years later he died in prison in Dublin. Peter Power or de la Poer was provided to Ferns by the Pope in 1582. He was arrested and while in prison was induced to make his submission, but on his release, stricken with sorrow for the weakness he had shown, he boldly confessed his error and was arrested once more. How long he was detained is not certain, but it is clear from a letter of the Bishop of Killaloe that he was treated with the utmost severity. He died in Spain in 1587.[79]

In 1581 Dermot O'Hurley was appointed to the Archbishopric of Cashel. He had been a distinguished student of Louvain, and was then a professor of Canon Law at Rheims. Hardly had he reached Ireland when the government spies were on his track. For some time he remained in the vicinity of Drogheda, and then he withdrew to the castle of the Baron of Slane, from which he proceeded through Cavan and Longford to his diocese. Having learned, however, that the Baron of Slane was in danger for having afforded him assistance he surrendered himself to his persecutors. He was brought to Dublin, in the course of which he admitted that he was an archbishop appointed by the Pope, but he denied that he had come to Ireland to stir up strife or to encourage treasonable conspiracies. On one occasion at least he was subjected to horrible torture to extract from him some damaging admissions. At the advice of Walsingham his feet and legs were encased in tin boots and he was held over a fire. As he still refused to submit he was tried by court-martial and condemned. In June 1584 he was hanged in Dublin.[80] Edmund McGauran, who was translated from Ardagh to Armagh in 1587, devoted himself earnestly to the task of inducing the Catholic princes of Ulster to defend their religion and their territories. He was slain during a battle between Maguire of Fermanagh and the English in 1593.[81] Redmond O'Gallagher, Bishop of Derry, was specially active throughout the whole province of Ulster, and so powerful were his protectors that for years the government agents were afraid to arrest him, but in the end he was slain together with three of his priests by soldiers from the Lough Foyle garrison (1601).[82]

In the early years of Elizabeth's reign the government from motives of prudence abstained from adopting violent measures to promote the change of religion. But after 1570 there was a decided change, and particularly after 1580 the persecution was carried on with great bitterness. Many of the clergy, both secular and regular, were put to death. Amongst the latter the few Jesuits who had come into the country to help to carry on the work begun by Father David Wolf, the Franciscans, and the Dominicans, were pursued with relentless severity. Sometimes they were put to death by the soldiers without any form of trial, sometimes they were executed according to the proclamations of martial law, and sometimes they were allowed a form of trial. But the fact that they were priests was sufficient to secure their conviction. Several laymen were put to death for refusing to change their religion, for harbouring priests, or for having studied in some of the Catholic colleges on the Continent. Although Henry VIII. had succeeded in destroying many of the religious houses, still in a great part of the North, West, and South of Ireland the law had not been enforced, and even in the districts where the English held sway several of the

monasteries enjoyed a precarious existence, partly owing to the kindness of certain noblemen, partly also to royal exemptions. But with the gradual subjugation of the country during the reign of Elizabeth more determined measures were taken for the suppression of such institutions. According to a return presented to the authorities in London (1578) "thirty-four abbeys and religious houses with very good lands belonging to them, never surveyed before 1569," were seized, as were also "seventy-two abbeys and priories concealed from her Majesty."[83] From a revenue return presented in 1593 it can be seen that the suppression of these houses and the seizure of their property helped considerably to strengthen the royal exchequer. From the possessions in Ireland that belonged formerly to religious houses in England the queen received annually in round numbers £538, from the lands belonging to St. John of Jerusalem £776, from those of the monastery of Thomastown £551, from the possessions of St. Mary's Abbey, Dublin, £329, and from the monasteries and other religious houses in Ireland £4,716.[84] The destruction of the monasteries did not, however, mean the extinction of the Mendicant Orders. They still continued to maintain themselves in the country, so that during the worst days of the seventeenth century the Franciscans and Dominicans were to be reckoned with as the most dangerous opponents of the religious policy of the English government.

Only in case of one bishop, the notorious Miler Magrath, was Elizabeth able to secure submission. He was a Franciscan friar, who, having been sent to Rome to petition that the vacant See of Down and Connor should be conferred on Shane O'Neill's brother, took steps to secure the appointment for himself (1565). Finding on his return that he could not hope to get any revenue from his diocese on account of the opposition of O'Neill, he made his submission to the queen (1567) and received as his reward the diocese of Clogher, and later on the Archbishopric of Cashel (1570). For the greater part of his term of office as archbishop he held the Sees of Waterford and Lismore, and when he resigned them in 1607 he obtained a grant of Achonry and Killala. While pretending to be scandalised by the toleration shown to Catholics, and especially to Catholic officials, and to be anxious that the laws should be enforced with the utmost rigour he took measures to warn the clergy whenever there was danger of arrest. On one occasion when he was in London, having learned that a raid was contemplated against the priests, he wrote to his wife to warn Bishop MacCragh of Cork to go into hiding at once, and to send away the priests who had taken refuge in his own palace at Cashel lest he should get into trouble. He was denounced by the officials in Dublin as a traitor, a drunkard, and a despoiler of the goods of the Church. He sold or leased the property of his dioceses, kept a large number of benefices in his own hands solely for the sake of the revenue, appointed his own sons, his daughter, and his daughter-in-law to parishes to provide them with an income, built no schools, and allowed the churches to go into ruins. His children made no secret of the fact that they were Catholics, and the archbishop himself seemed to think that though Protestantism had been useful to him in life, the old religion would be preferable at death. In 1608 faculties had been granted to Archbishop Kearney of Cashel for absolving Magrath from the guilt of heresy and schism. Some years later he besought a Franciscan friar to procure his reconciliation with Rome, promising that for his part, if the Pope required it, he would make a public renunciation of Protestantism.

This request of his was recommended warmly to the Holy See by Mgr. Bentivoglio, inter-nuncio at Brussels, but the love of the archbishop for the revenues of Cashel and of his other bishoprics and benefices seems to have proved stronger than his desire for pardon, for he continued to enrich himself and his friends at the expense of the State Church till his death in 1622. It was believed by his contemporaries that on his death-bed he abjured his errors, and was reconciled with the Church by one of his former religious brethren.[85]

The destruction of the religious houses and collegiate churches during the reigns of Henry VIII., Edward VI., and Elizabeth dealt a heavy blow to Irish education. Here and there through the country, clergy and laymen contrived to teach schools and to give their pupils a sound knowledge of the classics as well as of the language, literature, and history of their country. But the theological colleges were closed; Oxford and Cambridge were no longer safe training-places for Irish ecclesiastics, and unless something could be done at once there was grave danger that when the bishops and clergy, who were then at work, passed away, they would leave none behind them to take their places. Fortunately the close and direct communication between Ireland and the Catholic nations of the Continent suggested a possible method of preventing such a calamity, by the establishment, namely, of Irish colleges in Rome, France, Spain, and the Netherlands. These institutions owed their existence to the efforts of Irish bishops and priests, and to the generous assistance of the Popes, and the sovereigns of Spain and France. They were supported by the donations of individual benefactors, by grants from the papal treasury or the royal treasuries of Spain and France, and by the fees paid by students, some of whom were wealthy enough to bear their own expenses, while others of them were ordained priests before they left Ireland so that they might be able to maintain themselves from their /honoraria/ for Masses.

In Spain Irish colleges were established at Salamanca, Seville, Alcalá, Santiago de Compostella, and Madrid. The college at Salamanca was founded by Father Thomas White, S.J., a native of Clonmel, with the approval of Philip II., in 1592 under the title of /El Real Colegio de Nobles Irlandeses/. The King of Spain provided a generous endowment, and the control of the college was entrusted to the Jesuits. Shortly after its foundation complaints were made in the names of O'Neill and O'Donnell that the administrators of the college showed but scanty attention to the claims of students from Ulster and Connaught (1602), a complaint which seems to be justified by the rolls of matriculation, on which the names of very few students from these provinces are to be found. Those who presented themselves at Salamanca took an oath to return to labour in the Irish mission after the completion of their studies, and to enable them to do this a certain sum of money was granted to them from the royal treasury of Spain to cover the expenses of the journey to Ireland. Many of the most distinguished of the Irish bishops and priests during the seventeenth century were men who had graduated at Salamanca.[86] The college at Compostella was founded in 1605, was endowed partly by Philip III., and was placed in charge of the Jesuits. It served as an auxiliary to Salamanca, and its students were sent there for their theological training. The College of the Immaculate Conception at Seville owed its origin (1612) to some of the Irish secular clergy. It was endowed very generously by

Philip III. who placed the Jesuits in control of it in 1619. To help to provide for the support of the students the Irish merchants, who carried on a brisk trade with Seville and Cadiz at this period, bound themselves to bestow on the college a certain percentage on every cask of wine they shipped, while Paul V. granted permission to the fishermen of the province of Andalusia to fish on six Sundays or holidays on condition that they devoted the results of their labours to the support of the Irish College. The college at Madrid was founded by Father Theobold Stapleton (1629), and was used principally as a hospice for the reception of Irish priests who had completed their studies, and who came to the Spanish capital to receive the money guaranteed by the king to enable them to return to Ireland. In 1657 George de Paz y Silveira, who was related on his mother's side to the MacDonnells of Antrim, founded a college at Alcalá principally for students from the North of Ireland. According to the directions of the founder the election of the rector was vested in the hands of the student body, a regulation that led to grave disorders, and finally to the closing of the college. The Irish college at Lisbon owed its existence to the activity of the Jesuits, notably of Father John Holing. It was opened in 1593, but it was only two years later that owing to the kindness of a Spanish nobleman a permanent residence was acquired, over which Father White, S.J., was placed as rector. A community of Irish Dominican Fathers was opened at Lisbon, as was also a convent of Dominican Nuns.

Irish students received a friendly welcome not merely in Spain, but also in the Spanish Netherlands. From the middle of the sixteenth century several ecclesiastical students from Ireland fled to Louvain for their education, but it was only in 1623 that Archbishop MacMahon of Dublin succeeded in founding a separate institution, the celebrated /Collegium Pastorale/ for the training of secular priests for the Irish mission. Out of his own private resources he founded six burses in the college, and at his earnest request six others were endowed by the Propaganda. The college was formally approved by Urban VIII. in 1624, and Nicholas Aylmer was placed over it as its first rector. Though many of the ablest of the Irish bishops and priests of the penal times were educated in the Pastoral College, still Ireland is even more indebted to another Irish establishment at Louvain, the Irish Franciscan College of St. Anthony of Padua. At the petition of Florence Conry, Archbishop of Tuam, himself a Franciscan and a devoted supporter of the Northern Chiefs, Philip III. recommended the project of an Irish Franciscan College to his representative in the Netherlands, and conferred on the institution a generous endowment. With the blessing and approval of Paul V. the college was opened formally in 1609, and so great was its success that it soon became the leading centre of Irish missionary activity. Here Irish scholars like John Colgan, Hugh Ward, Father Mooney, Bonaventure O'Hussey, Hugh MacCaghwell, etc., found a home, and from the Louvain Irish printing- press were issued a large number of catechisms, religious treatises, and historical works, that did incalculable service for religion and for Ireland. Another very important institution at Louvain was the Irish Dominican Priory known as the Holy Cross founded in 1608. A seminary for the education of secular priests was opened at Antwerp in 1629 as a result of the exertions and generosity of Father Laurence Sedgrave and his nephew Father James Talbot. It was supported from the revenues bestowed upon it by its founders, from the grants of the papal nuncio at Brussels, and from the donations of Irishmen,

laymen as well as clerics. At Tournai a seminary for Irish priests was founded by Father Christopher Cusack, and its students attended lectures in the college belonging to the Jesuits. Nearly all the Irish establishments in the Netherlands continued their work until they were destroyed during the troubled period that followed on the outbreak of the French Revolution.

In France, too, Irish students found a welcome and a home. Colleges set apart entirely for their use were opened in Paris, Douay, Lille, Bordeaux, Toulouse, and Nantes. The Irish College in Paris may be said to date from the year 1578, when Father John Lee and a few companions from Ireland took up their residence in the Collège Montaigu. Later on a friendly nobleman, John de l'Escalopier, placed a special house at their disposal, and Father Lee became the first rector of the new seminary, which was recognised officially by the University of Paris in 1624. Later on the Collège des Lombards was acquired, as was also the present house in the Rue des Irlandais. The college in Paris was favoured specially by the Irish bishops, as is evident from the fact that in the year 1795 more than one-third of the Irish clerical students on the Continent were receiving their training in the French capital. The seminary in Douay was founded by Father Ralph Cusack in 1577. At that time Douay belonged to the Spanish Netherlands, and the Irish seminary participated in the boundless generosity of the Kings of Spain. The Irish seminary at Lille was founded also by Father Cusack, and was placed under the control of the Capuchins. Though it was intended principally for the use of students from the province of Leinster, special attention was devoted to the Irish language, without a knowledge of which no person could be appointed rector. The seminary at Bordeaux was founded (1603) by Father Diarmuid MacCarthy, a priest of the diocese of Cork, and later on it received special grants and privileges from the queen-regent, Anne of Austria. The same kind benefactress provided a home for the Irish students at Toulouse (1659), while a few years later a seminary for Irish students was established at Nantes.

Very early in Elizabeth's reign the question of providing priests for the Irish mission engaged the earnest attention of the Roman authorities. Gregory XIII. had arranged for the establishment of an Irish college in Rome, and had provided the means for its support, but as an expedition was then being prepared to aid James Fitzmaurice in his struggle in Ireland, the project was postponed, and the money was devoted to the purposes of the war. In 1625 the Irish bishops addressed a petition to the Holy See praying for the establishment of an Irish college in Rome. Cardinal Ludovisi, then Cardinal Protector of Ireland, supported strongly this petition. He secured a house for the accommodation of a few students, and in 1628 the college was opened. In his will the Cardinal provided generously for the endowment of the college, and he also expressed a wish that it should be entrusted to the care of the Jesuits. They entered into control in 1635, and directed the affairs of the college till a short time before the suppression of the Society.[87]

Elizabeth and her advisers were not slow to see the danger of allowing Irish youths to be educated in Rome, France, or in the territories of the King of Spain. For years the English government had been advised to take measures for the establishment of a good system of English schools as the best means of conquering the country. It was

suggested that with the suppression of the monasteries and the wholesale confiscation of their possessions something might be done by Henry VIII. or Edward VI. for the cause of education.[88] But these hopes were doomed to speedy disappointment. The revenues of the religious houses, which had provided centres of learning for the boys and girls of the country, found their way into the royal treasury or into the pockets of the dishonest commissioners, and no educational establishments were erected in their place. The Deputy did, indeed, inform the canons of St. Patrick's, Dublin, that their church should be converted to a better use, namely, a university, but the promise was made only to induce them to surrender without a struggle. The valuable church plate, crosses, etc., were melted down and handed over to the mint.[89]

At the beginning of the reign of Elizabeth a proposal was made to carry out the promise of Henry VIII. by converting St. Patrick's into a university. Archbishop Curwen objected strongly to such a suggestion, nominally on the ground that a university would only serve as an excuse for the Irish rebels to send their sons to the capital to learn the secrets of the Pale, but in reality because he feared that the project would interfere with his own income. At various times and in various forms the plan was brought forward once more. Sir John Perrott was anxious to signalise his term of office as Lord Deputy by the establishment of a university in Dublin, but Archbishop Loftus, who as Archbishop of Armagh had supported the conversion of St. Patrick's into a university, having changed his mind once he had secured his own transference to Dublin, opposed warmly the project of the Deputy. When, however, he had succeeded in saving St. Patrick's for his relatives and dependents he brought forward another proposal, namely, that the Corporation of Dublin should hand over the site of the old monastery of All Hallows for the establishment of a university. The corporation agreed to this proposal, and in 1592 a charter was granted by Elizabeth. An appeal was then issued for subscriptions, and in a short time about £2,000 was collected, many of the Anglo-Irish Catholics being amongst the subscribers. In 1593 Trinity College was opened for the reception of students. Though care had been taken by the archbishop when discussing the subject with the Corporation of Dublin, most of the members of which were still Catholic, and by the Deputy when appealing for funds for the erection of the buildings, not to raise the question of religion, yet Trinity College was intended from the beginning to be a bulwark of Protestantism as well as of English power in Ireland. Elizabeth had already done much to forward the cause of the new religion by getting possession of the children of the Anglo-Irish or Irish nobles and bringing them to England to be reared up as Protestants and as Englishmen,[90] and it was hoped that Trinity College, supported by the diocesan schools, would do for the better class of the nation what Oxford and Cambridge were doing for the unfortunate children of the chiefs who were kidnapped in the name of religion and statesmanship. The new college set itself to carry out exactly the wishes of its founders, and in return from its compliancy it received large endowments from the English crown mainly by grants of confiscated territories in different parts of Ireland.[91]

Yet in spite of all the measures that were taken, commissions, fines, executions, bestowal of honours and appointments, diocesan schools, and kidnapping of children,

the Reformation made but little progress. The truth is that Elizabeth's representatives in Ireland had not the power to enforce her wishes in regard to religion, nor did Elizabeth herself desire to stir up a general insurrection by attempting to punish the lay nobles for their flagrant disregard of her ordinances. Thus in 1585 Walsingham sent over express instructions to the Protestant Archbishop of Armagh (Long) that the gentlemen of the Pale were to be excused from taking the oath of allegiance,[92] and in 1591 Sir George Carew informed Lord Deputy Fitzwilliam that the queen was displeased with him because "she feared that he was too forward in dealing with matters of religion," and that he (Carew) had attempted to excuse the Deputy by pointing out that on account of the forbearance of the government, "they of the Pale were grown insolent." At one time Elizabeth wrote to the Deputy and council blaming them for neglecting to push forward the interests of the new religion (1599), while the very next year she instructed Lord Mountjoy not to interfere by any severity or violence in matters of religion, until the power of England was established so firmly that such interference could be effective. The reason for this wavering attitude is not difficult to understand. Elizabeth feared that a general attack upon religion as such would be the best means of inducing all the Catholic noblemen to forget their personal rivalries and unite in one great national confederation. Such a turn of events might have proved disastrous to English interests in Ireland, and hence care was taken to allow a certain measure of toleration to the noblemen, and to explain away the punishments inflicted on the clergy as having been imposed not on account of religion, but on account of their traitorous designs. This is brought out very clearly in a letter of Sir George Carew to the privy council in 1600. The citizens of Waterford had been reported for their complete and open disregard of the new religion, and Carew was charged with the work of punishing such disobedience. He wrote that he would "handle the matter of religion as nicely as he could," and that he would endeavour to convict the leaders of the movement of treason because, he added, "if it do appear in the least that any part of their punishment proceeds for matter of religion, it will kindle a great fire in this kingdom."[93]

In 1576 Hugh Brady, the Protestant Bishop of Meath, reported to the Lord Deputy that the condition of the Established Church was lamentable, that the priests, though deprived of their livings, continued to maintain themselves on the voluntary offerings of the people, that the churches had fallen into a state of decay, that no ministers were at hand who could address the people in their own language, and that to remedy this state of affairs Englishmen should be sent over as bishops to organise the new religious body, and Scotchmen should be requested to act as preachers.[94] When such a state of affairs existed in the Pale districts it is easy to see that Protestantism had as yet made little progress among the Irish people. Two years later Lord Justice Drury and Sir Edward Fyton, Treasurer, announced to the privy council that on their arrival in Kilkenny the Protestant Bishop of Ossory reported to them "that not only the chiefest men of that town (as for the most part they are bent to Popery) refused obstinately to come to the church, and that they could by no means be brought to hear the divine service there with their wives and families (as by her Majesty's injunctions they are bound to do), but that almost all the churches and chapels or

chancels within his diocese were utterly ruined and decayed, and that neither the parishioners nor others that are bound to repair them and set them up could by any means be won or induced to do so." The Lord Justice and his companion called the chief men of Kilkenny before them, and bound them in recognisances of £40 each "that they and their wives should duly every Sunday and holiday frequent the church, and hear the divine service."[95]

Waterford was equally bad. In 1579 Sir William Pelham reported that Marmaduke Middleton, who had been appointed bishop by Elizabeth, had met with a bad reception in Waterford, "partly through the contemptuous and obstinate behaviour of the mayor and his brethren of that city, and partly by the clergy of that church." The Dean of Waterford had made himself particularly disagreeable, and on account of his behaviour Pelham recommended that he ought to be deprived of his dignity as an example to the citizens who were "the most arrogant Papists that live within this state." Bishop Middleton was most anxious to get himself removed from Waterford, where he feared that his life was in danger. He reported that Waterford was given over to "Rome-runners and friars," that clergy and people were united to prevent her Majesty's most godly proceedings, that "Rome itself held no more superstition" than the city over which he ruled, and that most of the Protestant incumbents were little better than "wood-kerne."[96] Even towards the end of Elizabeth's reign Waterford was still, as it had been when she ascended the throne, strongly Catholic. The privy council in England warned Sir George Carew that though "the evil disposition of the Irish people in most places of that kingdom, and especially of the inhabitants of Waterford, in matters of religion" was perfectly well known, and though great toleration had been shown them lest they should have an excuse to rise in rebellion, "yet something must be done to repress the presumption and insolency of the people." For it had been announced by the Archbishop of Cashel (Magrath) "that in Waterford there are certain buildings, erected under colour and pretence of almshouses or hospitals, but that the same are in very deed intended and publicly professed to be used for monasteries and such like houses of religion, and that friars and popish priests are openly received and maintained in them . . . and exercise their service of the Mass openly and usually in many places, as if they were in no awe or fear of any exception to be taken thereunto." It is noteworthy, however, as indicating the extent of English influence at that time in Ireland, that the members of the privy council warned the President of Munster that they "do not think it convenient that any extraordinary course should be taken or any disturbance made to inquire after or to punish them for their Masses or any other popish superstitions, unless they show thereby openly to the world an insolent contempt for her Majesty's authority."[97]

In 1597, when Lord Borough was sent over as Lord Deputy, Elizabeth instructed him to discreetly inquire of the state of religion, whereof we are informed," she wrote, "there hath been notorious negligence, in that the orders of religion are in few parts of our realm there observed; and that which is to be lamented, even in our very English Pale multitudes of parishes are destitute of incumbents and teachers, and in the very great towns of assembly, numbers not only forbear to come to the church or divine service, but [are] even willingly winked at to use all manner of popish ceremonies." She ordered him to examine into the causes of "this general defection,"

to see what have the Ecclesiastical Commissioners been doing all these years, and to forward his views as to how "this general defection might be reformed, in some convenient sort, and not thus carelessly suffered as though she had granted toleration of Popery."[98] Three years later (1600) Sir George Carew furnished a very gloomy report on the progress of the new religion. "If the Spaniards do come hither," he wrote, "I know no part of the kingdom that will hold for the queen, and the cities themselves will revolt with the first. For it is incredible to see how our nation and religion is maligned, and the awful obedience that all the kingdom stands in unto the Romish priests, whose excommunications are of greater terror unto them than any earthly horror whatsoever. Until of late, although the townsmen have ever been obstinate Papists, yet /pro forma/ the mayors and aldermen would go to the church. But now not so much as the mayors will show any such external obedience, and by that means the queen's sword is a recusant, which in my judgment is intolerable. Nevertheless I do not think it good to insist much upon it in this troublesome time. As for Masses and such slight errants here, they are of no great estimation. I am not over-curious to understand them, so as they be not used contemptuously and publicly in derogation of the queen's laws. But the mayors of the cities and corporate towns to be let run in so manifest contempts I do not wish."[99]

Nor is it strange that the new religion had made such little progress in Ireland. Apart from the fact that the Irish people were thoroughly Catholic at heart, the means adopted to bring about their apostasy was not of such a kind as to ensure success. The English sovereigns, their officials in Dublin, and a section of the Anglo-Irish nobles aimed at getting possession of the ecclesiastical property and patronage, and once they had attained their object they had but scant regard for the claims of religion. Englishmen were sent over as archbishops or bishops, who could not preach in a language that the people could understand, and who had no other desire than to enrich themselves, their children, and their relatives. Archbishop Browne had set an example in this direction, which example was not lost on his successor, Adam Loftus, who was so greedy in petitioning for appointments that his chapter was forced to demand from him a pledge that he would look for nothing more. Archbishop Long of Armagh (1584- 89) wasted the property of the diocese to such an extent that his successor had barely an income of £120 a year and not a house to give him shelter. Miler Magrath enriched himself out of Cashel, Emly, Waterford and Lismore, Killala, and Achonry. Twenty of the parishes of Emly were held by himself; twenty-six by his sons, daughters, and near relations; nineteen were left vacant; men "fitter to keep hogs than to serve in church" were appointed to some livings, and "in the two dioceses (Cashel and Emly) there was not one preacher or good minister to teach the subjects their duties to God and His Majesty." Craik of Kildare, Cavenagh of Ossory, and Allen of Ferns were accused of alienating the diocesan property of their respective Sees. With the single exception of Brady, the Protestant Bishop of Meath, against whom Loftus declared he could bring such charges as he would be loath to utter, hardly one of the men appointed by Elizabeth to Irish bishoprics was worthy of his position. Loftus was an impecunious courtier; Magrath had no religion except to make money and indulge his passion for strong drink; Knight the Scotchman, who was sent to Cashel to watch him, was removed on

account of public drunkenness; Devereux was appointed to Ferns, although, according to Loftus, he had been deprived of his deanship on account of confessed immorality; Richard Dixon was deprived of his See within one year after his appointment by the queen for manifest adultery, and Marmaduke Middleton of Waterford having been translated to St. David's was accused of "grave misdemeanours," the most serious of which was the publication of a forged will, and was degraded by the High Commission Court. With such men in charge of the work of "reforming" the clergy and people of Ireland, it is no wonder that the Reformation made so little progress.[100]

The men into whose hands the property and patronage of the Church had passed took no steps to look after the repair of the church buildings or to provide clergy to preach the new religion. In some cases their neglect was due to the fact that they themselves were Catholic in their sympathies, and in other cases because they did not want to incur any expenses. As a consequence, the churches were in ruins and roofless, and no religious service of any kind was provided. Few English ministers of good standing in their own country cared to come to Ireland except possibly in the hope of securing a bishopric in the Pale districts, and as a consequence, the men who came were "of some bad note," on account of which they were obliged to leave their own country. Hence, in order to provide ministers to spread the new gospel it was necessary to ordain those who were willing to receive orders as a means of making their living. It is no wonder, therefore, that Edmund Spenser described the Irish Protestant clergy of the period as "bad, licentious, and most disordered." "Whatever disorders," he writes, "you see in the Church of England, you may find in Ireland, and many more, namely, gross simony, greedy covetousness, incontinence, careless sloth, and generally all disordered life in the common clergyman. And, besides all these, they have their particular enormities; for all Irish ministers that now enjoy church livings are in a manner mere laymen, saving that they have taken holy orders, but otherwise they go and live like laymen, follow all kinds of husbandry, and other worldly affairs as other Irishmen do. They neither read the Scriptures, nor preach to the people, nor administer the communion." A good account of the motley crowd who had been enlisted to carry out the work of reform is given by Andrew Trollope, himself an English lawyer and a Protestant. Although he referred particularly to Munster his account may be taken as substantially correct for the rest of Ireland. "In truth," he wrote, "such they [the clergy] are as deserve not living or to live. For they will not be accounted ministers but priests. They will have no wives. If they would stay there it were well; but they will have harlots . . . And with long experience and some extraordinary trail of those fellows, I cannot find whether the most of them love lewd women, cards, dice, or drink best. And when they must of necessity go to church, they carry with them a book of Latin of the Common Prayer set forth and allowed by her Majesty. But they read little or nothing of it, or can well read it, but they tell the people a tale of Our Lady or St. Patrick, or some other saint, horrible to be spoken or heard, and intolerable to be suffered, and do all they may to allure the people from God and their prince, and their due obedience to them both, and persuade them to the devil and the Pope." The Lord Deputy sent a report to England in 1576 "on the lamentable state of the Church" in Ireland. "There are," he wrote,

"within this diocese [Meath] two hundred and twenty-four parish churches, of which number one hundred and five are impropriated to sundry possessions; no parson or vicar resident upon any of them, and a very simple or sorry curate for the most part appointed to serve them; among which number of curates only eighteen were found able to speak English, the rest being Irish ministers, or rather Irish rogues, having very little Latin, and less learning and civility. . . . In many places the very walls of the churches are thrown down; very few chancels covered; windows or doors ruined or spoiled. . . . If this be the state of the church in the best-peopled diocese, and best governed country of this your realm, as in truth it is, easy is it for your Majesty to conjecture in what case the rest is, where little or no reformation either of religion or manners hath yet been planted and continued among them. . . . If I should write unto your Majesty what spoil hath been, and is of the archbishoprics, of which there are four, and of the bishoprics, whereof there are above thirty, partly by the prelates themselves, partly by the potentates, their noisome neighbours, I should make too long a libel of this my letter. But your Majesty may believe it, upon the face of the earth where Christ is professed, there is not a Church in so miserable a case."

Spenser drew a sharp contrast between the Catholic clergy and the ministers of the new gospel. "It is great wonder," he wrote, "to see the odds which are between the zeal of the Popish priests and the ministers of the gospel. For they spare not to come out of Spain, from Rome, and from Rheims, by long toil and dangerous travelling hither, where they know peril of death awaiteth them, and no reward or riches are to be found, only to draw the people unto the Church of Rome; whereas some of our idle ministers, having a way for credit and estimation thereby opened unto them, and having the livings of the country offered unto them without pains and without peril, will neither for the same, nor any love of God, nor zeal of religion, nor for all the good they may do by winning souls to God, be drawn forth from their warm nests to look out into God's harvest."[101]

But though the attempts to seduce Ireland from the Catholic faith had failed to produce any substantial results, yet there could be no denying the fact that Elizabeth had gone further to reduce the country to subjection than had any of her predecessors. The overthrow of the Geraldines and their allies in the South, the plantation of English Undertakers in the lands of the Earl of Desmond, the seizure of MacMahon's country, and the attempted plantation of Clandeboy, the appointments of presidents of Munster and Connaught, the reduction of several counties to shire-lands, the nomination of sheriffs to enforce English law, and the establishment of garrisons in several parts of the country, made it clear to any thoughtful Irishman that unless some steps were taken at once, the complete reduction of their country was only a matter of a few years. In the North Hugh O'Neill, son of Matthew O'Neill, was looked upon as the most powerful nobleman of the province. Like his father he had been in his youth an English O'Neill, and for that reason he was created Earl of Tyrone (1585), and was granted most of the territories of Shane the Proud. But he distrusted the English, as he was distrusted by them. The treacherous seizure of Hugh O'Donnell, the planting of an English garrison at Portmore along the Blackwater, and the warlike preparations begun by Sir Henry Bagenal made it evident to him that the government aimed at the complete overthrow of the Irish

chieftains.

Having strengthened himself by alliances with Hugh O'Donnell, Maguire, and the principal nobles of the North, he rose in arms, seized the fortress of Portmore, laid siege to Monaghan, and inflicted a very severe defeat on the English forces at Clontibret (1595). Whatever might have been his ulterior object, O'Neill put the question of religion in the forefront. Already it had been noted by the English officials that O'Neill, though brought up in England, was attached to the "Romish Church." In their negotiations with the government after the defeat of the English forces at Clontibret, both O'Neill and O'Donnell demanded that "all persons have free liberty of conscience." Similar demands were made by the other chieftains of Ulster, and later on by all the Irish nobles in Connaught, Leinster, and Munster. In reply to these demands the commissioners announced that in the past the queen had tolerated the practice of the Catholic religion, and "so in likelihood she will continue the same." When the report of these negotiations reached England Elizabeth was displeased. The request for liberty of conscience was characterised as "disloyal." O'Neill was to be informed that "this had been a later disloyal compact made betwixt him and the other rebels without any reasonable ground or cause to move them thereunto, especially considering there hath been no proceeding against any of them to move so unreasonable and disloyal a request as to have liberty to break laws, which her Majesty will never grant to any subject."[102]

Though the negotiations were continued for some time neither side was anxious for peace. Elizabeth and her officials strove to secure the support of the Anglo-Irish of the Pale and of a certain section of the Irish nobles. Unfortunately she was only too successful. Most of the Anglo-Irish nobles, though still devoted to the Catholic faith, preferred to accept toleration at the hands of Elizabeth rather than to fight side by side with O'Neill for the complete restoration of their religion.[103] O'Neill and O'Donnell turned to Spain and Rome for support. From Spain they asked for arms, soldiers, and money to enable them to continue the struggle. From the Pope they asked also for material assistance, but in addition they demanded that he should re-publish the Bull of excommunication and deposition issued against Elizabeth by Gregory XIII., that he should declare their war to be a religious war in which all Catholics should take the side of the Irish chiefs, that he should excommunicate the Catholic noblemen who had taken up arms in defence of the queen, that he should grant them the full rights of patronage enjoyed in Ulster by their predecessors, and that he should appoint no ecclesiastics to vacant Sees without their approval.[104]

These requests were supported strongly at Rome by Peter Lombard (1601), who was appointed later on Archbishop of Armagh, and as a result Clement VIII. determined to send a nuncio to Ireland in the person of Ludovico Mansoni (1601). Philip III. of Spain at last consented to dispatch a force into Ireland, but instead of landing in the North where O'Neill and O'Donnell were all-powerful, the Spanish exhibition under command of Don Juan del Aquila arrived off Kinsale, and took possession of the town (Sept. 1601). For the three years preceding the arrival of the Spaniards the Northern chiefs had been wonderfully successful. They had defeated Marshal Bagenal at the Yellow Ford (1598), had overthrown the forces of Sir Conyers

Clifford at the Curlieu Mountains (1599), and had upset all the plans of the Earl of Essex, who was sent over specially by Elizabeth to reduce them to subjection. Hardly, however, had the Spaniards occupied Kinsale when they were besieged by the new Deputy, Lord Mountjoy, and by Carew, the President of Munster. An urgent message was dispatched by them requesting O'Neill and O'Donnell to march to their assistance, and against their own better judgment they determined to march South to the relief of their allies. Even still, had they been satisfied with hemming in the English forces, as O'Neill advised, they might have succeeded, but instead of adopting a waiting policy, they determined to make an attack in conjunction with the Spanish force. As a result they suffered a complete defeat (1602). O'Neill conducted the remnant of his army towards Ulster; O'Donnell was dispatched to seek for further help to Spain from which he never returned, and Aquila surrendered Kinsale and other fortresses garrisoned by Spaniards. Carew laid waste the entire province of Connaught, while Mountjoy marched to Ulster to subdue the Northern rebels. The news of the death of O'Donnell in Spain, the desertion of many of his companions in arms, and the total destruction of the cattle and crops by Mountjoy forced O'Neill to make overtures for peace. An offer of terms was made to him, and good care was taken to conceal from him the death of Queen Elizabeth. He decided to meet Mountjoy and to make his submission (1603). ----------

[1] /Calendar of Patent Rolls/, i., 304.

[2] Id., i., 315.

[3] Moran, /History of the Archbishops of Dublin/, 52-54. Brady, /Episcopal Succession/, ii., 133 sqq.

[4] /Calendar of Patent Rolls/, i., 327-335.

[5] Lynch-Kelly, /Cambrensis Eversus/, ii., 780 sqq.

[6] /Calendar of Carew Papers/, i., 252-53.

[7] Id., 258.

[8] /Calendar of Patent Rolls/, i., 169-70.

[9] /Irish Statutes/, vol. i., 239-74.

[10] /Lib. Munerum/, i., 38.

[11] Cox, /Hib. Anglicana/, 308-9.

[12] Bridgett, /Blunders and Forgeries/, 217-21.

[13] /Calendar of Documents, Ireland/, i., 140.

[14] /Calendar of Documents, Ireland/, i., 151-52.

[15] /Calendar of Carew Papers/, i., 279-80.

[16] Shirley, op. cit., 90-1.

[17] Bagwell, /Ireland under the Tudors/, ii., 354.

[18] Bridgett, /Blunders and Forgeries/, 229-36.

[19] Shirley, op. cit., 91.

[20] Cox, /Hib. Angl./, 313.

[21] The return is printed in /Tracts Relating to Ireland/, ii., 134-38.

[22] /State Papers/, iii., 306-7.

[23] Id., 305.

[24] Litton Falkiner, /Essays Relating to Ireland/, 236.

[25] Kelly, /Dissertations on Irish Church History/, 363.

[26] /Lib. Mun./, ii., pt. 6, 10.

[27] Brady, /Irish Reformation/, 32, 33.

[28] /Irish Statutes/, i., 275-320.

[29] Cf. Lynch-Kelly, /Cambrensis Eversus/, ii., 19-23. Rothe, /Analecta/ (ed. Moran, 1884), 235-7.

[30] /Calendar of Patent Rolls/, i., 303-4.

[31] Shirley, op. cit., 140, 234, 265.

[32] Brady, /The Irish Reformation/, 169-73.

[33] /Fiants of Elizabeth/, no. 199.

[34] Mason, /History of St. Patrick's/, 162.

[35] Moran's, /Spicil. Ossor./, i., 83.

[36] Shirley, op. cit., 220.

[37] /Fiants of Elizabeth/, no. 666.

[38] Shirley, op. cit., 101.

[39] Id., 207.

[40] Cf. Letter of J. A. Froude in Brady's /Irish Reformation/, 173-80.

[41] /Fiants of Elizabeth/, nos. 198, 221, 223, 363.

[42] Shirley, op. cit., 94.

[43] Id., 125.

[44] Shirley, op. cit., 162.

[45] Id., 201, 226.

[46] Id., 249-250.

[47] Cf. Shirley, op. cit., 98-9, 120, 184, 214, 239, 242, 272, 278, 295.

[48] Shirley, op. cit., 130, 135, 180, 189, 271, 313 sqq.

[49] Ware's /Works/, vol. i., p. 391.

[50] Shirley, op. cit., 96, 104, 106, 122.

[51] Id., 271.

[52] Id., 95.

[53] /Calendar of State Papers/ (Ireland), i., 171.

[54] Shirley, op. cit., 117 sqq.

[55] Shirley, op. cit., 139.

[56] Id., 233 sqq.

[57] Shirley, op. cit., 160-3, 135-6, 220, 279, 95.

[58] Shirley, op. cit., 195-96.

[59] Cf. Hogan /Hibernia Ignatiana/, 10-24. Moran, /Archbishops of Dublin/, 77-83. /Cal. State Papers/ (Ireland), i., 255, 472, 524.

[60] /Spicil. Ossor./, i., 32-8.

[61] Cf. Theiner, /Acta genuina S. Concil. Trid./, 4 vols., 1875. Bellesheim, op. cit., ii., 142-44.

[62] Renehan, /Archbishops/, 435 sqq. Moran, /Archbishops of Dublin/, 441 sqq.

[63] /Cal. of Carew Papers/, i., 297, 301 sqq.

[64] Id., 292, 297, 310 sqq. /Cal. of State Papers/ (Ireland), 188.

[65] /Cal. of State Papers/, i., 179.

[66] Id., 233.

[67] Renehan-MacCarthy, op. cit., i., 241 sqq.

[68] /Spicil. Ossor./, i., 59-62.

[69] /Calendar of Carew Papers/, i., 397-400.

[70] Gillow, /Bib. Dict. Eng. Catholics/, v., 476.

[71] /Spicil. Ossor./, i., 94.

[72] /Hooker's Diary/ (printed in Litton Falkiner's /Essays Relating to Ireland/, 237 sqq.).

[73] Id., 235-6.

[74] Cf. /Irish Statutes/, i., 312 sqq. /Calendar of Carew Papers/, ii., 334 sqq.

[75] Cf. /Calendar of Carew Papers/, i., 347. Shirley, op. cit., 206-7. Brady, /Ep. Succession/, ii., 43. Ware's /Works/, i., 511.

[76] Cf. /Spicil. Ossor./, i., 38, sqq. Shirley, op. cit., 164, 171, 176, 287, 306, 324. /The Analects of David Rothe/ (ed. Moran), 1884, xlvi.

[77] O'Sullevan, /Compendium Hist. Cath. Iber./ (ed. by Kelly), 1850, 108-111.

[78] Renehan's /Archbishops/, 241 sqq. Brady, op. cit., ii., 5 sqq. /Spicil. Ossor./, i., 83.

[79] Cf. Brady, op. cit., Rothe's /Analecta/ (ut supra), 381 sqq. /Spicil. Ossor./, i., 82 sqq.; iii., 35 sqq. /Ir. Ecc. Record/, i., ii.

[80] Cf. Rothe's /Analecta/ (Introduction), xiii. sqq.

[81] Brady, op. cit., 221-3.

[82] /Annals F. M./, ann. 1601.

[83] /Cal. Carew Papers/, ii., 137.

[84] Id., iii., 494.

[85] Cf. /I. E. Record/, (1884). Bagwell, op. cit., iii., 462-69. /Archiv. Hib./, i., 277-311.

[86] O'Doherty, /Students of the Irish College, Salamanca, 1595-1700/, (/Archiv. Hib./, ii., iii.).

[87] On the Irish Colleges on the Continent, cf. Boyle, /The Irish College in Paris (1578-1901)/. Murphy, /College of the Irish Franciscans, at Louvain/, (/Journal R.S.A., I./, 1898). Proost, /Les réfugiés anglais et irlandais en Belgique/, etc. (/Messager des Sciences historiques/, 1865), Daumet, /Notices sur les établissements religieux anglais, écossais et Irlandais/, etc., 1912. /Irish Eccl. Record/, vii., viii., ix., x. Hogan, /Irish Worthies of the Sixteenth Century/, 1886. /Catholic Encyclopedia/ (art. Irish College, Rome--Mgr. O'Riordan).

[88] /State Papers/ (Ireland), iii., 30.

[89] Shirley, op. cit., 13, 31.

[90] Green, /The Making of Ireland and its Undoing/, 401-439.

[91] Stubbs, /The History of the University of Dublin/, 1889. Heron, /The Constitutional History of the University of Dublin/, 1847. /Trinity College Calendar/, 1833.

[92] /Cal. State Papers/ (Ireland), ii., 588.

[93] /Cal. Carew Papers/, iii., 58, 316, 356, 469.

[94] /Cal. State Papers/, ii., 92-93.

[95] /Carew Papers/, ii., 144.

[96] /Cal. State Papers/, ii., 229, 235, 245.

[97] /Carew Papers/, iii., 457-8.

[98] /Carew Papers/, iii., 213.

[99] Id., 387-8.

[100] Cf. Shirley, op. cit., 95, 271. Ware, /Works/, i. (under the dioceses mentioned). Bagwell, op. cit., iii., 459 sqq. Moran, /Archbishops of Dublin/, 163 sqq.

[101] Cf. Spenser, op. cit. (ed. Morley, 1890), 123-28, 202 sqq. /Cal. State Papers/ (Ireland), iii., 424, 427, 428. Bagwell, op. cit., iii., 459 sqq.

[102] /Cal. Carew Papers/, iii., 105, 133, 151-3.

[103] O'Sullevan, op. cit., 140 sqq.

[104] Cf. Hagan, /Some Papers Relating to the Nine Years' War/ (/Arch. Hib./, ii., 274 sqq.).

CHAPTER X

THE CHURCH IN IRELAND DURING THE REIGN OF THE STUARTS (1604-1689)

See bibliography, chap. vii.-ix. /Calendar of State Papers, Ireland/ (James I.), 5 vols., 1872-80. Idem (Charles I.), 5 vols. /Calendar of the Clarendon Papers/, 2 vols., 1869-72. Carte, /History of the Life of James, Duke of Ormonde/ (1610-88), 3 vols., 1736. French, /Historical Works/, 2 vols., 1846. /Report on the Franciscan MSS./, i., 1906. Russell-Prendergast, /Report on the Carte Papers in the Bodleian Library/, 1871. Gilbert, /Contemporary History of Affairs in Ireland/ (1641-52), 1879-80. Bagwell, /Ireland under the Stuarts/, 2 vols., 1909. Prendergast, /Cromwellian Settlement of Ireland/, 2 ed., 1875. Lecky, /History of Ireland in the Eighteenth Century/, new imp., 1913. Coffey, /O'Neill and Ormond/, 1914. Dunlop, /Ireland under the Commonwealth/, 2 vols., 1913. Murray, /Revolutionary Ireland and its Settlement/, 2 vols., 1911. Boulger, /The Battle of the Boyne/, 1911. Burke, /The Irish Priests in the Penal Times/ (1660- 1760), 1914.

The news of the death of Queen Elizabeth and of the accession of James I. came as a welcome relief to the great body of the Catholics of Ireland. As the son of Mary Queen of Scots, and in a sense, the descendant of the Irish Kings of Scotland[1] he was regarded with favour both within and without the Pale. While King of Scotland he had been in communication with the Pope, with the Catholic sovereigns of the Continent, and with O'Neill, and even after he had been proclaimed in London he promised some of the leading Catholic lords that they might expect at least toleration. Without, however, waiting for any such promises the Catholics in the leading cities of the East and South made open profession of their religion. In Kilkenny, Thomastown, Waterford, Wexford, Cashel, Cork, Limerick, etc., they took possession of the churches, abolished the Protestant service wherever it had been introduced, and restored the Mass. James White, Vicar-general of Waterford, made himself especially conspicuous as the leader in this movement in the south-eastern portion of Ireland.[2]

Lord Mountjoy was in a difficult position. He was uncertain as to the religious policy of the king, but in the end he determined to suppress the Catholic movement by force. He marched South to Kilkenny and thence to Waterford, where he had an interview with Dr. White. Everywhere the churches were restored to the Protestants, though it was hinted that the Mass might still be celebrated privately as in the days of Elizabeth. In Cork the condition of affairs was much more serious, and it was necessary to bring up the guns from Haulbowline before the mayor and citizens could

be induced to submit. Reports came in from all sides that the country was swarming with Jesuits and seminary priests, that they were stirring up the people to join hands with the King of Spain, and to throw off their allegiance to James I. These rumours were without foundation, as is shown by the fact that most of the towns and cities in Leinster and Munster which were noted as specially Catholic, had not stirred a finger to help O'Neill in his war against Elizabeth. But they were put in circulation to prejudice the mind of King James against his Irish Catholic subjects, and to wean him away from the policy of toleration which he was said to favour. Loftus, Archbishop of Dublin, and Jones, Bishop of Meath, hastened to warn the king against a policy of toleration. They threw the whole blame of the late war on the Jesuits and seminary priests, and cast doubts upon the loyalty of the Catholic noblemen of the Pale. They called upon his Majesty to make it clear "even in the morning of his reign," that he was ready "to maintain the true worship and religion of Jesus Christ," to let the people understand that "he will never permit and suffer that which in his godly zeal he so much abhors, to devise some means of preventing the plots and aims of Jesuits and seminary priests, who "come daily from beyond the seas, teaching openly that a king wanting the Pope's confirmation is not a lawful king," to send over some "learned and discreet preachers" to the principal cities and towns, and to compel the people "by some moderate co-actions to come to church to hear their sermons and exhortations."[3]

As a means of spreading the new gospel amongst the Irish people it was recommended that "a learned ministry be planted, and that the abuses of the clergy be reformed;" that all bishops, Jesuits, seminary priests, and friars should be banished from the kingdom, that no lawyers be admitted to the bar or to the privy council unless they attended the Protestant service, and that all sheriffs, mayors, justices of the peace, recorders, judges, and officials be forced to take the oath of supremacy. Loftus and Jones insisted, furthermore, that Catholic parents should be forbidden to send their children to Douay and Rheims, and should be compelled to send them to the Protestant diocesan schools. They reported that although the Bishop of Meath had opened a school in Trim at great expense to himself, only six scholars attended, and that when the teachers began to use prayers in the school and to show themselves desirous of bringing their pupils to church, the pupils departed, and the teachers, though graduates of the University, were left without any work to do.[4]

As James showed great reluctance to take any active measures against the Catholics, Brouncker, the President of Munster, Lyons, Protestant Bishop of Cork, and the other members of the Council of Munster issued a proclamation (14 Aug. 1604) ordering "all Jesuits, seminaries, and massing priests of what sort soever as are remaining within one of the corporate towns of the province" to leave before the last day of September, and not to return for seven years. Any persons receiving or relieving any such criminals were threatened with imprisonment during his Majesty's pleasure and with a fine of £40 for every such offence, and "whosoever should bring to the Lord President and Council the bodies of any Jesuits, seminaries, or massing priests" were promised a reward of £40 for every Jesuit, £6 3s. 4d. for every seminary priest, and £5 for every massing priest. Fearing, however, that his action might be displeasing to the king, Brouncker took care to write to Cecil that the cities of the

South were crowded with seminary priests who said Mass publicly in the best houses "even in the hearing of all men," and that he had delayed taking action till they began to declare boldly that his Majesty was pleased "to tolerate their idolatry."[5]

Sir John Davies, a native of Wiltshire, who was made Solicitor-General for Ireland on account of his poetical talent, was not opposed to the policy of repression, but at the same time he held firmly that until the Protestant Church in Ireland was itself reformed there could be no hope of converting the Irish people. Writing to Cecil (Feb. 1604) "he is informed," he says, "that the churchmen for the most part throughout the kingdom are mere idols and ciphers, and such as cannot read, if they should stand in need of the benefit of their clergy; and yet the most of those whereof many be serving men and some horseboys, are not without two or three benefices apiece, for the Court of Faculties doth qualify all manner of persons, and dispense with all manner of non-residences and pluralities. . . . The churches are ruined and fallen to the ground in all parts of the kingdom. There is no divine service, no christening of children, no receiving of the sacraments, no Christian meeting or assembly, no, not once in a year; in a word, no more demonstration of religion than among Tartars or cannibals." In his opinion there was no use in asking the bishops of the Pale to hold an inquiry into the abuses, for they themselves were privy to them. "But if the business is to be really performed, let visitors be sent out of England, such as never heard a cow speak and understand not that language, that they may examine the abuses of the Court of Faculties, of the simoniacal contracts, of the dilapidations and dishersion of the churches; that they may find the true value of the benefices, and who takes the profits and to whose uses; to deprive these serving men and unlettered kern that are now incumbents, and to place some of the poor scholars of the College who are learned and zealous Protestants; to bring others out of that part of Scotland that borders on the North of Ireland, who can preach the Irish tongue, and to transplant others out of England and to place them within the English Pale."[6]

At last, yielding to the advices that poured in on him from all sides, James I. determined to banish the Jesuits and seminary priests in the hope that when they were removed the people might be induced to submit, and to insist on compliance with the terms of the Act of Uniformity. He issued a proclamation (4 July 1605) denying the rumour that he intended "to give liberty of conscience or toleration of religion" to his Irish subjects, and denouncing such a report as a libel on himself, "as if he were more remiss or less careful in the government of the Church of Ireland than of those other churches whereof he has supreme charge." He commanded "all Jesuits, seminary priests, or other priests whatsoever, made and ordained by any authority derived or pretended to be derived from the See of Rome," to depart from the kingdom before the end of December. All priests who refused to obey or who ventured to come into Ireland after that date, and all who received or assisted such persons were to be arrested and punished according to the laws and statutes of that realm, and all the people were exhorted "to come to their several parish churches or chapels, to hear divine service every Sunday and holiday" under threat of being punished for disobedience.[7]

The royal proclamation produced little or no effect. The Jesuits and seminary priests remained and even increased in numbers by new arrivals from the Continental colleges and from England where the law was more strictly enforced. Nor could the leading citizens, the mayors and the aldermen of the principal cities, be forced to come to church, because they preferred to pay the fine of twelve pence prescribed in the Act of Uniformity for each offence. The government officials determined, therefore, to have recourse to more severe if less legal remedies. They selected a certain number of wealthy citizens of Dublin, addressed to each of them an individual mandate in the king's name ordering them to go to church on a certain specified Sunday, and treated disobedience to such an order as an offence punishable by common law. Six of the aldermen were condemned to pay a fine of £100, and three citizens £50, one half of the fine to be devoted to the "reparing of decayed churches or chapels, or other charitable use," the other half to go to the royal treasury. In addition to this, they were condemned to imprisonment at the will of the Lord Deputy, and declared incapable of holding any office in the city of Dublin, or in any other part of the kingdom (22 Nov. 1605). A few days later other aldermen and citizens of Dublin were brought before the Irish Star Chamber, and having been interrogated "why they did not repair to their parish churches," they replied "that their consciences led them to the contrary." They were punished in a similar manner. Thus, two methods were adopted for enforcing obedience to the Act of Uniformity, one the infliction on the poor of the fine of twelve pence prescribed for each offence by the law of 1560, the other, the promulgation of individual mandates, disobedience to which was to be punished by the Court of Star Chamber. The noblemen of the Pale, alarmed by such high- handed action, presented a petition against the measures taken for the suppression of their religion, praying that the toleration extended to them hitherto should be continued. In reply to their petition the Viscount Gormanston, Sir James Dillon, Sir Patrick Barnewall, and others were committed as prisoners to the Castle, and others of the petitioners were confined to their houses in the country, and bound to appear before the Star Chamber at the opening of the next term (Dec. 1605). Sir Patrick Barnewall, "the first gentleman's son of quality that was ever put out of Ireland to be brought up in learning beyond the seas" was the ablest of the Catholic Palesmen, and was sent into England at the request of the English authorities.

The appeal of these Catholic lords, backed[8] as it was by the danger of a new and more general rebellion, was not without its effects in England. In January 1607 the privy council in England wrote to Sir Arthur Chichester, Lord Deputy, that although "the reformation of the people of Ireland, extremely addicted to Popish superstition by the instigation of the seminary priests and Jesuits, is greatly to be wished and by all means endeavoured, still, a temperate course ought to be preserved." There should be no question of granting toleration, but at the same time there should be no "startling of the multitude by any general or rigorous compulsion." The principal men in the cities who show themselves to be the greatest offenders should be punished; the priests and friars should be banished, but no "curious or particular search" should be made for them; Viscount Gormanston and his companions should be released under recognisances, except Sir Patrick Barnewall who was to be sent into England;

the Dublin aldermen should be treated in a similar manner but should be obliged to pay the fines, and the Protestant clergy should be exhorted to take special pains to plant the new religion "where the people have been least civil."[9]

But Chichester, Davies, Brouncker, and their companions had no intention of listening to the counsels of moderation. They continued to indict the poorer classes according to the clauses of the Act of Uniformity and to cite the wealthier citizens before the Star Chamber for disobedience to the royal mandates.[10] In Waterford Sir John Davies reported "we proceeded against the principal aldermen by way of censure at the council table of the province for their several contempts against the king's proclamations and the special commandments of the Lord President under the council seal of Munster. Against the multitude we proceeded by way of indictment upon the Statute of 2 Elizabeth, which giveth only twelve pence for absence from church every Sunday and holiday. The fines imposed at the table were not heavy, being upon some £50 apiece, upon others £40, so that the total sum came but to £400; but there were so many of the commoners indicted that the penalty given by the statute (twelve pence) came to £240 or thereabouts."[11] Punishments of a similar kind were inflicted in New Ross, Wexford, Clonmel, Cashel, Youghal, Limerick, Cork, and in all the smaller towns throughout Munster. In Cork the mayor was fined £100, and in Limerick more than two hundred of the burgesses were indicted, the fines paid by these being given for the repair of the cathedral.[12] Steps were also taken in Connaught to enforce attendance at the Protestant service. Five of the principal citizens of Galway were summoned before the court and fined in sums varying from £40 to £20, and punishments of a lesser kind were inflicted in other portions of the province. In Drogheda "the greatest number of the householders together with their wives, children, and servants," were summoned and fined for non-attendance at church. In Meath, Westmeath, Longford, King's County, and Queen's County the government officials were particularly busy.

But though here and there a few of the prominent citizens and of the poorer classes were driven into public conformity by fear of punishment, the work of winning over the people to Protestantism made little progress. In Cashel the Commissioners reported (1606) that they found only one inhabitant who came to church, and even "the Archbishop's (Magrath) own sons and sons-in-law dwelling there" were noted as obstinate recusants."[13] Brouncker, President of Munster, was particularly severe in his repressive measures, so much so that on his death (1606) his successors were able to announce "that almost all the men of the towns are either prisoners or upon bonds and other contempts," but they added the further information that many of those who had been conformable in his time had again relapsed. The Protestant Bishop of Cork complained (1607) that in Cork, Kinsale, Youghal, and in all the country over which he had charge no marriages, christenings, etc., were done except by Popish priests for seven years, that the country was over-run by friars and priests who are called Fathers, that every gentleman and lord of the country had his chaplains, that "massing is in every place, idolatry is publicly maintained, God's word and his truth is trodden down under foot, despised, railed at, and contemned of all, the ministers not esteemed --no not with them that should reverence and countenance them." "The professors of the gospel," he added, "may learn of these

idolators to regard their pastors."[14] Sir John Davies with his usual keen insight placed the blame for the comparative failure of the Protestant clergy. "If our bishops, and others that have care of souls," he wrote (1606), "were but half as diligent in their several charges as these men [the Jesuits and seminary priests] are in the places where they haunt, the people would not receive and nourish them as now they do. But it is the extreme negligence and remissness of our clergy here which was first the cause of the general desertion and apostasy, and is now again the impediment of reformation."[15] The Catholics had protested continually against the proceedings under royal mandates as illegal, and their protests were brought before the English privy council by Sir Patrick Barnewall, who had been sent over to London as a prisoner. The judges in England condemned the proceedings in Ireland as unwarrantable and without precedent. Barnewall was allowed to return to Ireland in 1607, and the new method of beggaring or Protestantising the wealthier class of Irish Catholics was dropped for the time.

The king had been advised, too, to enforce the oath of supremacy in case of all officials of the crown. Though in the beginning of the reign of Elizabeth something had been done in that direction, yet, in later times, owing to the dangerous condition of the country Catholic officials were not called upon to renounce the Pope. As a result, when James ascended the throne many of the judges were Catholic, as were, also, the great body of the lawyers. In response to the advice from Ireland that judges who refused to attend church and to take the oath should be dismissed, and that "recusant" lawyers should be debarred from practising in the courts, James instructed the council to induce John Everard, a Justice of the Common Pleas, to resign or conform. The mayors and aldermen of the cities, too, had never taken the oath of supremacy. In 1607 the Lord Deputy and council of Ireland informed the privy council in England that, "most of the mayors and principal officers of cities and corporate towns, and justices of the peace of this country birth refuse to take the oath of supremacy, as is requisite by the statute, and for an instance, the party that should this year have been Mayor of Dublin, avoided it to his very great charges, only because he would not take the oath." The contention apparently was that the mayors not being crown officials were not bound to take the oath, but the lawyers decided against such a view, and steps were taken to imprison those mayors who refused, and to destroy the charts of recusant corporations. Still in spite of the attempted banishment of the clergy, the enforcement of attendance at church by fines, and the punishment inflicted on the officials who refused to take the oath, the Deputy and council were forced to admit that they had made no progress. "The people," they wrote (1607), "in many places resort to Mass now in greater multitudes, both in town and country, than for many years past; and if it chance that any priest known to be factious and working be apprehended, both men and women will not stick to rescue the party. In no less multitudes do these priests hold general councils and conventicles together many times about their affairs; and, to be short, they have so far withdrawn the people from all reverence and fear of the laws and loyalty towards his Majesty, and brought their business already to this pass, that such as are conformed and go to church are everywhere derided, scorned, and oppressed by the multitude, to their great discouragement, and to the scandal of all good men."[16]

Although the persecution of James I. was violent the Catholics were well prepared to meet the storm. The Jesuits had sent some of their best men to Ireland, including Henry Fitzsimon, who was thrown into prison, and after a long detention sent into exile, Christopher Holywood, James Archer, Andrew Morony, Barnabas Kearney, etc., and, although there were complaints that their college in Salamanca showed undue favour to the Anglo-Irish, this college as well as the other colleges abroad continued to pour priests into Ireland both able and willing to sustain the Catholic religion. The Dominicans and Franciscans received great help from their colleges on the Continent so that their numbers increased rapidly, and they were able to devote more attention to instructing the people. As in England, the young generation of priests both secular and regular, sent out from the colleges in France, Spain, and the Netherlands were much more active and more determined to hold their own than those who had preceded them. They were in close touch with Rome where their agents kept the Papal Court informed of what was going on in Ireland. Clement VIII. hastened to send his congratulations to James I. on his accession to the throne, and to plead with him for toleration for his Catholic subjects. James White, Vicar-general of Waterford, wrote (1605) to inform Cardinal Baronius of the measures that had been taken to suppress the Catholic religion and to offer his good wishes to Paul V. The latter forwarded a very touching letter in which he expressed his sympathy with the Irish Church, commended the fidelity of the Irish people, and exhorted them to stand firm in the face of persecution.[17] The only weak point that might be noted at this period was the almost complete destruction of the Irish hierarchy. O'Devany of Down and Connor, Brady the Franciscan Bishop of Kilmore, and O'Boyle of Raphoe were the only bishops remaining in the province of Ulster since the murder of Redmond O'Gallagher of Derry. Peter Lombard had been appointed Archbishop of Armagh (1601), but he never visited his diocese. In the province of Leinster Matthew de Oviedo, a Spanish Franciscan, had been appointed to Dublin (1600), and had come to Kinsale with the forces of Spain. He returned to plead for a new expedition to Ireland. Another Spanish Franciscan, Francis de Ribera, had been appointed to Leighlin (1587), but he died in 1604 without having done any work in his diocese. The rest of the Sees in Leinster were vacant. In Munster, David O'Kearney was named Archbishop of Cashel (1603), and soon showed himself to be a man of great activity and fearlessness. Dermod McCragh of Cork had been for years the only bishop in the province, and had exercised the functions of his office not merely in the South, but throughout the province of Leinster. In the province of Tuam all the Sees were vacant. Wherever there was no bishop in residence care was taken to appoint vicars. In Dublin Bernard Moriarty who acted as vicar was arrested in the Franciscan convent at Multifernan in 1601, and died in prison from the wounds he received from the soldiers. Robert Lalor who acted in the same capacity was arrested, tried, and banished in 1606.[18]

Although the Earl of Tyrone had been restored to his estates and had been received graciously by the king (1603), he was both distrusted and feared by the government. Sir Arthur Chichester, who had come to act as Lord Mountjoy's deputy in 1605, and who was appointed Lord Lieutenant on the death of the latter (1607), was determined to get possession of Ulster either by driving O'Neill into rebellion or

by bringing against him some charge of conspiracy. New and insulting demands were made upon O'Neill; the Protestant Archbishop of Armagh and the Protestant Bishop of Derry and Raphoe claimed large portions of his territories as belonging to their churches, and some of the minor chieftains were urged on to appeal against him to the English authorities. Having learned in 1607 that he stood in danger of arrest, he and Rory O'Donnell determined to leave Ireland. In September 1607 they sailed from Rathmullen, and on the 4th October they landed in France. After many wanderings they made their way to Rome, where they received a generous welcome from Paul V. O'Donnell died in 1608, and O'Neill, who had cherished till the last a hope of returning to Ireland, died in 1616.[19] Both chieftains were laid to rest in the Church of St. Pietro di Montorio. Although the flight of the Earls caused a great sensation both in England and Ireland, and although James I. was said to have been pained by their departure and even to have thought for a time of granting religious toleration, Chichester and his companions were delighted at the result of their work. The flight of Tyrone and Tyrconnell, the attempted rebellion of Sir Cahir O'Doherty, and the trumped-up charges brought against some of the other noblemen in the North opened up the prospect of a new and greater plantation than had ever been attempted before. Tyrone, Fermanagh, Donegal, Derry, Armagh, and Cavan were confiscated to the crown at one stroke, and preparations were made to carry out the plantation in a scientific manner. The greater portion of the territory was divided into lots of two thousand, one thousand five hundred, and one thousand acres. The Undertakers who were to get the largest grants were to be English or Scotch Protestants and were to have none but English or Scotch Protestant tenants, those who were to get the one thousand five hundred acres were to be Protestants themselves and were to have none but Protestant tenants, while the portions of one thousand acres each might be parcelled out amongst English, Scotch, or Irish, and from these Catholics were not excluded. Thousands of acres were appropriated for the support of the Protestant religion, for the maintenance of Protestant schools, and for the upkeep of Trinity College. A small portion was kept for a few of the old Catholic proprietors, and the remainder of the population were ordered to leave these districts before the 1st May 1609. Many of them remained, however, preferring to take small tracts of the mountain and bog land from the new proprietors than to trust themselves among strangers; but a great number of the able-bodied amongst them were caught and shipped to serve as soldiers in the army of Sweden.[20]

For some time after the flight of the Earls there seems to have been a slight lull in the persecution, the king and his advisers fearing perhaps that their action was only a prelude to a more general rebellion in the course of which O'Neill might return at the head of a Spanish force. But once it was clear that no danger was to be apprehended the Irish officials began to urge once more recourse to extreme measures. Fines were levied on Catholic towns, some of which, however, were remitted by the king. It was represented to Salisbury (1609) that the Catholics had grown much more bold even in Dublin, that in the country they drew thousands to "their idolatrous sacrifices, and that the Jesuits stir up the forces of disloyalty." The writer of this letter recommended that the fine of twelve pence should be exacted off the poor every time they absented themselves from religious services, that so much should be levied off the rich as

would suffice to repair all the churches and build free schools in every county, and he himself undertook to pay £4,000 a year for the right to collect the fines of the "Recusants" in Munster, Leinster, and Connaught, provided only that he could count on the support of the ecclesiastical and civil authorities.[21] In the following year Chichester informed the authorities in England that "the mayors of cities and towns for the most part refused to take the oath of supremacy, as did also the sheriffs, bailiffs, etc.," and he inquired in what manner he should act towards them. To put an end to this state of affairs Andrew Knox was sent over to Ireland as Bishop of Raphoe, and was commissioned to take measures to stir up the Protestant bishops and to suppress Popery. On his arrival he found that he had a heavy task before him. In a letter to the Archbishop of Canterbury (1611) he wrote that there were only four men in the ministry "who have knowledge or care to propagate the Evangell." "The defection," he wrote, "is so great of those who sometime professed the truth, that where hundreds came to several churches before, there resort now scarce six; the gathering and flocking in great numbers of Jesuits, seminary priests, friars, and gidding Papists of all sorts are so frequent from Rome and all parts beyond the seas, that it seems to him the greatest lading the ships bring to this country are burdens of them, their books, clothes, crosses, and ceremonies; natives and others in corporate towns publicly profess themselves their maintainers. There is no diocese but it has a bishop appointed and consecrated by the Pope, nor province that wants an archbishop, nor parish without a priest, all actually serving their time and the Pope's direction and plenteously maintained by the people, so that the few ministers that are, and bishops that profess to do any good, profit no more than Lot did in Sodom. And sure it may be expected that if God, the king, and his Grace prevent not this unnatural growth of superstition, the face of the kingdom will be shortly clad with this darkness."[22]

He lost no time in summoning a meeting of the bishops (1611), most of whom, according to him, were not very reliable. The Archbishop of Dublin (Jones) was "burdened with the cares of state;" the Archbishop of Armagh was "somewhat old and unable;" the Archbishop of Cashel (Magrath) was "old and unable, whose wife and children would not accompany him to the church;" the Archbishop of Tuam was "well willed and best learned, but wanted maintainers and helpers," and the Bishops of Waterford and Limerick were described as "having no credit." In accordance with the instructions that had been forwarded to them by the king, they agreed that they would take common action for "the suppression of papistry and the plantation of religion;" that they would observe the law of residence in their several dioceses; that they would make visitations every year of their parishes, and inquire into the condition of the churches and the behaviour of their ministers; that by authority of his Majesty's commission they would "carefully tender the oath of allegiance to every nobleman, knight, justice of the peace, and other officers of corporate towns," and make a return to the Lord Deputy of those who took the oath as well as of those who refused it; that they would admit no cleric "to any spiritual promotion" who would not willingly take the oath of supremacy, and that they would inquire in every deanery "what persons receive or harbour trafficking priests, Jesuits, seminaries and massing priests, and friars, and will present their names together with the names of the said

priests and Jesuits to the Lord Deputy."[23]

A royal proclamation was issued (1661) ordering all Jesuits and priests to depart from the kingdom immediately; the laity were commanded to attend the Protestant service under threat of severe penalties, students in foreign colleges were ordered to return at once, and Catholic schoolmasters were forbidden to teach within the kingdom. Backed by all the powers of the crown, Knox and his fellow bishops set up a terrible inquisition in every part of the country, and spared no pains to hound down the clergy and those who entertained them, to drive the poorer classes by brute force into the church, to harass the better classes by threats and examinations, and to wipe out every vestige of the Catholic religion. Cornelius O'Devany, a Franciscan, who had been appointed Bishop of Down and Connor (1582), was arrested together with a priest who accompanied him, was tried in Dublin, and was hanged, drawn, and quartered (1612).[24] Almost at the same time the Protestant Bishop of Down and Connor was accused of "incontinence, the turning away of his wife, and taking the wife of his man-servant in her room, subornation of witnesses," and alienation of the diocesan property. He fled from his diocese, was arrested, degraded, and died in prison. The Archbishop of Glasgow and Bishop Knox of Raphoe, himself a Scotchman, hastened to London to secure the appointment of one of their countrymen as his successor; but Chichester wrote that though he would not say that Scotchmen were not good men, he could aver that they were "hot-spirited and very griping" and "such as were not fit for these parts."[25] Several attempts were made to arrest Dr. Eugene Matthews or MacMahon, who had been transferred (1611) by the Pope from Clogher to the Archbishopric of Dublin. He was detested especially by the government, because it was thought that he owed his promotion to the influence of O'Neill, who was also suspected of having had a voice in the appointment of the learned Franciscan, Florence Conry to Tuam (1609).[26] During the course of these years jurors were threatened by the crown lawyers with the Star Chamber unless they found a verdict of guilty, and were sent to prison for not returning a proper verdict against those accused by the Protestant ministers of not attending church; wards of court though Catholic were committed to the guardianship of Protestants, and in every grant a special clause was inserted "that the ward shall be brought up at the college near Dublin (Trinity College) in English habit and religion;" the Irish were excluded from all offices; men of no property were appointed as sheriffs; and the fines for non- attendance at church were levied strictly. Instead of being applied to the relief of the poor they found their way, according to the Catholic Lords of the Pale, into the pockets of the ministers. In reply to this last charge Chichester asserted that they were not given to the poor, because all the poor were recusants, but they were employed "in the rebuilding of churches, bridges, and like charitable purposes."[27]

Yet Knox did not succeed in uprooting the Catholic faith in Ireland. According to a report furnished (1613) to the Holy See by Mgr. Bentivoglio, Internuncio at Brussels, whose duty it was to superintend affairs in Ireland, heresy had made little progress even in the cities, while the nobility and gentry were nearly all Catholic. There were then in Ireland about eight hundred secular priests, one hundred and thirty Franciscans, twenty Jesuits, and a few Benedictines and Dominicans, of whom the

Franciscans were held in special esteem. The best of the secular clergy were those who came from Douay, Bordeaux, Lisbon, and Salamanca.[28] In the following year (1614) Archbishop Matthews of Dublin held a provincial synod at Kilkenny at which many useful regulations were made regarding the conduct of the clergy, preaching, catechising, the celebration of Mass, the administration of the sacraments, the relations between the secular and regular clergy, the reading of controversial literature, and the observance and number of fast-days and holidays.[29] In the province of Armagh Dr. Rothe, acting under authority received from Peter Lombard, convoked a provincial synod at Drogheda (1614). It was attended by vicars from the several dioceses and by representatives of the various religious orders, and passed regulations somewhat similar to those enacted at Kilkenny. In both synods the clergy were warned to abstain from the discussion of state affairs and from disobedience to the civil rulers in temporal matters. At Drogheda the new Oath of Allegiance framed by James I. was condemned as being opposed to faith and religion; Catholics were commanded not to have recourse to prevarication or wavering in regard to it, but to reject it openly, and were warned against attendance at divine worship in Protestant churches even though they had previously made a declaration that they meant only to pay a mark of respect to the civil rulers.[30] At the same period the Franciscans and Dominicans founded new colleges on the Continent, at Douay and Lisbon, to supply priests for their missions in Ireland.

During the later years of Elizabeth's reign the disturbed condition of the country made it impossible to convene a Parliament, and after the accession of James I. his advisers feared to summon such a body lest they might be unable to control it. Still, they never lost sight of the advantage it would be to their cause could they secure parliamentary sanction for the confiscation and plantation of Ulster, and for the new methods employed for the punishment of recusants. These for so far had behind them only the force of royal proclamations, and their legality was open to the gravest doubt. The great obstacle that must be overcome before a Parliament could be convoked was the fact that both in the House of Commons and in the House of Lords the Catholics might find themselves in a majority. To prevent such a dire catastrophe it was determined to create a number of new parliamentary boroughs so that many places "that could scarcely pass the rank of the poorest villages in the poorest country in Christendom" were allowed to return members, provided only that it was certain they would return Protestants. Nineteen of the thirty-nine new boroughs were situated in Ulster, where the plantations had given the English and Scotch settlers a preponderance. In the House of Lords the situation was also critical, but it was hoped that by summoning all the Protestant bishops and also certain peers of England who had got grants of territory in Ireland the government could count on a majority, especially as some of the Catholic lords were minors, and as such not entitled to sit. For months the plans for packing the Parliament and for preparing a scheme of anti-Catholic legislation were being concocted, and the Catholic lords, knowing well what was going on, felt so alarmed that they lodged a solemn protest with the king against the erection of towns and corporations "consisting of some few poor and beggarly cottages" into parliamentary boroughs, against the wholesale exclusion of Catholics from office on account of their religion, and conjured the king "to give order

that the proceedings of Parliament may be conducted with moderation and indifferency." In spite of this protest the new boroughs were created, and the elections were carried out in the most high-handed manner, the sheriffs hesitating at nothing so long as they could secure the nomination of Protestant representatives.

On the day preceding the opening of Parliament (fixed for 18th May 1613) the Catholic Lords of the Pale addressed a protest to the Lord Deputy. They asserted that while several of the Irish Catholic nobles entitled to sit in the House of Lords were not summoned, English and Scotch lords "already parliant in other kingdoms" had been invited to attend, that new corporations had been created, many of them since Parliament was summoned, without any right or title except to assure a Protestant majority, that the sheriffs and returning officers had acted most unfairly during the election, and that a Parliament sitting "in the principal fort and castle of the kingdom," surrounded by "numbers of armed men," could not be regarded as a free assembly. When the House of Commons met on the following day the Catholics proposed that Sir John Everard, who had been dismissed from his office of judge because he refused the oath of supremacy, should be elected speaker, while the Protestants proposed Sir John Davies for this position. The Catholics, knowing well that if the returns of the sheriffs were accepted they would find themselves in the minority, maintained that the members against whose return objection had been lodged should not be allowed to vote. On this being refused, they tried to prevent a vote being taken, and when the supporters of Davies left the chamber to take a count, the Catholics installed Sir John Everard in the chair. The Protestants, claiming that they had a clear majority, one hundred and twenty-seven out of a possible two hundred and thirty-two, removed Sir John Everard by force, and adopted Sir John Davies as speaker. The Catholics then left the chamber, and both Lords and Commoners refused to attend any further sessions until they should have laid their grievances before the king. In consequence of their refusal it was necessary to suspend the parliamentary session, and both parties directed all their attention to an appeal to the king. The Catholics sent to London as their representatives, Lords Gormanston and Dunboyne, Sir James Gough and Sir Christopher Plunkett, William Talbot and Edward FitzHarris, and a general levy was made throughout the kingdom to raise money to pay their expenses. A great deal of time was wasted in inquiries in London and in Ireland. James found it difficult to decide against the Lord Deputy, while at the same time he could not shut his eyes to the justice of several of the claimants brought under his notice by the Catholics. At one time he promised their delegates that he would not interfere with the free exercise of their religion provided they admitted it was not lawful to deprive him of his crown or to offer violence to his person, but when the Lord Deputy wrote warning him of the effect this speech had produced in Ireland, James, while not denying that he had used the words attributed to him, issued a proclamation announcing that he would never grant religious toleration, and ordering all bishops, Jesuits, friars, and priests to depart from the kingdom before the 30th of September (1614). In April 1614 the king decided to annul thirteen of the returns impeached by the Catholics, but in regard to the other matters of complaint he gave judgment in favour of the Lord Deputy. In a personal interview with the Catholic lords he pointed out that it was his privilege to create as

many peers and parliamentary boroughs as he liked. "The more the merrier, the fewer the better cheer." He informed them, too, that they were only half subjects so long as they acknowledged the Pope, and could, therefore, expect to have only half privileges, and expressed the hope that by their future good behaviour in Parliament they might merit not only his pardon but "his favour and cherishing."

In October 1614 Parliament was at last ready to proceed with its business. During the course of the negotiations it would appear that the plan of passing new penal legislation against Catholics was abandoned. It was intended at first to enact a very severe measure for the expulsion of Jesuits and seminary priests, and another framed with the intention of making the laws against Catholics in England binding in Ireland. But these clauses were struck out, probably as a result of a bargain between the Catholic lords and the king. In return for this toleration the Catholic lords agreed to support the Act of Attainder passed against O'Neill and O'Donnell, together with their aiders and abettors, and to approve of the wholesale confiscation that had taken place in Ulster. In vain did Florence Conry, Archbishop of Tuam, call upon the Catholic members to stand firm against such injustice. His warning, that if they consented to the robbery of their co-religionists of the North their own turn to be robbed would surely come, fell upon deaf ears. Their loyalty to England had nerved them to draw their swords against O'Neill, and it nerved them also to assist Chichester and Davies to carry on the Ulster Plantations. Well might the latter boast in his letter to the Earl of Somerset that the service performed by this Parliament was "of such importance, as greater has not been effected in any Parliament of Ireland these hundred years. For, first, the new erected boroughs have taken place, which will be perpetual seminaries of Protestant burgesses, since it is provided in the charters that the provost and twelve chief burgesses, who are to elect all the rest, must always be such as will take the Oath of Supremacy. Next, all the states of the kingdom have attainted Tyrone, the most notorious and dangerous traitor that ever was in Ireland, whereof foreign nations will take notice, because it has been given out that Tyrone had left many friends behind him, and that only the Protestants wished his utter ruin. Besides, this attainder settles the Plantation of Ulster."[31]

Chichester, who had planned the Plantation of Ulster, and who had enriched himself out of the spoils of the Northern princes, was removed from office in 1615, and was succeeded by Sir Oliver St. John, who came to Ireland determined to support the anti-Catholic campaign. In a short time more than eighty of the best citizens of Dublin were in prison because they refused the oath of supremacy, and throughout the country, jurors who refused to convict the Catholics were themselves held prisoners, so that the jails were soon full to overflowing. Immense sums were levied off both poor and rich for non- attendance at Protestant religious service. In the County Cavan, for example, the fines for one year amounted to about £8,000,[32] while large sums were paid by the Catholic noblemen for protection from the Protestant inquisitors. New plantations were undertaken, on the lines of the Ulster Plantation, in Wexford, Longford, King's County, and Leitrim, though, not having been carried out so thoroughly or so systematically as the former, they had not the same measure of success. All Catholic noblemen succeeding to property were obliged to take the oath of supremacy, though apparently they could procure exemption from

this test by the payment of a fine, but the Court of Wards took care that minors should be entrusted to Protestant guardians, and should be sent if possible to Trinity College. By means such as these Elizabeth and James succeeded in Protestantising a certain number of the heirs to Irish estates. Proclamations were issued once more against the clergy, both secular and regular, and so violent was the persecution that the Bishops of Ireland addressed a petition to the Catholic rulers of Europe, and especially to the King of Spain, asking them to intercede with James on behalf of his Irish Catholic subjects (1617).[33]

The negotiations for the marriage of Prince Charles to a Spanish princess made it necessary for the king to be more guarded in his religious policy in Ireland. Oliver St. John, who had shown himself to be such a bitter enemy of the Catholics, was removed from office, and Lord Falkland was sent over as Deputy in 1622. Rumours were afloat on all sides that his policy was to be one of toleration. The Protestants were alarmed and at the installation of the new Deputy (Sept. 1622) James Ussher, then Protestant Bishop of Meath, taking as his text, "He beareth not the sword in vain," preached a violent sermon in favour of religious persecution. Primate Hampton wrote immediately to the preacher, reproving him for his imprudence, asking him to explain away what he had said about the sword, and advising him to spend more of his time in his own diocese of Meath, where matters were far from being satisfactory.[34] On the return of Charles from Spain a new proclamation was issued (1624) ordering all "titulary popish archbishops, bishops, vicars-general, abbots, priors, deans, Jesuits, friars, seminary priests, and others of that sect, made or ordained by authority derived from the See of Rome or other foreign parts to depart from the kingdom within forty days under pain of his Majesty's indignation and penalties. If any of these dared to remain, or if any persons dared to receive them, the offenders were to be lodged in prison, "to the end such further order may be taken for their punishment as by us shall be thought fit."[35]

A full account of the position of the Catholics of Ireland is given in a letter written from Dublin in 1623. Catholic minors were compelled to accept the oath of supremacy before they could get letters of freedom from the Court of Wards (established 1617); all mayors, magistrates, officials, etc., of corporate towns were commanded to take the oath under penalty of having their towns disenfranchised; priests were arrested and kept in prison; laymen were punished by sentences of excommunication and by fines for non-attendance at Protestant worship; they were summoned before the consistorial courts for having had their children baptised by the priests and were punished with the greatest indignities; Catholics were forbidden to teach school and Catholic parents were forbidden to send their children abroad; the Catholic inhabitants of Drogheda were indicted before a Protestant jury, and having been found guilty of recusancy, they stood in danger of having all their property forfeited; in Louth the juries were ordered to draw up a list of Recusants; when three Catholic jurors refused they were thrown into prison and obliged to give security to appear before the Dublin Star Chamber; and in Cavan proceedings of a similar kind were taken.[36]

Amongst the distinguished bishops of the Irish Church at this period were Peter Lombard, Archbishop of Armagh (1601-25), a native of Waterford, who studied at Oxford and Louvain, was appointed a professor at the latter seat of learning, took a very prominent part in the /Congregatio de Auxiliis/, published some theological treatises together with an ecclesiastical history of Ireland, entitled, /De Regno Hiberniae, Sanctorum insula, Commentarius/,[37] but who on account of the danger of stirring up still greater persecution never visited his diocese; Eugene Matthews or MacMahon, Bishop of Clogher (1609) and Archbishop of Dublin (1611) who did splendid work for the Irish Church by the decrees passed in the provincial synod at Kilkenny (1614) as well as by his successful efforts for the foundation of the Pastoral College at Louvain; David O'Kearney, appointed to Cashel (1603) as successor to the martyred Archbishop O'Hurley, who though hunted from place to place continued to fill the duties of his office till about the year 1618, when he went to Rome; and Florence Conry, Archbishop of Tuam, a Franciscan, who served with the army of the Northern Princes, and who was specially detested by the English government on account of his loyal defence of O'Neill. Not being allowed to return to Ireland, he devoted himself to the study of theology, and was the author of several very important works, some of which were not, however, free from the suspicion of something akin to Jansenism. By far the most useful book he composed was his celebrated Irish Catechism published at Louvain in 1626.[38]

During the opening years of the reign of Charles I. (1625-49) the persecution was much less violent, and as Charles was married to a French Catholic princess and as he had promised solemnly not to enforce the laws against Catholics, it was hoped that at long last they might expect toleration. The distinguished Franciscan Thomas Fleming, son of the Baron of Slane, who had received his education in the Irish Franciscan College at Louvain, was appointed Archbishop of Dublin (1623), and arrived in Ireland two years later. He was able to report that the conduct of the Catholics not only in Dublin but throughout Ireland was worthy of every praise, and to point to the fact that many who made the pilgrimage to St. Patrick's Purgatory in Lough Derg were obliged to return without satisfying their pious desires because the island was so crowded that there was no room for them to land. Chapels were opened in some of the less pretentious streets in Dublin; communities of religious orders took up fixed residences in the capital; and the Jesuits summoned home some of their ablest teachers to man a Catholic University which they opened in Back Lane (1627). The government stood in need of money to equip and support a new army, then considered necessary on account of the threatening attitude of France, and in order to obtain funds a large body both of the Protestant and Catholic nobility were invited to come to Dublin for discussion. They were offered certain concessions or "Graces" in return for a subsidy, and to placate the Catholic peers it was said that the fines for non-attendance at church would not be levied, and that they might expect tacit toleration.

The very mention of toleration filled the Protestant bishops with alarm, and, considering the fact that they were dependent upon coercion for whatever congregations they had, their rage is not unintelligible. James Ussher, who had become Protestant Primate of Armagh, convoked an assembly of the bishops. They

declared that: "The religion of the Papists is superstitious and idolatrous, their church in respect of both, apostatical. To give them, therefore, a toleration, or to consent that they may freely exercise their religion, and profess their faith and doctrine is a grievous sin, and that in two respects. For it is to make ourselves accessory, not only to their superstitions, idolatries, and heresies, and in a word, to all the abominations of Popery; but also, which is a consequent of the former, to the perdition of the seduced people, which perish in the deluge of Catholic apostacy. To grant them toleration, in respect of any money to be given, or contribution to be made by them, is to set religion to sale, and with it, the souls of the people, whom Christ our Saviour hath redeemed with His most precious blood."[39] The Irish deputies arrived in London to seek a confirmation of the "Graces" at the very time that the third Parliament of Charles (1627) was petitioning him to put in force the laws against the Recusants. The members of the English House of Commons complained that religious communities of men and women had been set up in Dublin and in several of the larger cities, that Ireland was swarming with Jesuits, friars, and priests, that the people who attended formerly the Protestant service had ceased to attend, that in Dublin there were thirteen mass- houses, and that Papists were allowed to act as army officers, and Papists were being trained as soldiers."[40] In these circumstances the Catholic members of the deputation consented to abandon their claims for full toleration, though it was understood that the fines levied on account of absence from Protestant service would not be enforced, but they were promised that Catholic lawyers would be allowed to practise without being obliged to take the oath of supremacy. In return for the promised "Graces," which were to be ratified immediately in Parliament, the Irish nobles promised to pay a sum of £120,000 for the support of the new army.

The promised Parliament was not held, nor were the "Graces" conceded either to the Irish generally or to the Catholics. Still, there was no active persecution for some time. The provincial of the Carmelites in Dublin was able to report to the Propaganda (1629) that "all the ecclesiastics now publicly perform their sacred functions, and prepare suitable places for offering the holy sacrifice, and that with open doors; they now preach to the people, say Mass, and discharge all their other duties without being molested by any one." The Carmelites, he wrote, "had a large church, but not sufficient to contain one-sixth of the congregation; the people flocked in crowds to Confession, and Holy Communion; the Franciscans, Dominicans, Capuchins, and Jesuits were hard at work; and the parishes were supplied with parish priests who resided in their districts and were supported by the voluntary offerings of the people."[41] From a report of the year 1627, it is clear that the Dominicans had over fifty priests of their Order in Ireland, together with several novices and students.[42]

But already the enemies of the Catholic religion were at work, and, as a result, a proclamation was issued by Lord Falkland in 1629 commanding that all monasteries, convents, colleges, and religious houses should be dissolved, that all religious and priests should cease to teach or to perform any religious service in any public chapel or oratory, or to teach in any place whatsoever in the kingdom, and that all owners of religious houses and schools should apply them to other uses without delay (1629). At first no notice was taken of this proclamation in Dublin or in any of the cities of

Ireland. Ussher wrote to complain of the "unreverend manner" in which the proclamation was made in Drogheda. "It was done in scornful and contemptuous sort, a drunken soldier being first set up to read it, and then a drunken sergeant of the town, making the same to seem like a May-game." The priests and friars merely closed the front doors of the churches, he said, but the people flocked to the churches as usual by private passages.[43] Lord Falkland does not seem to have made any determined effort to carry out the royal proclamation in Dublin, but unfortunately he was recalled in 1629, and in the interval from his departure till the arrival of Sir Thomas Wentworth (1632) Loftus, Viscount of Ely, and Lord Cork were appointed as Lords Justices. Immediately the persecution began. The Protestant Archbishop of Dublin, accompanied by a body of soldiers, made a raid upon the Carmelite Church in Cook Street while Mass was being celebrated on St. Stephen's Day, destroyed the altar and statues, and seized two of the priests; but the people set upon the archbishop and the soldiers, and rescued the prisoners. The troops were called out at once, and several of the Dublin aldermen were lodged in prison. Most of the churches were seized, and the Jesuit University was given over to Trinity College. Attacks of a similar kind were made on the houses and churches of the regular clergy in Cork, Waterford, Limerick, and in various other parts of the country. An order was issued by the Lords Justices that St. Patrick's Purgatory together "with St. Patrick's bed and all the vaults, cells, and all other houses and buildings should be demolished, and that the superstitious stones and material should be cast into the lough." Catholic deputies hastened to London to lay their grievances before the king, but, though he was not unwilling to help them, he found it difficult to do much for them on account of the strong anti-Catholic feeling in England. Queen Henrietta Maria did appeal to the new Deputy to restore St. Patrick's Purgatory, but, as it was situated "in the midst of the great Scottish Plantation," he feared to grant her request at the time. Lord Cork reported that "he had set up two houses of correction in dissolved friaries, in which the beggarly youths are taught trades." But soon the king and Wentworth grew alarmed about the storm that the justices were creating in Ireland. The Catholic lords threatened that unless an end were put to the persecution, which was contrary to the "Graces" that had been promised, they would refuse to pay the subsidy they had promised, and letters were sent both by the king and Wentworth throwing the blame on Loftus and Lord Cork, and reproving them for what they had done.[44]

In 1632 Sir Thomas Wentworth, afterwards Earl of Strafford, arrived in Ireland as Lord Deputy. He was a strong man, intensely devoted to the king, and determined to reduce all parties in Ireland to subjection. In religion he was a High Churchman of the school of Laud, and opposed to the Scotch Presbyterians of the North of Island almost as much as to the Irish Catholics. From the beginning he was determined to raise the revenues of the crown in Ireland, to establish a strong standing army, and to secure the future peace of the country by carrying out a scheme of plantations in Connaught and Munster along the lines followed by the advisers of James I. in case of Ulster. One of his first acts after his arrival in Ireland was to commission Dr. John Bramhall, afterwards Protestant Bishop of Derry and Primate, to hold an inquiry into the state of the Protestant Church. The latter, after having made some investigations, informed Archbishop Laud that he found it difficult to say "whether the churches

were more ruinous and sordid or the people irreverent in Dublin," that one parochial church in Dublin had been converted into a stable, another had become a nobleman's mansion, while a third was being used as a tennis-court, of which the vicar acted as keeper. The vaults of Christ's Church had been leased to Papists "as tippling rooms for beer, wine, and tobacco," so that the congregation stood in danger of being poisoned by the fumes, and the table for the administration of Holy Communion was made "an ordinary seat for maids and apprentices." "The inferior sorts of ministers were below all degrees of contempt, in respect of their poverty and their ignorance," and it was told him that one bishop held three and twenty benefices with care of souls.[45]

Wentworth lost no time in trying to raise money for the army, but many of the lords, both Catholic and Protestant, were so annoyed at the refusal to confirm the "Graces" and at the delay in calling the Parliament that had been promised, that Wentworth was forced to make some concession. Parliament was convoked to meet in 1634, and the Lord Deputy nominated his own supporters in the boroughs, so as to counter- balance the representation from the counties, which representation he could not in all cases control. The Catholics were strong in the Lower House particularly, but care was taken that they should be in a minority. The main question was the granting of subsidies, but several of the Protestants and all the Catholics demanded that the "Graces" should first be confirmed. Both Protestant and Catholic landowners were interested in safeguarding the titles to their property by having it enacted that sixty years' possession should be regarded as a sufficient proof of ownership. As such an enactment would have upset all Wentworth's plans for a wholesale plantation, he succeeded in resisting such a measure, and partly by threats, partly by underhand dealings with particular individuals he obtained a grant of generous subsidies without any confirmation of the "Graces." In April 1635 Parliament was dissolved, and almost immediately the Lord Deputy made preparations for acting under the commission for inquiring into defective titles granted to him by the king. "All the Protestants are for plantations," he wrote, "and all the others are against them. If the Catholic juries refuse to find a verdict in favour of the king, then recourse must be had to Parliament, where a Protestant majority is assured." Portions of Tipperary, Clare, and Kilkenny were secured without much difficulty, but nothing less than the whole of Connaught would satisfy the Deputy. Roscommon was the first county selected, and the Commissioners, including the Lord Deputy, arrived in Boyle to hold the inquiry (July 1635). The jury, having been informed by Wentworth that, whether they found in his favour or not, the king was determined to assert his claims to their county, and that their only hope of mercy was their prompt obedience, delivered the required verdict. Sligo and Mayo also made their submission. In Galway, however, the jury found against the king. In consequence of this the sheriff was fined £1,000 and placed under bail to appear before the Star Chamber, and the jurymen were threatened with severe punishment. They were fined £4,000 each and ordered to be imprisoned till they should pay the full amount. In this way the whole of Connaught, with the exception of Leitrim which was planted already, together with a great part of Clare, Tipperary, and Kilkenny was confiscated to the crown. But Wentworth postponed the plantation of Connaught to a more favourable period, and before any such period

arrived he had lost both his office and his head. The danger to Charles I. from the Scotch Covenanters was already apparent, and Charles urged his Deputy to raise an army in Ireland. During the years 1639 and 1640 the work of training the army, many of the officers of which and most of the soldiers, were Catholics, was pushed forward, but the triumph of the Scots and the execution of the Earl of Strafford in April 1641 made it impossible to use it for the purpose for which it was designed. Acting on the instigation of the English Parliament, Charles sent an order that the Irish troops should be disbanded, and added that he had licensed certain officers to transport eight thousand troops to the aid of any of the sovereigns of Europe friendly to England. For one reason or another very few of the soldiers left Ireland, as both their own leaders and the king knew well that their services would be soon required at home. Parliament had met in Ireland in March 1640,[46] and, having voted several subsidies to aid the king, it adjourned. When it met again in 1641 the Catholics were actually in the majority, and seemed determined to hold their own. The king wrote to confirm the "Graces," and to suggest that a bill should be introduced to confirm defective titles in Tipperary, Clare, and Connaught, but the obstructive tactics of the Earl of Ormond, and the unfavourable attitude of the Lords Justices, Sir William Parsons and Sir William Borlase, towards Catholic claims, prevented anything being done. Parliament was adjourned till the 9th November, but before that date arrived the issues had been transferred to another and a different court.[47]

From 1632 till 1640, though the Deputy was doing his best to rob a large portion of the Catholic owners of their property on the ground of defective titles, and though in many districts the Protestant bishops and ministers created considerable difficulties for their Catholic neighbours, still the religious persecution was carried out only in a half-hearted manner. The king was shrewd enough to recognise the important part that might be played by the Irish Catholics in the civil struggle that he foresaw, and he was anxious not to antagonise their leaders. This period of comparative calm was providential for the Church in Ireland, by enabling it to organise its forces and to prepare for the terrible days that were soon to come. In accordance with the advice given by Archbishop Lombard years before, Rome decided to fill several of the Sees that had been left vacant. Hugh MacCaghwell (/Cavellus/), a distinguished Irish Franciscan, who had been instrumental in founding the College of St. Anthony at Louvain, and whose theological works caused him to be regarded by his contemporaries as the ablest theologian of the Scotish school in Europe, was appointed Archbishop of Armagh (1626), but he died in Rome a few weeks after his consecration. Less than two years later it was decided to transfer Hugh O'Reilly from Kilmore to the primatial See (1628). Thomas Fleming had been appointed to Dublin in 1623, and despite the efforts of his enemies he succeeded in eluding the vigilance of those who wished to drive him from Ireland. Malachy O'Queely, who had acted for years as vicar-apostolic of his native diocese of Killaloe, was appointed to Tuam (1630) in succession to Florence Conry, and Thomas Walsh, a native of Waterford, was promoted to the See of Cashel (1626). Amongst the distinguished ecclesiastics who were promoted to Irish dioceses during the reign of James I. and Charles, were the learned David Rothe (Ossory, 1618), Roche MacGeoghan (/Roccus de Cruce/), who had done so much for the restoration of the Dominican houses in Ireland

(Kildare, 1629), and Heber MacMahon (Down, 1642, Clogher, 1643). As a result of the long persecution and of the absence of bishops from so many dioceses a certain amount of disorganisation might be detected in several departments, and to remedy this provincial synods were held to lay down new regulations, and to adjust the position of the Church to the altered circumstances of the country. A synod was held at Kilkenny (1627) which was attended by bishops from Leinster and Munster; another very important one, the decrees of which were confirmed by the Holy See, was held for the province of Tuam in 1632, and a third attended by the Leinster bishops was held in the County Kilkenny in 1640.[48] The Irish colleges on the Continent continued to pour able and zealous young priests into the country, while the colleges for the education of the Franciscans, Dominicans, and Jesuits supplied new recruits to replenish the ranks of the religious orders. The Capuchin founded Irish colleges on the Continent, at Lille, Antwerp, and at Sedan, and so earnestly did they work in Ireland that a special letter in praise of the Capuchins was forwarded to Rome by a number of the Bishops in 1642. The results of this renewed activity were soon apparent in every part of the country. Thus, for example, in a report presented (1631) from the diocese of Elphin, then ruled by Bishop Boetius Egan, it can be seen that although all the churches, including the cathedral, had been destroyed or taken possession of by the Protestants, there were at the time forty priests at work in the diocese; the decrees of the Council of Trent had been promulgated; the parishes had been re-arranged, and the learning of the parish priests appointed had been tested by examination; regular synods, visitations, and conferences of the clergy were being held, and steps had been taken to ensure that the people should be instructed fully in their religion.[49]

In the Parliament of 1641 the Catholics were in the majority, and they insisted that the "Graces" must be confirmed. The king granted their demands, and the bill was actually on its way to Ireland when the Lords Justices, Parsons and Borlase, who administered the government of the country prorogued the session. They wished for no settlement with the Catholics lest a settlement might put an end to their hopes of a plantation, and the Earl of Ormond tried also to block the passage of the bill in the hope of saving the king from the odium which he would incur in England and Scotland by granting toleration to the Irish Catholics. The Catholic noblemen of Ireland, whether Irish or Anglo-Irish, had good reason to complain. They had seen the Catholics driven out of the good lands of Ulster to make way for English and Scottish planters, and they well knew that the danger of similar transactions in Connaught, Munster, and Leinster had not passed away with the death of Strafford. They had seen the operation of the Court of Wards, and they could not fail to realise that as a result of its work the landowners of Ireland would soon be dispossessed or Protestantised. They knew something of the Protestant Inquisition courts as run by the ministers and bishops, of the persecution of their clergy, the fees and fines levied on the unfortunate Catholic peasantry, and of the still graver danger that lay before them in case the Covenanters and the Puritans were to overthrow Charles I., or to succeed in forcing him to accept their policy. Were they to remain passive, they believed, they could have no hope of redress or even of safety, and hence many of them made up their minds that the time for negotiations had passed, and that they

could rely only on force. Never again were they likely to get such a favourable opportunity. England was torn by internal dissensions; the disbanded Irish soldiers, who had been trained for service against the Scots, were still in the country; and with so many distinguished Irishmen scattered through the countries of Europe there was good hope that they might get assistance from their co-religionists on the Continent. The distinguished Waterford Franciscan, Father Luke Wadding, who had founded the College of St. Isidore in Rome and had taken such a prominent part in the foundation of the Irish College, was in Rome ready to plead the cause of his countrymen at the Papal Court. His fame as a scholar was known throughout Europe, and his active support could not fail to produce its effect in Europe, and particularly in Spain where he was esteemed so highly by Philip IV. Owen Roe O'Neill, who had achieved a remarkable distinction in the army of Spain by his gallant defence of Arras against the French, Colonel Preston, uncle of Lord Gormanston, and a host of others, who had learned the art of war in France, Spain, and the Netherlands, were willing to return to Ireland and to place their swords at the disposal of their country.

Early in 1641[50] Rory O'More, who was closely connected with both the Irish and the Anglo-Irish nobles, suggested to Lord Maguire of Enniskillen the idea of an appeal to arms, and hinted at the possibility of a union between the Irish nobles and the Lords of the Pale. In a short time most of the important leaders of the North, Sir Phelim O'Neill, Turlogh O'Neill, Lord Maguire, Hugh MacMahon, Arthur MacGennis of Down, Philip and Miles O'Reilly of Cavan had come to an understanding. The war was to begin in Ulster on the night of the 23rd October 1641, and on the same night an attempt was made to seize Dublin Castle. The latter portion of the programme could not be carried out owing to the action of an informer who betrayed Maguire and Hugh MacMahon to the Lords Justices; but at the appointed time the Irish Catholics of Ulster rose almost to a man, and in a very short time most of the strong places in the province were in their hands. In such a movement it was almost impossible for the leaders to prevent some excesses, particularly as many of the men who took part in it had been driven from their lands to make way for the Planters, and had suffered terribly from the harshness and cruelty to which they and their families had been subjected. Naturally they seized their own again, and in some cases they may have used more violence than the situation required, but it is now admitted by impartial historians[51] that the wild stories of a wholesale massacre of Protestants are without any more solid foundation than the fact that the Protestants were for the most part driven out of Ulster in much the same way as the Catholics had been driven to the mountains thirty years before. Most of the few who were killed were probably struck down while attempting to defend their homes, and in no case is there evidence to prove that the leaders countenanced unnecessary violence or murder. If the historian wishes to look for organised lawlessness and murder he can find it much more easily in the campaign of the infamous Sir Charles Coote or in the raids carried out by the forces of the Scotch Covenanters of the North. The Catholic Lords of the Pale hastened to Dublin Castle to offer their services against the Northern rebels, but they were received so discourteously by the Lords Justices that they recognised the absolute necessity of joining with the Catholics of Ulster. In announcing their defection the Lords Justices positively gloated over the splendid prospect of having

the province of Leinster planted with English settlers (Dec. 1641).[52] The action of the English Parliament in decreeing that for the future there should be no toleration allowed to Irish Catholics (Dec. 1641) and in putting up for sale two million five hundred thousand acres of fertile land in Ireland, the proceeds to be expended in a war of extermination, strengthened the hands of the Irish leaders, and helped to bring over the waverers to their side.

The Catholic clergy had sympathised with the movement from the beginning, but they had exerted themselves particularly in moderating the fury of their countrymen, and in protecting the Protestants, both laymen and clerics, from unnecessary violence.[53] But, as there was a danger that the movement would break up and that the Irish forces would be divided, it was necessary for the bishops to take action. Religion was nearly the only bond that was likely to unite the Irish and the Anglo-Irish nobles, and the Church was the only institution that could give the movement unity and permanency. A meeting of the bishops and vicars of the Northern province was held at Kells (May 1642) under the presidency of Dr. Hugh O'Reilly, Archbishop of Armagh. They prescribed a three days' fast, the public recitation of the Rosary and the Litanies, and a general Communion for the success of the war, issued a sentence of excommunication against murderers, mutilators, thieves, robbers, etc., together with all their aiders and abettors, denounced the Catholic Irishmen who refused to make common cause with their countrymen, and ordered all bishops, vicars-general, parish priests, and heads of religious houses to spare no pains to raise funds immediately for the support of the soldiers.[54] In May (1642) a national synod was held at Kilkenny. It was attended by the Primate of Armagh, the Archbishops of Tuam and Cashel, by most of the bishops either personally or by procurators, and by representatives of the religious orders and of the secular clergy. They declared that the war was being waged for the defence of the Catholic religion, for the preservation of the rights and prerogatives of the king, for the just and lawful immunities, liberties, and rights of Ireland, for the protection of the lives, fortunes, goods, and possessions of the Catholics of Ireland, and that it was a just war in which all Catholics should join. They condemned murder, robbery, and violence, advised all their countrymen to lay aside racial and provincial differences, took measures for the restoration of the cathedrals and churches to their owners, exhorted all, both clergy and laymen, to preserve unity, and called upon the priests to offer up Mass at least once a week for the success of the war.[55]

During the year 1642 the war had spread into all parts of Ireland, and most of the prominent nobles, with the exception of the Earl of Clanrickard, had taken the field. Owen Row O'Neill and Colonel Preston had arrived with some of the Irish veterans from the Continent, and had brought with them supplies of arms and ammunition. Urban VIII. had forwarded a touching letter addressed to the clergy and people of Ireland (Feb. 1642) and had contrived to send large supplies of weapons and powder. A general assembly of Irish Catholics was called to meet at Kilkenny in October 1642. There were present, eleven spiritual peers, fourteen lay peers, and two hundred and twenty-six representatives from the cities and counties of Ireland, under the presidency of Lord Mountgarrett. Generals were appointed to lead the forces in the different provinces, as unfortunately owing to the jealousy between the Anglo-Irish

and the Irish nobles Owen Roe O'Neill could not be appointed commander of the national army. Arrangements were made for sending ambassadors to the principal courts of Europe, for the establishment of a printing-press, for raising money, and for the promotion of education. The Irish Franciscans of Louvain were asked to transfer their press and library to Ireland to help in the creation of a great school of Irish learning. Father Luke Wadding was appointed the Irish representative at the Papal Court, and agents were dispatched to France, Spain, the Netherlands, and to several of the German States. Urban VIII., yielding to the entreaties of the Irish ambassador gave generous assistance, and wrote to nearly all the Catholic rulers of Europe recommending them to assist their co-religionists in Ireland.

In 1643 the well-known Oratorian, Father Francesco Scarampi, landed in Wexford as the accredited agent of the Pope, bringing with him supplies of money and arms. Hardly, however, had he arrived, when he discovered that though the Irish armies had met with considerable success both against the Royalist forces in Dublin and the Scotch Covenanters in the North, negotiations had been opened up for an extended truce. The Anglo-Irish nobles had never been enthusiastic for the war as an Irish war. They fought merely to preserve their estates and to secure a certain degree of liberty of worship, but in their hearts they were more anxious about the cause of the king than about the cause of Ireland. The Marquis of Ormond, whom the king had created his Lord Lieutenant in Ireland, had many friends amongst the Lords of the Pale, and by means of his agents he succeeded in bringing about a cessation (Sept. 1643). The Irish Catholics were to send agents to the king for a full discussion of their grievances, and were to help him with supplies. Anxious to secure the help of the Irish Catholics, and fearing to give a handle to his parliamentary opponents by granting religious toleration, Charles was in a very difficult position, and to make matters worse Ormond was determined not to yield to the demands of the Catholics. He was prepared to make a conditional promise that the laws against them would not be enforced, but beyond that he was resolved not to go.

After long and fruitless negotiations with Ormond the war was renewed (1644). Representatives from France and Spain had arrived in Kilkenny, and it was thought that if the Pope could be induced to send a nuncio such a measure would strengthen the hands of the Irish ambassadors on the Continent. At the request of Sir Richard Bellings, Secretary to the Supreme Council, Innocent X. consented to send Giovanni Battista Rinuccini as his representative to Ireland (1645). The latter landed at Kenmare in October, and proceeded almost immediately to Kilkenny. In the meantime Charles I. was being hard pressed in England, and as he could have no hope of inducing Ormond to agree to such terms as would satisfy the Catholics of Ireland, he commissioned the Earl of Glamorgan, himself a Catholic, and closely connected with some of the Irish families by marriage, to go to Kilkenny and to procure assistance from the Catholic Confederation at all costs. Shortly after his arrival he concluded a treaty in the name of the king (Aug. 1645) in which he guaranteed "the free and public exercise of the Roman Catholic religion." All churches possessed by the Irish Catholics at any time since October 1641 were to be left in their hands, and "all churches in Ireland other than such as are now actually enjoyed by his Majesty's Protestant subjects" were to be given back to the Catholics. All jurisdiction claimed

by Protestant bishops or ministers over Irish Catholics was to be abolished, and all temporalities, possessed by the Catholic clergy since October 1641, were to be retained by them, two- thirds of the income, however, to be paid to the king during the continuance of the war. Charles had already addressed a letter to the nuncio promising to carry out whatever terms Glamorgan would concede, and adding the hope that though this was the first letter he had ever written to any minister of the Pope it would not be the last.[56] The terms were to be kept a secret, but in October 1645 Archbishop O'Queely of Tuam was killed near Sligo in a skirmish between the Confederate and Parliamentary forces, and a copy of the treaty which he had in his possession fell into the hands of the enemy. As soon as it was published it created a great sensation in England, and Charles immediately repudiated it. Glamorgan was arrested in Dublin by Ormond, but was released after a few weeks, and returned coolly to Kilkenny to conduct further negotiations.

Since his arrival in Kilkenny (1645) the nuncio was anxious to break off negotiations with Ormond, and to devote all the energies of the country to the prosecution of the war. But the Anglo-Irish of the Pale were bent upon accepting any terms that Ormond might offer; and soon the Supreme Council was divided into two sections, one favouring the nuncio, the other supporting Ormond. Negotiations had been opened directly with Rome by Queen Henrietta through her agent Sir Kenelm Digby. In return for promises of men and money the latter signed a treaty even much more favourable to the Irish Catholics than that which had been concluded with Glamorgan (1645), but as the original of this treaty had not come to hand, and as it was feared that there was little hope of its being put in force, the Supreme Council patched up an agreement with Ormond (March 1646). Although the latter had got a free hand from the king he granted very little to the Catholics. The oath of supremacy was to be abolished in the next Parliament, as were to be also all statutory penalties and disabilities; "his Majesty's Catholic subjects were to be recommended to his Majesty's favour for further concessions;" all educational disabilities of Catholics were to be removed, and all offices, civil and military, were to be thrown open to them. Even this treaty was kept a secret, but in the meantime the Confederation should send troops to the assistance of the king. But before the troops could be sent Charles was driven to take refuge with the Scots at Newcastle (May 1646), from which place he wrote forbidding Ormond "to proceed further in treaty with the rebels or to make any conditions with them."[57]

Notwithstanding Rinuccini's earnest entreaties the majority of the Supreme Council insisted on accepting Ormond's terms. The Confederation had been so weakened by dissensions that General Monro thought he could march south and capture Kilkenny, but at Benburb he found his way barred by the forces of O'Neill, and he was obliged to retreat to Coleraine, having left a great portion of his army dead on the field, and his standards, guns, and supplies in the hands of O'Neill (5 June 1646). The news of the great victory was brought to the nuncio at Limerick, where the captured banners were carried in procession through the streets and deposited in the cathedral. General Preston had also scored some successes in Connaught, so that once again the tide seemed to have turned in favour of the Confederates. Rinuccini was more than ever determined to refuse half measures,

such as were being offered by the terms of Ormond's treaty. He summoned a meeting of the bishops in Waterford (Aug. 1646), and after long discussion it was agreed that those who accepted Ormond's terms were guilty of perjury, because they had thereby broken the terms of the oath of confederation. According to this oath the members had pledged themselves to be content with nothing less than the free and public exercise of their religion, while Ormond left nearly everything to the good-will of the king, from whom nothing could be expected considering the state of affairs in England. In spite of all remonstrances the Supreme Council published the Peace in Kilkenny, but their messengers were refused admittance into several of the cities of the South. Ormond was invited to Kilkenny, where he received a royal reception from his friends. But O'Neill marched south and compelled Ormond to beat a hasty retreat towards Dublin. Rinucinni returned to Kilkenny, and some of the prominent adherents of Ormond were arrested. A new Supreme Council was chosen, and O'Neill and Preston were commissioned to march on Dublin, but, though they brought their armies close to the city, yet, owing to underhand communications carried on between Ormond's agent, the Earl of Clanrickard, and Preston, and the jealousy between the generals, the attack was not made.

A new General Assembly had been elected and met at Kilkenny (10 Jan. 1647). After a long discussion the Ormond Peace was condemned, and a new form of oath was drawn up to be taken by all the Confederates. Ormond, who could have done so much for his master had he obeyed his instructions and made some satisfactory offers to the Irish Catholics, surrendered Dublin into the hands of the Parliamentarians, and fled to France. To make matters worse Preston was defeated by the Parliamentarians at Summerhill (Aug. 1647), and Lord Inchiquin was carrying all before him in the South. Everywhere he went he had acted with great savagery, and was especially violent in his opposition to the Catholic religion. But early in 1648 he changed his politics, and declared for the king against the Parliament. Immediately the former friends of Ormond on the Supreme Council insisted on making terms with Lord Inchiquin. Rinuccini opposed such a step as a betrayal, and his action was approved by a majority of the bishops. The nuncio left the city and went towards Maryborough, where O'Neill was encamped. In May 1648 the truce with Lord Inchiquin was proclaimed, and in a few days Rinuccini issued a sentence of excommunication against all who would receive it, and of interdict against the towns which recognised it. The Supreme Council replied by appealing to the Pope. The only result was that the division and confusion became more general. Several of the bishops and clergy were to be found on both sides. The Supreme Council dismissed O'Neill from his office, and afterwards declared him a traitor. The nuncio went to Galway, from which port he sailed in 1649. Though it is difficult to entertain anything but the greatest contempt for the Ormond faction on the Supreme Council, and though Rinuccini was an honest man who did his best to carry out his instructions, still he did not understand perfectly the situation. He allowed himself to show too openly his preference for O'Neill, and displayed too great an inclination to have recourse to high-handed methods. His arrest of the Ormondist faction on the Supreme Council and the censures which he levelled against his opponents, however justifiable these things might have been in themselves, were not calculated to restore unity and

confidence.[58]

Ormond returned to Ireland in 1648 and received a great welcome from those of the Supreme Council who were opposed to Rinuccini and O'Neill. In January 1649 he concluded a peace with them by which he guaranteed that in the next Parliament to be held in Ireland the free exercise of the Catholic religion should be conceded; that the Act of Uniformity and the Act of Royal Supremacy should be abolished; that all offices, civil and military, should be thrown open to Catholics provided they were willing to take a simple oath of allegiance; that all plans for any further plantations in Munster, Leinster, and Connaught should be abandoned, that all Acts of Attainder, etc., passed against Irish Catholics since October 1641 should be treated as null and void; that the clergy should not be molested in regard to the churches, church-livings, etc., until his Majesty upon full consideration of the desires of the Catholics, formulated in a free Parliament, should express his further pleasure; and that the regular clergy who would accept this peace should be allowed to continue to hold their houses and possessions. Further concessions were to be dependent on the king's wishes.[59] The Catholic Confederation as such was dissolved, and Ormond was installed as Lord Lieutenant to govern the country in conjunction with twelve Commissioners of Trust appointed by the Confederates. But O'Neill and his army still held out against any terms with Ormond, and a large number of the cities refused to hold any communications with him. Still he hoped to capture Dublin from the Parliamentarians before help could arrive from England, but he suffered a terrible defeat at Rathmines (2 Aug. 1649). Less than a fortnight later Oliver Cromwell[60] arrived in Dublin with a large force to crush both the Royalists and the Catholics.

Cromwell, having taken a little time for his troops to recruit, marched on Drogheda, then held for the king by Sir Arthur Aston, and so earnestly did he push forward the siege that in a short time he carried the city by assault, and put most of the garrison and a large number of the citizens to death. Over a thousand were slaughtered in St. Peter's Church to which they had fled for refuge, and special vengeance was meted out to the clergy, none of them who were recognised being spared. Similar scenes of wholesale butchery took place at Wexford, into which his army gained admission by treachery.[61] Ormond was unable to make headway against such a commander, and frightened at last by the prospect that opened out before him, he made overtures to O'Neill for a reconciliation. O'Neill agreed to lend his aid against Cromwell. He sent a portion of his army south, and he himself, though ill, was already on the march when he died at Cloughoughter (6 Nov. 1649). His death at such a time was an irreparable loss both to the Catholic religion and to Ireland. Had he lived, and had Ormond and his faction co-operated with him, the campaign of Cromwell might have had a very different termination. During the closing months of 1649 the situation in Ireland seemed hopeless. Though as an unscrupulous diplomatist Ormond had few equals, he was utterly worthless as a soldier, and to make matters worse he was still distrusted by the great mass of the Irish people. In the hope of restoring unity and of encouraging the people to continue the struggle a synod of the bishops and clergy assembled at Clonmacnoise (Dec. 1649). They issued a declaration warning the people that they could expect no mercy from the English Parliament, that the wholesale extirpation of Catholicism was intended, as was

evidenced by the actions of Cromwell, and that the lands of the Irish Catholics were to be handed over to English adventurers. They called upon them to forget past differences, to sink racial and personal jealousies, and to unite against the common enemy.[62] But the country distrusted Ormond, and refused to rally to his standard. Another meeting consisting of the bishops and of the Commissioners of Trust was held at Loughrea, in which it was agreed that there should be a general levy of all men fit to bear arms, and the monastery of Kilbegan was fixed as the place of rendezvous. Several of the cities and leading men refused, however, to take any part in a movement controlled by Ormond, and as a last desperate resort, at the meeting of the bishops held at Jamestown (12 Aug. 1650) the bishops declared that there could be no hope of unity unless Ormond surrendered his trust to some person in whom the entire country had confidence.[63] Very reluctantly Ormond agreed to this request and left Ireland in December, having appointed the Earl of Clanrickard as his successor. The latter was a Catholic who had played a very ignoble part throughout the war. Had he displayed years before but half the energy he displayed in its later stages things might never have come to such a pass.

As it was, Cromwell made great progress in the South, though he was forced to raise the siege of Waterford, and suffered a bad defeat at Clonmel from the nephew of O'Neill. He left Ireland in May 1650, and entrusted the command to Ireton. Owing to the state of disunion Ireton was enabled to take city after city. Limerick was taken in 1651, and Terence O'Brien, Bishop of Emly, was put to death. Bishop MacMahon of Clogher, who had assumed the leadership of the army of Owen Row O'Neill after the latter's death was defeated at Scarrifhollis (1650). Later on he was captured, and put to death, his head being impaled on the gates of Enniskillen as a warning to his co-religionists. The submission of Clanrickard in 1652 practically put an end to the war, and before another year had elapsed all effective resistance had ceased.

During the Kilkenny Confederation the Catholic Church was restored to its original position. In the districts controlled by the Confederates the bishops and clergy were allowed to occupy once more their houses and churches wherever these had not been destroyed, and religious communities of both men and women were set up again close to their former monasteries and convents, though at the same time the Catholic Lords of the Pale were alert lest they should be asked to return any of the ecclesiastical or monastic lands that had been granted to them by royal patent. In Dublin and wherever Ormond and the Royalists had authority, both clergy and people enjoyed complete toleration, but in certain portions of the North, and wherever the Puritans and Parliamentarians held sway, persecution was still the order of the day. When Dublin was surrendered to the Parliamentarians (1647) the priests, and later on, all Catholics, were expelled from the city. In the South of Ireland Lord Inchiquin acted in the most savage manner in Cashel and generally in the cities which he conquered, while the Parliamentarian party in the North showed no mercy to the Catholics who fell into their hands. After the arrival of Cromwell the prospect became even more gloomy. Though he announced that he would interfere with no man's religion, he declared that on no account could he tolerate the celebration of Mass.[64] The clergy were put to the sword in Drogheda and Wexford. The Archbishop of Tuam was killed during the war (1645); Boetius Egan, Bishop of Ross,

fell into the hands of Lord Broghill and was put to a cruel death because, instead of advising the garrison of Carrigdrohid to surrender, he encouraged them to continue the struggle (1650); Terence Albert O'Brien, Bishop of Emly, was captured by Ireton after the siege of Limerick, and was hanged; Heber MacMahon, Bishop of Clogher, was put to death by the orders of Coote (1650); Bishop Rothe of Ossory died as a result of the sufferings he endured, and Bishop French of Ferns, after undergoing terrible trials in Ireland, was obliged to make his escape to the Continent.

In arranging the terms of surrender the Cromwellian generals sometimes excluded the bishops and clergy from protection, and at best they granted them only a short time to prepare for leaving the country. The presence of the priests was regarded as a danger for the projected settlement of Ireland, and hence the order was given (1650) that they should be arrested. In 1650 a reward of £20 was offered to any one who would betray the hiding place of any Jesuits, priests, friars, monks, or nuns. At first those clergy who were captured were sent into France and Spain, but later on large numbers of them were shipped to the Barbadoes. Thus, for example, in 1655 an instruction was sent to Sir Charles Coote that the priests and friars then captive in Galway who were over forty years of age should be banished to Portugal or France, while those under that age were to "be shipped away for the Barbadoes or other American plantations." For those who returned death was the penalty that was laid down. Since the priests still contrived to elude their pursuers by disguising themselves as labourers, peasants, beggars, gardeners, etc., an order was issued in 1655 that a general search should be made throughout Ireland for the capture of all priests. Five pounds was to be paid to any one who would arrest a priest, and more might be awarded if the individual taken were of special importance. When the jails were well filled, another instruction was issued that the priests should be brought together at Carrickfergus for transportation. Here it was claimed that some offered to submit to the terms of the government rather than allow themselves to be sent away, but as the statement comes from an unreliable source it should be received with caution. In 1657 Major Morgan, representative of Wicklow in the United Parliament of England and Ireland, declared: "We have three beasts to destroy that lay heavy burthens upon us. The first is the wolf, on whom we lay five pounds a head of a dog, and ten pounds if a bitch. The second beast is a priest, on whose head we lay ten pounds, and if he be eminent, more. The third beast is a Tory, on whose head, if he be a public Tory we lay twenty pounds, and forty shillings on a private Tory." Towards the end of the Protectorate the government, instead of transporting the priests abroad, sent them in crowds to the Island of Aran and to Innisbofin. "The Lord Deputy and Council," wrote Colonel Thomas Herbert (1658), "did in July last give order for payment of £100 upon account to Colonel Sadleir, to be issued as he should conceive fit for maintenance of such Popish priests as are or should be confined to the Isle of Boffin, according to six-pence daily allowing, building cabins and the like. It is not doubted but care was taken accordingly, and for that the judges in their respective circuits may probably find cause for sending much more priests to that island, I am commanded to signify thus much unto you that you may not be wanting to take such care in this business as according to former directions and provision is made."[65]

Already in 1642 the English Parliament had passed measures for the wholesale confiscation of Catholic Ireland, and had pledged the land to these "adventurers" who subscribed money to carry on the war. In 1652, when the reduction of Ireland was practically complete, it was deemed prudent to undertake the work of clearing Leinster and Munster of its old owners to prepare the way for the adventurers and for the soldiers, whose arrears were paid by grants of farms or estates. According to the terms of the Act and of the Instructions issued in connexion with it all Irish Catholics were commanded to transplant themselves to Connaught before the 1st May 1654 under pain of being put to death by court-martial if they were found after that date east of the Shannon. Exceptions were indeed made in the case of those women who were married to English Protestants before December 1650, provided that they themselves had become Protestant; in case of boys under fourteen and girls under twelve in Protestant service and who would be brought up Protestants, and lastly in case of those who could prove that for the previous ten years they had maintained "a constant good affection" towards the Parliament. The order to transplant was notified throughout Ireland, and a commission was set up at Loughrea to consider claims and to make assignments of land in Connaught, all of which was to be at the disposal of the Irish except a prescribed territory along the sea-board. Even the inhabitants of Galway, who had submitted only on the express condition of retaining their lands, were driven out of the city, and the city itself was handed over to the corporations of Gloucester and Liverpool to recoup them for the losses they had suffered during the Civil War. Petitions began to pour in for mercy or at least for an extension to the time-limit, but though on the latter point some concessions were made, few individuals were allowed any reprieve. The landowners were marked men, and they were obliged to go. It would be impossible to describe the hardship and miseries suffered by those who were forced to leave their own homes, and to seek a refuge in what was to them a strange country. To ease the situation large numbers of the men capable of bearing arms were shipped to Spain, or to others of the Continental countries, but soon it was thought that this was bad policy likely only to serve some of England's rivals. It was then determined to transport large numbers to the West Indies, the Barbadoes, Jamaica, and the Caribee Islands. Ship-loads of boys and girls were seized according to orders from England, and were sent out of the country under the most awful conditions to a land where a fate awaited many of them that was worse than death.[66] The magistrates had no scruple in committing all Catholics who remained east of the Shannon and who were brought before them, as vagrants, and then they were hurried off to the coast.

At first the idea was to remove the native population entirely from Leinster and Munster lest the soldiers and "adventurers" might be contaminated, and stern measures were taken to prevent any of the officers or men from taking Irish wives. Ireton laid it down that any officer or soldier who dared to marry an Irish girl until she had been examined by a competent board to see whether her conversion flowed "from a real work of God upon her heart," should be punished severely.[67] But later on petitions poured in from the new Protestant landowners to be allowed to keep Catholics as servants and labourers, and on the understanding that the masters would utilise this opportunity to spread the true religion, their requests were

granted. Some obtained dispensations or at least managed to secure delays; others probably were able to come to terms with the soldiers to whom their farms had fallen in the general lottery, and others still preferred to risk the danger of transportation by remaining in their own district rather than to seek a new home. Had the Protectorate lasted long enough the policy of transplanting might have succeeded, but as it was the Cromwellian planters soon disappeared or became merged into the native population, and in spite of all the bloodshed and robbery, the people of Ireland generally were as devoted to the Catholic religion in 1659 as they had been ten years before.[68]

When it became clear from the course of events in England that Charles II. was about to be restored to the throne Lord Broghill and Sir Charles Coote, both of whom had helped to crush the Irish Royalists and had profited largely by the Revolution, hastened to show their zeal for the king's cause. The Catholics who had fought so loyally for his father hoped that at last justice would be done to them by re-instating them in the lands from which they had been driven by the enemies of the king. But Charles was determined to take no risks. He sent over the Duke of Ormond, the most dangerous enemy of the Catholic religion in Ireland, as Lord Lieutenant (1660). A Parliament was called in 1661, and as the Catholics had been driven from the corporate towns during the Cromwellian régime and as the Cromwellian planters were still in possession, the House of Commons was to all intents and purposes Protestant. An Act of Settlement was passed whereby Catholics who could prove their "innocence" of the rebellion were to be restored, but the definition of innocence in the case was so complicated that it was hoped few Catholics, if any, would succeed in establishing their claims (1661). A Court of Claims composed of five Protestant Commissioners, was set up to examine the individual cases, but in a short time, when it was discovered that a large number of Catholics were succeeding in satisfying the conditions laid down by law for restoration to their property, an outcry was raised by the planters, and the Court of Claims was suspended (1664). The Act of Explanation was then passed to simplify the proceedings, as a result of which act two-thirds of the land of Ireland was left in the hands of the Protestant settlers. Close on sixty of the Catholic nobility were restored as a special favour by the king, but a large body of those who had been driven out by Cromwell were left without any compensation.

In consequence of the Cromwellian persecution nearly all the bishops and a large body of the clergy, both secular and regular, had been driven from Ireland, but after the accession of Charles, who was known to be personally friendly to the Catholics, many of them began to return. It would be a mistake, however, to imagine that the persecution had ceased, or that the laws against the clergy were not put in force in several districts. Ormond returned to Ireland as hostile to Catholicity as he had been before he was driven into exile; and as he thought that he had a particular grievance against the Irish bishops he was determined to stir up the clergy against them, to divide the Catholics into warring factions, and by favouring one side to create a royalist Catholic party as distinct from the ultramontane or papal party. For this work he had at hand a useful instrument in the person of Father Peter Walsh, a Franciscan friar, who had distinguished himself as a bitter opponent of the nuncio and as a leader of the Ormondist faction in the Supreme Council. In 1661 it was determined by

some leading members, both lay and clerical, to present an address of welcome to Charles II., but by the influence of Walsh and others the address, instead of being a mere protestation of loyalty, was framed on the model of the Oath of Allegiance (1605), which had been condemned more than once by the Pope. Many of the Catholic lords indicated their agreement with this address or Remonstrance, as it was called, and some of the clergy, deceived by the counsels of Father Walsh, expressed their willingness to adhere to its terms. Ormond, who spent money freely in subsidising Walsh and his supporters,[69] had good reason to be delighted with the success of his schemes. Grave disputes broke out among the clergy, which the government took care to foment by patronising the Remonstrants and by wreaking its vengeance on the anti-Remonstrants on the grounds of their alleged disloyalty. To bring matters to a crisis it was arranged by Walsh and Ormond that a meeting of the bishops, vicars, and heads of religious orders should be held in Dublin (June 1666). In addition to Dr. O'Reilly, Archbishop of Armagh, Bishops Plunkett of Ardagh, and Lynch of Kilfenora, there were present a number of vicars of vacant dioceses together with representatives of the Franciscans, Dominicans, Augustinians, Capuchins, and Jesuits.[70] Dr. O'Reilly spoke strongly against the terms of the Remonstrance as being highly disrespectful to the Pope, and the majority of those present supported his contention. They expressed their willingness to present an address of loyalty from which the objectionable clauses should be omitted. But Walsh, dissatisfied with anything but a complete submission, shifted the ground of the debate, by endeavouring to secure the acceptance of the assembly of the pro-Gallican declaration of the Sorbonne (1663). Even still his efforts were far from being successful, and the meeting was dissolved by Ormond. The primate was kept a prisoner in Dublin for some months, and then transported to the Continent, while the other members present were obliged to make their escape from Ireland or to go into hiding. By orders of Ormond close watch was kept upon the clergy who sided against the Remonstrance, and many of them were thrown into prison.[71]

In 1669 Ormond was recalled, and after a short time Lord Berkeley was sent over as Lord Lieutenant. Though he was instructed to "execute the laws against the titular archbishops, bishops, and vicar-generals, that have threatened or excommunicated the Remonstrants,"[72] yet, as the personal friend of the Duke of York, and as one who knew intimately the king's own views, he acted in as tolerant a manner towards Catholics as it was possible for him to do considering the state of mind of the officials and of the Protestant bishops and clergy. From 1670 till the arrival of Ormond once more in 1677, though several proclamations were issued and though here and there individual priests were persecuted, Catholics as a body enjoyed comparative calm. The Holy See took advantage of this to appoint to several of the vacant Sees. Amongst those appointed at this time were Oliver Plunket to Armagh (1669), Peter Talbot to Dublin, which had not been filled since the death of Dr. Fleming in 1655, William Burgat to Cashel (1669), and James Lynch to Tuam. Dr. Plunket had accompanied Scarampi to Rome (1645), where he read a particularly brilliant course as a student of the Irish College, and afterwards acted as a professor in the Propaganda till his nomination to Armagh. Dr. Talbot was born at Malahide, joined the Society of Jesus, was a close personal friend of Charles II. during the latter's exile on the Continent,

and after the Restoration enjoyed a pension from the king. Shortly after his appointment an outcry was raised against him because he and his brother, Colonel Talbot, were supposed to be urging a re-examination of the Act of Settlement, and Charles II. was weak enough to sign a decree banishing him from the kingdom. He returned to Ireland only in 1677, the year in which Ormond arrived for his last term of office as Lord Lieutenant.

Already Shaftesbury's two subordinates, Titus Oates and Tonge, were concocting the infamous story of the Popish Plot in the hope of securing the exclusion of the Duke of York from the throne. In this plot, according to the account of its lying authors, the Catholics of Ireland were to play an important part, the Jesuits and the Archbishops of Dublin and Tuam being supposed to be particularly active. In October 1678 a proclamation was issued ordering all archbishops, bishops, vicars, abbots, and other dignitaries of the Church of Rome, and all others exercising jurisdiction by authority of the Pope, together with all Jesuits and regular priests, to depart from the kingdom before the 20th November, and all Popish societies, convents, seminaries, and schools were to be dissolved at once.[73] This was followed by a number of others couched in a similar strain, and large numbers of priests were sent to the coast for transportation. The chapels opened in Dublin and in the principal cities were closed, and the clergy who remained were obliged to have recourse to various devices to escape their pursuers. Dr. Talbot was arrested and thrown into prison (1678), where he remained till death put an end to his sufferings in November 1680. Though both the king and Ormond were convinced of his innocence, yet such was the state of Protestant frenzy at the time that they dare not move a hand to assist him. Dr. Plunket, after eluding the vigilance of his pursuers for some time, was arrested in 1679. He was brought to trial at Dundalk, but his accusers feared to trust an Irish court, the case was postponed, and in the meantime his enemies arranged that he should be brought to London for trial. Every care was taken to obtain a verdict. The judges refused a delay to bring over witnesses for the defence, and made no attempt to conceal their bias and their hatred for the Catholic religion, the very profession of which was sufficient to condemn him in their eyes. He was executed at Tyburn (1681), and he was the last victim to suffer death in England on account of the plot of Oates and his perjured accomplices.[74] But in Ireland Ormond had no intention of dropping the persecution. Several of the bishops and vicars-general were arrested and either held as prisoners or banished, and spies were sent through the country to track down those who defied the proclamation of banishment by remaining to watch over their dioceses.

On the accession of James II. (Feb. 1685) the Catholics of Ireland had reason to hope for an improvement of their position, and this time at least they were not disappointed. The Duke of Ormond was recalled, and the Earl of Clarendon was sent over as Lord Lieutenant. He was instructed to maintain the Act of Settlement, but at the same time to allow Catholics full freedom of worship, and to consider them eligible for civil and military appointment. With him was associated as military commander Colonel Richard Talbot, Earl of Tyrconnell, brother of the late Archbishop of Dublin. In accordance with the well-known wishes of the king, Catholic officers were appointed in the army, Catholics were allowed once more to act as sheriffs,

magistrates, and judges, and steps were taken to see that the corporations, which had been closed against Catholics for years, should be no longer safe Protestant boroughs. The Irish bishops hastened to present an address of welcome to the king, and they were assured of his Majesty's favour and protection. Religious communities of both men and women were re-opened in Dublin, and in the principal cities throughout Ireland, and synods of the clergy were held to restore order and discipline.[75] Irish Catholics as a body were delighted with the royal edicts in favour of religious toleration, but the small Protestant minority in the country were alarmed at seeing Catholics treated as equals, and particularly at the prospect of seeing the Act of Settlement upset, and their titles to their estates questioned by the real owners whom they had despoiled twenty years before. Their fears were increased when the Earl of Clarendon, whom they regarded as in some sort their protector, was recalled (1687) to make way for the Earl of Tyrconnell as Lord Lieutenant of Ireland. The new Lord Lieutenant was far from being perfect, nor was he always prudent in his policy or his actions, but if his conduct towards the small body of Protestants in Ireland be compared with that of his predecessors for more than a century, or with that of his successors, towards the Irish people, he ought to be regarded as one of the most enlightened administrators of his age.

The revolution that broke out in England (1688), the arrival of William of Orange (1688), and the flight of King James to France were calculated to stir up strife in Ireland, though it is remarkable as showing the fair treatment they had received that a great body of the Irish Protestant bishops were in favour of supporting James against the usurper, and that it was necessary to have recourse to lying stories of an intended general massacre to stir up opposition to the king. Tyrconnell, who had long foreseen such a course of events, had made wonderful preparations, considering the situation of the country and the constitution of his council. Had James II. contented himself with inducing Louis XIV. to send arms and ammunition to Ireland and to utilise to the fullest the splendid French navy, Tyrconnell, aided by the able Irish officers who flocked to his standard from all parts of Europe, might have bidden defiance to all invaders.

But James insisted on returning to Ireland. He landed in March 1689 and proceeded to Dublin, where a national Parliament was summoned to meet in May. As a result of allowing the majority of the people to have some voice in the selection of the members, the House of Commons in 1689 was almost as Catholic as that of 1662 had been Protestant. In the House of Lords the Protestants might have been in the majority had all the spiritual and temporal peers taken their seats, but as several of the bishops were absent from the country, and as many of the lay lords had either joined the party of William or were waiting to see how events would go, few of them put in an appearance. From the beginning it was clear that the ideals of James were not the ideals of the Irish Parliament. He wished merely to make Ireland the stepping-stone to secure his own return to England, while the representatives of Ireland were determined to provide for the welfare and independence of their own country. They began by laying down the principle that no laws passed in England had any binding force in Ireland unless they were approved by the king, lords, and commons of Ireland. They next affirmed the principle of liberty of conscience for all, whether

Catholic or Protestant, thereby setting an example which unfortunately was not followed either in England or in later parliamentary assemblies in Ireland. They decreed further that for the future Catholics should not be obliged to pay tithes for the support of the Protestant ministers, but rather that both Catholics and Protestants should contribute to the support of their respective pastors, a system which no impartial man could condemn as unfair. They repealed the Acts of Settlement and Explanation, and declared that those who held estates in Ireland in October 1641 should be restored to them, or if they were dead that their heirs should enter into possession. The soldiers and adventurers were deprived thereby of the property which they had acquired by legalised robbery and had held for over twenty years, but it was provided that those who had purchased lands from the Cromwellian grantees should be compensated from the estates of those who were then in rebellion against the king. In view of what had taken place in Ulster under James I., of what the Earl of Wentworth had in contemplation for portions of Munster and Connaught had his plants not miscarried, and of what had been done by Cromwell in nearly all parts of Catholic Ireland, the action of the Parliament of 1689 was not merely justifiable. It was extremely moderate. An Act of Attainder was also passed against those persons who had either declared for William of Orange, or who had left the country lest they should be regarded as taking sides with James II. Such men were called upon to return within a certain time unless they wished to incur the penalty of being regarded as traitors and punished as such. It is not true to say that there was any secrecy observed in regard to this act, or that knowledge of it was kept from the parties concerned till the time- limit had expired. It was discussed publicly in the presence of the Protestant bishops and Protestant representatives, and its provisions were well known in a short time in England and Ireland.[76]

Derry and Enniskillen had declared against King James towards the end of 1688, and all efforts to capture these two cities had failed. In August 1689 the Duke of Schomberg arrived at Bangor with an army of about fifteen thousand men, but little was done till the arrival of William of Orange in June 1690. Had the Irish and French military advisers had a free hand they might easily have held their own, even though William's army was composed largely of veteran troops drawn from nearly every country of Europe. Had James taken their advice and played a waiting game, by retiring behind the Shannon so as to allow time to have his own raw levies trained, and to hold William in Ireland when his presence on the Continent against Louis XIV. was so urgently required, the situation would have been awkward for his opponent; and even when James decided to advance had he gone forward boldly, as was suggested to him, and insisted upon giving battle north of Dundalk in the narrow pass between the mountains and the sea where William's cavalry would have been useless, the issue might have been different. But with a leader who could not make up his mind whether to give battle or to retreat, and who, having at last decided to fight in the worst place he could have selected, sent away his heavy guns towards Dublin with the intention of ordering a retirement almost when the decisive struggle had begun, it was impossible for his followers to expect any other result but defeat. In the battle of the Boyne the brunt of the fighting fell upon the Irish recruits, and both the Irish cavalry and infantry offered a stubborn resistance. James fled to Dublin, and in a

short time left Ireland (1690). The Irish and French commanders then fell back on the line of the Shannon, according to their original scheme. They defended Limerick so bravely that William was obliged to raise the siege, but the capture of Athlone (1691) and the defeat of the Irish forces at Aughrim turned the scales in favour of William. Towards the end of August 1691 the second siege of Limerick began. Sarsfield, who was in supreme command, made a vigorous defence, but, as it was impossible to hold out indefinitely, and as there seemed to be no longer any hope of French assistance, he opened up negotiations with General Ginkle for a surrender of the city. As a result of these negotiations the Treaty of Limerick was signed on the 3rd October 1691.[77]

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[1] /Cambrensis Eversus/, iii., 53. /Arch. Hib./ iii., 273 sqq.

[2] /Cal. State Papers, Ireland/ (James I.), i., 17-26.

[3] /Cal. State Papers, Ireland/ (James I.), i., 58-60.

[4] Id., 134, 152-3.

[5] /Cal. State Papers, Ireland/ (James I.), i., 190-3.

[6] /Cal. State Papers, Ireland/ (James I.), i., 143-44.

[7] /Cal. State Papers, Ireland/ (James I.), i., 301-3.

[8] /Cal. State Papers, Ireland/ (James I.), i., 362 sqq.

[9] /Cal. State Papers, Ireland/ (James I.), i., 389-90.

[10] Cf. Introduction to vol. ii. /Calendar of State Papers/ (James I.) lxxi. sqq.

[11] Id., ii., 14 sqq.

[12] Id., i., 474.

[13] Cf. Introduction to vol. ii. /Calendar of State Papers/ (James I.), i., 475.

[14] Id., ii., 131-33.

[15] Cf. Introduction to vol. ii. /Calendar of State Papers/ (James I.), i., 476.

[16] /State Papers, James I./, i., 67, 78, 134, 299; ii., 309-11.

[17] /Archiv. Hib./, iii., 260 sqq.

[18] Moran, /Archbishops of Dublin/, 218 sqq.

[19] Cf. Walsh, /The Flight of the Earls/ (/Archiv. Hib./, ii., iii., app. i.). Meehan, /Fate and Fortunes of the Earls of Tyrone and Tyrconnell/, 1886.

[20] Hill, /An Historical Account of the Plantation of Ulster/, (1608- 20), 1877.

[21] /State Papers/, iii., 284 sqq.

[22] /State Papers/, iv., 80 sqq.

[23] Cf. /Archiv. Hib./, ii., 164-65. /State Papers/, iv., 80-3.

[24] Rothe's /Analecta/ (ed. Moran), xciii. sqq.

[25] Ware's /Works/, i., 206. /Cal. of State Papers/, iv., 171, 232, 240-1.

[26] /Archiv. Hib./, iii., 284 sqq.

[27] /Cal. State Papers/, iv., 373 sqq.

[28] /Archiv. Hib./, iii., 300.

[29] Meagher, /Life of Archbishop Murray/, 111 sqq. /Constitutiones Provinciales et Synodales Eccl. Metropolit. et Primatialis Dublinensis/, 1770.

[30] Renehan-MacCarthy, op. cit., 428 sqq.

[31] For a full account of this Parliament, cf. /Calendar of State Papers/, iv. (Introduction, xxxvi. sqq.). Meehan, op. cit., 255 sqq.

[32] Rothe, /Analecta/, 32 sqq.

[33] Rothe, /Analecta/, 270 sqq.

[34] Ussher's /Works/, (ed. Elrington), i., 58.

[35] /Cal. Carew Papers/, vi., 432-3.

[36] /Hist. MSS. Commission/ X. Report, app. v., 349-50.

[37] Ed. Moran, 1863.

[38] Cf. Renehan-MacCarthy, op. cit., i., 20 sqq., 187 sqq., 258 sqq., 395 sqq.

[39] Ussher's /Works/, i., 72-4.

[40] Bagwell, /Ireland under the Stuarts/, i., 182.

[41] Moran, /Archbishops of Dublin/, 313-15.

[42] Moran, /Spicil. Ossor./, i., 156 sqq.

[43] Ussher's /Works/, i., 94-95.

[44] Cf. Townshend, /The Life and Letters of the Earl of Cork/, 1904, 186 sqq. Bagwell, op. cit., i., 186-9. Moran, /Archbishops of Dublin/, 317 sqq.

[45] Bramhall's /Works/, i., lxxix.

[46] /Irish Commons Journal/, 1640-1.

[47] Dunlop, /Ireland under the Commonwealth/, i., cix.

[48] Moran, /Archbishops of Dublin/, 434-36. Id., /Memoirs of Archbishop Plunket/, 386-88. Renehan-MacCarthy, op. cit., 438 sqq.

[49] /Archiv. Hib./, iii., 359 sqq.

[50] For War, 1641-53, cf. Gilbert, /Aphorismical Discovery of Treasonable Faction, or a Contemporary History of Irish Affairs, 1641-52/, 6 vols., 1879-80. Id., /History of the Irish Confederation/, 7 vols., 1882-91. Carte, /History of the Life of James, Duke of Ormond/, 3 vols., 1736.

[51] Dunlop, op. cit., i., cxvii. /English Historical Review/, i., ii. Lecky, /Ireland in the Eighteenth Century/, 61 sqq.

[52] Carte, /Life of Ormond/, i., 260-1.

[53] Lecky, op. cit., 96 sqq.

[54] /Spicil. Ossor./, ii., 2-8.

[55] Id., i., 262-8.

[56] Bagwell, op. cit., ii., 88-9.

[57] Bagwell, op. cit., 115.

[58] Cf. Aiazzi, /Nunziatura in Irlanda di Mgr. G. B. Rinuccini/, 1844 (tr. Hutton, 1873). /Ninth Report Hist. MSS. Commission/, App. ii., 1884.

[59] Cox, /Hib. Anglicana/, app. 43.

[60] Murphy, /Cromwell in Ireland/, 1883. /The History of the War in Ireland, 1641-53/ (ed. Hogan, S.J., 1873).

[61] On Cromwell's /Massacres/, cf. /Nineteenth Century and After/ (Sept., 1912; Dec., 1912; April, 1913). /Irish Eccl. Record/ (June, 1913; Nov., 1913).

[62] /Spicil. Ossor./, ii., 38-43.

[63] Id., ii., 85 sqq.

[64] /Declaration of the Lord Lieutenant of Ireland, etc., 1641/.

[65] Cf. Dunlop, op. cit. (the official documents are given in this book). Prendergast, /The Cromwellian Settlement of Ireland/, 2nd ed., 312 sqq. (References to P. R. Doc.). Moran, /Spicil Ossor./, i., 374-428.

[66] Williams, /The Regicides in Ireland/ (/Irish. Ecc. Record/, Aug., 1914).

[67] Prendergast, op. cit., 232 sqq.

[68] On the Cromwellian Plantation, cf. Dunlop, op. cit. (Introduction and Documents). Prendergast, /Cromwellian Settlement/.

[69] Burke, /Irish Priests in the Penal Times/, 11-12.

[70] /Irish Eccl. Record/, 1st ser., vi., 501-15.

[71] Walsh, /History and Vindication of the loyal Formulary or Irish Remonstrance, etc., 1672/.

[72] Cox, /A Letter/, etc., 11.

[73] Cox, op. cit., 14.

[74] For an account of the Ven. Oliver Plunket, cf. Moran, /Memoir of the Ven. Oliver Plunket/, 1861. Id., /Life of Oliver Plunket/, 1895. Burke, op. cit., 77 sqq.

[75] Moran, /Spicil. Ossor./, ii., 289 sqq.; iii., 109 sqq.

[76] On this Parliament, cf. Davis, /The Patriot Parliament of 1689/, 1893. Dunbar Ingram, /Two Chapters of Irish History/, 1888. King, /State of the Protestants of Ireland, 1691/. Leslie, /An Answer to a Book entitled the State of the Protestants of Ireland under the late King James, 1691/. Murphy, /Two Irish Parliaments/ (/Record of the Maynooth Union/, 1907-8).

[77] For an account of the war, cf. /A Jacobite Narrative of the War in Ireland/ (ed. Gilbert, 1892). /Macariae Excidium or the Destruction of Cyprus/ (ed. Crofton Croker, 1841, O'Callaghan, 1850). Boulger, /The Battle of the Boyne/, etc., 1911 (based on the French military reports).

CHAPTER XI

THE PENAL LAWS

Burke, /The Irish Priests in the Penal Times (1660-1760)/, 1914 (a valuable book, based on the State Papers preserved in the Record Office, the Bodleian Library and the British Museum). Curry, /An Historical and Critical Review of the Civil Wars in Ireland from the Reign of Queen Elizabeth to the Settlement of King William III./, 2 vols., 1786. Klopp, /Der Fall des Hauses Stuart u.s.w./, 14 Bde., 1875-88. Madden, /Historical Notice of the Penal Laws against Roman Catholics/, 1865. Lecky, /History of Ireland in the Eighteenth Century/, 5 vols. (new imp., 1913). Parnell, /History of the Penal Laws/, 1808. Id., /An Historical Apology for the Irish Catholics/, 1807. /Works and Correspondence of Edmund Burke/, 8 vols., 1851. Butler, /Historical Memoirs of English, Irish, and Scotch Catholics/, 4 vols., 1819. Scully, /The Penal Laws/, 1812. Murray, /Revolutionary Ireland and its Settlement/, 1911.

When the Irish leaders entered into correspondence with General Ginkle they were by no means reduced to the last extremity. The situation of the besiegers was rendered difficult by the approach of winter, and there was a danger that the city might be relieved at any moment by the appearance of a French fleet in the Shannon. Hence to avoid the risks attendant on the prolongation of the siege and to set free his troops for service on the Continent, where their presence was required so urgently, General Ginkle was willing to make many concessions. Before the battle of Aughrim William had offered to grant the Catholics the free exercise of their religion, half the churches in the kingdom, and the moiety of the ecclesiastical revenues.[1] But the position of both parties had changed considerably since then, and Sarsfield and his companions could hardly expect so favourable terms. They insisted, however, on toleration, and though the first clause of the treaty dealing expressly with that subject was drafted badly, they certainly expected they had secured it. In addition to the military articles the Peace of Limerick contained thirteen articles, the most important of which were the first, and the ninth. By these it was provided that the Catholics should enjoy such privileges in the exercise of their religion as is consistent with the laws of Ireland, and as they did enjoy in the reign of Charles II.; that their Majesties as soon as their affairs should permit them to summon a Parliament would endeavour to procure for Irish Catholics "such further security in that particular as

may preserve them from any disturbance upon account of their religion;" and that the oath to be administered to Catholics should be the simple oath of allegiance to William and Mary. "Those who signed it [the Treaty]," writes Lecky, "undertook that the Catholics of Ireland should not be in a worse position, in respect to the exercise of their religion, than they had been in during the reign of Charles II., and they also undertook that the influence of the government should be promptly exerted to obtain such an amelioration of their condition as would secure them from the possibility of disturbance. Construed in its plain and natural sense, interpreted as every treaty should be by men of honour, the Treaty of Limerick amounted to no less than this."[2] The Treaty was ratified by the sovereigns in April 1692, and its contents were communicated to William's Catholic ally, the Emperor Leopold I. (1657-1705) as a proof that the campaign in Ireland was not a campaign directed against the Catholic religion.

The king was, therefore, pledged to carry out the agreement, and by means of the royal veto and the control exercised by the English privy council he could have done so notwithstanding the bigoted fanaticism of the Protestant minority in Ireland. Nor can it be said that the conduct of the Irish Catholics afforded any pretext for denying them the rights to which they were entitled. Once their military leaders and the best of their soldiers had passed into the service of France there was little danger of a Catholic rebellion, and during the years between 1692 and 1760, even at times when the Jacobite forces created serious troubles in Scotland and England, the historian will search in vain for any evidence of an Irish conspiracy in favour of the exiled Stuarts. The penal laws were due solely to the desire of the Protestant minority to wreak a terrible vengeance on their Catholic countrymen, to get possession of their estates, to drive them out of public life, by excluding them from the learned professions and from all civil and military offices, to reduce them to a condition of permanent inferiority by depriving them of all means of education at home and abroad, to uproot their religion by banishing the bishops and clergy, both regular and secular, and in a word to reduce them to the same position as the native population of the English plantations in the West Indies.

For some years, however, after the overthrow of the Irish forces, it was deemed imprudent by the king and his advisers to give the Irish Protestants a free hand. Louis XIV. was a dangerous opponent, and till the issue of the great European contest was decided it was necessary to move with caution at home. Besides, Leopold I., William's faithful ally, could not afford, even from the point of view of politics, to look on as a disinterested spectator at a terrible persecution of his own co-religionists in Ireland. But once the fall of Namur (1695) had made it clear that Louis XIV. was not destined to become the dictator of Europe, and above all once the Peace of Ryswick (1697) had set William free from a very embarrassing alliance, the Protestant officials in Ireland were allowed a free hand. Parliament was convoked to meet in 1692. The Earl of Sydney was sent over as Lord Lieutenant, and in accordance with the terms of the Treaty of Limerick Parliament should have confirmed the articles. But men like Dopping, the Protestant Bishop of Meath, took care to inflame passion and bigotry by declaring that no faith should be kept with heretics, and when Parliament met it was in no mood to make any concessions. The few Catholic members who presented

themselves were called upon to subscribe a Declaration against Transubstantiation prescribed by the English Parliament, but which had no binding force in Ireland. Having in this way excluded all Catholics from Parliament, an exclusion which lasted from 1692 till the days of the Union, the Houses passed a bill recognising the new sovereigns, and another for encouraging foreign Protestants to settle in Ireland,[3] but they refused absolutely to confirm the Treaty of Limerick. After Parliament had been prorogued the privy council endeavoured to induce the Earl of Sydney to issue a proclamation ordering the bishops and clergy to depart from the kingdom, but under pretence of consulting the authorities in England he succeeded in eluding the would-be-persecutors, who were obliged to content themselves with indirect methods of striking at the priests, until Sydney was recalled, and until Lord Capel, a man after their own heart, arrived as Lord Lieutenant in 1695.

In August of that year Parliament met once more. In his opening speech the Lord Lieutenant struck a note likely to win the approval of his audience. "My Lords and Gentlemen," he said, "I must inform you that the Lords Justices of England have, with great application and dispatch, considered and re-transmitted all the bills sent to them; that some of these bills have more effectually provided for your future security than hath ever hitherto been done; and, in my opinion, the want of such laws has been one of the greatest causes of your past miseries; and it will be your fault, as well as misfortune, if you neglect to lay hold of the opportunity, now put into your hands by your great and gracious king, of making such a lasting settlement, that it may never more be in the power of your enemies to bring the like calamities again upon you, or to put England to that vast expense of blood and treasure it hath so often been at for securing this kingdom to the crown of England."[4] The measures taken to secure the Protestant settlement will repay study. It was enacted that no parent should send his children beyond seas for education under penalty, both for the sender and the person sent, of being disqualified "to sue, bring, or prosecute any action, bill, plaint, or information in course of law, or to prosecute any suit in a court of equity, or to be guardian or executor, or administrator to any person, or capable of any legacy, or deed of gift, or to bear any office within the realm." In addition such persons were to be deprived of all their property, both real and personal. Any magistrate, who suspected that a child had been sent away could summon the parents or guardians and question them under oath, but failing any proof the mere absence of the child was to be taken as sufficient evidence of guilt. Popish schoolmasters in Ireland were forbidden to teach school under threat of a penalty of £20 and imprisonment for three months. But lest the Catholics might object that they had no means of education, it was enacted that every Protestant minister should open a school in his parish, and every Protestant bishop should see that a "public Latin free-school" was maintained in his diocese. Having fortified Protestantism sufficiently on one flank, the members next proceeded to forbid Papists to keep "arms, armour, or ammunition," empowered magistrates to search the houses of all suspected persons, threatened severe penalties against all offenders, forbade the reception of Popish apprentices by manufacturers of war materials, prohibited all Catholics from having in their possession a horse over the value of £5, and empowered Protestant "discoverers" of infringements of this measure to become owners of their Catholic neighbour's horse

by tendering him five pounds. Lest these laws might become a dead letter it was enacted that if any judge, mayor, magistrate, or bailiff neglected to enforce them he should pay a fine of £50, half of which was to go to the informer, and besides, he should be declared incapable of holding such an office for ever. To prevent any misconception it was explained that all persons, who, when called upon, refused to make the Declaration against Transubstantiation, should be regarded as Papists.[5]

For so far, however, the opportune moment for a formal rejection of the Limerick Treaty had not arrived. But when Parliament met in 1697 it was deemed prudent to carry out the instruction of the Bishop of Meath, that no faith should be kept with Catholics. The Articles of Limerick were confirmed with most of the important clauses omitted or altered. The first clause guaranteeing toleration was deemed unfit to be mentioned in the bill. It is clear that in the House of Lords grave difficulties were urged against such a wholesale neglect of the terms of the treaty, and that it was necessary to invoke the authority of the king and of the English privy council before the measure was passed. Seven of the lay lords, and six of the Protestant bishops lodged a solemn protest against what had been done. Amongst the reasons which they assigned for their disagreement with the majority were: "(1) Because we think the title of the Bill doth not agree with the body thereof, the title being, An Act for the Confirmation of Articles made at the Surrender of Limerick, whereas no one of the said articles is therein, as we conceive, fully confirmed; (2) because the said Articles were to be confirmed in favour of them, to whom they were granted, but the confirmation of them by the Bill is such, that it puts them in a worse condition than they were before, as we conceive; . . . (4) because several words are inserted in the bill, which are not in the Articles, and others omitted, which alter both the sense and meaning, as we conceive."[6]

The way was now clear for beginning the attack upon the clergy. An Act was passed ordering "all Popish archbishops, bishops, vicars-general, deans, Jesuits, monks, friars, and all other regular Popish clergy, and all Papists exercising any ecclesiastical jurisdiction" to depart from the kingdom before the 1st May 1698, under threat for those who remained beyond the specified time, of being arrested and kept in prison till they could be transported beyond the seas. They were commanded to assemble before the 1st May at the ports of Dublin, Cork, Kinsale, Youghal, Waterford, Wexford, Galway, or Carrickfergus, register themselves at the office of the mayor, and await till provision could be made for transporting them. All such ecclesiastics were forbidden to come into the kingdom after the 29th December 1697, under pain of imprisonment for twelve months, and if any such person ventured to return after having been transported he should be adjudged guilty of high treason. If any person knowingly harboured, relieved, concealed, or entertained any popish ecclesiastic after the dates mentioned he was to forfeit £20 for the first offence, £40 for the second, and all his lands and property for the third offence, half to go (if not exceeding £100) to the informer. Justices of the peace were empowered to summon all persons charged upon oath with having aided or received ecclesiastics and to levy these fines, or to commit the accused person to the county jail till the fines should be paid. All persons whatsoever were forbidden after the 29th December 1697, to bury any deceased person "in any suppressed monastery, abbey, or convent, that is not

made use of for celebrating divine service, according to the liturgy of the Church of Ireland as by law established, or within the precincts thereof, under pain of forfeiting the sum of ten pounds," which sum might be recovered off any person attending a burial in such circumstances. Justices of the peace were empowered to issue warrants for the arrest of ecclesiastics who came into Ireland, or remained there in defiance of these statutes, and were commanded to give an account of their work in this respect at the next quarter sessions held in their counties. Finally, it was provided that any justice of the peace or mayor who neglected to enforce this law should pay a fine for every such offence of £100, half of which was to be paid to the informer, and should be disqualified for serving as a justice of the peace. An Act was also passed "to prevent Protestants intermarrying with Papists." If any Protestant woman, heir to real estate or to personal estate value £500 or upwards, married a husband without having first got "a certificate in writing under the hand of the minister of the parish, bishop of the diocese, and some justice of the peace," and attested by two witnesses that her intended husband was a Protestant, the estates or property devolved immediately on the next of kin if a Protestant; and if any man married without having got a similar certificate that the lady of his choice was a Protestant he became thereby disqualified to act as a guardian or executor, to sit in the House of Commons, or to hold any civil or military office, unless he could prove that within one year he had converted his wife to the Protestant religion. Any clergyman assisting at such marriages was liable to a penalty of £20, half of which was to be paid to the informer.[7]

In order to secure that none of the bishops or regular clergy should escape, the revenue officers in the different districts were instructed to make a return of the names and abodes of all priests on the 27th July 1697. According to the digest compiled from these returns there were then in Ireland eight hundred and ninety-two secular priests and four hundred and ninety-five regulars. The houses of the regular clergy were broken up; their property was disposed of or handed over in trust to some reliable neighbour, and the priests prepared to go into exile. During the year 1698 four hundred and forty-four of them were shipped from various Irish ports, several others were arrested and thrown into prison, and a few escaped by passing as secular priests. Many of the unfortunate exiles made their way to Paris, where they were dependent upon the charity of the French people and of the Pope. Similar vigorous action was taken to secure the banishment of the bishops and vicars, in the hope that if these could be driven from the country the whole machinery of the Catholic Church in Ireland would become so disorganised that its total disappearance in a short time might be expected. Several of the bishops had been declared traitors for having supported the cause of James I., and had been obliged to flee to the Continent. Two others were shipped in accordance with the law of 1697; three were discovered by the revenue officials, of whom the Bishop of Clonfert was arrested, rescued, and died; the Bishop of Waterford made his escape after a few years of hiding, and the Bishop of Cork was arrested and transported (1703). So that there remained in Ireland only the Archbishop of Cashel and the Bishop of Dromore. News of what was taking place in Ireland was conveyed to the Emperor, who instructed his ambassador to lodge a strong protest, but the ambassador was put off with empty

promises or with a bold denial of the truth of his information. Nor were these acts allowed to remain a dead letter. The revenue officials, the magistrates, sheriffs, judges, Protestant bishops, and Protestant ministers joined in the hunt for regulars, bishops, vicars, deans, etc., and generous rewards were offered to all informers.[8]

The accession of Queen Anne (1702-14) led only to a still more violent persecution. Parliament met in September 1703, and proceeded almost immediately to attack both priests and lay Catholics. Most of the bishops were dead or had been driven from the country. The regulars, it was thought, could not survive. It was determined, therefore, to attack the remaining secular clergy in two ways, first by enforcing strictly the laws against Catholic education in Ireland, and by making more severe the laws against going to colleges abroad,[9] as well as by enacting that any priest who entered Ireland after 1st January 1704 should be punished in accordance with the terms of the law laid down previously against bishops and regulars,[10] so that by these means the supply of clergy might be cut off; and second, by obliging all the priests in Ireland to register themselves so that the government could lay hold of them whenever it wished to do so. According to this latter measure all priests were commanded to give an account to the clerks of the peace of their district, of their place of abode, their parishes, together with the time and place of their ordination, and were to provide two securities of £50 for their future good behaviour; those who neglected to make this return were to be imprisoned and transported; and it was provided later on that no parish priest could have an assistant or curate.[11] To crush the Catholic laymen it was enacted that in case the eldest son became a Protestant his father could not sell, mortgage, or otherwise dispose of the family property; that no Catholic could act as guardian to orphans or minors, but that these should be handed over to the custody of some Protestant who was required to bring them up in the Protestant religion; that no Catholic could purchase any lands, tenements, or hereditaments, or any profits or rents from such possessions, or acquire leases for a term exceeding thirty-one years or inherit as nearest of kin to any Protestant; the estates of a Catholic landowner dying without a Protestant heir were to be divided equally among his sons; no person could hold any office, civil or military, without subscribing to the Declaration against Transubstantiation, and the oath of abjuration, and receiving the sacrament; no Catholics, unless under very exceptional circumstances, could be allowed to live in Galway and Limerick, and no person could vote at any election without taking the oaths of allegiance and abjuration. Sir Theobald Butler appeared at the bar of the House of Commons to plead against these measures, and to point out that as no laws of the king were in force in the days of Charles II. the proposed bill was in direct opposition to the terms of the Treaty of Limerick,[12] but his protest produced no effect in England or in Ireland.

The whole army of government officials, Protestant ministers, and spies were set to work to discover what persons had left Ireland to go abroad for education, to seize all priests found entering the country, and to take measures against those in the country who neglected to register themselves as they had been commanded to do. One hundred and eighty-nine priests were registered in Ulster, three hundred and fifty-two in Leinster, two hundred and eighty-nine in Munster, and two hundred and fifty-nine in Connaught.[13] Against the laity, too, the full penalties of the law were

enforced, but yet it is satisfactory to note that in the year 1703 only four certificates of conformity were filed, sixteen in 1704, three in 1705, five in 1706, two in 1707, and seven in 1708.[14] It was clear, therefore, that if the Catholic religion was to be suppressed recourse must be had to even more extreme measures. In 1709 an act was passed ordering all priests to take the Oath of Abjuration before the 25th March 1710, unless they wished to incur all the pains and penalties levelled against the regular clergy.[15] By the Oath of Abjuration they were supposed to declare that the Pretender "hath not any right or title whatsoever to the crown of this realm or any other the dominions thereunto belonging," that they would uphold the Protestant succession, and that they made this declaration "heartily, willingly, and truly." Rewards were laid down for the encouragement of informers, £50 being allowed for discovering an archbishop, bishop, vicar, or any person exercising foreign jurisdiction, £20 for the discovery of a regular or a non- registered secular priest, and £10 for the discovery of a Popish schoolmaster. To facilitate the arrest of the clergy it was provided that any two justices of the peace might summon Catholics before them and interrogate them under oath when and where they heard Mass last, what priest officiated, and who were present at the ceremony. Failure to give the required information about Mass, priests, or school- masters was to be punished by imprisonment for twelve months or until the guilty person paid a fine of £20. A pension of £20 a year, increased afterwards to £40, was provided for those priests who left the Catholic Church.[16] As regards lay Catholics further measures were taken to encourage the children of Catholic parents to become Protestant by ordaining that in such a case the Court of Chancery could interfere and dictate to the father what provision he must make for such children. Similarly wives of Catholics were encouraged to submit by the promise that the Court of Chancery would interfere to safeguard their interests. Stringent regulations were made to ensure that all pretended converts engaged in the professions and in public offices should rear their children in the Protestant faith, and to ensure that no Catholic could teach school publicly or privately or even act as usher in a Protestant school.

The priests, though not unwilling to take a simple oath of allegiance, refused as a body to take the Oath of Abjuration, and immediately they became liable to all the punishments directed against the bishops and regulars. Wholesale arrests took place over the country; spies were employed to track them down; the men who had gone security for their good behaviour in 1704 were commanded to bring them in under threat of having the recognisances estreated; judges were ordered to make inquiries at the assizes; and Catholics were called upon to discover on their clergy by giving information about the priests who celebrated Mass. The search was carried on even more vigorously in Munster and Connaught than in Ulster and Leinster, so that during the remainder of the reign of Queen Anne no priest in any part of Ireland could officiate publicly with safety.[17] Petitions were drawn up and forwarded to all the Catholic sovereigns of Europe, asking them to intercede for their co-religionists in Ireland, but though many of them did instruct their representatives in London to take action, their appeals and remonstrances produced very little effect.[18] At the same time the laws in regard to Catholic property, and Catholic education were enforced with great severity, particular care being taken that only Protestants should be

recognised as guardians of Catholic minors or orphans, and that the guardians should rear the children as Protestants. Against the law, the wishes or even the last testament of a dying father were of no avail.[19]

During the reign of George I. (1714-27) there was very little improvement in the condition of the Catholics of Ireland. Indeed, in regard to legal enactments their condition was rendered much worse. They were obliged to pay double the contribution of their Protestant neighbours for the support of the militia; their horses could be seized for the use of the militia; they were prevented from acting as petty constables or from having any voice in determining the amount to be levied off them for the building and repairing of Protestant churches or for the maintenance of Protestant worship. In 1719 a new and more violent measure was passed by the House of Commons, according to one of the clauses of which all unregistered priests caught in Ireland were to be branded with a red-hot iron upon the cheek. The Irish privy council changed this penalty into mutilation, but when the bill was sent to England for approval the original clause was restored. For purely technical reasons the bill never became law.[20] In 1742 another bill was introduced and passed by both Houses in Dublin by which all unregistered priests who did not depart out of Ireland before March 1724 were to be punished as guilty of high treason unless they consented to take the Oath of Abjuration; a similar punishment was decreed against bishops, vicars, deans, and monks without allowing them any alternative; all persons adjudged guilty of receiving or affording assistance to priests were to be put to death as felons "without benefit of clergy;" Popish schoolmasters and tutors were to undergo a like punishment, and to ensure that the law would be enforced ample rewards were given to all informers. But when the bill was sent to England it failed to receive the sanction of the king and privy council, and was therefore allowed to lapse.[21]

The results of these laws made to secure the extirpation of the Catholic religion were to be seen in 1731 when a systematic inquiry was conducted by the Protestant ministers and bishops into the condition of the Catholics in every single parish in Ireland. In Armagh there were only twenty-five "Mass-houses," some of them being mere cabins; in Meath there were one hundred and eight; in Clogher only nine although in addition it was reported that there were forty- six altars where the people heard Mass in the open air; in Raphoe one "old Mass-house," one recently erected, "one cabin, and two sheds;" in Derry there were nine Mass-houses, all "mean, inconsiderable buildings," but Mass was said in most parts of the diocese in open fields, or under some shed set up occasionally for shelter; in Dromore there were two Mass-houses, and "two old forts were Masses are constantly said;" and in Down there were five Mass-houses, but in addition the priests celebrated "in private houses or on the mountains." In the diocese of Dublin it was reported that the number of Mass-houses amounted to fifty-eight, sixteen of which were situated within the city; in Ferns there were thirty-one together with eleven "moveable altars in the fields;" in Leighlin, twenty-eight, besides three altars in the fields and three private chapels, and in Ossory their were thirty-two "old Mass-houses" and eighteen built since the reign of George I. In Cashel there were forty "Mass-houses," and it was noted particularly that one was being built at Tipperary, "in the form of a cross, ninety-two

feet by seventy-two;" in Cloyne there were seventy Mass-houses. In Tuam the Protestant archbishop reported that there were Mass-houses in most parishes; in Elphin it was reckoned that there were forty-seven "Mass-houses," a few of them being huts; in Killala there were four, in Achonry thirteen, in Clonfert forty, and in Kilmacduagh there were thirteen. But in a remarkable fact that in spite of all the legal penalties directed against the priests, and of all the work that was being done by the government officials, the "priest-catchers," whose profession according to the Irish House of Commons was an honourable one, and by the magistrates, and ministers, there was a very large number of secular priests still ministering to the people and also of friars, who were reported as being active in preaching to the people sometimes in private houses and sometimes in the open fields. And it is even still more remarkable that despite the vigilance of the Protestant bishops there were even then over five hundred "popish schools" in some of which the classics were taught, and there were besides several schoolmasters who moved from place to place. The Protestant Bishop of Derry announced with a considerable amount of pride that there were not any popish schools in his diocese. "Sometimes," he said, "a straggling schoolmaster sets up in some of the mountainous parts of some parishes, but upon being threatened, as they constantly are, with a warrant, or a presentment by the church- wardens, they generally think proper to withdraw."[22]

During the reign of George II. (1727-60) the persecution began to abate, though more than one new measure was added to the penal laws. Primate Boulter, who was practically speaking ruler of the country during his term of office, was alarmed at the large number of Papists still in the country--five to one was his estimate--and at the presence of close on three thousand priests, and suggested new schemes for the overthrow of Popery. The Catholics were deprived of their votes at parliamentary or municipal elections lest Protestant members might be inclined to curry favour with them by opposing the penal code; barristers, clerks, attornies, solicitors, etc., were not to be admitted to practice unless they had taken the oaths and declarations which no Catholic could take; converts to Protestantism were to be treated similarly unless they could produce reliable evidence that they had lived as Protestants for two years, and that they were rearing their children as Protestants. Very severe laws had been laid down already against marriages between Catholics and Protestants, but as such marriages still took place, it was declared that the priest who celebrated such marriages was to be reputed guilty of felony, that after the 1st May 1746 all marriages between Catholics and persons who had been Protestants within the twelve months preceding the marriage, should be null and void, as should also all marriages between Protestants if celebrated in the presence of a priest. Later on the death penalty was decreed against priests who assisted at such unions.[23] Finally, through the exertions of Primate Boulter and Bishop Marsh, the Charter Schools were established. They were intended, as was explained in the prospectus, "to rescue the souls of thousands of poor children from the dangers of Popish superstition and idolatry, and their bodies from the miseries of idleness and beggary." The schools were entirely Protestant in management, and the children were reared as Protestants. Once a Catholic parent surrendered his children he could never claim them again. In 1745 the Irish Parliament appropriated the fees derived from the

licences required by all hawkers and pedlars to the support of the Charter Schools, and it is computed that between the years 1745 and 1767 these same institutions received about £112,000 from the public funds.[24] Though emancipation was still a long way off, yet after 1760 it began to be recognised that the penal code had failed to achieve the object for which it had been designed. ----------

[1] Lecky, op. cit., i., 140.

[2] Lecky, op. cit., i., 140.

[3] /Irish Statutes/, iii., 241 sqq.

[4] /The Journals of the House of Commons/ (Ireland) ii., 44-5.

[5] /Irish Statutes/, ii., 249-67.

[6] /Journals of the House of Lords/ (Ireland), i., 635-6.

[7] /Irish Statutes/, ii., 339 sqq.

[8] Cf. Burke, op. cit., 131 sqq.

[9] /Statutes/, 2 Anne, cap. 6.

[10] Id., 2 Anne, cap. 3.

[11] Id., 2 Anne, cap. 7; 8 Anne, cap. 3.

[12] Curry, op. cit., ii., 387.

[13] Cf. /Irish Eccl. Record/, 1875. /Cath. Directory/, 1838.

[14] /Ir. Th. Quart./, ix., 148.

[15] /Statutes/, 8 Anne, cap. 3.

[16] /Statutes/, 2 Anne, cap. 7; 8 Anne, cap. 3. In 1780 it was enacted that this pension should "be levied off the inhabitants of the country or town wherein such priest resided or officiated before conformity" (19 & 20 George III., cap. 39).

[17] Cf. Burke, op. cit., chap. iv. (a full account given of the proceedings against the clergy in all the dioceses of Ireland).

[18] Cf. Moran, /Spicil. Ossor./, ii., 399 sqq.

[19] Lecky, op. cit., i., 154 sqq.

[20] Lecky, op. cit., i., 162-3.

[21] Id., 164-5.

[22] /Report on the State of Popery, 1731/. /Archiv. Hib./, i., ii., iii.

[23] /Statutes/, 19 George II., cap. 13; 23 George II. cap. 10.

[24] Lecky, op. cit., i., 234. /Reports of Royal Commission on Education/, 1825, 1854.